

C. Sallusti Crispi De Bello Catilinario Et Jugurthino

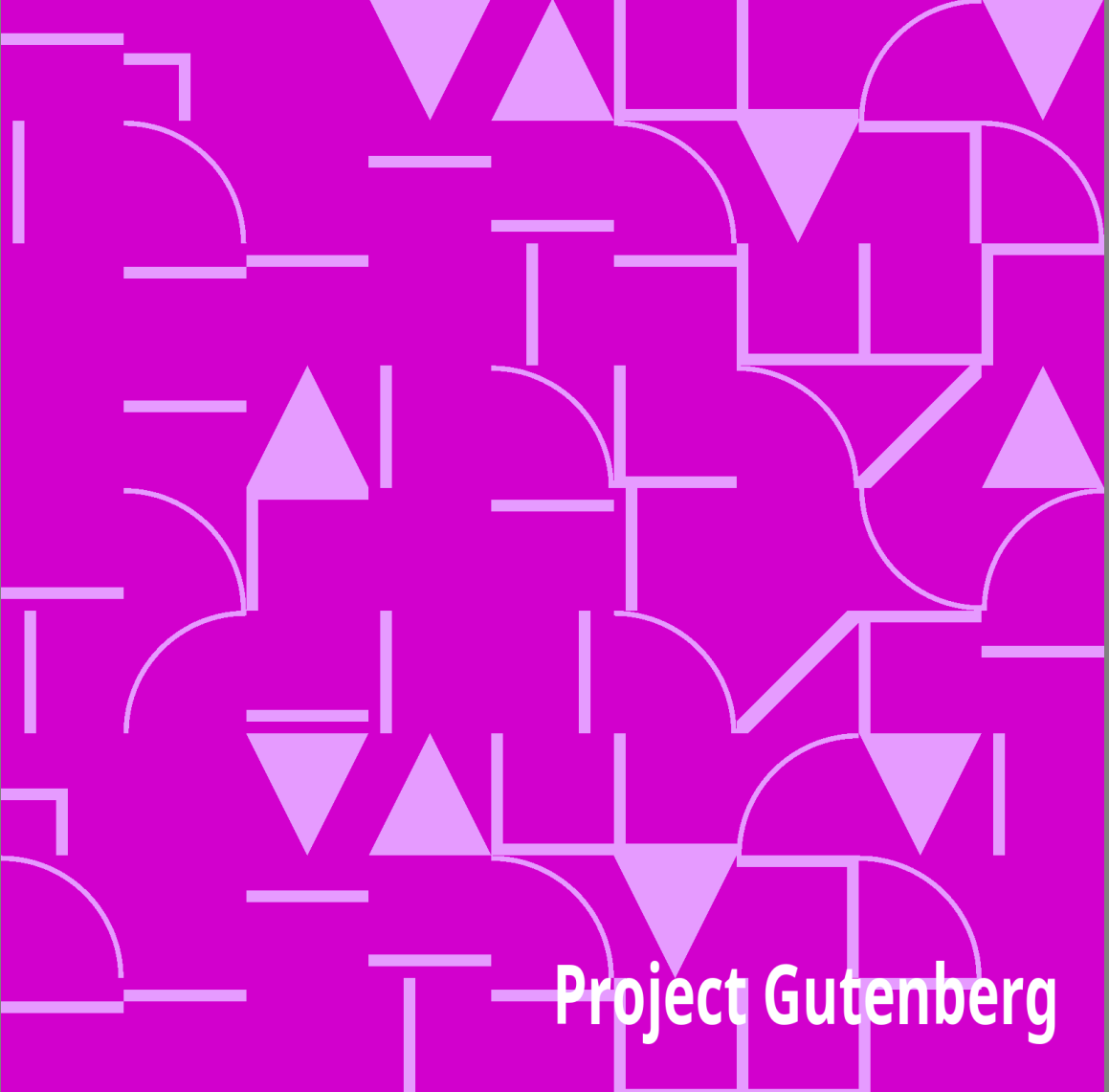
Sallust et al.

A decorative background pattern consisting of various geometric shapes in shades of purple and magenta, including triangles, squares, and semi-circles, arranged in a complex, overlapping design.

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A decorative geometric pattern in shades of pink and magenta, featuring various shapes like triangles, squares, and circles, some solid and some outlined, arranged in a complex, interlocking design.

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CRISPI DE BELLO CATILINARIO ET JUGURTHINO ***

[Illustration: Numidia (Map)]

Classical Series. Edited By Drs. Schmitz And Zumpt.

C. Sallustii Crispi

De Bello Catilinario et

Jugurthino.

Preface.

The text of Sallust, notwithstanding the many and excellent editions which have been published, has not yet acquired a form that can be regarded as generally adopted and established; for the number of manuscripts is great, and their differences have led critical editors to form different opinions as to which, in each case, is the correct reading, or at least the one most worthy of acceptance. This difference of opinion manifested itself especially after the edition of Gottlieb Corte (Leipzig, 1724, 4to.), who in many passages abandoned the vulgate as constituted by Gruter and Wasse, and on the authority of a few manuscripts, altered the text of Sallust, on the mere supposition that his style was abrupt. Corte's recension was adopted by many, and often reprinted; while others, especially Haverkamp, in his valuable and very complete edition (Hague, 1742, 2 vols. 4to.), returned to the vulgate. The latest critical editors of Sallust — Gerlach (Basel, 1823, &c. 3 vols. 4to., and a revised text, Basel, 1832, 8vo.) and Kritz (Leipzig, 1828, &c. 2 vols. 8vo.) — though declaring against the arbitrary proceedings of Corte, yet very often differ in their texts from each other. Between these two stands the edition of the learned critic, J. C. Orelli (Zürich, 1840), whose text forms the basis of the present edition. But besides abandoning his artificial and antiquated orthography, and restoring that which is adopted in most editions of Latin classics, we have felt obliged in many instances to give up Orelli's reading, and to follow the authority of the best manuscripts, especially the Codex Leidensis (marked L in

Haverkamp's edition). For our explanatory notes we are much indebted to the edition of Kritz, though we have often been under the necessity of differing from him.

C. G. Zumpt.

Berlin, *May*, 1848.

Introduction.

Caius Sallustius Crispus, according to the statement of the ancient chronologer Hieronymus, was born in B. C. 86, at Amiternum, in the country of the Sabines (to the north-east of Rome), and died four years before the battle of Actium — that is, in B.C. 34 or 35. After having no doubt gone through a complete course of law and the art of oratory, he devoted himself to the service of the Roman republic at a time when Rome was internally divided by the struggle of the opposite factions of the *optimates*, or the aristocracy, and the *populares*, or the democratical party. The optimates supported the power of the senate, and of the nobility who prevailed in the senate; while the populares were exerting themselves to bring all public questions of importance before the popular assembly for decision, and resisted the influence of illustrious and powerful families, whose privileges, arising from birth and wealth, they attempted to destroy. Sallust belonged to the latter of these parties. In B.C. 52 he was tribune of the people, and took an active part in the disturbances which were caused at Rome in that year by the open struggles between Annius Milo, one of the optimates, who was canvassing for the consulship, and P. Clodius, who was trying to obtain the praetorship. Milo slew Clodius on a public road: he was accused by the populares, and defended by the optimates; but the judges, who could not allow such an act of open violence to escape unpunished, condemned, and sentenced him to exile. Pompey alone, who was then consul for the third time, was capable of restoring order and

tranquillity. The position of a tribune of the people was a difficult one for Sallust: he was to some extent opposed to Milo, and consequently also to Cicero, who pleaded for Milo; but there exists a statement that he gave up his opposition; and he himself, in the introduction to his 'Catiline,' intimates that his honest endeavours for the good of the state drew upon him only ill-will and hatred. Two years later (B.C. 50), he was ejected from the senate by the censor Appius Claudius, one of the most zealous among the optimates. The other censor, L. Piso, did not protect either Sallust, or any of the others who shared the same fate with him, against this act of partiality. Rome was at that time governed by the most oppressive oligarchy, which was then mainly directed against Julius Caesar, who, as a reward for his brilliant achievements in extending the Roman dominion in Gaul, desired to be allowed to offer himself in his absence as a candidate for his second consulship — a desire which the people were willing to comply with, as it was based upon a law which had been passed some years before in favour of Caesar; but the optimates endeavoured in every way to oppose him, and drawing Pompey over to their side, they brought about a rupture between him and Caesar. Sallust was looked upon in the senate as a partisan of the latter, and this was the principal reason why he was deprived of his seat in the great council of the republic; and L. Piso, the father-in-law of Caesar, is said not to have opposed the partiality of his colleague in the censorship, in order to increase the number of Caesar's partisans. When, in B. C. 49, Caesar established his right by force of arms, Sallust went over to him, and was restored not only to his seat in the senate, but was advanced to the praetorship in the year B. C. 47. Sallust served, both before and during his year of

office, in the capacity of a lieutenant in Caesar's armies. He also accompanied him to Africa in the war against the Pompeian party there, and after its successful termination, was left behind as proconsul of Numidia, which was made a Roman province. In the discharge of his duties, he is said to have indulged in extorting money from the new subjects of Rome. He was accused, but acquitted. This is the historical statement of Dion Cassius; but a hostile writer of doubtful authority mentions that, by paying 12,000 pieces of gold to Caesar (perhaps as damages for the injury done), he purchased his acquittal.

Hereupon Sallust withdrew from public life, to devote his leisure to literature, and the composition of works on the history of his native country; for, as after the murder of Caesar, in B. C. 44, the republic was again delivered over to a state of military despotism, peaceful advice was deprived of its influence. It need hardly be mentioned that Sallust, as he had qualified himself for the highest political career, and the great offices of the republic, must have been possessed of an independent property; but the statement, that he afterwards gave himself up to a life of luxury — that he purchased a villa at Tibur, which had formerly belonged to Caesar — and that he possessed a splendid mansion, with a garden laid out with elegant plantations and appropriate buildings, at Rome, near the Colline gate — is founded on the equivocal authority of a writer of a late period, who was hostile to him. It is indeed certain that there existed at Rome *horti Sallustiani*, in which Augustus frequently resided, and which were afterwards in the possession of the Roman emperors; but it is doubtful as to whether they had been acquired and laid out by our historian, or by his nephew, a Roman eques, and particular

favourite of Augustus. The statement that Sallust married Terentia, the divorced wife of Cicero, is still more doubtful, and probably altogether fictitious.^[1] There is, however, a statement of a contemporary, the learned friend of Cicero, M. Varro, which cannot be doubted — that in his earlier years Sallust, in the midst of the party-strife at Rome, kept up an illicit intercourse with the wife of Milo; but how much the hostility of party may have had to do with such a report, cannot be decided. In his writings, Sallust expresses a strong disgust of the luxurious mode of life, and the avarice and prodigality, of his contemporaries; and there can be no doubt that these repeated expressions of a stern morality excited both his contemporaries and subsequent writers to hunt up and divulge any moral foibles in his life and character, especially as in his compositions he struck into a new path, by abandoning the ordinary style, and artificially reviving the ancient style of composition.

The historical works of Sallust are, *De Bello Catilinae*, *De Bello Jugurthino* (or the two *Bella*, as the ancients call them), and five books of *Historiae* — that is, a history of the Roman republic during the period of twelve years, from the death of Sulla in B. C. 78, down to the appointment of Pompey to the supreme command in the war against Mithridates in B. C. 66. This history was regarded by the ancients as the principal work of our author; but is now lost, with the exception of four speeches and two political letters, which some admirer of oratory copied separately from the context of the history, and which have thus been preserved to our times. The two *Bella*, which are preserved entire, form the contents of the present volume.

The work *De Bella Catilinae* formed the beginning of his historical compositions, as is clear from the author's own introduction; but it was not written till after the murder of Caesar in B. C. 44. In it he describes the conspiracy of L. Sergius Catilina, a man of noble birth and high rank, but ruined circumstances; its discovery, and the punishment of the conspirators at Rome in B. C. 63; and its final and complete suppression in a pitched battle at the beginning of the year B. C. 62.

The *Bellum Jugurthinum* treats of the life of Jugurtha, who in B. C. 118, together with his cousins, Adherbal and Hiempsal, governed Numidia. Having crushed his two cousins by fraud and violence, Jugurtha afterwards maintained himself in his usurped kingdom for several years against the Roman armies and generals that were sent out against him, until in the end, after several defeats sustained at the hands of the Roman consuls, L. Metullus and C. Marius, his own ally, Bocchus, king of Mauretania, delivered him up into the hands of the Roman quaestor, L. Sulla.

In the work on the war of Catiline, Sallust reveals especially the corruption of what was called the Roman nobility, by tracing the criminal designs of the conspirators to their sources — avarice, and the love of pleasure. In the history of the Jugurthine war, he particularly exposes and condemns the system of bribery in which the leading men of that age indulged; but on the other hand, he draws a pleasing contrast in describing the restoration of military discipline by Metullus and Marius. The difficult campaigns in the extensive and desert country of Numidia, and the wonderful events of this war, also deserve the attention of the reader; the more so, as

the author has bestowed the greatest care on giving vivid descriptions of them.

Among the writings of Sallust, which have been transmitted to us in manuscripts, and are printed in the larger editions of his works, there are two epistles addressed to Caesar, containing the author's opinions and advice regarding the new constitution to be given to the republic, after the defeat of the optimates and their faction by the dictator. They are written in his own peculiar style: the first contains excellent ideas and energetic exposures of the general defects and evils in the state, as well as plans for remedying them; the second adds some proposals regarding the courts of justice, and the composition of the senate, the utility and practicability of which appear somewhat doubtful. The authenticity of these epistles, therefore, is still a matter of uncertainty. Lastly, there are two Declamations (*declamationes*), the one purporting to be by M. Cicero against Sallust, and the other by Sallust against Cicero; but both are evidently unworthy of the character and style of the men whose names they bear, and are justly considered to be the production of some wretched rhetorician of the third or fourth century of the Christian era.^[2] Such declaimers made use of all possible reports that were current respecting the moral weaknesses of the two men, and respecting an enmity between them, of which history knows nothing, and which is contradicted by our author himself, by the praise he bestows, in his 'Catilinarian War,' upon Cicero.

Sallust's character as an historian, and his grammatical style, have been the subjects of contradictory opinions even among the ancients themselves — both his own contemporaries, and the men of

succeeding ages. Some condemned his introductions, as having nothing to do with the works themselves; found fault with the minute details of the speeches introduced in the narrative; and called him a senseless imitator, in words and expressions, of the earlier Roman historians, especially of Cato. Others praised him for his vivid delineations of character, the precision and vigour of his diction, and for the dignity which he had given to his style by the use of ancient words and phrases which were no longer employed in the ordinary language of his own day. But however different these opinions may appear, there is truth both in the censure and in the praise, though the praise no doubt outweighs the censure; and the general opinion among the later Romans justly declared *primus Romana Crispus in historia*. It is obvious that it is altogether unjust to say that his introductions are unsuitable, and that the speeches he introduces are inappropriate: for an author must be allowed to write a preface to make an avowal of his own sentiments; and the speeches are inseparably connected with the forms of public life in antiquity: they are certainly not too long, and express most accurately, both in sentiment and style, the characters of the great men to whom the author assigns them. We have no hesitation in declaring that the speeches in the Catiline and Jugurtha, as well as those extracted from the *Historiae*, are the most precious specimens of the kind that have come down to us from antiquity.

As regards the grammatical style and the imitation of earlier authors, for which Sallust has been blamed by some, and praised by others, it must be observed that he is the first among the classical authors extant in whose works we perceive a difference between the refined language of public life, such as we have it in Cicero and Caesar, and

a new and artificially-formed language of literature. Cicero and Caesar wrote just as a well-educated orator of taste spoke: after the death of Caesar, oratory began to withdraw from the active scenes of public life; and there remained few authors who, following the practical vocation of an orator, though at an unfavourable epoch, yet observed the principle which is generally correct — that a man ought to write in the same manner in which well-bred people speak. But most men of talent who devoted themselves to written composition for the satisfaction of their own minds, or for the instruction of their contemporaries, created for themselves a new style, such as was naturally developed in them by reading the earlier authors, and through their own relations to their readers and not hearers. Livy clung to the language, style, and the full-sounding period of the oratorical style, though even he in many points deviated from the natural refinement of a Caesar and a Cicero; but Sallust gave up the oratorical period, divided the long-spun, full-sounding, and well-finished oratorical sentence into several short sentences; and in this manner he seemed to go back to the ancients, who had not yet invented the period: but still there was a great difference between his style, in which the ancient simplicity was artificially restored, and the genuine ancient sentence formed without any rhetorical art. He wrote without periods, because he would not write otherwise, and not because he could not; he divided the rhetorical period into separate sentences, because it appeared to him advantageous in his animated description of minute details; and he wrote concisely, because he did not want the things to fill up his sentences which the orator requires to give roundness and fulness to his periods. He states in isolated independent sentences those ideas and thoughts

which the orator distributes among leading and subordinate sentences; but he did all this consciously, as an artist, and with the conviction that it was conducive to historical animation. Tacitus was his imitator in this artificial historical style; and notwithstanding all his well-deserved praise, it must be admitted that the blame cast upon Sallust attaches in a still higher degree to Tacitus. It is a fact beyond all doubt, that Sallust introduced into the language of literature antiquated forms, words, and expressions; and this arose from a desire to recall with the ancient language also the ancient vigour and simplicity. But even this revival of what was ancient is visible only here and there, and all such words and phrases might be exchanged for others and more customary ones, without depriving Sallust of his essential characteristics; for these consist in a vivid perception of the important moments of an action, in placing them in strong contrasts, to excite his readers, and in the effect produced by isolated sentences simply put in juxtaposition without the artifice of a polished and intricate period.

To give our young readers some preparatory information about certain frequently-recurring peculiarities of Sallust's style, we may remark that the omission of the personal pronoun in the construction of the accusative with the infinitive, as well as the omission of the auxiliary verb *est*, and the frequent use of the infinitive instead of a dependent clause — for example, *hortatur dicere*, *res postulat exponere*, *conjuravere patriam incendere*, and many similar expressions — arise from his desire to be brief and concise. Among his antiquated forms of words, we may mention *die* for *diei*, the singular *plerusque*, *quis* for *quibus*, *senati* for *senatus*; *dicundi*, *legundi*, &c. for *dicendi*, *legendi*; *intellego* for *intelligo*, *forem* for

essem, *fuere* for *fuērunt*; the use of the past participles of deponent verbs in a passive sense — as *adeptus*, *interpretatus*. Antiquated words, or words used in an antiquated sense, are — *supplicium* for *preces*, *scilicet* for *scire licet*; antiquated expressions are — *fugam facere* for *fugere*, *habere vitam* for *agere vitam*, and other phrases with *habere*. The frequent use of *mortales* for *homines*, *aevum* for *aetas*, and *subigere* for *cogere*, gives to his style somewhat of a poetical colouring. As far as grammatical construction is concerned, there is a tendency to archaisms in the use of *quippe qui* with the indicative; in the frequent application of the indicative in subordinate sentences in the oratio obliqua; and in some other points which we shall explain in short notes to the passages where they occur. An intentional disturbance of rhetorical symmetry is perceptible in the change of corresponding particles; — for example, instead of *alii* in the expression *alii-alii*, we find *pars* or *partim*; instead of *modo* in the expression *modo-modo*, we find *interdum*, and similar variations. But all these differences from the ordinary language contain in themselves sufficient grounds of explanation and excuse, and are by no means so frequent as to render the language of Sallust unworthy of the merited reputation of being classical.

Footnotes for *Introduction*

[1] This strange account is found in Hieronymus's first work against Jovinianus, towards the end; and it becomes still more strange by the addition, that Terentia was married a third time to the orator Messalla Corvinus (who was consul with Augustus, B. C. 91): — *Illa* (Terentia) *interim conjunx egregia, et quae de fontibus Tullianis hauserat sapientiam, nupsit Sallustio, inimico*

ejus, et tertio Messallae Corvino: et quasi per quosdam gradus eloquentiae devoluta est. It almost appears as if in this tradition it had been intended to mark three phases in the style of Roman oratory, for Sallust was twenty years younger than Cicero, and Messalla nearly as many years younger than Sallust.

[2] It has indeed been said that Quintilian, who wrote about the year 95 after Christ, cites passages from these Declamations; but critical investigation has shown that these passages are interpolations, and are found only in the worst manuscripts.

C. Sallustii Crispi

Bellum Catilinarium.

1. Omnes^[1] homines, qui sese student^[2] praestare ceteris animalibus, summa ope^[3] niti decet, ne vitam silentio transeant veluti pecora, quae natura prona^[4] atque ventri obedientia finxit. Sed nostra omnis vis in animo et corpore sita est; animi imperio, corporis servitio magis utimur; alterum nobis cum dis,^[5] alterum cum beluis^[6] commune est. Quo mihi rectius videtur ingenii quam virium opibus gloriam quaerere et, quoniam vita ipsa qua fruimur brevis est, memoriam nostri^[7] quam maxime longam^[8] efficere. Nam divitiarum et formae gloria fluxa atque fragilis est, virtus clara aeternaque habetur. Sed diu magnum inter mortales certamen fuit,^[9] vine corporis an virtute animi res militaris magis procederet. Nam et prius quam incipias consulto, et ubi consulueris mature facto opus est.^[10] Ita utrumque per se indigens, alterum alterius auxilio eget.

2. Igitur^[11] initio reges (nam in terris nomen imperii id primum fuit), diversi pars^[12] ingenium, alii corpus exercebant; etiamtum vita hominum sine cupiditate agitabatur, sua cuique satis placebant. Postea vero quam^[13] in Asia Cyrus, in Graecia Lacedaemonii et Athenienses coepere urbes atque nationes subigere; libidinem dominandi causam belli habere, maximam gloriam in maximo imperio putare, tum demum periculo atque negotiis compertum est in bello plurimum ingenium posse. Quodsi^[14] regum atque imperatorum

animi virtus^[15] in pace ita ut in bello valeret, aequabilius atque constantius sese res humanae haberent, neque aliud alio^[16] ferri, neque mutari ac misceri omnia cerneret. Nam imperium facile his artibus retinetur, quibus initio partum est. Verum ubi pro labore desidia, pro continentia et aequitate libido atque superbia invasere, fortuna simul cum moribus immutatur. Ita imperium semper ad optimum quemque^[17] a minus bono transfertur. Quae homines arant, navigant, aedificant, virtuti omnia parent. Sed multi mortales dediti ventri atque somno, indocti incultique vitam sicuti peregrinantes transiere;^[18] quibus profecto contra naturam corpus voluptati, anima oneri fuit. Eorum ego vitam mortemque juxta aestimo,^[19] quoniam de utraque siletur. Verum enimvero^[20] is demum mihi vivere atque frui anima videtur, qui aliquo negotio intentus^[21] praeclari facinoris aut artis bonae famam quaerit. Sed in magna copia rerum aliud alii natura iter ostendit.

3. Pulcrum est bene facere rei publicae; etiam bene dicere haud absurdum est;^[22] vel pace vel bello clarum fieri licet; et qui fecere et qui facta aliorum scripsere, multi laudantur. Ac mihi quidem,^[23] tametsi haudquaquam par gloria sequitur scriptorem et actorem rerum, tamen in primis arduum videtur res gestas scribere; primum quod facta dictis exaequanda sunt, dehinc quia plerique, quae delicta reprehenderis, malivolentia et invidia dicta putant;^[24] ubi de magna virtute atque gloria bonorum memores, quae sibi quisque facilia factu putat, aequo animo accipit, supra ea^[25] veluti ficta pro falsis ducit.

Sed ego^[26] adolescentulus initio sicuti plerique studio ad rem publicam latus sum, ibique mihi multa adversa fuere. Nam pro pudore, pro abstinentia, pro virtute, audacia, largitio, avaritia vigeabant. Quae tametsi animus aspernabatur, insolens malarum artium,^[27] tamen inter tanta vitia imbecilla aetas ambitione corrupta tenebatur^[28]: ac me, quum ab reliquorum malis moribus dissentirem, nihilo minus honoris cupido eâdem qua ceteros famâ atque invidiâ vexabat.^[29]

4. Igitur ubi animus ex multis miseriis atque periculis requievit et mihi reliquam aetatem a re publica procul habendam decrevi, non fuit consilium socordia atque desidia bonum otium conterere,^[30] neque vero agrum colendo aut venando, servilibus officiis,^[31] intentum aetatem agere; sed a quo incepto studioque me ambitio mala detinuerat, eodem regressus statui res gestas populi Romani carptim,^[32] ut quaeque memoria digna videbantur, perscribere; eo magis, quod mihi a spe, metu, partibus rei publicae animus liber erat. Igitur de Catilinae conjuratione quam verissime potero paucis absolvam:^[33] nam id facinus in primis ego memorabile existimo sceleris atque periculi novitate. De cuius hominis moribus pauca prius explananda sunt, quam initium narrandi faciam.

5. Lucius Catilina,^[34] nobili genere natus, fuit magna vi et animi et corporis, sed ingenio malo pravoque. Huic ab adolescentia bella intestina, caedes, rapinae, discordia civilis grata fuere, ibique juventutem suam exercuit. Corpus patiens^[35] inediae, alboris, vigiliae, supra quam cuiquam credibile est. Animus audax, subdolus,

varius, cuius rei libet^[36] simulator ac dissimulator, alieni appetens, sui profusus, ardens in cupiditatibus; satis eloquentiae, sapientiae parum. Vastus animus immoderata, incredibilia, nimis alta semper cupiebat. Hunc post dominationem Lucii Sullae libido maxima invaserat rei publicae capiundae,^[37] neque id quibus modis assequeretur, dum sibi regnum pararet, quidquam pensi habebat. Agitabatur magis magisque in dies animus ferox inopia rei familiaris et conscientia scelerum, quae utraque his artibus auxerat,^[38] quas supra memoravi. Incitabant praeterea corrupti civitatis mores, quos pessima ac diversa inter se mala, luxuria atque avaritia, vexabant. Res ipsa hortari videtur, quoniam de moribus civitatis tempus admonuit, supra repetere^[39] ac paucis instituta majorum domi militiaeque,^[40] quomodo rem publicam habuerint quantamque reliquerint, ut paulatim immutata ex pulcherrima pessima ac flagitiosissima facta sit, disserere.

6. Urbem Romam,^[41] sicuti ego accepi, condidere atque habuere initio Trojani, qui Aenea duce profugi sedibus incertis vagabantur, cumque his Aborigines,^[42] genus hominum agreste, sine legibus, sine imperio, liberum atque solutum. Hi postquam in una^[43] moenia convenere, dispari genere, dissimili lingua, alius alio more viventes, incredibile memoratu est quam facile coaluerint.^[44] Sed postquam res eorum civibus, moribus, agris aucta, satia prospera satisque pollens videbatur, sicuti pleraque mortalium habentur, invidia ex opulentia orta est. Igitur reges populique finitimi bello temptare,^[45] pauci ex amicis auxilio esse; nam ceteri metu perculsi a periculis aberant. At Romani domi militiaeque intenti festinare, parare, alius

alium hortari, hostibus obviam ire, libertatem, patriam parentesque armis tegere. Post, ubi pericula virtute propulerant, sociis atque amicis auxilia portabant,^[46] magisque dandis quam accipiundis beneficiis amicitias parabant. Imperium legitimum, nomen imperii regium habebant;^[47] delecti, quibus corpus annis infirmum, ingenium sapientia validum erat, rei publicae consultabant;^[48] hi vel aetate vel curae similitudine patres appellabantur. Post, ubi regium imperium, quod initio conservandae libertatis atque augendae rei publicae^[49] fuerat, in superbiam dominationemque convertit^[50] immutato more annua imperia binosque imperatores^[51] sibi fecere; eo modo minime posse putabant per licentiam inolescere animum humanum.

7. Sed ea tempestate coepere se quisque magis extollere magisque ingenium in promptu habere.^[52] Nam regibus boni quam mali suspectiores sunt, semperque his aliena virtus formidolosa est. Sed civitas incredibile memoratu est adepta^[53] libertate quantum brevi^[54] creverit; tanta cupido gloriae incesserat.^[55] Jam primum juvenus, simul ac belli patiens erat, in castris per laborem usu militiam discebat, magisque in decoris armis et militaribus equis quam in scortis atque conviviis libidinem habebant.^[56] Igitur talibus viris non labos^[57] insolitus, non locus ullus asper aut arduus erat, non armatus hostis formidolosus; virtus omnia domuerat. Sed gloriae maximum certamen inter ipsos erat: sic se quisque hostem ferire, murum ascendere, conspici, dum tale facinus faceret, properabat; eas^[58] divitias, eam bonam famam magnamque nobilitatem putabant; laudis avidi, pecuniae liberales erant; gloriam ingentem, divitias honestas volebant. Memorare possem, quibus in locis maximas hostium

copias populus Romanus parva manu fuderit, quas urbes natura munitas pugnando ceperit, ni ea res longius nos ab incepto traheret.

8. Sed profecto fortuna in omni re dominatur; ea res cunctas ex libidine magis quam ex vero celebrat obscuratque. Atheniensium res gestae, sicuti ego aestimo, satis amplae magnificaeque fuere, verum aliquanto^[59] minores tamen quam fama feruntur. Sed quia provenire ibi scriptorum magna ingenia, per terrarum orbem Atheniensium facta pro maximis^[60] celebrantur. Ita eorum, qui ea fecere, virtus tanta habetur, quantum ea verbis potuere extollere praeclara ingenia. At populo Romano nunquam ea copia fuit, quia prudentissimus quisque maxime negotiosus erat;^[61] ingenium nemo sine corpore exercebat; optimus quisque facere quam dicere, sua ab aliis bene facta laudari quam ipse aliorum narrare malebat.

9. Igitur domi militiaeque boni mores colebantur, concordia maxima, minima avaritia erat, jus bonumque apud eos non legibus magis quam natura^[62] valebat. Jurgia, discordias, simultates cum hostibus exercebant, cives cum civibus de virtute certabant; in suppliciis^[63] deorum magnifici, domi parci, in amicos fideles erant. Duabus his artibus, audacia in bello, ubi pax evenerat, aequitate seque^[64] remque publicam curabant. Quarum rerum ego maxima documenta haec habeo, quod in bello saepius vindicatum est in eos, qui contra imperium in hostem pugnaverant, quique tardius revocati proelio excesserant, quam qui signa relinquere aut pulsus loco cedere ausi erant; in pace vero, quod beneficiis quam^[65] metu imperium agitabant, et acceptâ injuriâ^[66] ignoscere quam persequi malebant.

10. Sed ubi labore atque justitia res publica crevit, reges magni bello domiti, nationes ferae et populi ingentes vi subacti, Carthago, aemula imperii Romani, ab stirpe interiit, cuncta maria terraeque patebant, saevire fortuna ac miscere omnia coepit. Qui labores, pericula, dubias atque asperas res facile toleraverant, his otium, divitiae optandae aliis oneri miseriaeque fuere. Igitur primo pecuniae, deinde imperii cupido crevit; ea quasi materies omnium malorum fuere. Namque avaritia fidem, probitatem ceterasque artes bonas subvertit; pro his superbiam, crudelitatem, deos negligere, omnia venalia habere edocuit. Ambitio multos mortales falsos fieri subegit, aliud clausum in pectore, aliud in lingua promptum habere, amicitias inimicitiasque non ex re, sed ex commodo aestimare, magisque vultum quam ingenium bonum habere. Haec primo paulatim crescere, interdum vindicari; post, ubi contagio quasi pestilentia invasit, civitas immutata, imperium ex justissimo atque optimo crudele intolerandumque factum.

11. Sed primo magis ambitio quam avaritia animos hominum exercebat, quod tamen vitium propius virtutem^[67] erat. Nam gloriam, honorem, imperium bonus et ignavus aequae sibi exoptant; sed ille vera via nititur, huic quia bonae artes desunt, dolis atque fallaciis contendit. Avaritia pecuniae studium habet, quam nemo sapiens concupivit;^[68] ea quasi venenis malis imbuta corpus animumque virilem effeminat, semper infinita, insatiabilis est, neque copia neque inopia minuitur. Sed postquam L. Sulla, armis recepta res publica, bonis initiis malos eventus habuit,^[69] rapere omnes, trahere, domum alius, alius agros cupere, neque modum neque modestiam victores habere, foeda crudeliaque in civibus^[70] facinora facere. Huc

accedebat, quod L. Sulla exercitum, quem in Asia ductaverat, quo sibi fidum faceret,^[71] contra morem majorum luxuriose nimisque liberaliter habuerat; loca amoena, voluptaria^[72] facile in otio feroces militum animos molliverant. Ibi primum insuevit exercitus populi Romani amare,^[73] potare, signa, tabulas pictas, vasa caelata^[74] mirari, ea privatim et publice rapere, delubra^[75] spoliare, sacra profanaque omnia polluere. Igitur hi milites, postquam victoriam adepti sunt, nihil reliqui victis fecere. Quippe secundae res sapientium animos fatigant; ne illi corruptis moribus victoriae temperarent.^[76]

12. Postquam divitiae honori esse coepere et eas gloria, imperium, potentia sequebatur, hebescere virtus, paupertas probro haberi, innocentia pro malivolentia^[77] duci coepit. Igitur ex divitiis juventutem luxuria atque avaritia cum superbia invasere; rapere, consumere, sua parvi pendere, aliena cupere, pudorem, pudicitiam, divina atque humana promiscua, nihil pensi neque moderati habere. Operae pretium est,^[78] quum domos atque villas cognoveris in urbium modum exaedificatas, visere templa deorum, quae nostri majores, religiosissimi mortales, fecere. Verum illi delubra deorum pietate, domos suas gloria decorabant, neque victis quidquam praeter injuriae licentiam eripiebant.^[79] At hi contra ignavissimi homines per summum scelus omnia ea sociis adimere, quae fortissimi viri victores reliquerant; proinde quasi injuriam facere id demum esset imperio uti.

13. Nam quid ea memorem, quae nisi his qui videre nemini credibilia sunt, a privatis compluribus subversos montes, maria constructa^[80]

esse. Quibus mihi videntur ludibrio fuisse divitiae; quippe quas honeste habere licebat, abuti per turpitudinem properabant. Sed libido stupri, ganeae ceterique cultus^[81] non minor incesserat; viri muliebria pati, mulieres pudicitiam in propatulo habere; vescendi causa terra marique omnia exquirere, dormire prius quam somni cupido esset, non famem aut sitim neque frigus neque lassitudinem opperiri, sed ea omnia luxu antecapere. Haec juventutem, ubi familiares opes defecerant, ad facinora incendebant. Animus imbutus malis artibus haud facile libidinibus carebat; eo profusius omnibus modis quaestui atque sumptui^[82] deditus erat.

14. In tanta tamque corrupta civitate Catilina, id quod factu facillimum erat, omnium flagitiorum atque facinorum circum se tamquam stipatorum catervas habebat.^[83] Nam quicumque impudicus, adulter, ganeo manu,^[84] ventre, pene bona patria laceraverat, quique alienum aes grande conflaverat, quo flagitium aut facinus redimeret, praeterea omnes undique parricidae, sacrilegi, convicti judiciis aut pro factis iudicium timentes, ad hoc quos manus atque lingua perjurio aut sanguine civili alebat, postremo omnes, quos flagitium, egestas, conscius animus exagitabat: hi Catilinae proximi familiaresque erant. Quodsi quis etiam a culpa vacuus in amicitiam ejus inciderat, cotidiano usu atque illecebris facile par similisque ceteris efficiebatur. Sed maxime adolescentium familiaritates appetebat; eorum animi molles et aetate fluxi dolis haud difficulter^[85] capiebantur. Nam ut cujusque studium ex aetate^[86] flagrabat, aliis scorta praebere, aliis canes atque equos mercari, postremo neque sumptui neque modestiae suae parcere, dum^[87] illos obnoxios fidosque sibi faceret. Scio fuisse nonnullos qui ita

existimarent, juventutem, quae domum Catilinae frequentabat, parum honeste pudicitiam habuisse; sed ex aliis rebus magis quam quod cuiquam id compertum foret, haec fama valebat.

15. Jam primum adolescens Catilina multa nefanda stupra fecerat, cum virgine nobili, cum sacerdote Vestae, alia hujusmodi contra jus fasque. Postremo captus amore Aureliae Orestillae cujus praeter formam nihil unquam bonus laudavit, quod ea nubere illi dubitabat, timens privignum adulta aetate, pro certo creditur necato filio vacuam domum scelestis nuptiis fecisse.^[88] Quae quidem res mihi in primis videtur causa fuisse facinoris maturandi. Namque animus impurus, dis hominibusque infestus, neque vigiliis neque quietibus sedari poterat; ita conscientia mentem excitam vastabat.^[89] Igitur color exsanguis, foedi oculi, citus modo, modo tardus incessus; prorsus in facie vultuque vecordia inerat.

16. Sed juventutem, quam, ut supra diximus, illexerat, multis modis mala facinora edocebat. Ex illis testes signatoresque falsos commodare; fidem, fortunas, pericula vilia habere, post, ubi eorum famam atque pudorem attriverat, majora alia imperabat; si causa peccandi in praesens minus suppetebat, nihilo minus insontes sicuti sontes circumvenire, jugulare; scilicet, ne per otium torpescerent manus aut animus, gratuito^[90] potius malus atque crudelis erat.

His amicis sociisque confisus Catilina, simul quod aes alienum per omnes terras ingens erat, et quod plerique Sullani milites,^[91] largius suo usu, rapinarum et victoriae veteris memores civile bellum exoptabant, opprimundae rei publicae consilium cepit. In Italia nullus exercitus; Gn.^[92] Pompeius in extremis terris bellum gerebat; ipsi

consulatum petenti magna spes; senatus nihil sane intentus;^[93] tutae tranquillaeque res omnes: sed ea prorsus opportuna Catilinae.

17. Igitur, circiter Kalendas Junias, L. Caesare et G. Figulo consulibus,^[94] primo singulos appellare, hortari alios, alios temptare; opes suas, imparatam rem publicam, magna praemia conjurationis docere. Ubi satis explorata sunt quae voluit, in unum omnes convocat, quibus maxima necessitudo^[95] et plurimum audaciae inerat. Eo convenere senatorii ordinis P. Lentulus Sura, P. Autronius, L. Cassius Longinus, G. Cethegus, P. et Servius Sullae, Servii filii, L. Vargunteius, Q. Annius, M. Porcius Laeca, L. Bestia, Q. Curius; praeterea ex equestri ordine M. Fulvius Nobilior, L. Statilius, P. Gabinius Capito, G. Cornelius; ad hoc multi ex coloniis et municipiis, domi nobiles. Erant praeterea complures^[96] paulo occultius concilii hujusce participes nobiles, quos magis dominationis spes hortabatur quam inopia aut aliqua necessitudo. Ceterum juvenus pleraque,^[97] sed maxime nobilium, Catilinae inceptis favebat; quibus in otio vel magnifice vel molliter vivere copia erat, incerta pro certis, bellum quam pacem malebant. Fuere item ea tempestate^[98] qui crederent M. Licinium Crassum^[99] non ignarum ejus consilii fuisse; quia Gn. Pompeius invisus ipsi magnum exercitum ductabat, cujusvis opes voluisse contra illius potentiam crescere, simul confisum, si conjuratio valisset, facile apud illos principem se fore.

18. Sed antea^[100] item conjuravere pauci contra rem publicam, in quibus Catilina fuit; de qua^[101] quam verissime potero, dicam. L. Tullo et M. Lepido consulibus,^[102] P. Autronius et P. Sulla designati

consules, legibus ambitus interrogati^[103] poenas dederant. Post paulo^[104] Catilina, pecuniarum repetundarum reus,^[105] prohibitus erat consulatum petere, quod intra legitimos dies profiteri^[106] nequiverat. Erat eodem tempore Gn. Piso, adolescens nobilis, summae audaciae, egens, factiosus, quem ad perturbandam rem publicam inopia atque mali mores stimulabant. Cum hoc Catilina et Autronius circiter Nonas Decembres consilio communicato parabant in Capitolio Kalendis Januariis L. Cottam et L. Torquatum consules^[107] interficere, ipsi fascibus correptis Pisonem cum exercitu ad obtinendas duas Hispanias^[108] mittere. Ea re cognita, rursus in Nonas Februarias consilium caedis transtulerant. Jam tum non consulibus modo, sed plerisque senatoribus perniciem machinabantur. Quodni^[109] Catilina maturasset pro curia signum sociis dare, eo die post conditam urbem Romam pessimum facinus patratum foret. Quia nondum frequentes armati convenerant, ea res consilium diremit.

19. Postea Piso in citeriorem Hispaniam quaestor pro praetore^[110] missus est, adnitente Crasso, quod eum infestum inimicum Gn. Pompeio cognoverat. Neque tamen senatus provinciam invitus dederat; quippe foedum hominem a re publica procul esse volebat; simul quia boni complures praesidium in eo putabant, et jam tum potentia Pompeii formidolosa erat. Sed is Piso in provincia ab equitibus Hispanis, quos in exercitu ductabat, iter faciens occisus est. Sunt qui ita dicunt,^[111] imperia ejus injusta, superba, crudelia barbaros nequivisse pati; alii autem equites illos Gn. Pompeii veteres fidosque clientes voluntate ejus Pisonem aggressos; numquam

Hispanos praeterea tale facinus fecisse, sed imperia saeva multa ante perpessos. Nos eam rem in medio relinquemus. De superiore conjuratione satis dictum.

20. Catilina,^[112] ubi eos, quos paulo ante memoravi, convenisse videt, tametsi cum singulis multa saepe egerat, tamen in rem fore credens universos appellare et cohortari, in abditam partem aedium secedit, atque ibi, omnibus arbitris procul amotis, orationem hujuscemodi habuit. 'Ni virtus fidesque vestra spectata mihi forent, nequidquam opportuna res cecidisset; spes magna, dominatio in manibus frustra fuissent. Neque ego per ignaviam^[113] aut vana ingenia incerta pro certis captarem. Sed quia multis et magnis tempestatibus vos cognovi fortes fidosque mihi, eo animus ausus est maximum atque pulcherrimum facinus incipere, simul quia vobis eadem quae mihi bona malaque esse intellexi; nam idem velle atque idem nolle, ea demum firma amicitia est. Sed ego quae mente agitavi omnes jam antea diversi^[114] audistis. Ceterum mihi in dies magis animus accenditur, quum considero, quae condicio vitae futura sit, nisi nosmet ipsi vindicamus in libertatem. Nam postquam res publica in paucorum potentium jus atque dicionem concessit, semper illis reges, tetrarchae^[115] vectigales esse, populi, nationes stipendia pendere; ceteri omnes, strenui, boni, nobiles atque ignobiles vulgus fuimus sine gratia, sine auctoritate, iis obnoxii, quibus, si res publica valeret, formidini essemus. Itaque omnis gratia, potentia, honos, divitiae apud illos sunt, aut ubi illi volunt; nobis reliquere pericula repulsas, judicia, egestatem. Quae quousque tandem patiemini fortissimi viri? Nonne emori per virtutem praestat quam vitam miseram atque inhonestam, ubi alienae

superbiae ludibrio fueris, per dedecus amittere? Verum enimvero pro deum atque hominum fidem^[116] victoria in manu nobis est, viget aetas, animus valet; contra illis annis atque divitiis omnia consenuerunt. Tantummodo incepto opus est; cetera res expediet. Etenim quis mortalium cui virile ingenium est, tolerare potest, illis divitias superare,^[117] quas profundant in extruendo mari et montibus coaequandis, nobis rem familiarem etiam ad necessaria deesse? illos binas aut amplius domos continuare, nobis larem familiarem^[118] nusquam ullum esse? Quum tabulas, signa, toreumata^[119] emunt, nova diruunt, alia aedificant, postremo omnibus modis pecuniam trahunt, vexant, tamen summa libidine divitias vincere^[120] nequeunt. At nobis est domi inopia, foris aes alienum, mala res, spes multo asperior; denique quid reliqui habemus praeter miseram animam? Quin^[121] igitur expergiscimini? En^[122] illa, illa, quam saepe optastis, libertas, praeterea divitiae, decus, gloria in oculis sita sunt. Fortuna omnia ea victoribus praemia posuit. Res, tempus, pericula, egestas, belli spolia magnifica magis quam oratio mea vos hortentur. Vel imperatore vel milite me utimini; neque animus neque corpus a vobis aberit. Haec ipsa, ut spero, vobiscum una consul agam, nisi forte me animus fallit, et vos servire magis quam imperare parati estis.'

21. Postquam accepere ea homines, quibus mala abunde omnia erant, sed neque res neque spes bona ulla, tametsi illis quietam movere magna merces videbatur, tamen postulavere plerique, uti proponeret, quae condicio belli foret, quae praemia armis peterent, quid ubique opis aut spei haberent. Tum Catilina polliceri tabulas novas,^[123] proscriptionem locupletium, magistratus, sacerdotia, rapinas, alia omnia, quae bellum atque libido victorum fert. Praeterea

esse in Hispania citeriore Pisonem, in Mauretania cum exercitu P. Sittium Nucerinum, consilii sui participes; petere consulatum G. Antonium, quem sibi collegam fore speraret, hominem et familiarem et omnibus necessitudinibus circumventum; cum eo se consulem^[124] initium agendi facturum. Ad hoc maledictis increpat omnes bonos, suorum unum quemque nominans laudare; admonebat alium egestatis, alium cupiditatis suae, complures periculi aut ignominiae,^[125] multos victoriae Sullanae, quibus ea praedae fuerat. Postquam omnium animos alacres videt, cohortatus, ut petitionem suam curae haberent, conventum dimisit.

22. Fuere ea tempestate qui dicerent, Catilinam, oratione habita, quum ad iusjurandum populares^[126] sceleris sui adigeret, humani corporis sanguinem vino permixtum in pateris circumtulisse; inde quum post execrationem omnes degustavissent, sicuti in sollemnibus sacris fieri consuevit, aperuisse consilium suum, atque eo dictitare^[127] fecisse, quo inter se magis fidi forent, alius alii tanti facinoris conscii. Nonnulli ficta et haec et multa praeterea existimabant ab iis, qui Ciceronis invidiam, quae postea orta est, leniri credebant atrocitate sceleris eorum, qui poenas dederant. Nobis ea res pro magnitudine parum comperta est.

23. Sed in ea conjuratione fuit Q. Curius, natus haud obscuro loco, flagitiis atque facinoribus coopertus, quera censores senatu probri gratia moverant. Huic homini non minor vanitas inerat quam audacia; neque reticere, quae audierat, neque suamet^[128] ipse scelera occultare, prorsus neque dicere neque facere quidquam pensi habebat. Erat ei cum Fulvia, muliere nobili, stupri^[129] vetus

consuetudo; cui quum minus gratus esset, quia inopia minus largiri poterat, repente glorians maria montesque polliceri coepit et minari interdum ferro, ni sibi obnoxia foret, postremo ferocius agitare^[130] quam solitus erat. At Fulvia, insolentiae Curii causa cognita, tale periculum rei publicae haud occultum habuit, sed sublato auctore^[131] de Catilinae conjuratione quae quoque modo audierat compluribus narravit. Ea res in primis studia hominum accendit ad consulatum mandandum M. Tullio Ciceroni. Namque antea pleraque nobilitas invidia aestuabat,^[132] et quasi pollui consulatum credebant, si eum quamvis egregius homo novus^[133] adeptus foret. Sed ubi periculum advenit, invidia atque superbia post fuere.^[134]

24. Igitur comitiis habitis consules declarantur M. Tullius et G. Antonius, quod factum primo populares conjurationis concusserat.^[135] Neque tamen Catilinae furor minuebatur, sed in dies plura agitare, arma per Italiam locis opportunis parare, pecuniam sua aut amicorum fide sumptam mutuam Faesulas^[136] ad Manlium quendam portare,^[137] qui postea princeps fuit belli faciundi. Ea tempestate plurimos cujusque generis homines adscivisse sibi dicitur, mulieres etiam aliquot, quae primo ingentes sumptus^[138] stupro corporis toleraverant, post ubi aetas tantummodo quaestui neque luxuriae modum fecerat, aes alienum grande conflaverant. Per eas se Catilina credebat posse servitia urbana sollicitare, urbem incendere, viros earum vel adungere sibi vel interficere.

25. Sed in his erat Sempronia, quae multa saepe virilis audaciae facinora commiserat. Haec mulier genere atque forma, praeterea viro, liberis satis fortunata fuit; litteris Graecis et Latinis docta,

psallere, saltare elegantius, quam necesse est probae, multa alia, quae instrumenta luxuriae sunt. Sed ei cariora semper omnia quam decus atque pudicitia fuit; pecuniae an famae minus parceret, haud facile discerneres;^[139] libidine sic accensa, ut saepius peteret viros quam peteretur. Sed ea saepe antehac fidem prodiderat, creditum abjuraverat, caedis conscia fuerat, luxuria atque inopia praeceps^[140] abierat. Verum ingenium ejus haud absurdum; posse versus facere, jocum movere, sermone uti vel modesto vel molli vel procaci; prorsus multae facetiae multusque lepos inerat.

26. His rebus comparatis Catilina nihilo minus in proximum annum^[141] consulatum petebat, sperans, si designatus foret, facile se ex voluntate Antonio usurum. Neque interea quietus erat, sed omnibus modis insidias parabat Ciceroni. Neque illi tamen ad cavendum dolus aut astutiae deerant. Namque a principio consulatus sui multa pollicendo per Fulviam effecerat, ut Q. Curius, de quo paulo ante memoravi, consilia Catilinae sibi proderet. Ad hoc^[142] collegam suum Antonium pactione provinciae^[143] perpulerat, ne contra rem publicam sentiret; circum se praesidia amicorum atque clientium occulte habebat. Postquam dies comitiorum venit, et Catilinae neque petitio neque insidiae, quas consuli in Campo^[144] fecerat, prospere cessere, constituit bellum facere et extrema omnia experiri, quoniam quae occulte temptaverat aspera foedaque^[145] evenerant.

27. Igitur G. Manlium Faesulas atque in eam partem Etruriae, Septimium quendam Camertem^[146] in agrum Picenum, G. Julium in Apuliam dimisit; praeterea alium alio, quem ubique opportunum sibi

fore credebat. Interea Romae multa simul moliri, consuli insidias tendere, parare incendia, opportuna loca armatis hominibus obsidere, ipse cum telo esse, item alios jubere, hortari; uti semper intenti paratique essent, dies noctesque festinare, vigilare, neque insomniis neque labore fatigari. Postremo ubi multa agitant nihil procedit, rursus intempesta nocte conjurationis principes convocat per M. Porcium Laecam, ibique multa de ignavia eorum questus, docet se Manlium praemisisse ad eam multitudinem, quam ad capiunda arma paraverat, item alios in alia loca opportuna, qui initium belli facerent, seque ad exercitum proficisci cupere, si prius Ciceronem oppressisset; eum suis consiliis multum officere.

28. Igitur perterritis ac dubitantibus ceteris, G. Cornelius eques Romanus operam suam pollicitus, et cum eo L. Vargunteius senator constituere ea nocte paulo post cum armatis hominibus sicuti salutatum^[147] introire ad Ciceronem ac de improvviso domi suae imparatum confodere. Curius ubi intellegit,^[148] quantum periculum consuli impendeat, propere per Fulviam Ciceroni dolum, qui parabatur, enuntiat. Ita illi janua prohibiti tantum facinus frustra susceperant. Interea Manlius in Etruria plebem sollicitare, egestate simul ac dolore injuriae novarum rerum cupidam, quod Sullae dominatione agros bonaque omnia amiserat, praeterea latrones cujusque generis, quorum in ea regione magna copia erat, nonnullos ex Sullanis colonis, quibus libido atque luxuria ex magnis rapinis nihil reliqui fecerant.

29. Ea quum Ciceroni nuntiarentur, ancipiti malo permotus, quod neque urbem ab insidiis privato consilio longius tueri poterat, neque exercitus Manlii quantus aut quo consilio foret satis compertum

habebat, rem ad senatum refert, jam antea vulgi rumoribus exagitata.^[149] Itaque, quod plerumque in atroci negotio solet; senatus decrevit,^[150] darent operam consules, ne quid res publica detrimenti caperet. Ea potestas per senatum more Romano magistratui maxima permittitur, exercitum parare,^[151] bellum gerere, coërcere omnibus modis socios atque cives, domi militiaeque imperium atque iudicium summum habere; aliter sine populi jussu nulli earum rerum consuli jus est.

30. Post paucos dies L. Saenius senator in senatu litteras recitavit, quas Faesulis allatas sibi dicebat, in quibus scriptum erat, G. Manlium arma cepisse cum magna multitudine ante diem VI. Kalendas Novembres.^[152] Simul, id quod in tali re solet, alii portenta atque prodigia^[153] nuntiabant, alii conventus fieri, arma portari, Capuae atque in Apulia servile bellum moveri. Igitur senati^[154] decreto Q. Marcius Rex Faesulas, Q. Metellus Creticus in Apuliam circumque ea loca missi; hi utrique^[155] ad urbem imperatores erant, ^[156] impediti ne triumpharent calumnia paucorum, quibus omnia honesta atque inhonesta vendere mos erat.^[157] Sed praetores Q. Pompeius Rufus Capuam, Q. Metellus Celer in agrum Picenum,^[158] hisque permissum, uti pro tempore atque periculo exercitum compararent. Ad hoc, si quis indicavisset de conjuratione, quae contra rem publicam facta erat, praemium servo libertatem et sestertia centum,^[159] libero impunitatem ejus rei et sestertia ducenta; itemque decrevere, uti gladiatoriae familiae Capuam et in cetera municipia distribuerentur pro cujusque opibus,^[160] Romae per totam urbem vigiliae haberentur, iisque minores magistratus^[161] praeessent.

31. Quibus rebus permota civitas atque immutata urbis facies erat; ex summa laetitia atque lascivia, quae diuturna quies pepererat, repente omnes tristitia invasit; festinare, trepidare, neque loco neque homini cuiquam satis credere, neque bellum gerere, neque pacem habere, suo quisque metu pericula metiri. Ad hoc mulieres, quibus^[162] rei publicae magnitudine belli timor insolitus incesserat, afflictare sese,^[163] manus supplices ad coelum tendere, miserari parvos liberos, rogitare, omnia pavere, superbia atque deliciis omissis sibi patriaeque diffidere. At Catilinae crudelis animus eadem illa movebat, tametsi praesidia parabantur et ipse lege Plautia^[164] interrogatus erat ab L. Paullo. Postremo dissimulandi causa aut sui expurgandi, sicuti^[165] jurgio laccessitus foret, in senatum venit. Tum M. Tullius consul, sive praesentiam ejus timens sive ira commotus, orationem habuit luculentam atque utilem rei publicae, quam postea scriptam edidit.^[166] Sed ubi ille assedit,^[167] Catilina, ut erat paratus ad dissimulanda omnia, demisso vultu, voce supplici postulare, ‘Patres conscripti ne quid de se temere crederent; ea familia ortum, ita se ab adolescentia vitam instituisse, ut omnia bona in spe haberet; ne existimarent, sibi, patricio homini, cujus ipsius atque majorum plurima beneficia in plebem Romanam essent, perdita re publica opus esse, quum eam servaret M. Tullius, inquilinus civis urbis Romae.’^[168] Ad hoc maledicta alia quum adderet, obstrepere omnes, hostem atque parricidam vocare. Tum ille furibundus: ‘Quoniam quidem circumventus, inquit, ab inimicis praeceps agor, incendium meum ruina restinguam.’

32. Dein se ex curia domum proripuit; ibi multa ipse secum volvens, quod neque insidiae consuli procedebant et ab incendio intellegebat

urbem vigiliis munitam, optimum factu credens exercitum augere ac prius quam legiones scriberentur, antecapere quae bello usui forent, nocte intempesta cum paucis in Manliana castra profectus est. Sed Cethego atque Lentulo ceterisque, quorum cognoverat promptam audaciam, mandat, quibus rebus possent opes factionis confirmant, insidias consuli maturent, caedem, incendia aliaque belli facinora parent; sese propediem cum magno exercitu ad urbem accessurum. Dum haec Romae geruntur, G. Manlius ex suo numero legatos ad Marcium Regem mittit cum mandatis hujusmodi:

33. ‘Deos hominesque testamur, imperator, nos arma neque contra patriam cepisse, neque quo periculum aliis faceremus, sed uti corpora nostra ab injuria tuta forent, qui miseri, egentes, violentia atque crudelitate feneratorum plerique patriae, sed omnes fama atque fortunis^[169] expertes sumus; neque cuiquam nostrum licuit more majorum lege uti,^[170] neque amisso patrimonio liberum corpus habere, tanta saevitia feneratorum atque praetoris fuit. Saepe majores vestrum^[171] miseriti plebis Romanae, decretis suis inopiae ejus opitulati sunt; ac novissime memoria nostra, propter magnitudinem aeris alieni, volentibus omnibus bonis, argentum aere solutum est.^[172] Saepe ipsa plebes, aut dominandi studio permota, aut superbia magistratum, armata a patribus secessit. At nos non imperium neque divitias petimus, quarum rerum causa bella atque certamina omnia inter mortales sunt, sed libertatem, quam nemo bonus nisi cum anima simul amittit.^[173] Te atque senatum obtestamur, consulatis miseris civibus, legis praesidium, quod iniquitas praetoris eripuit, restituatis; neve nobis eam necessitudinem imponatis, ut

quaeramus, quonam modo maxime ulti sanguinem nostrum pereamus.'

34. Ad haec Q. Marcius respondit: 'Si quid ab senatu petere vellent, ab armis discedant, Romam supplices proficiscantur; ea mansuetudine atque misericordia senatum populumque Romanum semper fuisse, ut nemo unquam ab eo frustra auxilium petiverit.' At Catilina ex itinere plerisque consularibus, praeterea optimo cuique, litteras mittit: 'Se falsis criminibus circumventum, quoniam factioni inimicorum resistere nequiverit, fortunae cedere, Massiliam^[174] in exilium proficisci: non quo sibi tanti sceleris conscius esset, sed uti res publica quieta foret, neve ex sua contentione seditio oriretur.' Ab his longe diversas litteras Q. Catulus in senatu recitavit, quas sibi nomine Catilinae redditae dicebat; earum exemplum infra scriptum est:

35. 'L. Catilina Q. Catulo. Egregia tua fides re cognita, grata mihi, in magnis meis periculis fiduciam commendationi meae tribuit. Quamobrem defensionem in novo consilio non statui parare, satisfactionem ex nulla conscientia de culpa proponere decrevi,^[175] quam mediusfidius^[176] veram licet cognoscas. Injuriis contumeliisque concitatus, quod fructu laboris industriaeque meae privatus statum dignitatis non obtinebam,^[177] publicam miserorum causam pro mea consuetudine suscepi, non quin aes alienum meis nominibus ex possessionibus solvere possem, quum et alienis nominibus liberalitas Orestillae suis filiaeque copiis persolveret;^[178] sed quod non dignos homines honore honestatos videbam, meque falsa suspicione alienatum esse sentiebam.^[179] Hoc nomine^[180] satis

honestas pro meo casu spes reliquae dignitatis conservandae sum secutus. Plura quum scribere vellem, nuntiatum est vim mihi parari.

^[181] Nunc Orestillam commendo tuaeque fidei trado: eam ab injuria defendas per liberos tuos rogatus. Haveto.^[182]

36. Sed ipse paucos dies commoratus apud G. Flaminium in agro Arretino,^[183] dum vicinitatem antea sollicitatam armis exornat, cum fascibus atque aliis imperii insignibus in castra ad Manlium contendit. Haec ubi Romae comperta sunt, senatus Catilinam et Manlium hostes judicat; ceterae multitudini diem statuit, ante quam sine fraude^[184] liceret ab armis discedere praeter^[185] rerum capitalium condemnatis. Praeterea decernit, uti consules delectum habeant, Antonius cum exercitu Catilinam persequi maturet, Cicero urbi praesidio sit. Ea tempestate mihi imperium populi Romani multo maxime miserabile visum est, cui quum ad occasum ab ortu solis omnia domita armis parerent, domi otium atque divitiae, quae prima mortales putant, affluerent, fuere tamen cives, qui seque remque publicam obstinatis animis perditum irent.^[186] Namque duobus senati decretis ex tanta multitudine neque praemio inductus conjurationem patefecerat neque ex castris Catilinae quisquam omnium discesserat; tanta vis morbi uti tabes plerosque civium animos invaserat.

37. Neque solum illis aliena^[187] mens erat, qui conscii conjurationis fuerant, sed omnino cuncta plebes novarum rerum studio Catilinae incepta probabat. Id adeo^[188] more suo videbatur facere. Nam semper in civitate, quibus opes nullae sunt, bonis^[189] invident, malos extollunt, vetera odere, nova exoptant, odio suarum rerum mutari

omnia student, turba atque seditionibus sine cura aluntur; quoniam egestas facile habetur^[190] sine damno. Sed urbana plebes, ea vero^[191] praeceps ierat multis de causis. Primum omnium, qui ubique probro atque petulantia maxime praestabant, item alii per dedecora patrimoniis amissis, postremo omnes, quos flagitium aut facinus domo expulerat, ii Romam sicut in sentinam^[192] confluxerant. Deinde multi memores Sullanae victoriae, quod ex gregariis militibus alios senatores videbant, alios ita divites, ut regio victu atque cultu aetatem agerent, sibi quisque, si in armis foret, ex victoria talia sperabat. Praeterea juvenus, quae in agris manuum mercede inopiam toleraverat, privatis atque publicis largitionibus excita^[193] urbanum otium ingrato labori praetulerat; eos atque alios omnes malum publicum alebat. Quo minus mirandum est homines egentes, malis moribus, maxima spe, rei publicae juxta ac sibi consuluisse.^[194] Praeterea quorum,^[195] victoria Sullae parentes proscripti, bona erepta, jus libertatis imminutum erat, haud sane alio animo belli eventum expectabant. Ad hoc quicumque aliarum atque senatus partium erant, conturbari rem publicam quam minus valere ipsi malebant. Id adeo malum multos post annos in civitatem reverterat.

38. Nam postquam Gn. Pompeio et M. Crasso consulibus^[196] tribunicia potestas restituta est, homines adolescentes summam potestatem nacti, quibus aetas animusque ferox erat, coepere senatum criminando plebem exagitare, dein largiundo atque pollicitando magis incendere; ita ipsi clari potentesque fieri. Contra eos summa ope nitebatur pleraque nobilitas senatus specie^[197] pro sua magnitudine. Namque uti paucis verum absolvam, post illa

tempora quicumque rem publicam agitavere, honestis nominibus, alii sicuti populi jura defenderent, pars quo^[198] senatus auctoritas maxima foret, bonum publicum simulantes, pro sua quisque potentia certabant; neque illis modestia neque modus contentionis erat; utrique victoriam crudeliter exercebant.

39. Sed postquam Gn. Pompeius ad bellum maritimum atque Mithridaticum missus est, plebis opes imminutae, paucorum potentia crevit. Hi magistratus, provincias, aliaque omnia tenere, ipsi innoxii,^[199] florentes, sine metu aetatem agere, ceteros judiciis terrere, quo plebem in magistratu placidius tractarent.^[200] Sed ubi primum dubiis rebus^[201] novandi spes oblata est, vetus certamen animos eorum arrexit. Quodsi primo proelio Catilina superior aut aequa manu discessisset, profecto magna clades atque calamitas rem publicam oppressisset; neque illis, qui victoriam adepti forent, diutius ea uti licuisset, quin defessis et exsanguibus qui plus posset imperium atque libertatem extorqueret.^[202] Fuere tamen extra conjurationem complures, qui ad Catilinam initio profecti sunt; in his erat A. Fulvius, senatoris filius, quem retractum ex itinere parens necari jussit. Iisdem temporibus Romae Lentulus, sicuti Catilina praeceperat, quoscunque moribus aut fortuna novis rebus idoneos credebat, aut per se aut per alios sollicitabat, neque solum cives, sed cujusque modi genus hominum, quod modo bello usui foret.

40. Igitur P. Umbreno cuidam negotium dat, uti legatos Allobrogum^[203] requirat eosque, si possit, impellat ad societatem belli, existimans publice privatimque aere alieno oppressos, praeterea, quod natura gens Gallica bellicosa esset, facile eos ad

tale consilium adduci posse. Umbrenus, quod in Gallia negotiatus erat, plerisque principibus civitatum notus erat atque eos noverat; itaque sine mora, ubi primum legatos in foro conspexit, percontatus pauca de statu civitatis, et quasi dolens ejus casum, requirere coepit, quem exitum tantis malis sperarent. Postquam illos videt queri de avaritia magistratum, accusare senatum, quod in eo auxilii nihil esset, miseriis suis remedium mortem expectare: 'At ego, inquit, vobis, si modo viri esse vultis, rationem ostendam, qua tanta ista mala effugiatis.' Haec ubi dixit, Allobroges in maximam spem adducti Umbrenum orare, ut sui misereretur; nihil tam asperum neque tam difficile esse, quod non cupidissime facturi essent, dum ea res civitatem aere alieno liberaret. Ille eos in domum, D. Bruti perducit, quod foro propinqua erat neque aliena consilii^[204] propter Semproniam; nam tum Brutus ab Roma aberat. Praeterea Gabinium accersit,^[205] quo major auctoritas sermoni inesset. Eo praesente conjurationem aperit, nominat socios, praeterea multos cujusque generis innoxios, quo legatis animus amplior^[206] esset; deinde eos pollicitos operam suam domum dimittit.

41. Sed Allobroges diu in incerto habuere, quidnam consilii caperent. In altera parte erat aes alienum, studium belli, magna merces in spe victoriae, at in altera majores opes, tuta consilia, pro incerta spe certa praemia. Haec illis volventibus, tandem vicit fortuna rei publicae. Itaque Q. Fabio Sangae, cujus patrocinio civitas plurimum utebatur, rem omnem, uti cognoverant, aperiunt. Cicero, per Sangam consilio cognito, legatis praecepit, ut studium conjurationis vehementer simulent, ceteros adeant, bene polliceantur, dentque operam, uti eos quam maxime manifestos habeant.^[207]

42. Iisdem fere temporibus in Gallia citeriore atque ulteriore,^[208] item in agro Piceno, Bruttio,^[209] Apulia motus erat. Namque illi, quos ante Catilina dimiserat, inconsulte ac veluti per dementia cuncta simul agebant; nocturnis consiliis, armorum atque telorum portationibus, festinando, agitando omnia, plus timoris quam periculi effecerant. Ex eo numero complures Q. Metellus Celer praetor ex senati consulto, causa cognita, in vincula coniecerat; item in ulteriore Gallia G. Murena, qui ei provinciae legatus^[210] praeerat.

43. At Romae Lentulus cum ceteris, qui principes conjurationis erant, paratis, ut videbatur, magnis copiis, constituerant, uti quum Catilina in agrum Faesulanum cum exercitu venisset. L. Bestia tribunus plebis contione habita quereretur de actionibus Ciceronis, bellique gravissimi invidiam optimo consuli imposeret; eo signo^[211] proxima nocte cetera multitudo conjurationis suum quisque negotium exequeretur. Sed^[212] ea divisa hoc modo dicebantur: Statilius et Gabinius uti cum magna manu duodecim simul opportuna loca urbis incenderent, quo tumultu facilior aditus ad consulem ceterosque, quibus insidiae parabantur, fieret; Cethegus Ciceronis januam obsideret eumque vi aggredere, alius autem alium; sed filii^[213] familiarum, quorum ex nobilitate maxima pars erat, parentes interficerent, simul caede et incendio percussis omnibus, ad Catilinam erumperent. Inter haec parata atque decreta^[214] Cethegus semper querebatur de ignavia sociorum; illos dubitando et dies prolatando magnas opportunitates corrumpere, facto, non consulto, in tali periculo opus esse, seque, si pauci adjuvarent, languentibus aliis, impetum in curiam facturum. Natura ferox, vehemens, manu promptus erat; maximum bonum in celeritate putabat.

44. Sed Allobroges ex praecepto Ciceronis per Gabinium ceteros conveniunt;^[215] ab Lentulo, Cethego, Statilio, item Cassio postulant jusjurandum, quod signatum ad cives perferant; aliter haud facile eos ad tantum negotium impelli posse. Ceteri nihil suspicantes dant; Cassius semet eo brevi venturum pollicetur ac paulo ante legates ex urbe proficiscitur. Lentulus cum his T. Volturcium quendam Crotoniensem mittit, ut Allobroges prins quam domum pergerent, cum Catilina data atque accepta fide societatem confirmarent. Ipse Volturcio litteras ad Catilinam dat, quarum exemplum infra scriptum est: 'Qui^[216] sim ex eo, quem ad te misi, cognosces. Fac cogites, in quanta calamitate sis, et memineris te virum esse; consideres, quid tuae rationes postulent; auxilium petas ab omnibus, etiam ab infimis.'^[217] Ad hoc mandata verbis dat: 'Quum ab senatu hostis judicatus sit, quo consilio servitia repudiet? in urbe parata esse, quae jusserit; ne cunctetur ipse propius accedere.'

45. His rebus ita actis, constituta nocte, qua proficiscerentur, Cicero per legates cuncta edoctus,^[218] L. Valerio Flacco et G. Pomptinio praetoribus imperat, ut in ponte Mulvio^[219] per insidias Allobrogum comitatus deprehendant; rem omnem aperit, cujus gratia mittebantur, cetera, uti facto opus sit, ita agant, permittit. Illi, homines militares, sine tumultu praesidiis collocatis, sicuti praeceptum erat, occulte pontem obsidunt.^[220] Postquam ad id loci^[221] legati cum Volturcio venerunt et simul utrimque clamor exortus est, Galli, cito cognito consilio, sine mora praetoribus se tradunt. Volturcius primo, cohortatus ceteros, gladio se a multitudine defendit, deinde ubi a legatis desertus est, multa prius de salute sua Pomptinium

obtestatus, quod ei notus erat, postremo timidus ac vitae diffidens velut hostibus^[222] sese praetoribus dedit.

46. Quibus rebus confectis, omnia propere per nuntios consuli declarantur. At ilium ingens cura atque laetitia simul occupavere; nam laetabatur intellegens conjuratione patefacta civitatem periculis ereptam esse, porro autem anxius erat, dubitans, in maximo scelere tantis civibus deprehensis, quid facto opus esset; poenam illorum sibi oneri, impunitatem perdundae rei publicae^[223] fore credebat. Igitur confirmato animo vocari ad sese jubet Lentulum, Cethegum, Statilium, Gabinium, item quendam Caeparium Tarracinensem, qui in Apuliam ad concitanda servitia proficisci parabat. Ceteri sine mora veniunt: Caeparius paulo ante domo egressus cognito indicio ex urbe profugerat. Consul Lentulum, quod praetor erat, ipse manu tenens in senatum^[224] perducit; reliquos cum custodibus in aedem Concordiae venire jubet. Eo senatum advocat, magnaue frequentia ejus ordinis, Volturcium cum legatis introducit, Flaccum praetorem scrinium cum litteris, quas a legatis acceperat, eodem afferre jubet.

47. Volturcius interrogatus de itinere, de litteris, postremo quid aut qua de causa consilii habuisset, primo fingere alia, dissimulare de conjuratione; post, ubi fide publica dicere jussus est,^[225] omnia, uti gesta erant, aperit docetque se paucis ante diebus a Gabinio et Caepario socium ascitum nihil amplius scire quam legatos; tantummodo audire solitum ex Gabinio, P. Autronium, Ser. Sullam, L. Vargunteium, multos praeterea in ea conjuratione esse. Eadem Galli fatentur ac Lentulum dissimulantem coarguunt praeter litteras sermonibus, quos ille habere solitus erat; ex libris Sibyllinis^[226]

regnum Romae tribus Corneliis portendi; Cinnae atque Sullam antea, se tertium esse, cui fatum foret urbis potiri;^[227] praeterea ab incenso Capitolio illum esse vigesimum annum, quem saepe ex prodigiis haruspices^[228] respondissent bello civili cruentum fore. Igitur perlectis litteris, quum prius omnes signa sua cognovissent, senatus decernit, uti abdicato magistratu Lentulus, itemque ceteri in liberis custodiis^[229] habeantur. Itaque Lentulus P. Lentulo Spintheri, qui tum aedilis erat, Cethegus Q. Cornificio, Statilius G. Caesari, Gabinius M. Crasso, Caeparius (nam is paulo ante ex fuga retractus erat) Gn. Terentio senatori traduntur.

48. Interea plebes, conjuratione patefacta, quae primo cupida rerum novarum nimis bello favebat, mutata mente Catilinae consilia execrari, Ciceronem ad coelum tollere; veluti ex servitute erepta gaudium atque laetitiam agitabat.^[230] Namque alia belli facinora praedae magis quam detrimento fore, incendium vero crudele, immoderatum ac sibi maxime calamitosum putabat, quippe cui omnes copiae in usu cotidiano et cultu corporis erant.^[231] Post eum diem quidam L. Tarquinius ad senatum adductus erat, quem ad Catilinam proficiscentem ex itinere retractum ajebant. Is, quum se diceret indicaturum de conjuratione, si fides publica data esset, jussus a consule quae sciret edicere, eadem fere quae Volturcius, de paratis incendiis, de caede bonorum, de itinere hostium senatum docet; praeterea se missum a M. Crasso, qui Catilinae nuntiaret, ne eum Lentulus et Cethegus aliique ex conjuratione deprehensi^[232] terrerent, eoque magis properaret ad urbem accedere, quo et ceterorum animos reficeret et illi facilius e periculo eriperentur. Sed ubi Tarquinius Crassum nominavit, hominem nobilem, maximis

divitiis, summa potentia, alii rem incredibilem rati, pars tametsi verum existimabant, tamen quia in tali tempore^[233] tanta vis hominis magis leniunda quam exagitanda videbatur, plerique Crasso ex negotiis privatis obnoxii conclamant indicem falsum esse, deque ea re postulant uti referatur.^[234] Itaque consulente Cicerone frequens senatus decernit, Tarquinii indicium falsum videri, eumque in vinculis retinendum, neque amplius potestatem^[235] faciundam, nisi de eo indicaret, cujus consilio tantam rem esset mentitus. Erant eo tempore, qui aestimarent, indicium illud a P. Autronio machinatum, quo facilius appellato Crasso per societatem periculi reliquos illius potentia tegeret. Alii Tarquinium a Cicerone immissum ajebant, ne Crassus more suo suscepto malorum patrocinio rem publicam conturbaret. Ipsum Crassum ego postea praedicantem ^[236] audivi, tantam illam contumeliam sibi a Cicerone impositam.

49. Sed iisdem temporibus Q. Catulus et C. Piso^[237] neque precibus neque gratia neque pretio Ciceronem impellere potuere, uti per Allobroges aut alium indicem C. Caesar falso nominaretur. Nam uterque cum illo graves inimicitias exercebat: Piso oppugnatus in iudicio pecuniarum repetundarum propter cujusdam Transpadani supplicium injustum; Catulus ex petitione pontificatus odio incensus, quod extrema aetate, maximis honoribus usus, ab adolescentulo Caesare victus^[238] discesserat. Res autem opportuna videbatur, quod is privatim egregia liberalitate, publice maximis muneribus^[239] grandem pecuniam debebat. Sed ubi consulem ad tantum facinus impellere nequeunt, ipsi singulatim circumeundo atque ementiundo, quae se ex Volturcio aut Allobrogibus audisse dicerent,^[240] magnam

illi invidiam conflaverant, usque adeo, ut nonnulli equites Romani, qui praesidii causa eum telis erant circum aedem Concordiae, seu periculi magnitudine seu animi mobilitate^[241] impulsus, quo studium suum in rem publicam clarius esset, egredienti ex senatu Caesari gladio minitarentur.

50. Dum haec in senatu aguntur et dum legatis Allobrogum et T. Volturcio, comprobato eorum indicio, praemia decernuntur, liberti et pauci ex clientibus Lentuli diversis itineribus opifices atque servitia in vicis ad eum eripiundum sollicitabant, partim exquirebant duces multitudinum,^[242] qui pretio rem publicam vexare soliti erant. Cethegus autem per nuntios familiam atque libertos suos, lectos et exercitatos in audaciam, orabat, ut grege facto cum telis ad sese irrumperent. Consul, ubi ea parari cognovit, dispositis praesidiis, ut res atque tempus monebat, convocato senatu refert, quid de his fieri placeat, qui in custodiam traditi erant. Sed eos paulo ante frequens senatus iudicaverat contra rem publicam fecisse.^[243] Tum D. Junius Silanus, primus sententiam rogatus,^[244] quod eo tempore consul designatus erat, de his, qui in custodiis tenebantur, praeterea de L. Cassio, P. Furio, P. Umbreno, Q. Annio, si deprehensi forent, supplicium sumendum decreverat; isque postea, permotus oratione C. Caesaris, pedibus in sententiam Tib. Neronis iturum^[245] se dixerat, quod de ea re praesidiis additis referendum censuerat.^[246] Sed Caesar, ubi ad eum ventum est, rogatus sententiam a consule, huiusmodi verba locutus est:

51. ‘Omnes homines, patres conscripti, qui de rebus dubiis consultant, ab odio, amicitia, ira atque misericordia vacuos esse

decet. Haud facile animus verum providet, ubi illa officiunt, neque quisquam omnium libidini simul et usui paruit. Ubi intenderis ingenium, valet; si libido possidet, ea dominatur, animus nihil valet. Magna mihi copia est memorandi, P. C., quae reges atque populi ira aut misericordia impulsu male consuluerint;^[247] sed ea malo dicere, quae majores nostri contra libidinem animi sui recte atque ordine fecere. Bello Macedonico, quod cum rege Perse^[248] gessimus, Rhodiorum civitas, magna atque magnifica, quae populi Romani opibus creverat, infida atque adversa nobis fuit; sed postquam bello confecto de Rhodiis consultum est, majores nostri, ne quis divitiarum magis quam injuriae causa bellum inceptum diceret, impunitos eos dimisere. Item bellis Punicis omnibus, quum saepe Karthaginienses et in pace et per inducias multa nefaria facinora fecissent, nunquam ipsi per occasionem talia fecere; magis, quid se dignum foret, quam quid in illos jure fieri posset, quaerebant. Hoc item vobis providendum est, P. C., ne plus apud vos valeat P. Lentuli et ceterorum scelus quam vestra dignitas; neu magis irae vestrae quam famae consulatis. Nam si digna poena pro factis eorum reperitur, novum consilium approbo; sin magnitudo sceleris omnium ingenia exuperat, his utendum censeo, quae legibus comparata sunt. Plerique eorum, qui ante me sententiam dixerunt, composite atque magnifice casum rei publicae miserati sunt; quae belli saevitia esset, quae victis acciderent, enumeravere; rapi virgines, pueros, divelli liberos a parentum complexu, matres familiarum pati, quae victoribus collibuissent, fana atque domos spoliari, caedem, incendia fieri, postremo armis, cadaveribus, cruore atque luctu omnia compleri. Sed, per deos immortales, quo illa oratio pertinuit? an^[249] uti vos infestos conjurationi faceret? Scilicet^[250] quem res tanta et

tam, atrox non permovit, eum oratio accendit. Non ita est; neque cuiquam mortalium injuriae suae^[251] parvae videntur: multi eas gravius aequo habuere.^[252] Sed alia aliis licentia est, P. C. Qui demissi in obscuro vitam habent,^[253] si quid iracundia deliquere, pauci sciunt; fama atque fortuna eorum pares sunt: qui magno imperio praediti in excelso aetatem agunt, eorum facta cuncti mortales novere. Ita in maxima fortuna minima licentia est; neque studere, neque odisse, sed minime irasci decet; quae apud alios iracundia dicitur, ea in imperio superbia atque crudelitas appellatur. Equidem ego^[254] sic existimo, P. C., omnes cruciatus minores quam facinora illorum esse; sed plerique mortales postrema meminere, et in hominibus impiis sceleris eorum obliti de poena disserunt, si ea paulo severior fuit. D. Silanum, virum fortem atque strenuum, certo scio, quae dixerit, studio rei publicae dixisse, neque illum in tanta re gratiam aut inimicitias^[255] exercere; eos mores eamque modestiam viri cognovi.^[256] Verum sententia ejus mihi non crudelis, — quid enim in tales homines crudele fieri potest? — sed aliena a re publica nostra videtur. Nam profecto aut metus aut injuria te subegit,^[257] Silane, consulem designatum, genus poenae novum decernere. De timore supervacaneum est disserere, quum praesertim diligentia clarissimi viri, consulis, tanta praesidia sint in armis. De poena possumus equidem dicere id quod res habet;^[258] in luctu atque miseriis mortem aerumnarum requiem, non cruciatum esse, eam cuncta mortalium mala dissolvere, ultra neque curae neque gaudio locum esse. Sed, per deos immortales, quamobrem in sententiam non addidisti, uti prius verberibus in eos animadverteretur?^[259] An quia lex Porcia^[260] vetat? At aliae leges item condemnatis civibus non

animam eripi, sed exilium permitti jubent.^[261] An, quia gravius est verberari quam necari? Quid autem acerbum aut nimis grave est in homines tanti facinoris convictos? Sin, quia levius est; quī convenit^[262] in minore negotio legem timere, quum eam in maiore neglexeris? At enim^[263] quis reprehendet, quod in parricidas rei publicae decretum erit? Tempus, dies, fortuna, cujus libido gentibus moderatur. Illis merito accidet, quidquid evenerit; ceterum vos, P. C., quid in alios statuatis, considerate. Omnia mala exempla ex bonis orta sunt; sed ubi imperium ad ignaros aut minus bonos pervenit, novum illud exemplum ab dignis et idoneis ad indignos et non idoneos transfertur.^[264] Lacedaemonii devictis Atheniensibus triginta viros^[265] imposuere, qui rem publicam eorum tractarent. Hi primo coepere pessimum quemque et omnibus invisum indemnatum necare; ea^[266] populus laetari et merito dicere fieri. Post ubi paulatim licentia crevit, juxta bonos et malos libidinose interficere, ceteros metu terrere. Ita civitas servitute oppressa stultae laetitiae graves poenas dedit. Nostra memoria victor Sulla quum Damasippum^[267] et alios hujusmodi, qui malo rei publicae creverant, jugulare jussit, quis non factum ejus laudabat? Homines scelestos et factiosos, qui seditionibus rem publicam exagitaverant, merito necatos ajebant. Sed ea res magnae initium cladis fuit. Nam uti quisque domum aut villam, postremo vas aut vestimentum alicujus concupiverat, dabat operam, ut is in proscriptorum^[268] numero esset. Ita illi, quibus Damasippi mors laetitiae fuerat, paulo post ipsi trahebantur; neque prius finis jugulandi fuit quam Sulla omnes suos divitiis explevit. Atque ego haec non in M. Tullio neque his temporibus vereor, sed in magna civitate multa et varia ingenia sunt. Potest alio tempore, alio

consule, cui item exercitus in manu sit, falsum aliquid pro vero credi; ubi hoc exemplo per senati decretum consul gladium eduxerit, quis illi finem statuet aut quis moderabitur? Majores nostri, P. C., neque consilii neque audaciae unquam eguere, neque illis superbia obstabat, quo minus aliena instituta, si modo proba erant, imitarentur. Arma atque tela militaria ab Samnitibus, insignia magistratuum ab Tuscis pleraque^[269] sumpserunt: postremo quod ubique apud socios aut hostes idoneum videbatur, cum summo studio domi exequiebantur, imitari quam invidere bonis malebant. Sed eodem illo tempore, Graeciae morem imitati, verberibus animadvertabant in cives, de condemnatis summum supplicium sumebant. Postquam res publica adolevit et multitudine civium factiones valere, circumvenire innocentes, alia hujusmodi fieri coepere, tum lex Porcia aliaeque leges paratae sunt, quibus legibus^[270] exilium damnatis permissum est. Ego hanc causam, P. C., quominus^[271] novum consilium capiamus, in primis magnam puto. Profecto virtus atque sapientia major in illis fuit, qui ex parvis opibus tantum imperium fecere quam in nobis, qui ea bene parta vix retinemus. Placet igitur eos dimitti et augere exercitum Catilinae? Minime, sed ita censeo; publicandas eorum pecunias, ipsos in vinculis habendos per municipia,^[272] quae maxime opibus valent; neu quis de his postea ad senatum referat neve cum populo agat; qui aliter fecerit, senatum existimare eum contra rem publicam et salutem omnium facturum.'

52. Postquam Caesar dicendi finem fecit, ceteri verbo alius alii varie assentiebantur: at M. Porcius Cato, rogatus sententiam, hujusmodi orationem habuit: 'Longe mihi alia mens est, P. C.,

quum res atque pericula nostra considero, et quum sententias nonnullorum mecum ipse reputo.^[273] Illi mihi disseruisse videntur de poena eorum, qui patriae, parentibus, aris atque focis suis bellum paravere; res autem monet cavere ab illis magis quam, quid in illos statuamus, consultare. Nam cetera maleficia tum persequare, ubi facta sunt; hoc nisi provideris ne accidat, ubi evenit, frustra judicia implores; capta urbe nihil fit reliqui victis. Sed, per deos immortales, vos ego appello, qui semper domos, villas, signa, tabulas vestras pluris quam rem publicam fecistis,^[274] si ista, cujuscunque modi sunt quae amplexamini, retinere, si voluptatibus vestris otium praebere vultis, expergiscimini aliquando et capessite rem publicam.^[275] Non agitur de vectigalibus neque de sociorum injuriis: libertas et anima nostra in dubio est. Saepenumero, P. C., multa verba in hoc ordine feci,^[276] saepe de luxuria atque avaritia nostrorum civium questus sum, multosque mortales ea causa adversos habeo; qui mihi atque animo meo nullius unquam delicti gratiam fecissem,^[277] haud facile alterius libidini male facta condonabam. Sed ea tametsi vos parvi pendebatis, tamen res publica firma erat; opulentia negligentiam tolerabat.^[278] Nunc vero non id agitur, bonisne an malis moribus vivamus, neque quantum aut quam magnificum imperium, populi Romani sit, sed haec cujuscunque modi videntur, nostra an nobiscum una hostium futura sint. Hic mihi quisquam mansuetudinem et misericordiam nominat.^[279] Jampridem equidem^[280] nos vera vocabula rerum amisimus, quia bona aliena largiri liberalitas, malarum rerum audacia fortitudo vocatur, eo^[281] res publica in extremo sita est. Sint sane, quoniam ita se mores habent, liberales ex sociorum fortunis, sint misericordes in furibus aerarii; ne

illi sanguinem nostrum largiantur, et^[282] dum paucis sceleratis parcunt, bonos omnes perditum eant. Bene et composite G. Caesar paulo ante in hoc ordine de vita et morte disseruit, credo falsa existimans ea, quae de inferis memorantur, diverso itinere malos a bonis loca taetra, inculta, foeda atque formidolosa habere. Itaque censuit pecunias eorum publicandas, ipsos per municipia in custodiis habendos; videlicet timens, ne, si Romae sint, aut a popularibus conjurationis aut a multitudine conducti per vim eripiantur. Quasi vero mali atque scelesti tantummodo in urbe et non^[283] per totam Italiam sint, aut non ibi plus possit audacia, ubi ad defendendum opes minores sunt. Quare vanum equidem hoc consilium est, si periculum ex illis metuit; sin in tanto omnium metu solus non timet, eo magis refert^[284] me mihi atque vobis timere. Quare quum de P. Lentulo ceterisque statuetis, pro certo habetote,^[285] vos simul de exercitu Catilinae et de omnibus conjuratis decernere. Quanto vos attentius ea agetis, tanto illis animus infirmior erit; si paululum modo vos languere viderint, jam omnes feroces aderunt.^[286] Nolite existimare, majores nostros armis rem publicam ex parva magnam fecisse.^[287] Si ita res esset, multo pulcherrimam eam nos haberemus; quippe sociorum atque civium, praeterea armorum atque equorum major nobis copia quam illis est. Sed alia fuere, quae illos magnos fecere, quae nobis nulla sunt, domi industria, foris justum imperium, animus in consulendo liber, neque delicto neque libidini obnoxius.^[288] Pro his nos habemus luxuriam atque avaritiam, publice egestatem, privatim opulentiam; laudamus divitias, sequimur inertiam; inter bonos et malos discrimen nullum est; omnia virtutis praemia ambitio possidet. Neque mirum: ubi vos separatim sibi quisque consilium

capitis, ubi domi voluptatibus, hic^[289] pecuniae aut gratiae servitis, eo fit, ut impetus fiat in vacuum^[290] rem publicam. Sed ego haec omitto. Conjuravere nobilissimi cives patriam incendere,^[291] Gallorum gentem infestissimam nomini Romano ad bellum accersunt; dux hostium cum exercitu supra caput est: vos cunctamini etiamnunc, quid intra moenia deprensus hostibus faciatis?^[292] Misereamini censeo^[293], — deliquere homines adolescentuli per ambitionem, — atque etiam armatos dimittatis. Nae ista vobis mansuetudo et misericordia, si illi arma ceperint in miseriam onvertet.^[294] Scilicet res ipsa aspera est, sed vos non timetis eam.^[295] Immo vero^[296] maxime; sed inertia et mollitia animi alius alium expectantes cunctamini, videlicet dis immortalibus confisi, qui hanc rem publicam saepe in maximis periculis servavere. Non votis neque suppliciis muliebribus auxilia deorum parantur; vigilando, agendo, bene consulendo prospera omnia cedunt; ubi socordiae te atque ignaviae tradideris, nequidquam deos implores,^[297] irati infestique sunt. Apud maiores nostros A. Manlius Torquatus bello Gallico filium suum, quod is contra imperium in hostem pugnaverat, necare iussit,^[298] atque ille egregius adolescens immoderatae fortitudinis morte poenas dedit: vos de crudelissimis parricidis quid statuatis cunctamini? Videlicet cetera vita eorum huic sceleri obstat. Verum parcite dignitati Lentuli, si ipse pudicitiae, si famae suae, si dis aut hominibus unquam ullis pepercit; ignoscite Cethegi adolescentiae, nisi iterum jam patriae bellum fecit. Nam quid ego de Gabinio, Statilio, Caepario loquar? quibus si quidquam^[299] unquam pensi fuisset, non ea consilia de re publica habuissent. Postremo, P. C., si mehercule peccato locus esset,^[300] facile paterer vos ipsa re corrigi, quoniam verba

contemnitis; sed undique circumventi sumus. Catilina cum exercitu faucibus urget:^[301] alii intra moenia atque in sinu urbis sunt hostes: neque parari neque consuli quidquam potest occulte; quo magis properandum est. Quare ita ego censeo: quum nefario consilio sceleratorum civium res publica in maxima pericula venerit, iique indicio T. Volturcii et legatorum Allobrogum convicti confessique sint caedem, incendia aliaque se foeda atque crudelia facinora in cives patriamque paravisse, de confessis sicuti de manifestis rerum capitalium more majorum supplicium sumendum.'

53. Postquam Cato assedit, consulares omnes itemque senatus magna pars sententiam ejus laudant, virtutem animi ad coelum ferunt, alii alios increpantes timidos vocant, Cato clarus atque magnus habetur, senati decretum fit, sicuti ille censuerat. Sed mihi multa legenti, multa audienti, quae populus Romanus domi militiaeque, mari atque terra praeclara facinora fecit, forte libuit attendere, quae res maxime tanta negotia sustinuisset.^[302] Sciebam saepenumero parva manu cum magnis legionibus hostium contendisse; cognoveram parvis copiis bella gesta cum opulentis regibus, ad hoc saepe fortunae violentiam toleravisse, facundia Graecos, gloria belli Gallos ante Romanos fuisse. Ac mihi multa agitati constabat, paucorum civium egregiam virtutem cuncta patravisse,^[303] eoque factum, uti divitias paupertas, multitudinem paucitas superaret. Sed postquam luxu atque desidia civitas corrupta est, rursus res publica magnitudine sua imperatorum atque magistratuum vitia sustentabat, ac, sicuti effeta parentum,^[304] multis tempestatibus haud sane quisquam Romae virtute magnus fuit. Sed memoria mea ingenti virtute, diversis moribus fuere viri duo, M. Cato

et G. Caesar; quos quoniam res obtulerat, silentio praeterire non fuit consilium, quin^[305] utriusque naturam et mores, quantum ingenio possem, aperirem.

54. Igitur his genus, aetas, eloquentia prope aequalia fuere; magnitudo animi par, item gloria, sed alia alii.^[306] Caesar beneficiis ac munificentia magnus habebatur, integritate vitae Cato. Ille mansuetudine et misericordia clarus factus, huic severitas dignitatem addiderat. Caesar dando, sublevando, ignoscendo, Cato nihil largiundo gloriam adeptus est. In altero miseris perfugium erat, in altero malis perniciēs; illius facilitas, hujus constantia laudabatur. Postremo Caesar in animum induxerat laborare, vigilare; negotiis amicorum intentus sua neglegere, nihil denegare, quod dono dignum esset; sibi magnum imperium, exercitum, bellum novum exoptabat, ubi virtus enitescere posset. At Catoni studium modestiae, decoris, sed maxime severitatis erat. Non divitiis cum divite, neque factione cum factioso, sed cum strenuo virtute, cum modesto pudore, cum innocente abstinentia certabat, esse quam videri bonus malebat; ita quo minus petebat gloriam, eo magis ilium sequebatur.^[307]

55. Postquam, ut dixi, senatus in Catonis sententiam discessit,^[308] consul optimum factu ratus, noctem, quae instabat, antecapere, ne quid eo spatio novaretur, III. viros^[309] quae supplicium postulabat parare jubet; ipse, praesidiis dispositis, Lentulum in carcerem deducit,^[310] idem fit ceteris per praetores. Est in carcere locus, quod^[311] Tullianum appellatur, ubi paululum descenderis ad laevam, circiter duodecim pedes humi depressus.^[312] Eum muniunt undique parietes atque insuper camera lapideis fornicibus vineta,^[313] sed

incultu,^[314] tenebris, odore foeda atque terribilis ejus facies est. In eum locum postquam demissus est Lentulus, viridices rerum capitalium,^[315] quibus praeceptum erat, laqueo gulam fregere. Ille ille patricius ex gente clarissima Corneliorum, qui consulare imperium Romae habuerat,^[316] dignum moribus factisque suis exitium vitae invenit. De Cethego, Statilio, Gabinio, Caepario eodem modo supplicium sumptum est.^[317]

56. Dum ea Romae geruntur, Catilina ex omni copia,^[318] quam et ipse adduxerat et Manlius habuerat, duas legiones instituit, cohortes pro numero militum complet,^[319] deinde, ut quisque voluntarius aut ex sociis in castra venerat, aequaliter distribuerat, ac brevi spatio legiones numero hominum expleverat, quum initio non amplius duobus milibus^[320] habuisset. Sed ex omni copia circiter pars quarta erat militaribus armis instructa; ceteri, ut quemque casus armaverat, sparos aut lanceas,^[321] alii praeacutas sudes portabant. Sed postquam Antonius^[322] cum exercitu adventabat, Catilina per montes iter facere, modo ad urbem, modo in Galliam versus castra movere, hostibus occasionem pugnandi non dare; sperabat propediem magnas copias sese habiturum, si Romae socii incepta patravissent. Interea servitia repudiabat, cujus^[323] initio ad eum magnae copiae concurrebant, opibus conjurationis fretus, simul alienum suis rationibus existimans, videri^[324] causam civium cum servis fugitivis communicavisse.

57. Sed postquam in castra nuntius pervenit Romae conjurationem patefactam, de Lentulo et Cethego ceterisque, quos supra

memoravi, supplicium sumptum; plerique, quos ad bellum spes rapinarum aut novarum rerum studium illexerat, dilabuntur; reliquos Catilina per montes asperos magnis itineribus in agrum Pistoriensem^[325] abducit, eo consilio, uti per tramites occulte perfugeret in Galliam Transalpinam. At Q. Metellus Celer cum tribus legionibus in agro Piceno praesidebat, ex difficultate rerum eadem illa existimans, quae supra diximus, Catilinam agitare. Igitur, ubi iter ejus ex perfugis cognovit, castra propere movet ac sub ipsis radicibus montium consedit, qua illi descensus erat in Galliam properanti. Neque tamen Antonius procul aberat, utpote qui magno exercitu locis aequioribus expeditos in fuga sequeretur.^[326] Sed Catilina postquam videt montibus atque copiis hostium sese clausum, in urbe res adversas, neque fugae neque praesidii ullam spem, optimum factu ratus, in tali re fortunam belli temptare, statuit cum Antonio quam primum configere. Itaque contione advocata hujuscemodi orationem habuit:

58. 'Compertum ego habeo, milites, verba virtutem non addere, neque ex ignavo strenuum neque fortem ex timido exercitum oratione imperatoris fieri. Quanta cujusque animo audacia natura aut moribus inest, tanta in bello patere solet. Quem neque gloria neque pericula excitant, nequidquam hortere; timor animi auribus officit.^[327] Sed ego vos, quo pauca monerem, advocavi; simul uti causam mei consilii aperirem. Scitis equidem, milites, socordia atque ignavia Lentuli quantam ipsi nobisque cladem attulerit; quoque modo, dum ex urbe praesidia opperior, in Galliam proficisci nequiverim.^[328] Nunc vero quo in loco^[329] res nostrae sint, juxta mecum omnes intellegitis. Exercitus hostium duo, unus ab urbe, alter a Gallia obstant; diutius in

his locis esse, si maxime animus ferat, frumenti atque aliarum rerum egestas^[330] prohibet. Quocunque ire placet, ferro iter aperiundum est. Quapropter vos moneo; uti forti atque parato animo sitis et, quum proelium inibitis, memineritis vos divitias, decus, gloriam, praeterea libertatem atque patriam in dexteris vestris portare. Si vincimus, omnia nobis tuta erunt, commeatus abunde, municipia atque coloniae patebunt; sin metu cesserimus, eadem illa adversa fient: neque locus neque amicus quisquam teget, quem arma non texerint. Praeterea, milites, non eadem nobis et illis necessitudo impendet; nos pro patria, pro libertate, pro vita certamus: illis supervacaneum est pro potentia paucorum pugnare. Quo audacius aggredimini, memores pristinae virtutis. Licuit vobis cum summa turpitudine in exilio aetatem agere; potuistis nonnulli Romae amissis bonis alienas opes expectare: quia illa foeda atque intoleranda viris videbantur, haec^[331] sequi decrevistis. Si haec relinquere vultis, audacia opus est; nemo nisi victor pace bellum mutavit.^[332] Nam in fuga salutem sperare, quum arma, quâ^[333] corpus tegitur, ab hostibus averteris, ea vero dementia est. Semper in proelio iis maximum est periculum, qui maxime timent; audacia pro muro habetur. Quum vos considero, milites, et quum facta vestra aestimo, magna me spes victoriae tenet. Animus, aetas, virtus vestra me hortantur;^[334] praeterea necessitudo, quae etiam timidos fortes facit. Nam multitudo hostium ne circumvenire queat, prohibent angustiae loci. Quodsi virtuti vestrae fortuna inviderit, cavete,^[335] inulti animam amittatis, neu capti potius sicuti pecora trucidemini, quam virorum more pugnantes cruentam atque luctuosam victoriam hostibus relinquatis.'

59. Haec ubi dixit, paululum commoratus, signa canere jubet,^[336] atque instructos ordines in locum aequum deducit. Dein, remotis omnium equis, quo militibus exaequato periculo animus amplior esset, ipse pedes exercitum pro loco atque copiis instruit. Nam, uti planities erat inter sinistros montes et ab dextera rupe aspera,^[337] octo cohortes in fronte constituit, reliquarum signa^[338] in subsidio artius collocat. Ab his centuriones omnes, lectos et evocatos, praeterea ex gregariis militibus optimum quemque armatum in primam aciem subducit.^[339] G. Manlium in dextera, Faesulanum quendam in sinistra parte curare^[340] jubet; ipse cum libertis et colonis propter aquilam assistit,^[341] quam bello Cimbrico G. Marius in exercitu habuisse dicebatur. At ex altera parte G. Antonius, pedibus aeger,^[342] quod proelio adesse nequibat, M. Petreio legato^[343] exercitum permittit. Ille cohortes veteranas, quas tumulti^[344] causa conscripserat, in fronte post eas ceterum exercitum in subsidiis locat. Ipse equo circumiens, unum quemque nominans appellat, hortatur, rogat, ut meminerint, se contra latrones inermes, pro patria, pro liberis, pro aris atque focus suis certare. Homo militaris, quod amplius annos triginta tribunus aut praefectus aut legatus aut praetor cum magna gloria in exercitu fuerat, plerosque ipsos factaque eorum fortia noverat; ea commemorando militum animos accendebat.

60. Sed ubi, omnibus rebus exploratis, Petreius tuba signum dat, cohortes paulatim incedere jubet, idem facit hostium exercitus. Postquam eo ventum est, unde a ferentariis^[345] proelium committi posset, maximo clamore cum infestis signis^[346] concurrunt; pila omittunt, gladiis res geritur. Veterani, pristinae virtutis memores,

comminus acriter instare; illi haud timidi resistunt; maxima vi certatur. Interea Catilina cum expeditis in prima acie versari, laborantibus succurrere; integros pro sauciis accersere, omnia providere, multum ipse pugnare saepe, hostem ferire; strenui militis et boni imperatoris officia simul exequebatur. Petreius, ubi videt Catilinam, contra ac ratus erat, magna vi tendere, cohortem praetoriam^[347] in medios hostes inducit, eosque perturbatos atque alios alibi resistentes interficit; deinde utrimque ex lateribus ceteros aggreditur. Manlius et Faesulanus in primis pugnantes cadunt. Postquam fusas copias seque cum paucis relictum videt Catilina, memor generis atque pristinae suae dignitatis, in confertissimos hostes incurrit ibique pugnans confoditur.

61. Sed confecto proelio, tum vero cerneret^[348] quanta audacia quantaque vis animi fuisset in exercitu Catilinae. Nam fere, quem quisque vivus pugnando locum ceperat, eum amissa anima corpore tegebat. Pauci autem, quos medios^[349] cohors praetoria disjecerat, paulo diversius, sed omnes tamen adversis vulneribus^[350] conciderant. Catilina vero longe a suis inter hostium cadavera repertus est, paululum etiam spirans ferociamque animi, quam habuerat vivus, in vultu retinens. Postremo ex omni copia neque in proelio neque in fuga quisquam^[351] civis ingenuus captus est: ita cuncti suae hostiumque vitae juxta^[352] pepercerant. Neque tamen exercitus populi Romani laetam aut incruentam victoriam adeptus erat; nam strenuissimus quisque aut occiderat in proelio aut graviter vulneratus discesserat. Multi autem, qui de castris visundi aut spoliandi gratia processerant, volventes hostilia cadavera, amicum alii, pars hospitem aut cognatum reperiabant; fuere item, qui inimicos

suos cognoscerent. Ita varie per omnem exercitum laetitia, moeror, luctus atque gaudia^[353] agitabantur.

Footnotes for *Bellum Catilinarium*

([Skip footnotes](#))

1.

[1] *Omnes*. Other editions have *omnis* or *omneis*. The accusative plural of words of the third declension making their genitive plural in *ium*, varied in early Latin, sometimes ending in *is*, and sometimes in *eis* or *es*. This fluctuation, however, afterwards ceased; and even in the best age of the Latin language it became generally customary to make the accusative plural like the nominative in *es*. The same was the case with some other obsolete forms, as *volt* for *vult*, *divorsus* for *diversus*, *quoique* for *cuique*, *maxumus* for *maximus*, *quom* for *quum*, or *cum*, which are retained in many editions, but have been avoided in the present, in accordance with the orthography generally adopted during the best period of the Latin language.

[2] *Studeo*, when the verb following has the same subject, may be construed in three ways — with the infinitive alone, as *studeo praestare*; with the accusative and infinitive, *studeo me praestare*, as in the present case; or with *ut*, as *studeo ut praestem*.

[3] *Summa ope*, ‘with the greatest exertion,’ equivalent to *summa opere*, *summopere*; as *magno opere*, or *magnopere*, signifies ‘with great exertion,’ or ‘greatly.’ The nominative *ops* is not in use,

and the plural *opes* generally signifies 'the means' or 'power of doing something.'

[4] *Prona*, 'bent forward,' 'bent down to the ground,' in opposition to the erect gait of man.

[5] *Dis* for *diis*. See Zumpt, § 51, n. 5.

[6] *Beluis*; another, but less correct mode of spelling, is *bellua*, *belluis*.

[7] Instead of *memoriam nostri*, Sallust might have said *memoriam nostram*; but the genitive *nostri* sets forth the object of remembrance with greater force. See Zumpt, § 423.

[8] *Quam maxime longam*; that is, *quam longissimam*, 'lasting as long as possible.' Zumpt, § 108.

[9] The author here makes a digression, to remove the objection that in war bodily strength is of greater importance than mental superiority. He admits that in the earlier times it may have been so, but maintains that in more recent times, when the art of war had become rather complicate, the superiority of mind has become manifest. *Vine corporis an*; that is, *utrum vi corporis an*. See Zumpt, § 554.

[10] That is, 'before undertaking anything, reflect well; but when you have reflected, then carry your design into execution without delay.' The past participles *consulta* and *facto* here supply the place of verbal substantives.

2.

[11] Respecting the frequent position of *igitur* at the beginning of a sentence in Sallust, see Zumpt, § 357.

[12] *Pars*, instead of *alii*, probably to avoid the repetition of *alii*,

and to produce variety.

[13] *Postea vero quam*, for *postquam vero*. The author means to say, that after the formation of great empires by extensive conquests, the truth became manifest that even in war mind was superior to mere bodily strength. He mentions Cyrus, king of Persia, the Lacedaemonians and Athenians, because the earlier empires of the Egyptians and Assyrians did not yet belong to accredited history.

[14] Sallust here introduces, by *quodsi* (and if, or yes, if), an illustration connected with the preceding remarks. Respecting this connecting power of *quodsi*, as distinguished from the simple *si*, see Zumpt, § 807. This illustration, which ends with the word *transfertur*, was suggested to Sallust especially by the consideration of the recent disturbances in the Roman republic under Pompey, Caesar, and Mark Antony, three men who, in times of peace, saw their glory, previously acquired in war, fade away.

[15] *Animi virtus*; these two words are here united to express a single idea, 'mental greatness.'

[16] *Aliud alio ferri*, 'that one thing is drawn in one direction, and the other in another.' For *aliud alio*, see Zumpt, § 714; and for *cerneres*, in which the second person singular of the subjunctive answers to the English 'you' when not referring to any definite person, § 381.

[17] *Optimum quemque*, 'to every one in proportion as he is better than others.' Respecting this relative meaning of *quisque*, see Zumpt, § 710. 'Every one,' absolutely, is *unusquisque*, and adjectively *omnis*.

[18] 'They have passed through life like strangers or travellers;'

that is, as if they had no concern with their own life, although it is clear that human life is of value only when men are conscious of themselves, and exert themselves to cultivate their mental powers, and apply them to practical purposes.

[19] 'I set an equal value upon their life and their death;' that is, an equally low value, *juxta* being equivalent to *aeque* or *pariter*.

[20] *Verum enimvero*; these conjunctions are intended strongly to draw the attention of the reader to the conclusion from a preceding argument.

[21] 'Intent upon some occupation.' *Intentus* is commonly construed with the dative, or the preposition *in* or *ad* with the accusative; but as a person may be intent *upon* something, so he also may be intent *by*, or *in consequence of*, something, so that the ablative is perfectly consistent.

3.

[22] *Haud absurdum est*, 'is not unbecoming;' that is, 'is worthy of man.'

[23] *Quidem* here, like the Greek *μεν* in *εμοι μεν*, without a *δε* following, introduces one opinion in contradistinction from others, though the latter are not mentioned, but merely suggested by *quidem*. 'I for my part think so, but what others think I do not know, or care.'

[24] 'If you censure any things as faults or delinquencies, your censure is considered to have arisen from malevolence or ill-will.'

[25] *Supra ea*, 'whatever is beyond: that;' that is, whatever is beyond the capacity of the reader.

[26] The author now passes over to his own experience, telling us

that after having devoted himself at first to the career of a public man, and finding that he was not understood, and ill-used by his opponents, he formed the determination to give himself up to a literary life.

[27] *Insolens malarum artium*, 'unacquainted with base artifices or intrigues;' for *artes* may be *malae* as well as *bonae*, according as they consist in the skill of doing bad or good things.

[28] *Imbecilla aetas*, 'my weak age;' that is, my mind, which had not yet arrived at mature independence, 'was corrupted by ambition, and was kept under the influence of such bad circumstances.' Sallust means to say that if his mind had arrived at manly independence, he would have immediately withdrawn from the vicious atmosphere of public life.

[29] My ambition caused me to be equally ill spoken of and envied, and thus to be dragged down to a level with the rest, and to be equally harassed and persecuted as they were.

4.

[30] *Conterere* — that is, *consumere*, 'to waste my fair leisure.'

[31] Sallust here calls agriculture and the chase occupations of men in a servile condition, although the majority of the ancients considered the former especially as the most honourable occupation of free citizens. But he seems to think that in comparison with the important business of writing the history of his country, agriculture and the chase are not suitable occupations for a man who has at one time taken an active part in political affairs.

[32] *Carptim*, 'in detached parts.'

[33] *Paucis absolvam*, 'I shall treat briefly,' or *paucis pertractabo conjurationem Catilinae*.

5.

[34] Sallust begins with a general description of the character of Catiline. This talented person, though of a most wicked disposition, belonged to the patrician *gens Sergia*, which traced its descent to one of the companions of Aeneas. This is no doubt fabulous, but at any rate proves the high antiquity of the gens. The most renowned among the ancestors of Catiline was M. Sergius, a real model of bravery, who distinguished himself in the Gallic and second Punic wars, and after having lost his right hand in battle, wielded the sword with the left. As Catiline offered himself as a candidate for the consulship in B.C. 66, which no Roman was allowed to do by law before having attained the age of forty-three, we may fairly presume that he was born about B.C. 109, in the time of the Jugurthine war. Cicero was born in B.C. 106, and was consequently a few years younger than Catiline.

[35] *Patiens inediae*. Respecting the genitive governed by this and similar participles — as soon after *alieni appetens* — see Zumpt, § 438.

[36] *Cujus rei libet*; it is more common to say *cujuslibet rei*. Sometimes the relative pronouns compounded with *cunque* and *libet* are separated by the insertion of some other word or words between them, which in grammatical language is called a tmesis — as *quod enim cunque judicium subierat, absolvebatur; quem sors dierum cunque tibi dederit, lucre appone*, 'whatever day chance may give thee, consider it as a gain.'

[37] *Capiundae*. Respecting the *e* or *u* in such gerunds and gerandives, see Zumpt, § 167.

[38] *Auxerat*. He had increased both by the above-mentioned qualities — namely, his poverty by extravagance, and the consciousness of guilt by the crimes he committed. The neuter plural *quae*, referring to two feminine substantives denoting abstract ideas, is not very common, though quite justifiable. Zumpt, § 377.

[39] Respecting the infinitive after *hortari*, instead of the more common use of the conjunction *ut*, see Zumpt, § 615.

[40] *Domi militiaeque*, ‘in times of peace and in war.’

6.

[41] In the following eight chapters (6-13) Sallust describes the transition from the stern manners, the warlike energy, and domestic peace of the ancient Romans, to the corruption prevalent in the time of Catiline, and which consisted chiefly in extravagance, avarice, oppression, and the love of dominion. His description is a striking picture of the early virtuous character of the Romans, and their subsequent indulgence in vice. He traces all the corruption of his time to the immense wealth accumulated at Rome, after she had acquired the dominion over the world — that is, after the destruction of Carthage and Corinth; and he marks out in particular Sulla as the man who had fostered the very worst qualities in order to obtain supreme power for himself.

[42] According to the current tradition, the people of the Latins had been formed by a union of the Trojan emigrants with the native Aborigines. Their capital was Alba Longa, and they lived

about Alba, on and near the Alban Mount, in a great number of confederate townships. Four centuries after the arrival of Aeneas, the city of Rome was founded by Albans on the extreme frontier of the Latin territory, and near the hostile tribes by which it was surrounded. Sallust passes over the intermediate stages, either because he, like others, thought Rome much more ancient, or because, having to do only with the description of manners, he was unconcerned about historical developments.

[43] *Una* is the plural. See Zumpt, § 115, note.

[44] It is indeed wonderful how quickly the Roman people, although consisting of a mixture of different tribes — whether, as Sallust briefly intimates, they were Trojans and Aborigines, or, as the more minute historians relate, Latins, Sabines, and Etruscans — united into one nationality. The language spoken by the Roman people, however, was not a mixture of those of the last-mentioned tribes, but Latin, which, in conformity with Sallust's notion, appears to be a combination of Greek with some early Italian idiom.

[45] *Temptare*, the historical infinitive, about the meaning and construction of which see Zumpt, § 599, note.

[46] *Auxilia portare* is a less common expression than *auxilium ferre*; for *portare* is generally used only to denote the actual physical carrying of something, while *ferre* has a wider meaning. The plural *auxilia*, however, here alludes to the repeated assistance given to friends.

[47] 'Their government was a legitimate one' — that is, the powers of the government were limited by law; 'and bore the name of a kingly government' — that is, a king stood at the head

of it.

[48] Chosen men had the care of public affairs, and deliberated about the good of the state; they stood by the side of the kings as a *consilium publicum*, and were addressed by the term *patres*.

[49] Respecting the meaning of these genitives, for which datives also might have been used, see Zumpt, § 662.

[50] *Ubi* — *convertit*, 'when it had changed (itself).' For *ubi* with the perfect in the sense of a pluperfect, see Zumpt, § 506; and for the use of *vertere* in an intransitive or reflective sense, § 145.

[51] In the earliest times they were called *praetores* or leaders, *qui praeunt exercitui*; afterwards *consules*. As two were elected every year, Sallust uses *bini*, and not *duo*.

7.

[52] *In promptu habere*, 'to have in readiness,' and also 'to bring into action,' or 'to make use of.' Sallust means to say, that in consequence of the introduction of annual magistrates, every one increased his efforts to distinguish himself, and to make his talents shine.

[53] *Adepta* is here used in a passive sense, contrary to the usage of the best authors, in accordance with which he might have said *adepta libertatem*.

[54] *Brevi*, 'in a short time.'

[55] *Incesserat*; supply *in eos* or *iis*, referring to *cives*, implied in the preceding *civitas*.

[56] *Habebant* should have been *habebat*, since *discebat* precedes. But see Zumpt, § 366.

[57] *Labos*, a rarer form for *labor*, as *honos* and *lepos*, which are

even more frequently found than *honor* and *lepor*.

[58] *Eas* agrees with *divitias*, though in English we say, in such cases, 'This,' or 'these things they considered as riches.' See Zumpt, § 372.

8.

[59] *Aliquanto*, 'by a considerable amount,' or simply 'considerably,' is the ablative, expressing the amount of difference between two things compared. Sallust here considers it to be a mere matter of chance that the wars of the early Romans, as those against the Volscians, Aequians, Etruscans, and Samnites, do not stand forth in history as glorious as the wars of the Greek nations among themselves, and against the Persians. To us it appears that this was not a matter of chance; but it undoubtedly arose from the fact, that the Greeks even then had already attained a higher degree of civilisation. The interest which history takes in wars does not depend upon the vastness of the armies or the extent of countries, but upon the lower or higher degree of civilisation of those engaged in the wars.

[60] *Pro maximis*, 'they are celebrated as if they were the greatest.' Respecting this meaning of *pro*, see Zumpt, § 394, note 3.

[61] 'The more intelligent any one was, the more business was intrusted to him,' so that he had no leisure (*otium*) to devote to literary composition. This at least is Sallust's opinion; but when a man feels it to be his vocation to write history, he can find time for it, however much he may be otherwise engaged — witness J.

Caesar and Frederick II. of Prussia. For the construction, see Zumpt, § 710. C.

9.

[62] 'Not more by law than by nature;' that is, 'by nature as well as by law.'

[63] *In suppliciis*, 'in the worship of the gods;' for as it was customary, in worshipping, to fall down, the word *supplicium* has this religious meaning, which also appears in *supplicatio*. The other and more common meaning of 'execution,' 'capital punishment,' or 'severe chastisement,' likewise originates in the prostration of the person so punished.

[64] *Seque remque* is an unusual expression for *et se et rem*.

[65] *Quam*; before this word we must supply *magis*, 'they carried on the government more with acts of kindness than with fear.' This ellipsis before *quam* is not uncommon.

[66] When they had suffered a wrong, they would rather pardon it than take revenge.' To *persequi* we must supply *eam* from the preceding ablative.

11.

[67] *Propius virtutem*, also *propius virtuti*. See Zumpt, § 411.

[68] *Concupivit*, 'No man in his senses *has* ever coveted money for its own sake;' that is, and even now no one does so, nor will any one ever do so. But a *homo avarus* covets money only that he may *have* it, and not for any ulterior objects.

[69] *Bonis initiis* is the ablative absolute, 'though his beginnings

were good.’ Although Sulla’s government began well, it became arbitrary and bad, especially by the unlimited partiality with which he treated the men of his own party.

[70] *In civibus*. It would have been more in accordance with the common usage to write *in cives*; but the ablative signifies ‘in the case of citizens.’

[71] ‘In order thereby to render him faithful or attached to himself,’ *quo* being equivalent to *ut eo* or *ut ea re*.

[72] Namely, the charming and delightful places in Asia Minor, near the sea-coast, under a mild climate, abounding in all the means calculated to afford pleasure and delight.

[73] *Amare*, ‘to indulge in illicit intercourse with the other sex:’ *amare* is often used to denote an immoral intercourse between the sexes.

[74] *Vasa caelata*, vessels adorned with figures, and wrought with the *caelum*, the chisel. *Caelare* and *caelatura* denote the art of making raised figures in metal, *alto relieve*.

[75] *Delubra*, ‘temples of the gods.’ Sallust has chosen this word in preference to the common *templa* or *aedes*, because it conveys the idea of antiquity, sanctity, and mysterious seclusion, which is also contained in the word *fanum*.

[76] *Ne illi — temperament* ‘not to speak of their using their victory with moderation;’ that is, they were far from using their victory with moderation. *Ne* is here used in the sense of *nedum*.

12.

[77] ‘Honest conduct was regarded as malevolence or envy,’ inasmuch as an honest and incorruptible man was not praised for

these virtues, but rather drew upon himself the suspicion of envying others for their increasing their possessions, and of wishing to prevent them from becoming rich by the base means which in their greediness they considered to be fair.

[78] *Operae pretium est*, 'it is worth while (properly "the labour has its reward") to compare the extensive country-houses of our present aristocracy with the small temples of the gods erected by our ancestors, notwithstanding their intense piety.'

[79] This is the same precept as that advanced by Cicero, that in punishing an enemy, we should be satisfied if we have placed him in a position in which he can no longer injure us.

13.

[80] 'Mountains are levelled, and seas are produced artificially.' In the latter expression, Sallust, as in [chap. 20](#) (*maria extruuntur*), alludes to the formation of immense basins in the interior of the country, into which the water was conducted from the sea, for the purpose of keeping in them sea-fish and oysters. In this kind of luxury and extravagance all the earlier Roman grandees were eclipsed by L. Lucullus, who had amassed immense wealth in the war against Mithridates. He possessed a very extensive *piscina* of this kind near the coast of Campania, in the neighbourhood of Baiae.

[81] *Cultus* comprises the whole domestic arrangement, and especially includes costly furniture and dresses.

[82] 'To the acquisition and to the squandering of money;' for, as we stated before, it was peculiar to the corruption prevalent among the Romans that they squandered their own property, and

appropriated to themselves, by violent means, that which belonged to others.

14.

[83] The author, after having given a description of the state of morality in the time of Sulla, now proceeds to the life of Catiline himself, and in the following two chapters, describes the associates in whom that criminal placed his confidence, and with whose help he hoped to overturn the constitution. *Flagitia* and *facinora* in this passage have the meaning of *homines flagitiosi*, and *facinorosi*.

[84] *Manu*, 'by playing at dice' (*alea*), because that game was played with the hand, either with or without the cup containing the dice (*fritillus*).

[85] *Difficulter*. See Zumpt, § 267, note 2.

[86] 'In accordance with his (still) youthful age.' Zumpt, § 309.

[87] *Dum* for *dummodo*, 'if but.'

15.

[88] Catiline then had a son from a previous marriage, whom he got rid of because Orestilla would not become his wife, from fear of the young man, who was already grown up, and who would have become her stepson (*privignus*).

[89] 'The consciousness of his guilt disturbed his thinking powers,' for this is the meaning of *mens* as distinct from *animus*, which has reference to the feelings.

16.

[90] *Gratis*, 'gratuitously,' 'without any advantage.' Respecting the form of this adverb, see Zumpt, § 266.

[91] Sulla had given settlements to the legions with which he had gained the victory over the Marian party in the territory of those towns which had longest remained faithful to his adversaries; and it was more especially in Etruria that this measure had brought about a complete change of the owners of the soil. But the new landowners had acted very recklessly on their new estates, and therefore were inclined to favour any fresh revolutionary attempt which seemed to promise an equally favourable result.

[92] Gn. Pompeius. Respecting the orthography of the prenomen *Gneius*, see Zumpt, § 4. Pompey was then engaged in the war against Mithridates, king of Pontus, and Tigranes, king of Armenia; and in consequence of this war, the extensive country of Syria, which had before been an independent kingdom, became a Roman province.

[93] *Nihil sane intentus*, 'in no way attentive.' For the difference between nihil and non, see Zumpt, § 677.

17.

[94] That is, in the year B.C. 64, or 690 after the building of the city.

[95] *Necessitudo*, 'a close connection' or 'friendship' is commonly distinguished from *necessitas*, 'necessity,' or 'a compulsory circumstance;' but the two words are often confounded with each other, as here, and subsequently in this chapter, *necessitudo* is used in the sense of *necessitas*.

[96] For the difference between *plures* and *complures*, see

Zumpt, § 65.

[97] *Juventus pleraque*, 'most young men.' Commonly the plural *plerique* only is used; but see Zumpt, § 103.

[98] *Ea tempestate*, an old-fashioned expression, such as Sallust is fond of, for *eo tempore*; for in ordinary Latinity, *tempestas* is used only in the sense of 'storm' or 'tempest.'

[99] M. Licinius Crassus had been consul several years before (B.C. 70), together with Cn. Pompey, and enjoyed considerable popularity both on account of his former practical usefulness in the state, and on account of his colossal wealth, which he used with proper discretion.

18.

[100] *Antea*. Sallust, who has commenced speaking of the conspiracy entered into in the year B. C. 64, considers it necessary, before relating its progress, to go back to an earlier conspiracy, which failed, and in which Catiline had likewise taken an active part. This earlier conspiracy the author relates in chaps. [19](#) and [20](#).

[101] *Qua*; supply *conjurazione*, which is to be taken from the verb *conjuravere*. This is an irregularity arising from the desire to be brief and concise.

[102] That is, in the year B. C. 66, or 688 after the building of the city.

[103] *Interrogati* — that is, *accusati*, 'taken to account by accusers,' because the beginning of all such accusations consisted in the accused being asked whether they owned having done this or that thing forbidden by law.

[104] *Post paulo* is less common than *paulo post*.

[105] *Repetundarum reus*, 'accused of extortion.' *Res repetundae*, in legal phraseology, signifies the things or money which had been illegally taken by public officers from those subject to their authority; for such citizens or subjects had a right, after the expiration of the official year of their ruler, to reclaim (*repetere*) their property in a court of law. Those officers who were found guilty had, in addition, to pay a fine, or were otherwise punished. A person who stood accused of extortion was not allowed to come forward as a candidate for any other office before he was tried and acquitted.

[106] *Profiteri*, 'to announce one's self' as a candidate for an office.

[107] These are the consuls of the year B. C. 65, who had obtained their office after the condemnation of the above-mentioned P. Sulla (a nephew of the dictator) and P. Autronius.

[108] *Hispanias*. Ancient Spain was, for administrative purposes, divided into two provinces — *Hispania Tarraconensis*, or *provincia citerior*, with Tarraco (the modern Tarragona) for its capital; and *Hispania Baetica*, or *ulterior*, deriving its name from the river Baitis (the modern Guadalquivir). Its chief towns were Corduba and Hispalis (now Seville).

[109] About the force of *quod*, when joined to conjunctions, see Zumpt, § 807. Compare p.14, note 6 [[note 14](#)].

19.

[110] That is, he was only quaestor, but had the powers of a praetor, being commissioned to supply the place of a praetor.

[111] Respecting the indicative *dicunt*, see Zumpt, § 563.

20.

[112] The author now continues his account of the conspiracy entered into in B.C. 64.

[113] *Per ignaviam*, 'by means of cowardice,' here means, 'with the assistance of cowardly men,' 'such as you are not, since I have evidence of your valour and trustworthiness.' *Vana ingenia* are men of untrustworthy character. In both cases the abstract quality is mentioned instead of the person possessing it.

[114] *Diversi*, 'separately;' that is, at different times, and in different places.

[115] *Tetrarcha* is a title which properly belonged only to such princes as ruled over the fourth part of a whole nation. Such a division took place in Galatia, and afterwards also in Judaea. A similar title, *ethnarcha*, but that of king also, was sometimes granted to powerful princes; or, when they had had it before, the Roman senate sometimes allowed them to keep it.

[116] *Pro fide*m, or *proh fide*m, is an exclamation, and *pro* an interjection. The accus. *fide*m is governed by some such verb as *testor* or *invoco*. See Zumpt, § 361.

[117] *Superare* here has an intransitive meaning, 'to exist in abundance.'

[118] *Lar familiaris*, a domestic or family divinity, whose image stood in the interior of the house, by the domestic altar; hence *lar*, or the plural *lares*, is sometimes used in the sense of 'a house,' or 'home.'

[119] *Toreumata* are the *vasa caelata* mentioned in [chap. 11](#);

works in metal, especially silver, with raised figures. The instrument called by the Latins *caelum*, was called by the Greeks *τορος*, whence *τορνεειν*, *τορνευμα*.

[120] 'They cannot master their wealth;' that is, they are not able to spend it.

[121] *Quin* — that is, *qui non* or *quo non*? 'why not?'

[122] *En*, as well as *ecce*, are most commonly construed with the accusative.

21.

[123] *Tabulae novae* are literally 'new registers of debts;' that is, a change or reduction of debts, when, for example, the interest already paid was deducted from the principal, or when the amount of debts was reduced by one-half, or even by three-fourths. Such regulations of debts in favour of debtors were often resorted to in the revolutions of the ancient republics.

[124] 'If he should be consul with him, he would begin to carry the matter into effect.'

[125] *Ignominia*, 'disgrace' which a person incurs, either because he has been condemned in a court of law, or with which he has been branded by the censors.

22.

[126] *Popularis*, properly 'a fellow-countryman,' or 'belonging to the same people;' but Sallust here, and in [chapter 24](#), uses it in the more general sense of *particeps*, *socius*, 'associate.'

[127] *Dictitare*, a contraction for *dictitavere*: 'it was frequently said

that Catiline had done it for this reason.' This contraction has nothing that is offensive here, though in form it is the same as the present infinitive; for such an ambiguity of form is not always avoided, provided the context clearly shows what the meaning is. *Dictitare* contains a repetition of what is implied in *fuere qui dicerent*.

23.

[128] *Met* is a suffix which may be appended to all the cases of *suus*, and answers to our 'own.' It is usually followed by *ipse*. See Zumpt, § 139, note.

[129] *Stuprum* is the name for every unchaste connexion with unmarried as well as with married women; but *adulterium* is the illicit intercourse with married women.

[130] 'To behave more ferociously;' for *agere* and *agitare*, even without an accusative, signify 'to behave,' 'conduct one's self,' 'lead a life.'

[131] *Sublato auctore*, 'without mentioning the one of whom she had learned it.'

[132] 'The nobility was boiling with envy;' a figurative expression, taken from the boiling of water over the fire, which is frequently used to describe violent passions. So also *incendi*, *ardere*, *flagrare cupiditate*.

[133] A *homo novus* was at Rome the name for any person, none of whose ancestors had been invested with a curule office; that is, with the consulship, praetorship, quaestorship, or curule aedileship.

[134] *Post fuere*; that is, *postposita sunt*, 'were put on one side.'

24.

[135] 'Which fact *had* at first intimidated the associates of the conspiracy.' The pluperfect here seems to be used for the perfect, but is necessary from the idea, which properly should have been expressed by some such sentence as this: 'which fact, although it had at first intimidated the conspirators, yet did not stop the progress of the conspiracy.'

[136] *Faesulae*, now Fiesole, a town in the northern part of Etruria, not far from Florentia (Florence), which is now the largest town in that district, though it was not so in ancient times.

[137] *Portare*, 'he caused money to be taken.' See Zumpt, § 713.

[138] *Sumptus tolerare*, 'to bear the expenses,' implying the difficulty of defraying them.

25.

[139] *Haud facile discerneres*, 'it was not easy to determine whether she was less concerned about her money or her reputation,' since she was reckless in regard to both. Respecting the imperfect subjunctive, see Zumpt, § 528, note 2.

[140] *Praecepta* is used of steep and precipitous places, and of persons who fall or throw themselves headlong down from or into anything. Hence *Sempronia praecepta abierat* is, 'she had thrown herself headlong into ruin,' which might also be expressed by *in praecepta iverat*.

26.

[141] Namely, for the year beginning with the first of January, B. C. 62. The elections took place about the middle of the preceding year, consequently, in the present instance, about the middle of the year B. C. 63.

[142] *Ad hoc* is a common expression in Sallust for *praeterea*.

[143] *Pactione provinciae*, by coming to an understanding with him about the provinces which were assigned to the consuls after the expiration of their year of office at Rome. Cicero had obtained by lot the lucrative province of Macedonia and exchanged it for Gallia Cisalpina, which had fallen to the lot of Antonius; but afterwards he declined the latter also, in order to be able to remain at Rome, which at that time was considered to be a sign that a man did not care for money — *continentia abstinentia*.

[144] The *Campus Martius*, an extensive open plain between the city and the Tiber, was the place for the large assemblies of the people; that is, for the Comitia Centuriate, in which the consuls and praetors were elected.

[145] *Aspera foedaque* might also have been expressed by the adverbs *aspere foedeque*, 'his attempts turned out unfavourably and disgracefully.' Compare Zumpt, § 682.

27.

[146] *Camers*, 'a native of Camerium,' (the capital of the Umbrians), for the inhabitants of that place were called Camertes. *Picenum* or *ager Picenus*, was the Roman territory on the Adriatic between the mouths of the rivers Aesis and Aternus with the capitals of Ancona and Asculum.

28.

[147] *Sicuti salutatum*, 'as if to offer him his morning salutation,' for such a morning call before sunrise was a common politeness among the Romans.

[148] Or according to the common orthography, *intelligit*.

29.

[149] *Exagitata* for *agitata*; but the preposition *ex* gives to the word the idea of something brought out of its obscurity to light. The matter had already been discussed on the ground of certain rumours.

[150] About *decrevit*, with the mere subjunctive, without *ut*, see Zumpt, § 624.

[151] *Parare* should properly be *parandi*; but see Zumpt, § 598.

30.

[152] That is, 'on the 6th day before the 1st of November,' or on the 27th of October. In such computations with *ante* and *post*, the point of time from which the calculation begins is included. See Zumpt, § 867. But we here reckon according to the calendar such as it was subsequently reformed and rectified by J. Caesar.

[153] *Portenta* are chiefly human beings or animals presenting at their birth anything abnormal or monstrous; *prodigia*, on the other hand, are strange phenomena in the heavens; and the superstition of the ancients regarded both as signs sent by the gods to warn men.

[154] *Senati* for *senatus*. See Zumpt, § 81.

[155] *Hi utrique* for *horum uterque*. Zumpt, § 141, note 2.

[156] Both had received the military command (*imperium*) from the senate and people: Marcius Rex as proconsul of Cilicia, and Metellus for the purpose of subduing Crete. After their return from their provinces, they tarried for a time outside the walls of Rome (*ad urbem*), because, by entering the city, they would have lost their *imperium*, which they were anxious to retain until their solemn entrance in a military procession (the triumph), to which the senate had not yet given its sanction. Accordingly, as they were still generals in active service, they could legally be intrusted with the military command in the disturbed districts of Italy.

[157] The intrigues of some influential members of the senate, who had either received bribes from the opponents of the two commanders, or expected some from the commanders themselves, prevented the resolution of the senate here alluded to. Respecting *mos erat vendere*, see Zumpt, § 598.

[158] Supply to the two names of places *missus est*, which is implied in the preceding sentence.

[159] *Sestertia centum*; that is, *centum millia sestertiorum*, or the ancient census of the citizens of the first class; for the neuter *sestertia* was used in calculations as an imaginary coin of *mille sestertii* or ten nummi aurei.

[160] 'According to the means of every town.' As the Roman gladiators might easily be tempted to join in conspiracies, they were quartered at a distance from Rome, in the towns of a certain class of Roman citizens (*municipia*); and the citizens of such places were ordered to watch over those bands of gladiators, that they might not make their escape. *Familiae*, in its proper sense,

signifies the whole body of slaves belonging to one master.

[161] *Minores magistratus* are those officers who did not, by virtue of their office, become members of the senate. The quaestors, accordingly, did not belong to them, but they comprised the masters of the mint, the superintendents of the paving of the roads, and especially the superintendents of all matters connected with prisons, and the *decemviri litibus judicandis*.

31.

[162] *Quibus*. Sallust more frequently uses the accusative in such expressions. See [chapter 8](#).

[163] *Afflictare sese*, 'they worried themselves.' The expression is properly used of that kind of grief which manifests itself in inflicting pain on the body, by pulling the hair, striking the breast or loins, or by throwing one's self on the ground. So also *plangere* denotes the physical expression of pain.

[164] A law *de vi* enacted in the year B.C. 89, and aimed at those who might attempt by violence to subvert the existing constitution of the state. On the ground of this law Catiline had already been summoned before a court of law, though no formal charge had yet been brought against him.

[165] *Sicuti* is here used for *quasi*, *velut*, or *perinde ac si*, 'as if.'

[166] This is the first of Cicero's speeches against Catiline, which was delivered A.D. 6, Id. Novemb.; that is, on the 8th of November.

[167] 'When he had sat down;' that is, when he had finished his speech, for those who spoke in the senate did so standing.

[168] The imprudence of this speech, independent of the

audacious denial of facts, consists in his boasting of his patrician descent, and in the insinuation that Cicero, who was born in the municipium of Arpinum, was only an alien at Rome, although in regard to political rights there no longer was any difference between patricians and plebeians, nor between the citizens of Rome and those of a municipium. Respecting the construction of *opus est*, with the ablative of a participle, see Zumpt, § 464, note 1.

33.

[169] The adjective *expers* here is joined in the same sentence with two different cases; this is an unusual construction, though *expers* may be joined with the genit. as well as with the ablat. See Zumpt, § 437, note 1.

[170] From what he quotes as the substance of the law, we see that he means the lex Papiria Poetelia, which had been passed in B.C. 326, and according to which the property of a debtor served as a security to the creditor, while his person or his personal liberty could not be touched.

[171] *Vestrum*; it would be more in accordance with the common usage to say *vestri*, but the genitive of the personal pronoun also may be used. See Zumpt, §§ 424 and 431.

[172] Literally, 'the borrowed silver was repaid in copper;' that is, instead of the ordinary silver coin, the sestertius, the value of four copper ases, only one copper as was paid. By this means debtors gained three-fourths of the capital they had borrowed. This reduction of debts took place in B.C. 86, during the ascendancy of

the Marian party.

[173] *Amittit*; that is, *missam facit*, *dimittit* or *omittit*, 'he gives up.'

34.

[174] *Massilia* (the modern Marseilles) was a free and independent city, leagued with the Roman people by treaty. It had been founded about the year B.C. 600, by Greek emigrants from Phocaea in Asia Minor. As *Massilia* thus was not subject to the civil law of Rome, the Romans who withdraw from the laws of their own country — that is, who went into exile — might choose that city as a safe place of residence, without fear of being delivered up to their own country.

35.

[175] Catiline writes that he will not undertake a detailed defence of his new design of taking up arms, but he says that he wishes to justify himself in regard to one point, and that merely because he is not conscious of any criminal act. *Satisfactio* is nearly the same as *defensio*, but less formal. A man defends himself against opponents, but before friends he merely gives an explanation, whereby they may be gained over to his side. *Ex nulla conscientia*, 'in consequence of his not being conscious of guilt.' The expression is rather harsh and artificial, and seemingly in Catiline's own style of writing.

[176] *Medius fidius*, the same as *mehercules*. See Zumpt, § 361.

[177] 'I could not maintain the position of my dignity;' that is, I could not maintain my position in society after my enemies had

deprived me of the consulship.

[178] 'Not as if I could not pay my own debts out of my property, since Orestilla has paid even other persons' debts out of her own purse;' she would accordingly have done the same much more for me, her husband. *Aes alienum meis nominibus* is the same as *meum ipsius aes alienum*, 'debts on my own account.' *Nomen*, in money transactions, is something put down to a person's account. Hence *aes alienum alienis nominibus* is the same as *aliorum debita*, 'other persons' debts,' *aes alienum* being understood from the preceding clause.

[179] 'I felt that I had become estranged by false suspicions,' namely, 'from the Roman people,' who confer the honours which have been obtained by unworthy persons.

[180] *Hoc nomine*, the same as *ideo*, 'accordingly,' 'for this reason.'

[181] This is said in allusion to the consul Cicero, as if he had intended to arrest Catiline, and imprison him. Catiline evidently has recourse to this expedient for the purpose of avoiding his awkward explanation. They are hollow phrases about honour, the republic, and persecution, and well suited to the ruined circumstances of that nobleman.

[182] *Haveto*. It is much more common to use this word in meeting a person, while *vale* is the ordinary expression in parting from a friend.

36.

[183] *In agro Arretino*, 'in the territory of Arretium,' in the heart of Etruria, near the lake Trasimenus.

[184] *Sine fraude*, 'without injury' — that is, without the fact that hitherto they had been with Manlius, drawing any punishment upon them.

[185] *Praeter*, adverbially for *praeterquam*; but he might also have used *praeter* as a preposition: *praeter — condemnatas*.

[186] *Perditum irent*. See Zumpt, § 669.

37.

[187] *Aliena*; supply *a republica*.

[188] *Adeo* renders the sentence emphatic, 'nay, the common people seemed to do this even according to their custom.' *Adeo* in this sense is always preceded by a demonstrative pronoun. See Zumpt, § 281.

[189] *Boni*. In the political signification of this word, the ideas of quiet conduct, aversion to innovations, and acquiescence in the actual state of things, are combined with solid wealth. The reason of this is easily perceptible; for he who possesses property, dreads every change, and supports the existing state of things. A still more decided political meaning is implied in the term *optimates*, which denotes the party in the state which we now call Conservative, but at Rome it implied at the same time the idea of 'faction,' and of a tendency to occasional violence.

[190] 'Poverty (that is, poor people) maintains itself, or continues in all disturbances without suffering any loss;' for he who has nothing, cannot sustain any loss.

[191] *Ea vero*, 'this in particular. *Vero* indicates the transition to that circumstance, which in the present case is of the greatest importance. Compare Zumpt, § 348, note.

[192] *Sentina* properly signifies the sediment which, in a vessel filled with water, sinks to the bottom. Hence 'the residue,' or the place where all that is bad or impure is collected.

[193] The largesses in money and provisions with which the state supported the needy population of the capital, and by which private persons, anxious to gain partisans, catered numbers of clients, attracted to Rome many people from the country: the city plebs was thus constantly increasing.

[194] 'They were as much concerned about the good of the state as about their own good' — that is, just as little.

[195] Connect *quorum* with *parentes* and the following words, *bona* and *jus*. Sulla had excluded the sons of those whom he proscribed from all public offices, and thus curtailed their rights of free citizens.

38.

[196] In B. C. 70, these consuls restored the power of the tribunes in its full extent, after it had been greatly reduced by Sulla in B. C. 81. The Roman people received this restoration of the tribunian power with the greatest joy; but Sallust does not seem to approve of it.

[197] *Senatus specie*; under the pretence of supporting the senate, the *nobiles* formed opposition to the tribunes, but in reality it was for their own aggrandisement.

[198] *Quo* for *ut eo*, 'that the authority of the senate might be the highest in the state.'

39.

[199] *Innoxius* has a twofold meaning, one active, 'one who does no harm' (*noxa*), and a passive, 'one who is not injured,' 'one to whom no harm is done,' *qui non afficitur noxa*, and in this latter sense it is used in this passage.

[200] 'In order that, when in office, they themselves might guide the populace more gently,' since those who excited the multitude would be kept in awe by the terror of the law. *Placidius*, 'without harshness,' 'without severity,' harshness and severity being applied only against the popular leaders.

[201] *Dubiis rebus*, the ablative absolute; *cum res dubiae essent*, 'the state of affairs being dangerous.'

[202] 'A more powerful man would even have wrested their freedom from them.' About *quin*, see Zumpt, § 542; and about the imperfect in the sense of a pluperfect, § 525.

40.

[203] The Allobroges inhabited the country from Lacus Lemannus and the Rhone as far south as the Isara. They were subject to Rome, but, with a certain degree of independence, they governed themselves within their own country. Their chief towns were Vienna and Geneva.

[204] *Aliena consilii*. See Zumpt, § 470.

[205] Respecting the orthography of *accersit*, see Zumpt, § 202.

[206] *Magnus animus* is the usual Latin expression for 'courage,' and *amplior* is the same as *major*.

41.

[207] *Manifestum habeo aliquem*, 'I catch a person in the act,' so that he can be convicted of his crime by unexceptionable evidence.

42.

[208] *Gallia citerior* is Gaul south of the Alps, or the province of Cisalpine Gaul. *Gallia ulterior* is Gaul north of the Alps, as far as the Cebenna mountains. The part of modern France beyond those mountains was not yet subject to Rome, but became a Roman province by the conquests of Caesar.

[209] *Bruttium* is the peninsula of Italy, which extends towards Sicily. It was a mountainous country with many forests.

[210] He was legate to his brother L. Murena, who had then already left the province of Gaul, being a candidate for the consulship for the year B.C. 62, which he obtained.

43.

[211] *Signum*, in military phraseology, is the visible or audible signal for a movement which the army is to execute. The attack of the tribune of the people on Cicero during his address to the people was to be the signal. 'After this signal had been given' (*eo signo*), *dato* being understood. *Conjuratio* for *conjuratorum*.

[212] *Sed*. According to ordinary Latinity, the sentence ought to have been introduced by *autem*; see Zumpt, § 348, note. But it must be observed that in the historical style of Sallust *sed* very frequently expresses not only opposition, but also mere transition from one thing to another, which seems to be an affectation of

simplicity.

[213] The idea expressed by *filius familias* is 'a son who is not yet independent, who has not yet a household of his own.'

[214] *Inter haec*, &c.; that is, *dum haec parantur atque decernuntur*.

44.

[215] *Conveniunt*, with the accusative. See Zumpt, § 387.

[216] *Qui* for *quis*. See Zumpt, § 134, note.

[217] He means to say, 'even from the slaves, who, as is now seen, have not been received by Catiline into his army.'

45.

[218] *Cuncta*. Respecting this accusative, see Zumpt, § 391, note 1.

[219] *Pons Mulvius*, a bridge across the Tiber, about one mile from the city, outside the porta Flaminia. It still exists under the name of ponte Molle, and is passed by all travellers who go from Rome to the north.

[220] *Obsidunt*. For this verb, see Zumpt, § 189, under *sido*.

[221] *Ad id loci*; that is, *ad eum locum*.

[222] He betrayed his treasonable designs even by surrendering to the public authorities, as if they were a foreign and hostile power, and by praying them to spare his life.

46.

[223] See Zumpt, § 662.

[224] The meeting of the senate was held in the Temple of Concord, close by the Forum. Temples were often used instead of the Curia Hostilia, which was the regular place for the senate to assemble in. Lentulus was taken to the senate by the consul himself; the others were conducted thither by guards, to be brought before the assembly after the business had been opened.

47.

[225] 'He was ordered to make his statement on the ground of the promise made to him, on behalf of the state, that he should not be punished.' Sallust might have used the more complete expression, *fide publica data* or *accepta*; but such expressions are to be completed by the sense rather than by any grammatical ellipsis.

[226] *Sibylla* is the ancient Greek name for a prophetic woman; and at Rome prophecies and counsels (*libri Sibyllini*) were kept in the Capitol which were believed to have been given as early as the time of the kings by a Sibyl of Cumae. They contained information about festivals, sacrifices, and other religious observances, and the means by which calamities which threatened the state might be averted. They were under the superintendence of a special college of priests, by whom alone they were consulted, on the command of the senate, in cases of public distress or apprehension. This college was called at different times, according to the number of its members, *duoviri*, *decemviri*, or *quindecimviri sacrorum*.

[227] The *gens* Cornelia comprised a large number of families,

such as the Scipios, Dolabellas, Merulas, Sullas, Cinna, Cethegi, and Lentuli. L. Cinna, by repeated consulships, and as the leader of the Marian party, obtained the highest power at Rome after the death of C. Marius, but was slain in B.C. 84 by his own soldiers, whom he intended to lead against L. Sulla. Sulla, after having been consul as early as the year B.C. 88, became dictator in B.C. 82. Respecting the expression *urbis potiri*, see Zumpt, § 466.

[228] *Haruspices* were the interpreters of the signs which were believed to be contained in the entrails of victims sacrificed to the gods, as well as of the phenomena in the atmosphere (*monstra*), and other occurrences in nature, which seemed to be contrary to the ordinary course of things. The system of this kind of superstition had been principally developed by the ancient Etruscans, and the *haruspices* engaged in the state religion of the Romans were generally natives of Etruria; and the Romans, owing to the uncertainty of their knowledge of things divine, dreaded this kind of superstition rather than practised it.

[229] *Libera custodia* is opposed to the *carcer publicus*, in which the prisoners were treated like slaves, and kept in chains. There were at Rome no prisons for those persons whose guilt was not yet established, or whose punishment consisted merely in confinement; but private persons, or the relatives of the accused, were obliged to keep the person of a criminal in their own houses, until the final decision upon his offence was given by the ordinary courts of justice.

[230] Such transitions from the historical infinitive to the present or imperfect, and *vice versa*, are not uncommon in Sallust. See chapters [18](#), [23](#), [56](#), [58](#).

[231] *Erant*; according to the style of Cicero, it would be *essent*. See Zumpt, § 565.

[232] For *deprehensio Lentuli et aliorum*, which would be more in accordance with the usage of modern languages.

[233] *In tali tempore*. See Zumpt, § 475, note.

[234] They demanded that the consul should bring forward the matter, as to whether the statement of Tarquinius was to be believed, in order that the votes might be taken upon it. For without a special *relatio* by the magistrate authorised to make it (commonly the presiding consul, but sometimes also a tribune of the people), no *senatus consultum* could be made.

[235] *Potestatem*; supply from the context *indicandi*.

[236] *Praedicantem*. See Zumpt, § 636.

[49.](#)

[237] These two leaders of the party of the optimates had been consuls, Catulus in the year B.C. 78, and C. Piso in B.C. 67; and Catulus had also been censor in B.C. 65. Both were enemies of Caesar, who had defeated Catulus in his canvas for the office of pontifex maximus, and had caused a judicial inquiry to be instituted against Piso, about the manner in which he had conducted the proconsular administration of Gaul. Caesar was even then considered as the leader of the popular party, and as an opponent of the senate and its influence in the constitution.

[238] It was at that time that Caesar, on going from home to the

elective assembly, said to his mother, 'To-day you shall see your son either as pontifex, or you shall never see him again.' Caesar, however, is here called an *adolescentulus* only in comparison with the aged Catulus, for he was at that time thirty-six years old.

[239] 'In public life by the greatest exhibitions;' for *munera* are exhibitions by means of which a private person, and still oftener a magistrate, endeavoured to win the favour of the people. As regards Caesar, that which is said here refers to the brilliant exhibitions in his aedileship, and the games which he gave while invested with that office. But he had thereby got so deeply into debt, that when, after his praetorship — with which he was invested in B. C. 62, the year after the Catilinarian conspiracy — he wanted to leave Rome to go to his province of Spain, he was kept back by his creditors; and he was not allowed to depart until M. Crassus had given security for him.

[240] *Dicerent*. Respecting this subjunctive, see Zumpt, § 551.

[241] *Mobilitas animi*, 'irritability,' or that state of mind which is easily excited, or upon which it is easy to make an impression. *Clarius esset* is an explanation of *gladio minitarentur*.

50.

[242] *Multitudines*; that is, *catervae*, *factiones*, crowds or bands of men united for the purpose of creating disturbances among the people.

[243] This is the customary form of condemnation in a decree of the senate, whereby it is declared that a wrong has actually been done to the state, or that an attempt has been made upon the constitution. The verdict of 'guilty,' therefore, had been

pronounced by the senate itself.

[244] *Sententiam rogatus*. See Zumpt, § 393, note 1.

[245] He had declared that at the voting, which took place after the members of the senate had expressed their opinions, he would vote for the opinion of Tib. Nero; for the voting took place by a division (*discessio*), only one proposal being voted upon at a time, so that those who supported it separated from those who did not support it, but intended to vote for any other opinion (*alia omnia*).

[246] This opinion then aimed only at an adjournment of the matter. Its issue was to be waited for; but in the meantime, the posts of guards were to be strengthened, and a fresh proposal was to be made respecting the punishment of the prisoners. The Tib. Nero here mentioned is the grandfather of the Emperor Tiberius, who was raised to the imperial throne in A. D. 14, in the fifty-sixth year of his age.

51.

[247] *Male consulere*, 'to form bad' or 'injurious resolutions.'

[248] *Perse*. Respecting the forms of this name, see Zumpt, §§ 52, 54.

[249] *An* must be explained by supplying another interrogation before it, such as *alione?* 'had that speech any other object, or had it this one?' for *an* is used only in the second part of a double question.

[250] 'To be sure words will fire him on, whom the thing itself did not move' — that is, words are sure not to rouse him whom the thing itself did not move; for *scilicet* has an ironical force.

[251] *Injuriae suae*, 'the injuries done to him.'

[252] 'Many have taken them more seriously to heart than was necessary.' It is more common to say *gravius tulerunt*. The perfect, *habuere*, in expressing a general truth, has the sense of a present, or rather of a Greek aorist, denoting that which once happened, and still continues to happen. Compare p.22, note 2 [\[note 68\]](#).

[253] *Vitam habent* for *vitam agunt*, which is more common. Sallust is very fond of the verb *habere* in certain phrases. See [Jug. 10](#).

[254] *Equidem ego* for *ego quidem*. See Zumpt, § 278.

[255] *Inimicitiae*. About this plural, see Zumpt, § 94. The singular *inimicitia* is not used at all.

[256] 'Such I know to be the character of the man.'

[257] *Subigere* here, as in many other passages of Sallust, has the meaning of *cogere*, *invitum impellere* ('to force a person to something'), followed by an infinitive instead of a clause with *ut*.

[258] *Id quod res habet*, 'that which is in the nature of the thing.' Caesar hereby means to represent his opinion as philosophically correct, and in accordance with nature. *Id quod* belong together.

[259] Such had indeed been the custom in former times. The condemned person, previous to being beheaded with the axe, was bound to a post and scourged. This barbarous punishment continued to be inflicted sometimes even at a later period, when it was expressly mentioned in the verdict that the criminal should be punished *more majorum*. *Animadvertere* is the proper expression for the infliction of bodily punishment by a lictor, who *has to pay attention to his orders*; but it is also used of the person who gives

the order, and causes it to be carried into effect, just as *interficere* is said both of the executioner and the person who orders a man to be put to death.

[260] This law, proposed by one Porcius, and passed by the people, forbade the scourging of Roman citizens on the naked body; so that, after the passing of that law, an execution consisted simply in beheading a criminal with the sword; and if he was a soldier, flogging took the place of scourging. The celebrated M. Porcius Cato, about B. C. 160, recommended this bill to the people; but it was not he who proposed it, but an unknown person of the name of Porcius, probably a tribune of the people.

[261] There were no Roman laws forbidding capital punishment, or substituting exile in its place, and for this reason Caesar does not refer to any such law. He supports his view only by the circumstance that, in all the more recent laws, especially in the criminal law of Sulla, exile (*interdictio aquae et ignis*) was fixed upon as the extreme penalty; and that according to the usual indulgence (not sanctioned by any law), accused persons, if they denied being guilty, and were defended by some one, remained in the enjoyment of their freedom until the sentence was passed. Thus it happened that a person, foreseeing his condemnation, might quit the Roman territory, and take up his abode within the territory of some town or city where the Roman law was not in force, and where the Roman state placed no obstacles in his way.

[262] 'How is it consistent?' Respecting *qui* for *quomodo* or *quo pacto*, see Zumpt, § 133, note. The *minus negotium* is the scourging, and the *majus negotium* the execution.

[263] *At enim* introduces an objection raised by the orator himself.

At represents the objection, and *enim* introduces an explanation of it. See Zumpt, § 349.

[264] Caesar means to say that the present senate, which, as he flatteringly says, consists of worthy men, will not abuse the power of putting Roman citizens to death; but that a subsequent senate, taking such an example as a precedent, might abuse its power. It must be observed that the Roman senate possessed the power over the life and death of citizens, not by virtue of legal enactments, but only by ancient custom. This power legally belonged only to the people assembled in the *Comitia Centuriata*, or to those to whom the people expressly intrusted it — namely, the ordinary and extraordinary courts of justice. It may seem surprising that Caesar does not express himself more energetically against the right claimed by the senate; but he would certainly have spoken in vain, for it was every senator's interest that the power of the senate should be recognised in its greatest extent, even though it should not be exercised in every particular case.

[265] That is, the so-called thirty tyrants in the year B. C. 404.

[266] *Ea*; for this accusative, see Zumpt, § 385.

[267] *Damasippus* was only a surname of the praetor M. Junius Brutus, who in the year B. C. 82 put to death a great many Roman nobles of the party of Sulla.

[268] Namely, by Sulla, after he had been made dictator.

[269] *Pleraque*; most of the ensigns and distinctions by which the magistrates were distinguished from private persons, especially the *toga praetexta*, *sella curulis*, *fasces* (which were carried by the lictors), and, above all, the splendid procession of the

triumphatores.

[270] *Legibus* is here a pleonasm, and might have been omitted. We must here repeat that Caesar makes an artful application of the circumstance that, in all the late criminal laws, the *interdictio aquae et ignis* was fixed as the severest punishment, as if thereby a person had been simply permitted to withdraw from the republic. The *interdictio* was a much more severe punishment, inasmuch as the person on whom it was inflicted lost all his rights as a citizen, and as every one was forbidden to receive him into his house, so that he was a complete outcast. Wherever these regulations were not carried into effect, and even in case a criminal made his escape before the sentence was pronounced, we can see nothing but an abuse of clemency.

[271] *Quominus* is here used because the leading clause conveys the idea of a hindrance; but *ne* also might have been written.

[272] *Per municipia*, 'among the municipia.' See Zumpt, § 301.

52.

[273] Cato says, '*When I consider the danger of our situation, I form quite a different view* from what I do when I reflect upon the opinions expressed by some about the punishment of the criminals; for the present danger demands energetic measures of defence, while some of you are speaking only about the punishment of a crime already committed. But such a view is incorrect, for we are still surrounded by the greatest dangers.'

[274] *Pluris facere*, 'to esteem higher.'

[275] *Capessere rem publicam*, 'to take part in the administration of the state,' or 'to devote one's self to its service.'

[276] *Verba facere*, 'to speak,' or 'to make a speech.'

[277] 'I who had never connived at any of my bad acts' — that is, I who had never given way to my own weaknesses. About this subjunctive expressing the reason why the orator does not allow the faults of others to pass unnoticed, see Zumpt, §§ 555, 558.

[278] 'The strength of the state bore the negligence' in restraining the arbitrary proceedings in which individuals indulged.

[279] 'And here any one will speak to me of clemency and mercy!' alluding to Caesar. The negative pronoun *quisquam* is used because the meaning implied is, that no one ought to have done so. See Zumpt, § 709.

[280] *Equidem* for *quidem*, as often in Sallust, but never in Cicero. The meaning is: 'We have indeed (*quidem*) long since lost the habit of calling things by their true names, but this erroneous application of the word *mercy* is not to be borne.'

[281] *Eo*; Cicero would have said *ea re*.

[282] Instead of *et*, the author might have used *neve* (*neu*), since from the preceding clause we have to supply *ne* to *et*. This is not a very common mode of speaking; but it occurs most frequently when, after a negative clause, *et* introduces a kind of antithesis, and thus acquires the power of *sed*.

[283] *Et non* corrects the untrue supposition, that there were no rebels except at Rome. In such a case we can neither use *non* without *et*, nor *neque*. See Zumpt, § 334.

[284] 'If Caesar alone is unconcerned, it is more requisite (necessary or important) that I should be concerned for me and for you.' About *refert*, see Zumpt, §§ 23, 449, note.

[285] *Habetote*; this future imperative denotes that something is to

be done when something else shall take place. Zumpt, § 583.

[286] The meaning is: 'All will be there immediately' — that is, they will rise to make the attack.

[287] Cato means to say, 'It is a wrong opinion that our state has become great by arms; for if this were true, it would now be in the most flourishing condition, as our military power is now greater than it ever was. The republic has become great much more by the activity of the citizens, and by the justice of the government, and it is this activity and stern justice that must be restored.'

[288] *Obnoxius*, 'subject to a punishment,' or 'to be injured (*nox*a);' hence, figuratively, 'bound,' 'dependent.' Our ancestors, says Cato, could deliberate and judge without bias, for their minds were not crippled either by crimes they had committed, nor by immoderate desires and passions — a hint intimating that those who were in favour of lenient measures were conscious of their own guilt, and not free from bad intentions.

[289] *Hic* — that is, in the senate, in discussing matters of public importance, you allow yourselves to be guided only by your desire to gain money and popularity, being anxious not to offend any one who may be in your way.

[290] *Vacuam* — namely, *a defensoribus*, 'defenceless,' 'helpless.'

[291] *Incendere*, a free use of the infinitive for *ad patriam incendendam*.

[292] A question expressive of wonder, in which the interrogative particles are commonly not used. See Zumpt, § 351, note.

[293] Ironically: 'I am of opinion that you should have mercy, and dismiss the criminals.' The subjunctive without *ut* depends upon the verb *censeo*; it is not a subjunctive for an imperative.

[294] 'Assuredly this clemency of yours will end in misery.' Respecting *nae*, see Zumpt, § 360; and on the transitive sense of *vertere*, § 145.

[295] The sentence beginning with *scilicet* is again ironical. The sense, without the irony, is: 'Nor can it be supposed that you consider the matter indeed difficult, but that you are without fear. You are, on the contrary, full of fear, but you hesitate.'

[296] *Immo vero*, 'oh no; on the contrary.' See Zumpt, § 277.

[297] Respecting this form of hypothetical sentences, see Zumpt, § 524, note 1. The verb in the apodosis might be *implorabis*, without altering the meaning.

[298] This statement differs in two points from the current tradition of history. First, the praenomen of this Manlius is commonly *Titus*, and so we must no doubt correct here, even though the manuscripts have *Aulus*. Secondly, he did not show his severe military discipline towards his son in the Gallic war, but in the great Latin war, which ended, in B.C. 340, with the subjugation of Latium. Manlius ordered his son to be executed in presence of the army; and to characterise that harsh severity, the orator uses the word *necare* instead of *interficere* or *occidere*.

[299] *Quidquam* is stronger than *siquid* — that is, the expression of the negative is more strongly marked in the protasis.

[300] 'If there were room for a mistake' — namely, in the resolution to be come to. The meaning is: 'No time is to be lost, since, if you come to a wrong determination, you will be ruined before you have time to correct your decision.'

[301] 'Is upon our necks,' a figurative expression, properly applied to a wrestler who seizes another by the throat.

53.

[302] 'What has chiefly helped in carrying out such great undertakings.' *Negotium sustinere*, 'to be able to carry out a business,' representing the *negotium* as a burden.

[303] Sallust states that, after mature consideration of all the circumstances, he has come to the conviction that the merit of individual citizens had raised Rome to its supremacy over the world, but that afterwards there were no men of importance, or excelling others by mental superiority, and that the state, as a whole, alone made the faults of individuals bearable. We must honour the judgment of Sallust, but cannot agree with it; we must rather believe that the unvarying ability of the whole Roman people, notwithstanding the not very prominent minds of individuals, was the cause of the rapid progress of the Roman dominion. In the later times, on the other hand, we meet a Scipio the younger, a Marius, a Sulla, a Pompey, and a Caesar, all of whom were men or generals of eminent talent, while all those who served under them were persons of inferior abilities.

[304] *Effeta parentum*, the same as *effeta parens*, 'a mother who has had children, but can have no more.' Respecting the partitive genitive (as in *aliqui militum* for *aliqui milites*), see Zumpt, § 430. The author in the progress of his sentence abandons the construction with which he began, and which ought to have been continued thus: *Roma haud sane quemquam virtute magnum protulit*, for which he says, *Romae haud sane quisquam virtute magnus fuit*. This deviation from the construction may be explained still more easily, if in our mind we add *facit* to the words *sicuti effeta parentum*, 'as is the case with an aged mother.' *Multis*

tempestatibus, 'during a long time.' The singular *tempesta* in the sense of 'time' is not uncommon, but the plural *tempestates* in the sense of 'periods of time' occurs only in Sallust in this passage, and *Jug.* [73](#), [96](#), and [108](#).

[305] *Quin* is used regularly for *ut non* after a negative clause: 'I would not pass them over in silence, without unfolding their characters.'

[54.](#)

[306] 'But the one a different one from the other.' The Latin custom of repeating the same word obliges the author, having once said *alia*, to use *alii*, which, strictly speaking, should be *alteri*, as he is speaking of only two persons.

[307] 'The less he strove after fame, the more it followed him of itself,' so that *gloria* must be supplied.

55.

[308] *Dicessit*; that is, after the senate, a division having taken place, had decided in favour of Cato's opinion. Compare p. 50, note 2 [[note 245](#)].

[309] Read *tres viros*; each one by himself was called *triumvir* 'one of the college of the three.' These officers belonging to the *magistratus minores*, had the superintendence of the public prison, and the carrying of the sentence into execution; whence their complete title was *tresviri capitales*. The singular, *triumvir*, does not justify the plural *triumviri*, since the ordinary grammatical laws require *tres viri*. In manuscripts, we usually had *III. viri*. Compare Zumpt, § 124.

[310] The preposition *de* in this compound adds to the idea of the simple verb *ducere*, that of the place to which a person is led, and in which he is to remain; hence it is frequently used in the expression *domum deducere*, 'to take' or 'lead a person home.'

[311] *Locus, quod*. Respecting the gender of the relative pronoun, see Zumpt, § 372.

[312] The whole structure was called *carcer Mamertinus*, and its main parts still exist, being changed into a Christian church, *San*

Pietro in carcere. It is situated not far from the ancient *forum Romanum*, to the north-east, at the foot of the Capitoline hill. According to Sallust's description, persons on entering had to go down a few steps leading to the entrance of the *Tullianum*, a subterranean apartment cut into the rock, and covered over with a roof; and this was the place where prisoners were executed. Their corpses were afterwards publicly exhibited in the adjoining *Scalae Gemoniae*. The name *Tullianum* is derived by the Romans from their king, *Tullius Hostilius*.

[313] 'The roof is bound together by arches of stone,' to make it strong, for otherwise, wooden beams were used for such purposes.

[314] *Incultus*, a substantive of rare occurrence, denoting 'want of cleanliness,' 'the absence of care.'

[315] 'Punishers of capital offences' is only a paraphrase for *carnifices*, 'executioners.'

[316] *Cornelius Lentulus* had been consul as early as B.C. 71, but the year after, he had been ejected from the senate by the censors, on account of his base conduct. In order to be able to re-enter the senate, he caused himself to become praetor a second time in this year, B.C. 63, in which he ended his life so disgracefully. It is mentioned that he was of a manly and handsome appearance; but the baseness of his character is attested also by other authors.

[317] The only one among the others who was a member of the senate was *Cornelius Cethegus*; *Gabinus* and *Statilius* were men of equestrian rank, and *Caeparius* was a native of the municipium of *Terracina*.

56.

[318] A regular military force is more commonly called *copiae*, but the singular, *copia*, also occurs in the sense of 'army,' especially when it consists of an irregular mass of troops.

[319] *Cohortes complet* cannot mean in this passage, 'he makes the cohorts complete,' for such a completeness (consisting of at least 420 men) is incompatible with the addition *pro numero militum*, 'according to the number of his soldiers' in each cohort was not the usual number of a complete cohort. *Complet* refers to the number of cohorts, ten of which made a legion. Translate therefore, 'he makes the full number of cohorts.'

[320] *Duobus milibus*, Sallust might have said *duo milia*, with the ellipsis of *quam* so customary with *plus*, *amplius*, and *minus*. See Zumpt, § 485.

[321] *Sparus* is said to be a wooden kind of weapon, resembling a shepherd's staff, turned at the top; and *lancea* a spear with a handle in the middle. Both these weapons were not used by Roman soldiers, for the latter, besides the short and broad *gladius*, used the *pilum*, as long as a man is high, and as thick as a fist, the upper end of which was strongly provided with iron, and sometimes the *hasta*, which was still longer, and had an iron point.

[322] *L. Antonius*, the colleague of Cicero in the consulship, B.C. 63.

[323] *Servitia, cujus magnae copiae*; a singular construction, which cannot be explained otherwise than by taking *cujus* as a neuter, 'slaves, of which large numbers flocked to him.' This explanation, however, is supported by the consideration that

slaves were regarded as things, and were designated by names of the neuter gender, as *servitia*, *mancipia*. In ordinary language, we should say *cujus generis*, 'of which class of men.'

[324] *Videri* for *se videri*, 'he thought it contrary to his interest to appear to have maintained the cause of citizens with the aid of runaway slaves.' Respecting the omission of the subject of the infinitive when it is a personal pronoun, see Zumpt, § 605.

57.

[325] The territory of Pistoria, in the north of Etruria, not far from Faesulae, and to the north of Florentia, is in the Apennines. The regular road from Pisae to Genoa, and thence across the Alps into Transalpine Gaul, ran along the sea-coast. Cisalpine Gaul was likewise protected against Catiline by Metellus, so that he could reach his goal (Transalpine Gaul) only by mountain passes.

[326] Antonius followed the bands of Catiline, which were not inconvenienced by baggage, as they were fleeing (*in fuga*; that is, *fugientes*). Antonius's army marched on smoother roads, but had to carry heavier baggage. From all this, we see why Antonius, though not far from the enemy, yet could not reach him. Respecting the adverb *utpote*, see Zumpt, § 271. *Utpote qui*, 'the which,' is used as a conjunction for *quippe qui*, generally with the subjunctive, and indicates the cause of the preceding statement.

58.

[327] *Officere* is properly 'to oppose,' 'obstruct,' *aliquid alicui rei*; then omitting the object (*aliquid*) with the dative alone, 'to be an

obstacle to,' or 'to hinder,' therefore, *officia famae tuae*, 'I oppose something to your fame.' 'Internal fear is a hindrance to the ear,' so that admonitions are either not heard at all, or do not penetrate into the mind.

[328] Catiline assigns the circumstance that he had expected aid and succours from Rome itself, as the cause of his not having set out for Gaul earlier, when he might have accomplished his end. *Opperior*, 'I wait for,' or *expecto dum aliquis veniat*.

[329] *Quo in loco*, 'in which situation.' The preposition *in* might have been omitted. See Zumpt, § 481.

[330] *Egestas*, 'want,' with the genitive of the thing wanted, is of rare occurrence for *inopia* or *penuria*. *Egestas* is commonly used absolutely in the sense of 'poverty,' 'neediness.'

[331] *Haec* is here used in the general sense of 'these circumstances;' that is, this honourable but difficult war. This we must infer from the *haec* following.

[332] For the construction of *mutare*, see Zumpt, § 456.

[333] *Quis* for *quibus*. *Ea*, not *id*. Zumpt, § 372.

[334] 'Give me courage,' or 'give me hope,' for *hortari* is applied to persons doing good things, and *admonere* to persons doing bad ones: *hortamur properantem, admonemus cunctantem*.

[335] *Cavete* — *amittatis, neu trucidemeni* for *cavete, ne amittatis, neve (neu) trucidemini*. See Zumpt, § 586.

59.

[336] *Canere* is used in different ways: *tubicen canit signum*, 'the trumpeter blows the signal;' *tubicen canit*, 'the trumpeter blows (his instrument);' *signa canuntur*, 'signals are blown' or 'given;'

and lastly, *signa canunt*, 'the signals sound.' The last expression is the one used in our passage.

[337] *Rupe aspera*, &c. 'For in accordance with the nature of the plain between hills on the left-hand side, and on the right a rugged rock, he drew up (only) eight cohorts in front.' A simpler construction would have been *et rupem asperam a dextra*, but the manuscripts are decidedly in favour of the ablative, which must be considered as an ablative absolute, and as forming a distinct clause. Other editions have the correction *rupis aspera*, 'the rough part of a rock' (*aspera* being the neut. plur.), but this is a poetical expression. See Zumpt, § 435.

[338] Literally, 'The signals (*vexilla*) of the other cohorts he places in the rear as a reserve, more closely together.' *Signa* here denotes the separate divisions of the troops; that is, the cohorts and the three maniples in each cohort, which are distinguished from one another by their flags or banners (*vexilla*). When an army was drawn up in a spacious plain, a space was left between the several divisions, but in this case, the plain being too narrow, there were no such spaces.

[339] 'From among these who were drawn up as a reserve, he draws, for the purpose of strengthening the van, all centurions, picked men (in apposition), and the volunteers who had not been enlisted, as well as the ablest of the common soldiers who were provided with arms.' The word *lectos* belonging to *centuriones*, shows that Catiline had appointed to the office of centurions only chosen men who were personally known to him as able soldiers. *Evocati* were those soldiers in a Roman army who did not serve in the ranks of the other common soldiers, but as a separate corps,

and were exempt from the ordinary military duties of standing as sentinels, making fortifications, foraging, and the like. They derived their name from the fact that they were invited (*evocare*) by the general to serve in the army as volunteers; they, moreover, were generally more advanced in years than the regular troops.

[340] *Curare*, 'to command.'

[341] Catiline himself stood nearest the standard (eagle) with his most faithful followers, whose personal fate depended upon him; that is, the freedmen of his family and the tenant farmers of his estates. The Roman nobles, as early as that time, used to parcel out their estates in small farms, which were tenanted especially by their freedmen, who were thus patronised by their former masters.

[342] *Pedibus aeger*. He had the gout. Dion Cassius, a later historian of Rome, who wrote in Greek, states that Antonius only pretended to be ill, in order not to have to fight against his friend Catiline.

[343] A *legatus*, in this sense (for it also means 'ambassador'), supplied, in a Roman army, the place of a commander possessing the *imperium*. Accordingly, consuls and praetors, when intrusted with the command of an army, had one or more legates, according to the number of legions which they had under their command. The office of legate was given by the senate to such men as had held a magistracy, generally the praetorship, or at least the quaestorship, and the senate appointed them on the proposal of the commander-in-chief. When there were several legates, the commander-in-chief might intrust one of them with the command of the whole army; but the commander-in-chief was

answerable for all the acts of his legate.

[344] *Tumulti* for *tumultus*, as *senati* for *senatus*.

60.

[345] *Ferentarii* are light-armed troops fighting at a distance with javelins.

[346] The banners being turned hostilely against one another. Respecting *cum*, see Zumpt, § 473; for we also find *infestis signis concurrere*, without *cum*, as an ablative of the instrument.

[347] The *cohors praetoria* was a battalion which, in forming an army, was composed of the ablest and most tried soldiers, as the bodyguard of the commander-in-chief. They had to protect him, and assist him in contriving to bring any engagement to the point where he wished it to be. Under the emperors, the *cohortes praetoriae*, nine or ten in number — the emperors having several armies under their command — formed the body-guard of the emperor and the garrison of Rome.

61.

[348] 'There you might indeed have seen.' See Zumpt, § 528, note 2.

[349] In the centre of the army where they were drawn up.

[350] *Adversa vulnera*, 'wounds in the breast,' or 'in the front part of the body' generally. *Aversa vulnera*, on the other hand, are 'wounds in the back,' such as are inflicted on cowards that run away.

[351] *Quisquam* for *ullus*. See Zumpt, § 676.

[352] *Juxta*, 'equally little.' They had spared the life of their enemy as little as their own. Compare p. 41, note 3 [[note 194](#)].

[353] These four substantives form contrasts, though intentionally not in the regular way, for *gaudium* and *moeror* denote a joyous and sad state of mind, 'joy' and 'sadness;' *laetitia* and *luctus* at the same time express the audible expressions of joy and grief. Accordingly, *laetitia* contrasts with *luctus*, and *gaudia* with *moeror*. Respecting the omission of the conjunction in describing contrasts of this nature, see Zumpt, § 783.

C. Sallustii Crispi

Bellum Jugurthinum.

1. Falso queritur de natura sua genus humanum quod imbecilla atque aevi brevis^[1] forte potius quam virtute regatur. Nam contra reputando neque majus aliud neque praestabilius invenias,^[2] magisque naturae industriam hominum quam vim aut tempus deesse. Sed dux atque imperator vitae mortalium animus est, qui, ubi ad gloriam virtutis via grassatur,^[3] abunde pollens potensque et clarus est, neque fortuna eget, quippe probitatem, industriam aliasque artes bonas neque dare neque eripere cuiquam potest. Sin captus pravis cupidinibus ad inertiam et voluptates corporis pessumdatum est, perniciose libidine paulisper^[4] usus, ubi per socordiam vires, tempus, ingenium diffluxere, naturae infirmitas accusatur; suam quisque culpam auctores ad negotia transferunt.^[5] Quodsi^[6] hominibus bonarum rerum tanta cura esset, quanto studio aliena ac nihil profutura multumque etiam periculosa^[7] petunt; neque regerentur^[8] magis quam regerent casus, et eo magnitudinis^[9] procederent, ubi pro mortalibus gloria aeterni fierent.

2. Nam uti genus hominum compositum ex corpore et anima est, ita res cunctae studiaque omnia nostra corporis alia, alia animi^[10] naturam sequuntur. Igitur praeclara facies, magnae divitiae, ad hoc vis corporis et alia hujusmodi omnia brevi dilabuntur; at ingenii egregia facinora sicuti anima immortalia sunt. Postremo corporis et

fortuna bonorum ut initium sic finis est, omniaque orta occidunt et aucta senescunt: animus incorruptus^[11] aeternus, rector humani generis, agit atque habet cuncta neque ipse habetur.^[12] Quo magis pravitas eorum admiranda est,^[13] qui dediti corporis gaudiis per luxum atque ignaviam aetatem agunt, ceterum^[14] ingenium, quo neque melius neque amplius aliud in natura mortalium est, incultu atque socordia torpescere sinunt; quum praesertim tam multae variaeque sint artes animi, quibus summa claritudo paratur.

3. Verum ex his magistratus et imperia, postremo omnis cura rerum publicarum minime mihi hac tempestate^[15] cupiunda videntur; quoniam neque virtuti honos datur, neque illi, quibus per fraudem is fuit,^[16] tuti aut eo magis honesti^[17] sunt. Nam vi quidem regere patriam aut parentes,^[18] quamquam et possis et delicta corrigas,^[19] tamen importunum est; quum praesertim omnes rerum mutationes caedem, fugam, aliaque hostilia portendant,^[20] frustra autem niti,^[21] neque aliud se fatigando nisi odium quaerere, extremae dementiae est; nisi forte^[22] quem inhonesta et perniciose libido^[23] tenet, potentiae paucorum decus atque libertatem suam gratificari.

4. Ceterum ex aliis negotiis, quae ingenio exercentur, in primis magno usui est memoria rerum gestarum:^[24] cujus de virtute quia multi dixere, praetereundum puto, simul ne per insolentiam^[25] quis existimet memet studium meum laudando extollere. Atque ego credo fore, qui, quia decrevi procul a re publica aetatem agere, tanto tamque utili labori meo nomen inertiae imponant: certe, quibus^[26] maxima industria videtur salutare plebem et conviviis gratiam

quaerere. Qui si reputaverint, et quibus ego temporibus magistratum adeptus sim, et quales viri idem assequi nequiverint,^[27] et postea quae genera hominum in senatum pervenerint, profecto existimabunt me magis merito quam ignavia iudicium animi mei mutavisse, majusque commodum ex otio meo quam ex aliorum negotiis rei publicae venturum. Nam saepe ego audivi, Q. Maximum,^[28] P. Scipionem, praeterea civitatis nostrae praeclaros viros solitos ita dicere, quum majorum imagines^[29] intuerentur, vehementissime sibi animum ad virtutem accendi. Scilicet^[30] non ceram illam neque figuram tantam vim in sese habere, sed memoria rerum gestarum eam flammam egregiis viris in pectore crescere neque prius sedari, quam virtus eorum famam atque gloriam adaequaverit.^[31] At contra, quis est omnium his moribus,^[32] quin divitiis et sumptibus, non probitate neque^[33] industria cum majoribus suis contendat? Etiam homines novi,^[34] qui antea per virtutem soliti erant nobilitatem antevenire, furtim et per latrocinia potius quam bonis artibus ad imperia et honores nituntur; proinde quasi^[35] praetura et consulatus atque alia omnia hujusmodi per se ipsa clara et magnifica sint, ac non perinde habeantur, ut eorum, qui ea sustinent, virtus est. Verum ego liberius altiusque processi, dum me civitatis morum piget taedetque; nunc ad inceptum redeo.

5. Bellum scripturus sum,^[36] quod populus Romanus cum Jugurtha rege Numidarum gessit; primum quia magnum et atrox variaque victoria fuit, dein quia tunc primum superbiae nobilitatis obviam itum est; quae contentio divina et humana cuncta permiscuit eoque vecordiae processit, uti studiis civilibus bellum atque vastitas Italiae

finem faceret. Sed priusquam hujusmodi rei initium expedio, pauca supra repetam, quo ad cognoscendum omnia illustria magis magisque in aperto sint.^[37] Bello Punico secundo, quo dux Carthaginiensium Hannibal post magnitudinem nominis Romani^[38] Italiae opes maxime attriverat, Masinissa rex Numidarum, in amicitiam receptus a P. Scipione, cui postea Africano^[39] cognomen ex virtute fuit, multa ei praeclara^[40] rei militaris facinora fecerat; ob quae victis Carthaginiensibus et capto Syphace, cujus in Africa magnum atque late imperium valuit,^[41] populus Romanus quascunque urbes et agros manu ceperat, regi dono dedit. Igitur amicitia Masinissae bona atque honesta nobis permansit. Sed imperii vitaeque ejus finis idem fuit. Dein Micipsa filius regnum solus obtinuit, Mastanabale et Gulussa fratribus morbo absumptis. Is Adherbalem et Hiempsalem ex sese genuit, Jugurthamque, filium Mastanabalis fratris, quem Masinissa, quod ortus ex concubina erat, privatum dereliquerat,^[42] eodem cultu quo liberos suos domi habuit.

6. Qui ubi primum adolevit, pollens viribus, decora facie, sed multo maxime ingenio validus, non se luxu^[43] neque inertiae corrumpendum dedit, sed, uti mos gentis illius est, equitare, jaculari, cursu cum aequalibus certare, et quum omnes gloria anteiret, omnibus tamen carus esse; ad hoc pleraque tempora in venando agere, leonem atque alias feras primus aut in primis ferire, plurimum facere, minimum ipse de se loqui. Quibus rebus Micipsa tametsi initio laetus fuerat, existimans virtutem Jugurthae regno suo gloriae fore, tamen, postquam hominem adolescentem exacta sua aetate et parvis liberis magis magisque crescere intellegit, vehementer eo negotio permotus, multa cum animo suo volvebat. Terrebat eum

natura mortalium avida imperii et praeceps ad explendam animi cupidinem, praeterea opportunitas suae liberorumque aetatis,^[44] quae etiam mediocres viros spe praedae transversos agit;^[45] ad hoc studia Numidarum in Jugurtham accensa, ex quibus, si talem virum dolis interfecisset, ne qua seditio aut bellum oriretur, anxius erat.

7. His difficultatibus circumventus ubi videt neque per vim neque insidiis opprimi posse hominem tam acceptum popularibus, quod erat Jugurtha manu promptus et appetens gloriae militaris, statuit eum objectare periculis et eo modo fortunam temptare. Igitur bello Numantino^[46] Micipsa, quum populo Romano equitum atque peditum auxilia mitteret, sperans vel ostentando virtutem vel hostium saevitia facile eum occasurum, praefecit Numidis, quos in Hispaniam mittebat. Sed ea res longe aliter, ac ratus erat, evenit. Nam Jugurtha, ut erat impigro atque acri ingenio, ubi naturam P. Scipionis, qui tum Romanis imperator erat,^[47] et morem hostium cognovit, multo labore multaque cura, praeterea modestissime parendo et saepe obviam eundo periculis in tantam claritudinem brevi pervenerat, ut nostris vehementer carus, Numantinis maximo terrori esset. Ac sane, quod difficillimum in primis^[48] est, et proelio strenuus erat et bonus consilio; quorum alterum^[49] ex providentia timorem, alterum ex audacia temeritatem affere plerumque solet. Igitur imperator omnes fere res asperas per Jugurtham agere, in amicis habere, magis magisque eum in dies amplecti; quippe cujus neque consilium neque inceptum ullum frustra erat.^[50] Huc accedebat munificentia animi et ingenii sollertia, quâs rebus sibi multos ex Romanis familiari amicitia conjunxerat.

8. Ea tempestate in exercitu nostro fuere complures novi atque nobiles, quibus divitiae bono honestoque potiores erant,^[51] factiosi domi, potentes apud socios, clari magis quam honesti, qui Jugurthae non mediocrem animum pollicitando accendebant, si Micipsa rex occidisset, fore, uti solus imperio Numidiae potiretur, in ipso maximam virtutem, Romae omnia venalia esse. Sed postquam Numantia deleta P. Scipio dimittere auxilia et ipse reverti domum decrevit, donatum atque laudatum magnifice pro contione^[52] Jugurtham in praetorium abduxit ibique secreto monuit, uti potius publice quam privatim amicitiam populi Romani coleret neu quibus^[53] largiri insuesceret; periculose a paucis emi, quod multorum esset: si permanere vellet in suis artibus,^[54] ultro illi et gloriam et regnum venturum, sin properantius pergeret, suamet ipsum pecunia praecipitem casurum.

9. Sic locutus cum litteris eum, quas Micipsae redderet, dimisit. Earum sententia haec erat: 'Jugurthae tui bello Numantino longe maxima virtus fuit, quam rem tibi certo^[55] scio gaudio esse. Nobis ob merita sua carus est; ut idem senatui et populo Romano sit, summa ope nitemur. Tibi quidem pro nostra amicitia gratulor. En habes virum dignum te atque avo suo Masinissa.' Igitur rex, ubi ea, quae fama acceperat, ex litteris imperatoris ita esse cognovit, cum virtute tum gratia viri permotus flexit animum suum et Jugurtham beneficiis vincere aggressus est, statimque eum adoptavit et testamento pariter cum filiis heredem instituit. Sed ipse paucos post annos morbo atque aetate confectus quum sibi finem vitae adesse intellexeret, coram amicis et cognatis itemque Adherbale et Hiempsale filiis dicitur hujusmodi verba cum Jugurtha habuisse:^[56]

10. 'Parvum ego te, Jugurtha, amisso patre, sine spe, sine opibus, in meum regnum accepi, existimans non minus me tibi, quam si genuissem, ob beneficia carum fore; neque ea res falsum me habuit.

^[57] Nam, ut alia magna et egregia tua omittam, novissime rediens Numantia meque regnumque meum gloria honoravisti tuaque virtute nobis Romanos ex amicis amicissimos^[58] fecisti; in Hispania nomen familiae renovatum est, postremo, quod difficillimum inter mortales est, gloria invidiam vicisti. Nunc, quoniam mihi natura finem vitae facit, per hanc dexteram, per regni fidem^[59] moneo obtestorque, uti hos, qui tibi genere propinqui, beneficio meo fratres sunt, caros habeas, neu malis alienos adjungere^[60] quam sanguine conjunctos retinere. Non exercitus neque thesauri praesidia regni sunt, verum amici, quos neque armis cogere neque auro parare queas; officio et fide pariuntur.^[61] Quis autem amicior quam frater fratri? aut quem alienum fidum invenies, si tuis hostis fueris? Equidem ego vobis regnum trado firmum, si boni eritis; sin mali, imbecillum. Nam concordia parvae res crescunt, discordia maximae dilabuntur. Ceterum ante hos^[62] te, Jugurtha, qui aetate et sapientia prior es, ne aliter quid eveniat, providere decet. Nam in omni certamine qui opulentior est, etiamsi accipit injuriam, tamen quia plus potest, facere videtur. Vos autem, Adherbal et Hiempsal, colite, observate^[63] talem hunc virum, imitamini virtutem et enitimini, ne ego meliores liberos sumpsisse videar quam genuisse.'

11. Ad ea Jugurtha, tametsi regem ficta locutum intellegebat et ipse longe aliter animo agitabat, tamen pro tempore benigne respondit. Micipsa paucis post diebus moritur. Postquam illi more regio justa

magnifice fecerant, reguli^[64] in unum convenerunt, ut inter se de cunctis negotiis disceptarent. Sed Hiempsal, qui minimus ex illis erat, natura ferox et jam ante ignobilitatem Jugurthae, quia materno genere impar erat, despiciens, dextera Adherbalem assedit,^[65] ne medius ex tribus, quod apud Numidas honori ducitur, Jugurtha foret. Dein tamen ut aetati concederet fatigatus^[66] a fratre, vix in partem alteram transductus est. Ibi quum nulla de administrando imperio dissererent, Jugurtha inter alias res jacet oportere quinquennii consulta et decreta omnia rescindi; nam per ea tempora confectum annis Micipsam parum animo valuisse. Tum idem Hiempsal placere sibi respondit; nam ipsum illum tribus proximis annis^[67] adoptione in regnum pervenisse. Quod verbum in pectus Jugurthae altius, quam quisquam ratus erat, descendit. Itaque ex eo tempore ira et metu anxius moliri, parare atque ea modo cum animo habere,^[68] quibus Hiempsal per dolum caperetur. Quae ubi tardius procedunt neque lenitur animus ferox, statuit quovis modo inceptum perficere.

12. Primo conventu, quem ab regulis factum supra memoravi, propter dissensionem placuerat dividi thesauros finesque imperii singulis constitui. Itaque tempus ad utramque rem decernitur, sed maturius ad pecuniam distribuendam. Reguli interea in loca propinqua thesauris alius alio^[69] concessere. Sed Hiempsal in oppido Thirmida forte ejus domo utebatur, qui proximus lictor^[70] Jugurthae carus acceptusque ei semper fuerat; quem ille casu ministrum oblatum promissis onerat impellitque, uti tamquam suam visens domum eat, portarum claves adulterinas^[71] paret (nam verae ad Hiempsalem referebantur); ceterum, ubi res postularet, se ipsum

cum magna manu venturum. Numida mandata brevi conficit atque, uti doctus erat, noctu Jugurthae milites introducit. Qui postquam in aedes irrupere, diversi regem quaerere, dormientes alios, alios occursantes interficere, scrutari loca abdita, clausa effringere, strepitu et tumultu omnia miscere; quum^[72] interim Hiempsal reperitur occultans sese tugurio mulieris ancillae, quo initio pavidus et ignarus loci perfugerat. Numidae caput ejus, uti jussi erant, ad Jugurtham referunt.

13. Ceterum fama tanti facinoris per omnem Africam brevi divulgatur; Adherbalem omnesque, qui sub imperio Micipsae fuerant, metus invadit; in duas partes discedunt Numidae; plures Adherbalem sequuntur, sed illum alterum bello meliores. Igitur Jugurtha quam maximas potest copias armat, urbes partim vi, alias voluntate imperio suo adjungit, omni Numidiae imperare parat.^[73] Adherbal, tametsi Romam legatos miserat, qui senatum docerent de caede fratris et fortunis suis, tamen fretus multitudine militum, parabat armis contendere. Sed ubi res ad certamen venit, victus ex proelio profugit in provinciam^[74] ac deinde Romam contendit. Tum Jugurtha patratis consiliis, postquam omnis Numidiae potiebatur, in otio facinus suum cum animo reputans, timere populum Romanum neque adversus iram ejus usquam nisi in avaritia nobilitatis et pecunia sua spem habere. Itaque paucis diebus^[75] cum auro et argento multo legatos Romam mittit, quibus praecepit, primum uti veteres amicos muneribus expleant, deinde novos acquirant, postremo quaecunque possint largiundo parere ne cunctentur. Sed ubi Romam legati venere et ex praecepto regis hospitibus aliisque, quorum ea tempestate in senatu auctoritas pollebat, magna munera

misere, tanta commutatio incessit, uti ex maxima invidia in gratiam et favorem nobilitatis Jugurtha veniret; quorum pars spe, alii praemio inducti, singulos ex senatu ambiundo^[76] nitebantur, ne gravius in eum consuleretur.^[77] Igitur ubi legati satis confidunt, die constituto senatus utrisque datur. Tum Adherbalem hoc modo locutum accepimus:

14. 'Patres conscripti, Micipsa pater meus moriens mihi praecepit, uti regni Numidiae tantummodo procurationem^[78] existimarem meam, ceterum jus et imperium ejus penes vos esse; simul eniterer domi militiaeque quam maximo usui esse populo Romano; vos mihi cognatorum, vos affinium^[79] loco ducerem: si ea fecissem, in vestra amicitia exercitum, divitias, munimenta regni me habiturum. Quae quum praecepta parentis mei agitare, Jugurtha, homo omnium, quos terra sustinet,^[80] sceleratissimus contempto imperio vestro, Masinissae me nepotem et jam ab stirpe socium atque amicum populi Romani regno fortunisque omnibus expulit. Atque ego, patres conscripti, quoniam eo miseriarum venturus eram,^[81] vellem potius ob mea quam ob majorum meorum beneficia posse a vobis auxilium petere, ac maxime deberi mihi beneficia a populo Romano, quibus non egerem; secundum ea, si desideranda erant, uti debitis uterer.^[82] Sed quoniam parum tuta per se ipsa probitas est, neque mihi in manu fuit,^[83] Jugurtha qualis foret, ad vos confugi, patres conscripti, quibus, quod mihi misserimum est, cogor prius oneri quam usui esse. Ceteri reges aut bello victi in amicitiam a vobis recepti sunt, aut in suis dubiis rebus societatem vestram appetiverunt; familia nostra cum populo Romano bello Carthaginiensi amicitiam instituit, quo tempore magis fides ejus quam fortuna petenda erat.^[84] Quorum

progeniem vos, patres conscripti, nolite pati me nepotem Masinissae^[85] frustra a vobis auxilium petere. Si ad impetrandum nihil causae haberem praeter miserandam fortunam, quod paulo ante rex genere, fama atque copiis potens, nunc deformatus aerumnis, inops, alienas opes expecto, tamen erat majestatis Romani populi^[86] prohibere injuriam neque pati cujusquam regnum per scelus crescere. Verum ego iis finibus ejectus sum, quos majoribus meis populus Romanus dedit, unde pater et avus meus una vobiscum expulere Syphacem et Carthaginienses. Vestra beneficia mihi erepta sunt, patres conscripti, vos in mea injuria despecti estis. Eheu me miserum! Hucine, Micipsa pater, beneficia tua evasere,^[87] ut, quem tu parem cum liberis tuis regnique participem fecisti, is potissimum stirpis tuae extinator sit? Nunquam ergo familia nostra quieta erit!^[88] semperne in sanguine, ferro, fuga versabimur? Dum Carthaginienses incolumes fuere, jure omnia saeva patiebamur; hostes ab latere, vos amici procul, spes omnis in armis erat. Postquam illa pestis ex Africa ejecta est, laeti pacem agitabamus, quippe quâs hostis nullus erat, nisi forte quem vos jussissetis.^[89] Ecce autem ex improvise Jugurtha, intoleranda audacia, scelere atque superbia sese efferens, fratre meo atque eodem propinquo suo^[90] interfecto, primum regnum ejus sceleris sui praedam fecit, post, ubi me iisdem dolis non quit^[91] capere, nihil minus quam vim aut bellum expectantem in imperio vestro, sicuti videtis, extorrem patria,^[92] domo, inopem et coopertum miseriis effecit, ut ubivis tutius^[93] quam in meo regno essem. Ego sic existimabam, patres conscripti, uti praedicantem audiveram patrem meum, qui vestram amicitiam diligenter colerent, eos multum

laborem suscipere, ceterum ex omnibus maxime tutos^[94] esse. Quod in familia nostra fuit,^[95] praestitit, uti in omnibus bellis adesset vobis; nos uti per otium tuti simus, in vestra manu est, patres conscripti. Pater nos duos fratres reliquit; tertium, Jugurtham, beneficiis suis ratus est conjunctum nobis fore. Alter eorum necatus est, alterius ipse ego manus impias vix effugi. Quid agam? aut quo potissimum infelix accedam? Generis praesidia omnia extincta sunt; pater, uti necesse erat, naturae concessit; fratri, quem minime decuit,^[96] propinquus per scelus vitam eripuit; affines, amicos, propinquos ceteros alium alia clades oppressit; capti ab Jugurtha pars in crucem acti, pars bestiis objecti sunt;^[97] pauci, quibus relicta est anima, clausi in tenebris cum maerore et luctu morte graviolem vitam exigunt.^[98] Si omnia, quae aut amisi aut ex necessariis adversa facta sunt,^[99] incolumia manerent, tamen, si quid ex improvise mali accidisset, vos implorarem, patres conscripti, quibus pro magnitudine imperii ius et iniurias omnes curae esse decet. Nunc vero exul patria, domo, solus atque omnium honestarum rerum egens, quo accedam aut quos appellem?^[100] nationesne an reges, qui omnes familiae nostrae ob vestram amicitiam infesti sunt?^[101] An quoquam mihi adire licet, ubi non majorum meorum hostilia monumenta plurima sint? aut quisquam nostri misereri potest, qui aliquando vobis hostis fuit? Postremo Masinissa nos ita instituit, patres conscripti, ne quem coleremus nisi populum Romanum, ne societates, ne foedera nova acciperemus; abunde magna praesidia nobis in vestra amicitia fore; si huic imperio^[102] fortuna mutaretur, una occidendum nobis esse. Virtute ac dis volentibus magni estis et opulenti; omnia secunda^[103] et obedientia sunt; quo facilius sociorum

injurias curare licet. Tantum illud vereor, ne quos privata amicitia Jugurthae parum cognita transversos agat, quos ego audio maxima ope niti, ambire, fatigare^[104] vos singulos, ne quid de absente incognita causa statuatis, fingere me verba et fugam simulare, cui licuerit in regno manere. Quodutinam^[105] illum cujus impio facinore in has miserias projectus sum, eadem haec simulantem videam, et aliquando aut apud vos aut apud deos immortales rerum humanarum cura oriatur; nae ille, qui nunc sceleribus suis ferox atque praeclarus est, omnibus malis excruciatu impietatis in parentem nostrum, fratris mei necis mearumque miseriarum graves poenas reddat.^[106] Jamjam frater, animo meo carissime, quamquam tibi immaturo et unde minime decuit vita erepta est,^[107] tamen laetandum magis quam dolendum puto casum tuum;^[108] non enim regnum, sed fugam, exilium, egestatem et omnes has, quae me premunt, aerumnas cum anima simul amisisti. At ego infelix, in tanta mala praecipitatus ex patrio regno, rerum humanarum spectaculum praebeo, incertus quid agam, tuasne injurias persequar, ipse auxilii egens, an regno consulam, cujus vitae necisque potestas ex opibus alienis^[109] pendet. Utinam emori fortunis meis honestus exitus esset! neu vivere contemptus viderer, si defessus malis injuriae concessissem.^[110] Nunc neque vivere libet, neque mori licet sine dedecore. Patres conscripti, per vos liberos^[111] atque parentes vestros, per majestatem populi Romani subvenite misero mihi, ite obviam injuriae, nolite pati regnum Numidiae, quod vestrum est, per scelus et sanguinem familiae nostrae tabescere.'^[112]

15. Postquam rex finem loquendi fecit, legati Jugurthae, largitione magis quam causa freti, paucis respondent: 'Hiempsalem ob saevitiam suam ab Numidis interfectum; Adherbalem ultro bellum inferentem, postquara superatus sit, queri, quod injuriam facere nequivisset: Jugurtham ab senatu petere, ne se alium putarent, ac Numantiae cognitus esset, neu verba inimici ante facta sua ponerent.'^[113] Deinde utrique curia egrediuntur. Senatus statim consulitur: fautores legatorum, praeterea magna pars gratia depravata,^[114] Adherbalis dicta contemnere, Jugurthae virtutem extollere laudibus; gratia, voce, denique omnibus modis pro alieno scelere et flagitio sua quasi pro gloria nitebantur. At contra pauci, quibus bonum et aequum divitiis carius erat, subveniendum Adherbali et Hiempsalis mortem severe vindicandam censebant; sed ex omnibus maxime Aemelius Scaurus, homo nobilis, impiger, factiosus, avidus potentiae, honoris, divitiarum, ceterum vitia sua callide occultans. Is postquam videt regis largitionem famosam impudentemque, veritus, quod in tali re solet, ne polluta licentia^[115] invidiam accenderet, animum a consueta libidine continuit.

16. Vicit tamen in senatu pars illa, quae vero pretium aut gratiam anteferebat. Decretum fit, uti decem legati regnum, quod Micipsa obtinuerat, inter Jugurtham et Adherbalem dividerent. Cujus legationis princeps fuit L. Opimius, homo clarus et tum in senatu potens, quia consul, G. Graccho et M. Fulvio Flacco interfectis, acerrime victoriam nobilitatis in plebem exercuerat.^[116] Eum Jugurtha tametsi Romae in inimicis habuerat, tamen accuratissime recepit, dando et pollicitando multa perfecit, uti famae, fide,^[117] postremo omnibus suis rebus commodum regis anteferret. Reliquos legates

eadem via aggressus, plerosque capit; paucis carior fides quam pecunia fuit. In divisione, quae pars Numidiae Mauretanium attingit, agro virisque opulentior, Jugurthae traditur: illam alteram specie quam usu potiore, quae portuosior et aedificiis magis exornata erat, Adherbal possedit.^[118]

17. Res postulare videtur Africae situm paucis exponere et eas gentes, quibuscum nobis bellum aut amicitia fuit, attingere. Sed quae loca et nationes ob calorem aut asperitatem, item solitudines minus frequentata^[119] sunt, de iis haud facile compertum narraverim; cetera quam paucissimis absolvam. In divisione orbis terrae plerique in parte tertia^[120] Africam posuere, pauci tantummodo Asiam et Europam esse, sed Africam in Europa.^[121] Ea fines habet ab occidente fretum nostri maris et Oceani,^[122] ab ortu solis declivem latitudinem,^[123] quem locum Katabathmon incolae appellant. Mare saevum, importuosum, ager frugum fertilis, bonus pecori, arbore infecundus, coelo terraque penuria aquarum. Genus hominum salubri corpore, velox, patiens laborum; plerosque senectus dissolvit, nisi qui ferro aut bestiis interiere; nam morbus haud saepe quemquam superat; ad hoc malefici generis plurima animalia. Sed qui mortales initio Africam habuerint, quique postea accesserint, aut quomodo inter se permixti sint, quamquam ab ea fama, quae plerosque obtinet, diversum est, tamen uti ex libris Punicis, qui regis Hiempsalis dicebantur, interpretatum nobis est, utique rem sese habere cultores ejus terrae putant, quam paucissimis dicam.^[124] Ceterum fides ejus rei penes auctores erit.

18. Africam initio habuere Gaetuli et Libyes, asperi incultique, quibus cibus erat caro ferina atque humi pabulum, uti pecoribus. Hi neque moribus neque lege aut imperio cujusquam regebantur; vagi, palantes, qua nox coegerat, sedes habebant. Sed postquam in Hispania Hercules, sicuti Afri putant, interiit, exercitus ejus, compositus ex variis gentibus, amisso duce ac passim multis sibi quisque imperium petentibus,^[125] brevi dilabatur. Ex eo numero Medi, Persae et Armenii, navibus in Africam transvecti, proximos nostro mari^[126] locos occupavere. Sed Persae intra Oceanum magis; hique alveos navium inverses pro tuguriis habuere, quia neque materia in agris neque ab Hispanis emundi aut mutandi copia erat; mare magnum et ignara^[127] lingua commercia prohibebant. Hi paulatim per connubia Gaetulos secum miscuere, et quia saepe temptantes agros^[128] alia, deinde alia loca petiverant, semet ipsi Nomadas appellavere. Ceterum adhuc aedificia Numidarum agrestium, quae mapalia illi vocant, oblonga, incurvis lateribus tecta, quasi navium carinae sunt. Medi autem et Armenii accessere Libyes^[129] (nam hi propius mare Africum agitabant, Gaetuli sub sole magis, haud procul ab ardoribus) hique mature oppida habuere; nam freto divisi ab Hispania mutare res inter se instituerant. Nomen eorum paulatim Libyes corrumpere, barbara lingua Mauros pro Medis^[130] appellantes. Sed res Persarum brevi adolevit; ac postea nomine Numidae, propter multitudinem a parentibus digressi, possidere ea loca, quae proxime Carthaginem Numidia appellatur. Deinde utrique^[131] alteris freti finitimos armis aut metu sub imperium suum coegere, nomen gloriamque sibi addidere; magis ii, qui ad nostrum mare processerant, quia Libyes quam Gaetuli minus bellicosi. Denique

Africae pars inferior pleraque ab Numidis possessa est; victi omnes in gentem nomenque imperantium concessere.

19. Postea Phoenices, alii multitudinis domi minuendae gratia, pars imperii cupidine, sollicitata plebe et aliis novarum rerum avidis,^[132] Hipponem, Hadrumetum, Leptim^[133] aliasque urbes in ora maritima condidere, eaeque brevi multum auctae, pars originibus suis^[134] praesidio, aliae decori fuere. Nam^[135] de Carthagine silere melius puto quam parum dicere, quoniam alio properare tempus monet. Igitur ad Katabathmon, qui locus Aegyptum ab Africa dividit, secundo mari^[136] prima Cyrene est, colonia Theraeon, ac deinceps duae Syrtes,^[137] interque eas Leptis; deinde Philaenon arae,^[138] quem locum Aegyptum versus finem imperii habuere Carthaginienses, post aliae Punicae urbes. Cetera loca usque ad Mauretanium Numidae tenent; proxime Hispaniam Mauri sunt. Super Numidiam^[139] Gaetulos accepimus partim in tuguriis, alios incultius vagos agitare, post eos Aethiopus esse, dein loca exusta solis ardoribus. Igitur bello Jugurthino pleraque ex Punicis oppida et fines Carthaginensium, quos novissime^[140] habuerant, populus Romanus permagistratus administrabat, Gaetulorum magna pars et Numidae usque ad flumen Mulucham sub Jugurtha erant, Mauris omnibus rex Bocchus imperitabat, praeter nomen cetera ignarus^[141] populi Romani, itemque nobis neque bello neque pace antea cognitus. De Africa et ejus incolis ad necessitudinem rei satis dictum.

20. Postquam, diviso regno, legati Africa decessere, et Jugurtha contra timorem animi praemia sceleris adeptum sese videt, certum ratus, quod ex amicis apud Numantiam acceperat, omnia Romae

venalia esse, simul et illorum pollicitationibus accensus, quos paulo ante muneribus expleverat, in regnum Adherbalis animum intendit. Ipse acer, bellicosus; at is, quem petebat, quietus, imbellis, placido ingenio, opportunus injuriae, metuens magis quam metuendus. Igitur ex improvise fines ejus cum magna manu invadit; multos mortales cum pecore atque alia praeda capit, aedificia incendit, pleraque loca hostiliter cum equitatu accedit, deinde cum omni multitudine in regnum suum convertit, existimans dolore permotum Adherbalem injurias suas manu vindicaturum, eamque rem belli causam fore. At ille, quod neque se parem armis existimabat et amicitia populi Romani magis quam Numidis fretus erat, legatos ad Jugurtham de injuriis questum^[142] misit; qui tametsi contumeliosa dicta retulerant, prius tamen omnia pati decrevit quam bellum sumere, quia temptatum antea secus^[143] cesserat. Neque eo magis cupido Jugurthae minuebatur, quippe qui totum ejus regnum animo jam invaserat. Itaque non uti antea cum praedatoria manu, sed magno exercitu comparato bellum gerere coepit et aperte totius Numidiae imperium petere. Ceterum qua pergebat urbes, agros vastare, praedas agere, suis animum, hostibus terrorem augere.

21. Adherbal ubi intellegit eo processum, uti regnum aut relinquendum esset aut armis retinendum, necessario copias parat et Jugurthae obviis procedit. Interim haud longe a mari prope Cirtam oppidum^[144] utriusque exercitus consedit, et quia diei extremum erat, proelium non inceptum. Sed ubi plerumque^[145] noctis processit, obscuro etiamtum lumine, milites Jugurthini signo dato castra hostium invadunt; semisomnos partim,^[146] alios arma sumentes fugant funduntque; Adherbal cum paucis equitibus Cirtam profugit, et

ni multitudo togatorum^[147] fuisset, quae Numidas insequentes moenibus prohibuit, uno die inter duos reges coeptum atque patratum bellum foret. Igitur Jugurtha oppidum circumscedit, vineis turribusque et machinis omnium generum expugnare aggreditur, maxime festinans tempus legatorum antecapere, quos ante proelium factum ab Adherbale Romam missos audiverat. Sed postquam senatus de bello eorum accepit, tres adolescentes in Africam legantur, qui ambos reges adeant, senatus populiue Romani verbis nuntient: 'Velle et censere eos ab armis discedere, de controversiis suis jure potius quam bello disceptare; ita seque illisque^[148] dignum esse.'

22. Legati in Africam maturantes veniunt, eo magis, quod Romae, dum proficisci parant, de proelio facto et oppugnatione Cirtae audiebatur; sed is rumor clemens erat.^[149] Quorum Jugurtha accepta oratione respondit: 'Sibi neque majus quicquam neque carius auctoritate senatus esse; ab adolescentia ita se enisum, ut ab optimo quoque probaretur; virtute, non malitia P. Scipioni, summo viro, placuisse; ob easdem artes ab Micipsa, non penuria liberorum, in regnum adoptatum esse. Ceterum quo plura bene atque strenue fecisset, eo animum suum injuriam minus tolerare: Adherbalem dolis vitae suae insidiatum; quod ubi comperisset, scelerei ejus obviam isse; populum Romanum neque recte neque pro bono facturum,^[150] si ab jure gentium sese prohibuerit; postremo de omnibus rebus legatos Romam brevi missurum.' Ita utrique^[151] digrediuntur. Adherbalis appellandi copia non fuit.

23. Jugurtha ubi eos Africa decessisse ratus est, neque propter loci naturam Cirtam armis expugnare potest, vallo atque fossa moenia circumdat, turres extruit easque praesidiis firmat, praeterea dies noctesque aut per vim aut dolis temptare, defensoribus moenium praemia modo, modo formidinem ostentare, suos hortando ad virtutem arrigere,^[152] prorsus intentus cuncta parare. Adherbal, ubi intellegit omnes suas fortunas in extremo sitas, hostem infestum, auxilii spem nullam, penuria rerum necessariarum bellum trahi non posse, ex iis, qui una Cirtam profugerant, duos maxime impigros delegit; eos multa pollicendo ac miserando casum suum confirmat, uti per hostium munitiones noctu ad proximum mare, dein Romam pergerent. Numidae paucis diebus jussa efficiunt; litterae Adherbalis in senatu recitatae, quarum sententia haec fuit:

24. 'Non mea culpa saepe ad vos oratum mitto, patres conscripti, sed vis Jugurthae subigit, quem tanta libido extinguendi me invasit, ut neque vos neque deos immortales in animo habeat, sanguinem meum quam omnia malit. Itaque quintum jam mensem socius et amicus populi Romani armis obsessus teneor, neque mihi Micipsae patris mei beneficia neque vestra decreta auxiliantur; ferro an fame acrius urguear incertus sum. Plura de Jugurtha scribere dehortatur me fortuna mea; et jam antea expertus sum parum fidei miseris esse. Nisi tamen intellego^[153] illum supra quam ego sum petere, neque simul amicitiam vestram et regnum meum sperare. Utrum gravius existimet, nemini occultum est. Nam, initio occidit Hiempsalem, fratrem meum, dein patrio regno me expulit; quae sane fuerint nostrae injuriae, nihil ad vos.^[154] Verum nunc vestrum regnum armis tenet, me, quem vos imperatorem Numidis posuistis, clausum

obsidet; legatorum verba quanti fecerit, pericula mea declarant. Quid reliquum nisi vestra vis, quo moveri possit? Nam ego quidem vellem et haec, quae scribo, et illa, quae antea in senatu questus sum, vana forent potius, quam miseria mea fidem verbis faceret. Sed quoniam eo natus sum, ut Jugurthae scelerum ostentui essem,^[155] non jam mortem neque aerumnas, tantummodo inimici imperium et crutiatus corporis deprecor.^[156] Regno Numidiae, quod vestrum est, uti libet consulite; me ex manibus impiis eripite per majestatem imperii, per amicitiae fidem, si ulla apud vos memoria remanet avi mei Masinissae.'

25. His litteris recitatis fuere, qui exercitum in Africam mittendum censerent et quam primum Adherbali subveniendum; de Jugurtha interim uti consuleretur,^[157] quoniam legatis non paruisset. Sed ab iisdem illis regis fautoribus summa ope enisum,^[158] ne tale decretum fieret. Ita bonum publicum, ut in plerisque negotiis solet, privata gratia devictum. Legantur tamen in Africam majores natu, nobiles, amplis honoribus usi; in quibus fuit M. Scaurus, de quo supra memoravimus, consularis et tum in senatu princeps. Hi, quod res in invidia erat, simul et ab Numidis obsecrati, triduo navim ascendere, dein brevi Uticam appulsi litteras ad Jugurtham mittunt, quam ocissime^[159] ad provinciam accedat, seque ad eum ab senatu missos. Ille ubi accepit homines claros, quorum auctoritatem Romae pollere audiverat, contra inceptum suum venisse, primo commotus, metu atque libidine diversus agitabatur. Timebat iram senatus, ni paruisset legatis; porro animus cupidine caecus ad inceptum scelus rapiebat. Vicit tamen in avido ingenio pravum consilium. Igitur exercita circumdato summa vi Cirtam irrumpere^[160] nititur, maxime

sperans, diducta manu hostium^[161] aut vi aut dolis sese casum victoriae inventurum. Quod ubi secus procedit neque quod intenderat efficere potest, ut prius quam legates conveniret, Adherbalis potiretur; ne amplius morando Scaurum, quem plurimum metuebat, incenderet, cum paucis equitibus in provinciam venit. Ac tametsi senati verbis graves minae nuntiabantur, quod ab oppugnatione non desisteret, multa tamen oratione consumpta legati frustra discessere.

26. Ea postquam Cirtae audita sunt, Italici, quorum virtute moenia defensabantur, confisi deditione facta propter magnitudinem populi Romani inviolatos sese fore, Adherbali suadent, uti seque et oppidum Jugurthae tradat, tantum ab eo vitam paciscatur, de ceteris senatui curae fore. At ille, tametsi omnia potiora fide Jugurthae rebatur,^[162] tamen quia penes eosdem, si adversaretur, cogendi potestas erat, ita, uti censuerant Italici, deditionem facit. Jugurtha in primis Adherbalem excruciatum necat, deinde omnes puberes Numidas atque negotiatores promiscue, uti quisque armatis obvius fuerat, interficit.

27. Quod postquam Romae cognitum est, et res in senatu agitari coepta, iidem illi ministri regis interpellando^[163] ac saepe gratia, interdum jurgiis trahendo tempus, atrocitatem facti leniebant. Ac ni G. Memmius, tribunus plebis designatus, vir acer et infestus potentiae nobilitatis, populum Romanum edocuisset id agi, ut per paucos factiosos Jugurthae scelus condonaretur, profecto omnis invidia prolatandis consultationibus dilapsa foret: tanta vis gratiae atque pecuniae regis erat. Sed ubi senatus delicti conscientia

populum timet, lege Sempronia^[164] provinciae futuris consulibus Numidia atque Italia decretae; consules declarati P. Scipio Nasica, L. Bestia Calpurnius; Calpurnio Numidia, Scipioni Italia obvenit;^[165] deinde exercitus, qui in Africam portaretur, scribitur; stipendium aliaque, quae bello usui forent, decernuntur.

28. At Jugurtha, contra spem nuntio accepto, quippe cui Romae omnia venum ire^[166] in animo haeserat, filium et cum eo duos familiares ad senatum legatos mittit, hisque ut illis, quos Hiempsale interfecto miserat, praecipit, omnes mortales pecunia aggrediantur. Qui postquam Romam adventabant,^[167] senatus a Bestia consultus est, placeretne legatos Jugurthae recipi moenibus; iique decrevere, nisi regnum ipsumque deditum venissent, uti in diebus proximis decem^[168] Italia decederent. Consul Numidis ex senati decreto nuntiari jubet; ita infectis rebus illi domum discedunt. Interim Calpurnius, parato exercitu, legat^[169] sibi homines nobiles, factiosos, quorum auctoritate, quae deliquisset, munita fore sperabat; in quibus fuit Scaurus, cujus de natura et habitu supra^[170] memoravimus. Nam in consule nostro multae bonaeque artes animi et corporis erant, quas omnes avaritia praepediebat; patiens laborum, acri ingenio, satis providens, belli haud ignarus, firmissimus contra pericula et insidias. Sed legiones per Italiam Rhegium atque inde Siciliam,^[171] porro ex Sicilia in Africam transvectae. Igitur Calpurnius initio, paratis commeatibus, acriter Numidiam ingressus est, multosque mortales et urbes aliquot pugnando cepit.

29. Sed ubi Jugurtha per legatos pecunia temptare bellique quod administrabat asperitatem ostendere coepit, animus aeger

avaritia^[172] facile conversus est. Ceterum socius et administer omnium consiliorum assumitur Scaurus, qui tametsi a principio,^[173] plerisque ex factione ejus corruptis, acerrime regem impugnaverat, tamen magnitudine pecuniae a bono honestoque in pravum abstractus est. Sed Jugurtha primo tantummodo belli moram redimebat, existimans sese aliquid interim Romae pretio aut gratia effecturum; postea vero quam participem negotii Scaurum accepit, in maximam spem adductus recuperandae pacis, statuit cum eis de omnibus pactionibus praesens agere. Ceterum interea fidei causa mittitur a consule Sextius quaestor in oppidum Jugurthae Vagam,^[174] cujus rei species erat acceptio frumenti, quod Calpurnius palam legatis imperaverat, quoniam deditionis mora induciae agitabantur.^[175] Igitur rex, uti constituerat, in castra venit, ac pauca praesenti consilio locutus de invidia facti sui atque uti in deditionem acciperetur, reliqua cum Bestia et Scauro secreta^[176] transigit, dein postero die, quasi per saturam sententiis exquisitis,^[177] in deditionem accipitur. Sed uti pro consilio^[178] imperatum erat, elephantis triginta, pecus atque equi multi cum parvo argenti pondere quaestori traduntur. Calpurnius Romam ad magistratus rogandos^[179] proficiscitur. In Numidia et exercitu nostro pax agitabatur.

30. Postquam res in Africa gestas quoque modo actae forent fama divulgavit, Romae per omnes locos et conventus de facto consulis agitari. Apud plebem gravis invidia, patres solliciti erant; probarentne tantum flagitium, an decretum consulis subverterent, parum constabat.^[180] Ac maxime eos potentia Scauri, quod is auctor et socius Bestiae ferebatur, a vero bonoque impediabat. At G.

Memmius, cujus de libertate ingenii et odio potentiae nobilitatis supra diximus, inter dubitationem et moras senatus contionibus populum ad vindicandum hortari, monere, ne rem publicam, ne libertatem suam desererent, multa superba et crudelia facinora nobilitatis ostendere; prorsus intentus omni modo plebis animum accendebat. Sed quoniam ea tempestate Romae Memmii facundia clara pollensque fuit, decere existimavi unam ex tam multis orationem ejus perscribere, ac potissimum ea dicam, quae in contione post reditum Bestiae hujuscemodi verbis disseruit.

31. 'Multa me dehortantur a vobis,^[181] Quirites, ni studium rei publicae omnia superet, opes factionis, vestra patientia, jus nullum, ac maxime, quod innocentiae plus periculi quam honoris est. Nam illa quidem piget dicere, his annis XV.^[182] quam ludibrio fueritis superbiae paucorum, quam foede quamque inulti perierint vestri defensores, ut vobis animus ab ignavia^[183] atque socordia corruptus sit, qui ne nunc quidem, obnoxii inimicis,^[184] exsurgitis, atque etiam nunc timetis eos, quibus decet terrori esse. Sed quamquam haec talia sunt, tamen obviam ire factionis potentiae animus subigit.^[185] Certe ego libertatem, quae mihi a parente meo tradita est, experiar; verum id frustra an ob rem^[186] faciam, in vestra manu situm est, Quirites. Neque ego vos hortor, quod saepe majores vestri fecere, uti contra injurias armati eatis. Nihil vi, nihil secessionem opus est: necesse est suomet ipsi more praecipites eant.^[187] Occisso Ti. Graccho, quem regnum parare aiebant, in plebem Romanam quaestiones habitae sunt. Post G. Gracchi et M. Fulvi caedem item vestri ordinis multi mortales in carcere necati sunt; utriusque cladis non lex, verum libido eorum finem fecit. Sed sane fuerit regni paratio

plebi sua restituere; quicquid sine sanguine civium ulcisci nequitur, jure factum sit.^[188] Superioribus annis taciti indignabamini aerarium expilari, reges et populos liberos paucis nobilibus vectigal pendere, penes eosdem et summam gloriam et maximas divitias esse; tamen haec talia facinora impune suscepisse parum habuere.^[189] Itaque postremo leges, majestas vestra, divina et humana omnia hostibus tradita sunt. Neque eos, qui ea fecere, pudet aut poenitet, sed incedunt per ora vestra^[190] magnifici, sacerdotia et consulatus, pars triumphos suos ostentantes, perinde quasi ea honori non praedae habeant. Servi aera parati injusta imperia dominorum non perferunt; vos, Quirites, imperio nati, aequo animo servitutem toleratis? At qui sunt hi qui rem publicam occupavere? Homines sceleratissimi, cruentis manibus, immani avaritia, nocentissimi iidemque superbissimi, quibus fides, decus, pietas, postremo honesta atque inhonesta omnia quaestui sunt. Pars eorum occidisse tribunos plebis, alii quaestiones injustas, plerique caedem in vos fecisse, pro munimento habent.^[191] Ita quam quisque pessime fecit, tam maxime^[192] tutus est: metum a scelere suo ad ignaviam vestram transtulere;^[193] quos omnes eadem cupere, eadem odisse, eadem metuere in unum coëgit.^[194] Sed haec inter bonos amicitia, inter malos factio est. Quodsi tam vos libertatis curam haberetis, quam illi ad dominationem accensi sunt, profecto neque res publica, sicuti nunc, vastaretur, et beneficia vestra^[195] penes optimos, non audacissimos, forent. Majores vestri parandi juris et majestatis constituendae gratia bis per secessionem armati Aventinum occupavere,^[196] vos pro libertate, quam ab illis accepistis, non summa ope nitemini?^[197] atque eo vehementius, quo majus dedecus

est parta amittere quam omnino non paravisse. Dicet aliquis: Quid igitur censes? Vindicandum in eos,^[198] qui hosti prodidere rem publicam? Non manu neque vi, quod magis vos fecisse quam illis accidisse indignum est, verum quaestionibus^[199] et indicio ipsius Jugurthae, qui si dediticius est, profecto jussis vestris obediens erit; sin ea contemnit, scilicet existimabitis, qualis illa pax aut deditio sit, ex qua ad Jugurtham scelerum impunitas, ad paucos potentes maximae divitiae, in rem publicam damna atque dedecora pervenerint. Nisi forte^[200] nondum etiam vos dominationis eorum satietas tenet, et illa quam haec tempora magis placent, quum regna, provinciae, leges, jura, judicia, bella atque paces, postremo divina et humana omnia penes paucos erant; vos autem, hoc est, populus Romanus, invicti ab hostibus, imperatores omnium gentium, satis habebatis animam retinere; nam servitutem quidem quis vestrum recusare audebat? Atque ego, tametsi viro flagitiosissimum existimo impune injuriam accepisse, tamen vos hominibus sceleratissimis ignoscere, quoniam cives sunt, aequo animo paterer, ni misericordia in perniciem casura esset. Nam et illis, quantum importunitatis habent,^[201] parum est impune male fecisse, nisi deinde faciendi licentia eripitur, et vobis aeterna sollicitudo remanebit, quum intellegitis aut serviendum esse aut permanus libertatem retinendam. Nam fidei quidem aut concordiae quae spes est? Dominari illi volunt, vos liberi esse, facere illi injurias, vos prohibere; postremo sociis vestris veluti hostibus, hostibus pro sociis utuntur. Potestne in tam diversis mentibus pax aut amicitia esse? Quare moneo hortorque vos, ne tantum scelus impunitum omittatis. Non peculatus aerarii factus est, neque per vim sociis ereptae pecuniae, quae quamquam gravia sunt, tamen consuetudine jam pro nihilo

habentur: hosti acerrimo prodita senatus auctoritas, proditum imperium vestrum, domi militiaeque res publica venalis fuit. Quae nisi quaesita erunt, nisi vindicatum in noxios, quid erit reliquum, nisi ut illis, qui ea fecere, obedientes vivamus? Nam impune quaelibet facere, id est regem^[202] esse. Neque ego vos, Quirites, hortor, ut malitis cives vestros perperam quam recte fecisse, sed ne ignoscendo malis bonos perditum eatis.^[203] Ad hoc in re publica multo praestat beneficii quam maleficii immemorem esse;^[204] bonus tantummodo segnior fit, ubi negligas, at malus improbior. Ad hoc si injuriae non sint, haud saepe auxilii egeas.'

32. Haec atque alia hujusmodi saepe dicundo Memmius populo persuadet, uti L. Cassius, qui tum praetor erat, ad Jugurtham mitteretur eumque interposita fide publica Romam duceret, quo facilius indicio regis Scauri et reliquorum, quos pecuniae captae arcessebant,^[205] delicta patefierent. Dum haec Romae geruntur, qui in Numidia relictis a Bestia exercitui praeerant, secuti morem imperatoris sui plurima et flagitiosissima facinora fecere. Fuere, qui auro corrupti elephantos Jugurthae traderent; alii perfugas vendere, pars ex pacatis praedas agebant; tanta vis avaritiae in animos eorum veluti tabes invaserat. At Cassius, perlata rogatione^[206] a G. Memmio ac perculsa omni nobilitate, ad Jugurtham proficiscitur eique timido et ex conscientia diffidenti rebus suis persuadet, quoniam se populo Romano dedisset, ne vim quam misericordiam ejus experiri mallet. Privatim praeterea fidem suam interponit, quam ille non minoris quam publicam ducebat; talis ea tempestate fama de Cassio erat.

33. Igitur Jugurtha contra decus regium cultu quam maxime miserabili cum Cassio Romam venit. Ac tametsi in ipso magna vis animi erat, confirmatus ab omnibus, quorum potentia aut scelere cuncta ea gesserat, quae supra diximus, G. Baebium tribunum plebis magna mercede parat, cujus impudentia contra jus et injurias omnes munitus foret. At G. Memmius, advocata contione, quamquam regi infesta plebes erat, et pars in vincula duci jubebat, pars, ni socios sceleris sui aperiret, more majorum de hoste supplicium sumi; dignitati quam irae magis consulens, sedare motus et animos eorum mollire, postremo confirmare, fidem publicam per sese^[207] inviolatam fore. Post, ubi silentium coepit, producto Jugurtha, verba facit; Romae Numidiaequē^[208] facinora ejus memorat, scelera in patrem fratresque ostendit. Quibus juvantibus quibusque ministris ea egerit, quamquam intellegat populus Romanus, tamen velle manifesta magis ex illo habere. Si verum aperiat, in fide et clementia populi Romani magnam spem illi sitam; sin reticeat, non sociis saluti fore,^[209] sed se suasque spes corrupturum.

34. Deinde, ubi Memmius dicundi finem fecit et Jugurtha respondere jussus est, G. Baebius, tribunus plebis, quem pecunia corruptum supra diximus, regem tacere jubet, ac tametsi multitudo, quae in contione aderat, vehementer accensa, terrebat eum clamore, vultu, saepe impetu atque aliis omnibus, quae ira fieri amat,^[210] vicit tamen impudentia. Ita populus ludibrio habitus ex contione discedit: Jugurthae Bestiaeque et ceteris, quos illa quaestio exagitabat, animi augescunt.^[211]

35. Erat ea tempestate Romae Numida quidam, nomine Massiva, Gulussae filius, Masinissae nepos; qui, quia in dissensione regum Jugurthae adversus fuerat, dedita Cirta et Adherbale interfecto, profugus ex Africa abierat. Huic Sp. Albinus, qui proximo anno post Bestiam cum Q. Minucio Rufo consulatum gerebat,^[212] persuadet, quoniam ex stirpe Masinissae sit, Jugurthamque ob scelera invidia cum metu urgeat,^[213] regnum Numidiae ab senatu petat. Avidus consul belli gerundi moveri quam senescere omnia malebat; ipsi provincia Numidia, Minucio Macedonia evenerat. Quae postquam Massiva agitare coepit, neque Jugurthae in amicis satis praesidii est, quod eorum alium conscientia, alium mala fama et timor impediabat, Bomilcari, proximo ac maxime fido sibi, imperat, pretio, sicuti multa confecerat, insidiatores Massivae paret, ac maxime^[214] occulte, sin id parum procedat, quovis modo Numidam interficiat. Bomilcar mature regis mandata exequitur, et per homines talis negotii artifices itinera egressusque ejus, postremo loca atque tempora cuncta explorat, deinde, ubi res postulabat, insidias tendit. Igitur unus ex eo numero, qui ad caedem parati erant, paulo inconsultius Massivam aggreditur; illum obtruncat, sed ipse deprehensus, multis hortantibus et in primis Albino consule, indicium profitetur.^[215] Fit reus magis ex aequo bonoque quam ex jure gentium Bomilcar, comes ejus, qui Romam fide publica venerat. At Jugurtha manifestus^[216] tanti sceleris non prius omisit contra verum niti, quam animum advertit,^[217] supra gratiam atque pecuniam suam invidiam facti esse. Igitur, quamquam in priore actione ex amicis quinquaginta vades dederat,^[218] regno magis quam vadibus consulens, clam in Numidiam Bomilcarem dimittit, veritus ne reliquos populares metus invaderet parendi sibi, si

de illo supplicium sumptum foret. Et ipse paucis diebus^[219] eodem profectus est, jussus a senatu Italia decedere. Sed postquam Roma egressus est, fertur saepe eo tacitus respiciens postremo dixisse: 'urbem venalem et mature perituram, si emptorem invenerit.'

36. Interim Albinus renovato bello commeatum, stipendium aliaque, quae militibus usui forent, maturat in Africam portare; ac statim ipse profectus, uti ante comitia, quod tempus^[220] haud longe aberat, armis aut deditione aut quovis modo bellum conficeret. At contra Jugurtha trahere omnia et alias deinde alias morae causas facere, polliceri deditionem, ac deinde metum simulare, cedere instanti et paulo post, ne sui diffiderent, instare; ita belli modo, modo pacis mora consulem ludificare.^[221] Ac fuere, qui tum Albinum haud ignarum consilii regis existimarent, neque ex tanta properantia tam facile tractum bellum socordia magis quam dolo crederent.^[222] Sed postquam dilapso tempore comitiorum dies adventabat, Albinus, Aulo fratre in castris pro praetore relicto Romam decessit.

37. Ea tempestate Romae seditionibus tribuniciis atrociter res publica agitabatur. P. Lucullus et L. Annius, tribuni plebis, resistentibus collegis, continuare magistratum^[223] nitebantur, quae dissensio totius anni comitia impendebat. Ea mora in spem adductus Aulus, quem pro praetore in castris relictum supra diximus, aut conficiundi belli aut terrore exercitus ab rege pecuniae capiundae, milites mense Januario ex hibernis in expeditionem evocat, magnisque itineribus, hieme aspera, pervenit ad oppidum Suthul, ubi regis thesauri erant. Quod quamquam et saevitia temporis et opportunitate loci neque capi neque obsideri poterat (nam circum

murum situm in praerupti montis extremo planities limosa hiemalibus aquis paludem fecerat^[224]), tamen aut simulandi gratia, quo regi formidinem adderet, aut cupidine caecus ob thesauros oppidi potiundi, vineas agere, aggerem jacere, aliaque, quae incepto usui forent, properare.

38. At Jugurtha, cognita vanitate atque imperitia legati, subdolus ejus augere amentiam, missitare^[225] supplicantes legatos, ipse quasi vitabundus per saltuosa loca et tramites exercitum ductare. Denique Aulum spe pactionis perpulit, uti relicto Suthule in abditas regiones sese veluti cedentem insequeretur; 'ita delicta occultiora fore.' Interea per homines callidos die noctuque exercitum temptabat; centuriones ducesque turmarum partim uti transfugerent corrumpere, alii signo dato locum uti desererent.^[226] Quae postquam ex sententia instruit, intempesta nocte de improvviso multitudine Numidarum Auli castra circumvenit. Milites Romani, perculsi tumultu insolito, arma capere alii, alii se abdere, pars territos confirmare, trepidare^[227] omnibus locis; vis magna hostium, coelum nocte atque nubibus obscuratum, periculum anceps,^[228] postremo fugere an manere tutius foret, in incerto erat. Sed ex eo numero, quos paulo ante corruptos diximus, cohors una Ligurum cum duabus turmis Thracum et paucis gregariis militibus transiere ad regem,^[229] et centurio primi pili^[230] tertiae legionis per munitionem, quam uti defenderet acceperat, locum hostibus introeundi dedit, eaque Numidae cuncti irrupere. Nostri foeda fuga, plerique abjectis armis, proximum collem occupavere. Nox atque praeda castrorum hostes, quo minus victoria uterentur, remorata sunt. Deinde Jugurtha postero die cum Aulo in colloquio verba facit: 'tametsi ipsum cum exercitu

fame et ferro clausum tenet,^[231] tamen se memorem humanarum rerum, si secum foedus faceret, incolumes omnes sub jugum missurum,^[232] praeterea uti diebus decem Numidia decederet.' Quae quamquam gravia et flagitii plena erant, tamen, quia mortis metu mutabantur,^[233] sicuti regi libuerat, pax convenit.

39. Sed ubi ea Romae comperta sunt, metus atque maeror civitatem invasere. Pars dolere pro gloria imperii, pars insolita rerum bellicarum timere libertati,^[234] Aulo omnes infesti, ac maxime, qui bello saepe praeclari fuerant, quod armatus dedecore potius quam manu salutem quaesiverat. Ob ea consul Albinus ex delicto fratris invidiam ac deinde periculum timens, senatum de foedere consulebat, et tamen interim exercitui supplementum scribere, ab sociis et nomine Latino^[235] auxilia accersere, denique omnibus modis festinare. Senatus ita, uti par fuerat, decernit, suo atque populi injussu nullum potuisse foedus fieri. Consul impeditus a tribunis plebis, ne, quas paraverat copias, secum portaret, paucis diebus in Africam proficiscitur; nam omnis exercitus, uti convenerat, Numidia deductus, in provincia hiemabat. Postquam eo venit, quamquam persequi Jugurtham et mederi fraternae invidiae animo ardebat, cognitis militibus, quos praeter fugam, soluto imperio, licentia atque lascivia corruperat, ex copia rerum^[236] statuit sibi nihil agitandum.

40. Interim Romae C. Mamilius Limetanus tribunus plebis rogationem ad populum promulgat, uti quaereretur in eos, quorum consilio Jugurtha senati decreta neglexisset,^[237] quique ab eo in legationibus aut imperiis pecunias accepissent, qui elephantos quique perfugas tradidissent, item qui de pace aut bello cum

hostibus pactiones fecissent. Huic rogationi partim conscii sibi, alii ex partium invidia pericula metuentes, quoniam aperte resistere non poterant, quin illa et alia talia placere sibi faterentur,^[238] occulte per amicos ac maxime per homines nominis Latini et socios Italicos impedimenta parabant. Sed plebes incredibile memoratu est, quam intenta fuerit quantaque vi rogationem jussert, decreverit, voluerit: magis odio nobilitatis, cui mala illa parabantur, quam cura rei publicae; tanta libido in partibus erat. Igitur ceteris metu percussis, M. Scaurus, quem legatum Bestiae fuisse supra docuimus, inter laetitiam plebis et suorum fugam, trepida etiamtum civitate quum ex Mamili regatione tres quaesitores rogarentur, effecerat, uti ipse in eo numero crearetur.^[239] Sed quaestio exercita aspere violenterque ex^[240] rumore et libidine plebis; ut saepe nobilitatem, sic ea tempestate plebem ex secundis rebus insolentia ceperat.

41. Ceterum mos partium popularium et senatus factionum,^[241] ac deinde omnium malarum artium paucis ante annis Romae ortus est otio atque abundantia earum rerum, quae prima mortales ducunt.^[242] Nam ante Carthaginem deletam populus et senatus Romanus placide modesteque inter se rem publicam tractabant, neque gloriae neque dominationis certamen inter cives erat; metus hostilis in bonis artibus civitatem retinebat. Sed ubi illa formido mentibus decessit, scilicet^[243] ea, quae res secundae amant, lascivia atque superbia incessere. Ita, quod in adversis rebus optaverant otium, postquam adepti sunt, asperius acerbisque fuit. Namque coepere nobilitas dignitatem, populus libertatem in libidinem vertere, sibi quisque ducere, trahere, rapere. Ita omnia in duas partes abstracta sunt, res publica, quae media fuerat, dilacerata. Ceterum nobilitas factione

magis pollebat, plebis vis soluta atque dispersa in multitudine minus poterat. Paucorum arbitrio belli domique agitabatur, penes eosdem aerarium, provinciae, magistratus, gloriae triumphique erant; populus militia atque inopia urgebatur; praedas bellicas imperatores cum paucis diripiebant; interea parentes aut parvi liberi militum, uti quisque potentiori confinis erat, sedibus pellebantur.^[244] Ita cum potentia avaritia sine modo modestiaque invadere, polluere et vastare omnia, nihil pensi neque sancti habere, quoad semet ipsa praecipitavit. Nam ubi primum ex nobilitate reperti sunt, qui veram gloriam injustae potentiae anteponerent, moveri civitas et dissensio civilis quasi permixtio terrae^[245] oriri coepit.

42. Nam postquam Tiberius et G. Gracchus, quorum maiores Punico atque aliis bellis multum rei publicae addiderant, vindicare plebem in libertatem et paucorum scelera patefacere coepere, nobilitas noxia atque eo perculsa, modo per socios ac nomen Latinum, interdum per equites Romanos, quos spes societatis a plebe dimoverat, Gracchorum actionibus obviam ierat, et primo Tiberium, dein paucos post annos eadem ingredientem Gaium, tribunum alterum, alterum triumvirum coloniis deducendis, cum M. Fulvio Flacco ferro necaverat.^[246] Et sane Gracchis cupidine victoriae haud satis moderatus animus fuit: sed bono vinci satius est quam malo more injuriam vincere.^[247] Igitur ea victoria nobilitas ex libidine sua usa multos mortales ferro aut fuga extinxit, plusque in reliquum sibi timoris quam potentiae addidit. Quae res plerumque magnas civitates pessumdedit, dum alteri alteros vincere quovis modo et victos acerbius^[248] ulcisci volunt. Sed de studiis partium et omnis civitatis moribus si singulatim aut pro magnitudine parem disserere,

tempus quam res maturius me deseret.^[249] Quamobrem ad inceptum redeo.

43. Post Auli foedus exercitusque nostri foedam fugam, Metellus et Silanus consules designati,^[250] provincias inter se partiverant, Metelloque Numidia evenerat, acri viro et quamquam adverso populi partium,^[251] fama tamen aequabili et inviolata. Is ubi primum magistratum ingressus est, alia omnia sibi cum collega ratus, ad bellum, quod gesturus erat, animum intendit.^[252] Igitur diffidens veteri exercitui, milites scribere, praesidia^[253] undique accersere, arma, tela, equos et cetera instrumenta militiae parare, ad hoc commeatum affatim, denique omnia, quae in bello vario et multarum rerum egenti usui esse solent. Ceteram ad ea patranda senatus auctoritate, socii nomenque Latinum et reges ultro auxilia mittendo, postremo omnis civitas summo studio adnitebatur. Itaque ex sententia omnibus rebus paratis compositisque, in Numidiam proficiscitur, magna spe civium, quum propter artes bonas, tum maxime, quod adversum divitias invictum animum gerebat, et avaritia magistratuum ante id tempus in Numidia nostrae opes contusae^[254] hostiumque auctae erant.

44. Sed ubi in Africam venit, exercitus ei traditur a Sp. Albino pro consule iners, imbellis, neque periculi neque laboris patiens, lingua quam manu promptior, praedator^[255] ex sociis et ipse praeda hostium, sine imperio et modestia habitus. Ita imperatori novo plus ex malis moribus sollicitudinis quam ex copia militum auxilii aut spei bonae accedebat. Statuit tamen Metellus, quamquam et aestivorum tempus^[256] comitiorum mora imminuerat, et expectatione eventus civium animos intentos putabat, non prius bellum attingere quam

majorum disciplina milites laborare coëgisset. Nam Albinus, Auli fratris exercitusque clade percussus, postquam decreverat non egredi provincia, quantum temporis aestivorum in imperio fuit,^[257] plerumque milites stativis castris habebat, nisi quum odos^[258] aut pabuli egestas locum mutare subegerat. Sed neque muniebantur ea, neque more militari vigiliae deducebantur; uti cuique libebat, ab signis aberat: lixae permixti cum militibus die noctuque vagabantur; palantes agros vastare, villas expugnare, pecoris et mancipiorum praedas certantes agere, eaque mutare cum mercatoribus^[259] vino advectitio et aliis talibus; praeterea frumentum publice datum vendere, panem in dies mercari; postremo, quaecunque dici aut fingi queunt ignaviae luxuriaequae probra, ea in illo exercitu cuncta fuere et alia amplius.

45. Sed in ea difficultate Metellum non minus quam in rebus hostilibus magnum et sapientem virum fuisse comperior; tanta temperantia inter ambitionem^[260] saevitiamque moderatum: namque edicto primum adjumenta ignaviae sustulisse, ne quisquam in castris panem aut quem alium coctum cibum venderet, ne lixae exercitum sequerentur, ne miles gregarius in castris neve in agmine servum aut jumentum haberet; ceteris arte modum statuisse.^[261] Praeterea transversis itineribus cotidie castra movere, juxta ac si hostes adessent, vallo atque fossa munire, vigiliis crebras ponere et eas ipse cum legatis circumire, item in agmine in primis modo, modo in postremis, saepe in medio adesse, ne quisquam ordine egrederetur, uti cum signis frequentes incederent, miles cibum et arma portaret. Ita prohibendo a delictis magis quam vindicando exercitum brevi confirmavit.

46. Interea Jugurtha, ubi quae Metellus agebat ex nuntiis accepit, simul de innocentia ejus certior Romae factus, diffidere suis rebus ac tum demum veram deditionem facere conatus est. Igitur legatos ad consulem cum suppliciis^[262] mittit, qui tantummodo ipsi liberisque vitam peterent, alia omnia dederent populo Romano. Sed Metello jam antea experimentis cognitum erat genus Numidarum infidum, ingenio mobili, novarum rerum avidum esse. Itaque legatos alium ab alio diversos aggreditur,^[263] ac paulatim temptando, postquam opportunos sibi cognovit, multa pollicendo persuadet, uti Jugurtham maxime^[264] vivum, sin id parum procedat, necatum sibi traderent; ceterum palam, quae ex voluntate forent,^[265] regi nuntiari jubet. Deinde ipse paucis diebus intento atque infesto exercitu in Numidiam procedit, ubi contra belli faciem tuguria plena hominum, pecora cultoresque in agris erant; ex oppidis et mapalibus praefecti regis obvii procedebant, parati frumentum dare, commeatum portare, postremo omnia, quae imperarentur, facere. Neque Metellus idcirco minus, sed pariter ac si hostes adessent, munito agmine incedere, late explorare omnia, illa deditionis signa ostentui credere et insidiis locum temptari. Itaque ipse cum expeditis cohortibus, item funditorum et sagittariorum delecta manu apud primos erat, in postremo G. Marius legatus cum equitibus curabat, in utrumque latus auxilios equites tribunis legionum et praefectis cohortium dispertiverat, ut cum his permixti velites, quocunque accederent equitatus^[266] hostium, propulsarent. Nam in Jugurtha tantus dolus tantaque peritia locorum et militiae erat, ut absens an praesens, pacem an bellum gerens perniciosior esset, in incerto haberetur.

47. Erat haud longe ab eo itinere, quo Metellus pergebat, oppidum Numidarum, nomine Vaga, forum rerum venalium totius regni maxime celebratum,^[267] ubi et incolere et mercari consueverant Italici generis multi mortales. Huc consul simul temptandi gratia, et si paterentur, opportunitate loci, praesidium imposuit,^[268] praeterea imperavit frumentum et alia, quae bello usui forent, comportare,^[269] ratus id quod res monebat, frequentiam negotiatorum et commeatum juvaturum exercitum et jam paratis rebus munimento fore. Inter haec negotia Jugurtha impensius modo^[270] legatos supplices mittere, pacem orare, praeter suam liberorumque vitam omnia Metello dedere. Quos item, uti priores, consul illectos ad prodicionem domum dimittebat, regi pacem quam postulabat neque abnuere neque polliceri et inter eas moras promissa legatorum exspectare.

48. Jugurtha ubi Metelli dicta cum factis composuit ac se suis artibus temptari animadvertit, quippe cui verbis pax nuntiabatur, ceterum re bellum asperrimum erat, urbs maxima alienata, ager hostibus cognitus, animi popularium temptati, coactus rerum necessitudine statuit armis certare. Igitur explorato hostium itinere, in spem victoriae adductus ex opportunitate loci, quam maximas potest copias omnium generum parat ac per tramites occultos exercitum Metelli antevenit.^[271] Erat in ea parte Numidiae, quam Adherbal in divisione possederat, flumen oriens a meridie, nomine Muthul; a quo aberat mons ferme milia passuum viginti tractu pari,^[272] vastus ab natura et humano cultu. Sed ex eo medio quasi collis oriebatur, in immensum pertingens,^[273] vestitus oleastro ac murtetis aliisque generibus arborum, quae humi arido atque arenoso^[274] gignuntur.

Media autem planities deserta penuria aquae, praeter flumini propinqua loca; ea consita arbustis, pecore atque cultoribus frequentabantur.

49. Igitur in eo colle, quem transverso itinere porrectum docuimus, Jugurtha, extenuata suorum acie,^[275] consedit, elephantis et parti copiarum pedestrium Bomilcarem praefecit eumque edocet, quae ageret; ipse propior montem^[276] cum omni equitatu et peditibus delectis suos collocat. Dein singulas turmas et manipulos circumiens monet atque obtestatur, uti memores pristinae virtutis et victoriae sese regnumque suum ab Romanorum avaritia defendant; cum iis certamen fore, quos antea victos sub jugum miserint; ducem illis, non animum mutatum; quae ab imperatore decuerint,^[277] omnia suis provisa, locum superiorem, ut prudentes cum imperitis, ne pauciores cum pluribus aut rudes cum bello melioribus manum consererent; proinde parati intentique essent signo dato Romanos invadere; illum diem aut omnes labores et victorias confirmaturum, aut maximarum aerumnarum initium fore. Ad hoc viritim, uti quemque ob militare facinus pecunia aut honore extulerat, commonefacere beneficii sui et eum ipsum aliis ostentare; postremo pro cujusque ingenio pollicendo, minitando, obtestando, alium alio modo excitare; quum interim Metellus, ignarus hostium, monte degrediens cum exercitu conspicitur,^[278] primo dubius, quidnam insolita facies ostenderet (nam inter virgulta equi Numidaeque consederant, neque plane occultati humilitate arborum, et tamen incerti,^[279] quidnam esset, cum natura loci tum dolo ipsi atque signa militaria obscurati); dein, brevi cognitis insidiis paulisper agmen constituit. Ibi commutatis ordinibus,^[280] in dextero latere, quod proximum hostes erat, triplicibus subsidiis

aciem instruxit, inter manipulos funditores et sagittarios dispertit, equitatum omnem in cornibus locat, ac pauca pro tempore milites hortatus aciem, sicuti instruxerat, transversis principiis^[281] in planum deducit.

50. Sed ubi Numidas quietos neque colle degredi animadvertit, veritus ex anni tempore et inopia aquae, ne siti conficeretur exercitus, Rutilium legatum cum expeditis cohortibus et parte equitum praemisit ad flumen, uti locum castris antecaperet, existimans hostes crebro impetu et transversis proeliis^[282] iter suum remoratorios, et quoniam armis diffiderent, lassitudinem et sitim militum temptaturos.^[283] Deinde ipse pro re atque loco, sicuti monte descenderat, paulatim procedere, Marium post principia habere, ipse cum sinistrae alae equitibus esse, qui in agmine principes facti erant.

^[284] At Jugurtha, ubi extremum agmen Metelli primos suos praetergressum videt, praesidio quasi duum milium peditum montem occupat, qua Metellus descenderat, ne forte cedentibus adversariis receptui ac post munimento foret; dein repente signo dato hostes invadit. Numidae alii postremos caedere, pars a sinistra ac dextera temptare, infensi adesse atque instare, omnibus locis Romanorum ordines conturbare, quorum etiam qui firmioribus animis obvii hostibus fuerant, ludificati incerto proelio, ipsi modo eminus sauciabantur, neque contra feriundi aut conserendi manum copia erat; ante jam docti ab Jugurtha equites, ubicunque Romanorum turma insequi coeperat, non confertim neque in unum sese recipiebant, sed alius alio quam maxime diversi. Ita numero priores,^[285] si ab persequendo hostes deterrere nequiverant, disiectos ab tergo aut lateribus circumveniebant; sin opportunior fugae collis

quam campi fuerat, ea^[286] vero consueti Numidarum equi facile inter virgulta evadere; nostros asperitas et insolentia loci retinebat.

51. Ceterum facies totius negotii varia, incerta, foeda atque miserabilis; dispersi a suis pars cedere, alii insequi, neque signa neque ordines observare, ubi quemque periculum ceperat, ibi resistere ac propulsare, arma tela,^[287] equi viri, hostes atque cives permixti, nihil consilio neque imperio agi, fors omnia regere: itaque multum diei processerat, quum etiamtum eventus in incerto erat. Denique omnibus labore et aestu languidis, Metellus ubi videt Numidas minus instare, paulatim milites in unum conducit, ordines restituit et cohortes legionarias quatuor adversum pedites hostium collocat. Eorum magna pars superioribus locis fessa consederat. Simul orare, hortari milites, ne deficerent, neu paterentur hostes fugientes vincere; neque illis^[288] castra esse neque munimentum ullum, quo cedentes tenderent, in armis omnia sita. Sed ne Jugurtha quidem interea quietus erat; circumire, hortari, renovare proelium et ipse cum delectis temptare omnia, subvenire suis, hostibus dubiis instare, quos firmos cognoverat, eminus pugnando retinere.

52. Eo modo inter se duo imperatores, summi viri certabant, ipsi pares, ceterum opibus disparibus. Nam Metello virtus militum erat, locus adversus, Jugurthae alia omnia praeter milites opportuna. Denique Romani, ubi intelligunt neque sibi perfugium esse neque ab hoste copiam pugnandi fieri (et jam diei^[289] vesper erat) adverse colle, sicuti praeceptum fuerat, evadunt. Amisso loco Numidae fusi fugatique; pauci interiire, plerosque velocitas et regio hostibus ignara tutata sunt.^[290] Interea Bomilcar, quem elephantis et parti

copiarum pedestrium praefectum ab Jugurtha supra diximus, ubi cum Rutilius praetergressus est, paulatim suos in aequum locum deducit ac, dum legatus ad flumen, quo praemissus erat, festinans pergit, quietus, uti res postulabat, aciem exornat, neque remittit, quid ubique hostis ageret,^[291] explorare. Postquam Rutilium consedissee jam et animo vacuum accepit, simulque ex Jugurthae proelio clamorem augeri, veritus, ne legatus cognita re laborantibus suis auxilio foret, aciem, quam diffidens virtuti militum arte statuerat,^[292] quo hostium itineri officeret, latius porrigit, eoque modo ad Rutillii castra procedit.

53. Romani ex improvise pulveris vim magnam animadvertunt; nam prospectum ager arbustis consitus prohibebat. Et primo rati humum aridam vento agitari, post ubi aequabilem manere et, sicuti acies movebatur, magis magisque appropinquare vident, cognita re properantes arma capiunt ac pro castris, sicuti imperabatur, consistunt. Deinde, ubi propius ventum est, utrimque magno clamore concurritur. Numidae tantummodo remorati, dum in elephantis auxilium putant,^[293] postquam eos impeditos ramis arborum atque ita disiectos circumveniri vident, fugam faciunt ac plerique abjectis armis collis aut noctis quae jam aderat auxilio integri abeunt. Elephantis quatuor capti, reliqui omnes numero quadraginta interfecti. At Romani, quamquam itinere atque opere castrorum et proelio fessi lassique^[294] erant, tamen, quod Metellus amplius opinione morabatur, instructi intentique obviam procedunt. Nam dolus Numidarum nihil languidi neque remissi patiebatur. Ac primo, obscura nocte, postquam haud procul inter se erant, strepitu, velut hostes adventarent,^[295] alteri apud alteros formidinem simul et tumultum

facere, et paene imprudentia admissum^[296] facinus miserabile, ni utrimque praemissi equites rem exploravissent. Igitur pro metu repente gaudium exortum, milites alius alium laeti appellant, acta edocent atque audiunt, sua quisque fortia facta ad coelum fert. Quippe res humanae ita sese habent: in victoria vel ignavis gloriari licet, adversae res etiam bonos detractant.^[297]

54. Metellus in iisdem castris quadriduo^[298] moratus, saucios cum cura reficit, meritos in proeliis more militiae donat, universos in contione laudat atque agit gratias; hortatur ad cetera, quae levia sunt,^[299] parem animum gerant; pro victoria satis jam pugnatum, reliquos labores pro praeda fore. Tamen interim transfugas et alios opportunos, Jugurtha ubi gentium^[300] aut quid agitare, cum paucisne esset, an exercitum haberet, ut sese victus gereret, exploratum misit. At ille sese in loca saltuosa et natura munita receperat, ibique cogebat exercitum numero hominum ampliorem, sed hebetem infirmumque, agri ac pecoris magis quam belli cultorem.^[301] Id ea gratia^[302] eveniebat, quod praeter regios equites nemo omnium Numidarum ex fuga regem sequitur; quo cujusque animus fert, eo discedunt, neque id flagitium militiae ducitur; ita se mores habent. Igitur Metellus ubi videt etiamtum regis animum ferocem esse, bellum renovari, quod nisi ex illius libidine geri non posset,^[303] praeterea iniquum certamen sibi cum hostibus, minore detrimento illos vinci quam suos vincere, statuit non proeliis neque in acie, sed alio more bellum gerendum. Itaque in Numidiae loca opulentissima pergit, agros vastat, multa castella et oppida temere^[304] munita aut sine praesidio capit incenditque; puberes interfici jubet, alia omnia

militum praedam esse. Ea formidine multi mortales Romanis dediti obsides; frumentum et alia, quae usui forent, affatim praebita, ubicunque res postulabat, praesidium impositum. Quae negotia multo magis quam proelium male pugnatum ab suis, regem terrebant; quippe cui spes omnis in fuga sita erat, sequi cogeatur, et qui sua loca^[305] defendere nequiverat, in alienis bellum gerere. Tamen ex copia^[306] quod optimum videbatur consilium capit, exercitum plerumque in iisdem locis opperiri jubet, ipse cum delectis equitibus Metellum sequitur, nocturnis et aviis itineribus ignoratus Romanos palantes repente aggreditur. Eorum plerique inermes cadunt, multi capiuntur, nemo omnium intactus profugit, et Numidae, priusquam ex castris subveniretur, sicuti jussi erant, in proximos colles discedunt.

55. Interim Romae gaudium ingens ortum cognitis Metelli rebus, ut seque et exercitum more majorum gereret, in adverso loco victor tamen virtute fuisset hostium agro potiretur, Jugurtham magnificum^[307] ex Auli socordia spem salutis in solitudine aut fuga coëgisset habere. Itaque senatus ob ea felicitur acta dis immortalibus supplicia^[308] decernere, civitas trepida antea et sollicita de belli eventu laeta agere, fama de Metello praeclara esse. Igitur eo intentior ad victoriam niti, omnibus modis festinare, cavere tamen, necubi^[309] hosti opportunus fieret, meminisse post gloriam invidiam sequi. Ita quo clarior, eo magis anxius erat, neque post insidias Jugurthae^[310] effuso exercitu praedari; ubi frumento aut pabulo opus erat, cohortes cum omni equitatu praesidium agitabant; exercitus partem ipse, reliquos Marius ducebat. Sed igni magis quam praeda ager vastabatur. Duobus locis haud longe inter se castra faciebant;

ubi vi opus erat, cuncti aderant; ceterum, quo fuga atque formido latius cresceret, diversi agebant. Eo tempore Jugurtha per colles sequi, tempus aut locum pugnae quaerere; qua venturum hostem audierat, pabulum et aquarum fontes, quorum penuria erat, corrumpere; modo se Metello, interdum Mario ostendere, postremo in agmine temptare ac statim in colles regredi, rursus aliis, post aliis minitari, neque proelium facere neque otium pati, tantummodo hostem ab incepto retinere.

56. Romanus imperator ubi se dolis fatigari videt neque ab hoste copiam pugnandi fieri, urbem magnam et in ea parte qua sita erat arcem regni, nomine Zamam,^[311] statuit oppugnare, ratus id quod negotium poscebat Jugurtham laborantibus suis auxilio venturum ibique proelium fore. At ille, quae parabantur a perfugis edoctus, magnis itineribus Metellum antevenit, oppidanos hortatur, moenia defendant, additis auxilio perfugis, quod genus ex copiis regis, quia fallere nequibat, firmissimum erat. Praeterea pollicetur in tempore^[312] semet cum exercitu affore. Ita compositis rebus in loca quam maxime occulta discedit ac post paulo cognoscit Marium ex itinere frumentatum cum paucis cohortibus Siccam missum, quod oppidum primum omnium post malam pugnam ab rege defecerat. Eo cum delectis equitibus noctu pergit et jam egredientibus Romanis in porta pugnam facit; simul magna voce Siccenses hortatur, uti cohortes ab tergo circumveniant; fortunam illis praeclari facinoris casum dare; si id fecerint, postea sese in regno, illos in libertate sine metu aetatem acturos. Ac ni Marius signa inferre atque evadere oppido properavisset, profecto cuncti aut magna pars Siccensium fidem mutavissent; tanta mobilitate sese Numidae agunt. Sed milites

Jugurthini paulisper ab rege sustentati, postquam majore vi hostes urgunt, paucis amissis profugi discedunt.

57. Marius ad Zamam pervenit; id oppidum in campo situm, magis opere quam natura munitum erat, nullius idoneae rei egens, armis virisque opulentum. Igitur Metellus pro tempore atque loco paratis rebus cuncta moenia exercitu circumvenit, legatis imperat, ubi quisque curaret. Deinde signo dato undique simul clamor ingens oritur; neque ea res Numidas terret, infensi intentique sine tumultu manent; proelium incipitur. Romani, pro ingenio quisque, pars eminus glande aut lapidibus pugnare; alii succedere ac murum modo suffodere, modo scalis aggredi, cupere proelium in manibus facere.

[\[313\]](#) Contra ea oppidani in proximos saxa volvere, sudes, pila, praeterea pice et sulfure taedam mixtam ardentem [\[314\]](#) mittere. Sed ne illos quidem, qui procul manserant, timor animi satis muniverat; nam plerosque jacula tormentis aut manu emissa vulnerabant, parique periculo, sed fama impari, boni atque ignavi erant.

58. Dum apud Zamam sic certatur, Jugurtha ex improvviso castra hostium cum magna manu invadit, remissis, qui in praesidio erant, [\[315\]](#) et omnia magis quam proelium expectantibus, portam irrumpit. At nostri, repentino metu perculsi, sibi quisque pro moribus consulunt; alii fugere, alii arma capere, magna pars vulnerati aut occisi. Ceterum ex omni multitudine non amplius quadraginta memores nominis Romani grege facto locum cepere paulo quam alii editiorem, neque inde maxima vi depelli quiverunt, sed tela eminus missa remittere, pauci in pluribus minus frustrari; [\[316\]](#) sin Numidae propius accessissent, ibi vero [\[317\]](#) virtutem ostendere et eos maxima vi

caedere, fundere atque fugare. Interim Metellus quum accerrime rem gereret, clamorem hostilem a tergo accepit, dein converso equo animadvertit fugam ad se versum fieri, quae res indicabat populares esse. Igitur equitatum omnem ad castra propere mittit, ac statim G. Marium cum cohortibus sociorum, eumque lacrimans per amicitiam perque rem publicam obsecrat, ne quam contumeliam remanere in exercitu victore neve hostes inultos abire sinat. Ille brevi mandata efficit. At Jugurtha munimento castrorum impeditus, quum alii super vallum praecipitarentur, alii in angustiis ipsi sibi properantes officerent, multis amissis in loca munita sese recepit. Metellus, infecto negotio, postquam nox aderat, in castra cum exercitu revertitur.

59. Igitur postero die, prius quam ad oppugnandum egrederetur, equitatum omnem in ea parte, qua regis adventus erat, pro castris agitare jubet, portas et proxima loca tribunis dispertit, deinde ipse pergit ad oppidum atque uti superiore die murum aggreditur. Interim Jugurtha ex occulto repente nostros invadit; qui in proximo locati fuerant, paulisper territi perturbantur, reliqui cito subveniunt. Neque diutius Numidae resistere quivissent, ni pedites cum equitibus permixti magnam cladem in congressu facerent;^[318] quibus illi freti, non uti equestri proelio solet, sequi, dein cedere, sed adversis equis concurrere, implicare ac perturbare aciem; ita expeditis peditibus suis hostes paene victos dare.

60. Eodem tempore apud Zamam magna vi certabatur. Ubi quisque legatus aut tribunus curabat, eo acerrime niti,^[319] neque alius in alio magis quam in sese^[320] spem habere: pariterque oppidani agere; oppugnare aut parare omnibus locis, avidius alteri alteros sauciare

quam semet tegere, clamor permixtus hortatione, laetitia, gemitu, item strepitus armorum ad coelum ferri, tela utrimque volare. Sed illi, qui moenia defensabant, ubi hostes paulum modo pugnam remiserant, intenti proelium equestre prospectabant, eos, uti quaeque Jugurthae res erant, laetos modo, modo pavidos animadverteres,^[321] ac, sicuti audiri a suis aut cerni possent,^[322] monere alii, alii hortari aut manu significare aut niti corporibus,^[323] et ea huc et illuc quasi vitabundi aut jacentes tela agitare. Quod ubi Mario cognitum est (nam is in ea parte curabat) consulto lenius agere ac diffidentiam rei simulare, pati Numidas sine tumultu^[324] regis proelium visere. Ita illis studio suorum astrictis,^[325] repente magna vimurum aggreditur, et jam scalis egressi milites prope summa ceperant, quum oppidani concurrunt, lapides, ignem, alia praeterea tela ingerunt. Nostri primo resistere, deinde, ubi unae atque alterae scalae comminutae, qui supersteterant, afflicti sunt, ceteri, quoquo modo potuere, pauci integri, magna pars vulneribus confecti abeunt. Denique utrimque proelium nox diremit.

61. Metellus, postquam videt frustra inceptum neque oppidum capi, neque Jugurtham nisi ex insidiis aut suo loco pugnam facere, et jam aestatem exactam esse, ab Zama discedit et in iis urbibus, quae ad se^[326] defecerant, satisque munitae loco aut moenibus erant, praesidia imponit; ceterum exercitum in provinciam, quae proxima est Numidiae, hiemandi gratia collocat. Neque id tempus ex aliorum more quieti aut luxuriae concedit, sed quoniam armis bellum parum procedebat, insidias regi per amicos tendere et eorum perfidia pro armis uti parat. Igitur Bomilcarem, qui Romae cum Jugurtha fuerat et inde vadibus datis clam Massivae de nece iudicium fugerat, quod ei

per maximam amicitiam maxima copia fallendi erat, multis pollicitationibus aggreditur. Ac primo efficit, uti ad se colloquendi gratia occultus veniat, dein fide data, si Jugurtham vivum aut necatum sibi tradidisset, fore, ut illi senatus impunitatem et sua omnia concederet, facile Numidae persuadet, cum ingenio infido,^[327] tum metunti, ne, si pax cum Romanis fieret, ipse per condiciones ad supplicium traderetur.

62. Is, ubi primum opportunum fuit, Jugurtham anxium ac miserantem fortunas suas accedit; monet atque lacrimans obtestatur, uti aliquando sibi liberisque et genti Numidarum optime merenti provideat, omnibus proeliis sese victos, agrum vastatum, multos mortales captos, occisos, regni opes comminutas esse; satis saepe jam et virtutem militum et fortunam temptatam; caveat, ne illo^[328] cunctante Numidae sibi consulant. His atque talibus aliis ad deditionem regis animum impellit. Mittuntur ad imperatorem legati, qui Jugurtham imperata facturum dicerent ac sine ulla pactione sese regnumque suum in illius fidem tradere. Metellus propere cunctos senatorii ordinis ex hibernis accersi jubet, eorum atque aliorum, quos idoneos ducebat, consilium habet. Ita more majorum^[329] ex consilii decreto per legates Jugurthae imperat argenti pondo^[330] ducenta milia, elephantos omnes, equorum et armorum aliquantum. Quae postquam sine mora facta sunt, jubet omnes perfugas vinctos adduci; eorum magna pars, uti jussum erat, adducti, pauci, quum primum deditio coepit, ad regem Bocchum in Mauretaniam abierant. Igitur Jugurtha, ubi armis virisque et pecunia spoliatus est, quum ipse ad imperandum Tisidium vocaretur,^[331] rursus coepit flectere animum suum et ex mala conscientia digna^[332] timere. Denique

multis diebus per dubitationem consumptis quum modo taedio rerum adversarum omnia bello potiora duceret, interdum secum ipse reputaret, quam gravis casus in servitium ex regno foret, multis magnisque praesidiis nequidquam perditis, de integro bellum sumit. Et Romae senatus de provinciis consultus Numidiam Metello decreverat.^[333]

63. Per idem tempus Uticae forte G. Mario per hostias dis supplicanti, magna atque mirabilia portendi haruspex dixerat; proinde, quae animo agitabat,^[334] fretus dis ageret, fortunam quam saepissime experiretur, cuncta prospere eventura. At illum jam antea consulatus ingens cupido exagitabat, ad quem capiundum praeter vetustatem familiae alia omnia abunde erant,^[335] industria, probitas militiae magna scientia, animus belli^[336] ingens, domi modicus, libidinis et divitiarum victor, tantummodo gloriae avidus. Sed is natus et omnem pueritiam Arpini altus,^[337] ubi primum aetas militiae patiens fuit, stipendiis faciundis, non Graeca facundia neque urbanis munditiis sese exercuit; ita inter artes bonas integrum ingenium brevi adolevit. Ergo ubi primum tribunatum militarem a populo petit, plerisque faciem ejus ignorantibus,^[338] facile notus per omnes tribus declaratur. Deinde ab eo magistratu alium post alium sibi peperit, semperque in potestatibus eo modo agitabat, ut ampliore quam gerebat dignus haberetur. Tamea is ad id locorum^[339] talis vir (nam postea ambitione praeceps datus est) consulatum appetere non audebat. Etiamtum alios magistratus plebes, consulatum nobilitas inter se per manus tradebat.^[340] Novus nemo tam clarus neque tam

egregiis factis erat, quin is indignus illo honore et quasi pollutus haberetur.

64. Igitur ubi Marius haruspices dicta eodem intendere videt, quo cupido animi hortabatur, ab Metello petundi gratia missionem^[341] rogat. Cui quamquam virtus, gloria atque alia optanda bonis superabant,^[342] tamen inerat contemptor animus et superbia, commune nobilitatis malum. Itaque primum commotus insolita re mirari ejus consilium et quasi per amicitiam monere, ne tam prava inciperet neu super fortunam animum gereret; non omnia omnibus cupiunda esse; debere illi res suas satis placere; postremo caveret id petere a populo Romano, quod illi jure negaretur. Postquam haec atque alia talia dixit neque animus Marii flectitur, respondit, ubi primum potuisset per negotia publica,^[343] facturum sese, quae peteret. Ac postea saepius eadem postulanti fertur dixisse, ne festinaret abire; satis mature illum cum filio suo consulatum petiturum. Is eo tempore contubernio patris^[344] ibidem militabat, annos natus circiter viginti; quae res Marium cum pro^[345] honore, quem affectabat, tum contra Metellum vehementer accenderat. Ita cupidine atque ira, pessimis consultoribus, grassari,^[346] neque facto ullo neque dicto abstinere, quod modo ambitiosum^[347] foret, milites, quibus in hibernis praeerat, laxiore imperio quam antea habere, apud negotiatores, quorum magna multitudo Uticae erat, criminose, simul et magnifice de bello loqui, dimidia pars exercitus si sibi permetteretur, paucis diebus Jugurtham in catenis habiturum; ab imperatore consulto trahi, quod homo inanis^[348] et regiae superbiae imperio nimis gauderet. Quae omnia illis eo firmiora videbantur, quod

diuturnitate belli res familiares corruperant et animo cupienti nihil satis festinatur.

65. Erat praeterea in exercitu nostro Numida quidam, nomine Gauda, Mastanabalis filius, Masinissae nepos, quem Micipsa testamento secundum heredem^[349] scripserat, morbis confectus et ob eam causam mente paulum imminuta. Cui Metellus petenti more regum ut sellam juxta poneret, item postea custodiae causa turmam equitum Romanorum, utrumque negaverat, honorem, quod eorum modo foret, quos populus Romanus reges appellavisset, praesidium, quod contumeliosum in eos^[350] foret, si equites Romani satellites Numidae traderentur. Hunc Marius anxium aggreditur atque hortatur, ut contumeliarum imperatori^[351] cum suo auxilio poenas petat; hominem ob morbos animo parum valido secunda oratione extollit: illum regem, ingentem virum, Masinissae nepotem esse; si Jugurtha captus aut occisus foret, imperium Numidiae sine mora habiturum; id adeo^[352] mature posse evenire, si ipse consul ad id bellum missus foret. Itaque et illum et equites Romanes, milites et negotiatores^[353] alios ipse, plerosque pacis spes impellit, uti Romam ad suos necessarios aspere in Metellum de bello scribant, Marium imperatorem poscant. Sic illi a multis mortalibus honestissima suffragatione^[354] consulatus petebatur; simul ea tempestate plebes, nobilitate fusa per legem Mamiliam,^[355] novos extollebat. Ita Mario cuncta procedere.

66. Interim Jugurtha postquam omissa deditione bellum incipit, cum magna cura parare omnia, festinare, cogere exercitum, civitates, quae ab se defecerant, formidine aut ostentando praemia affectare,

[356] communire suos locos, arma, tela, aliaque, quae spe pacis amiserat, reficere aut commercari, servitia Romanorum allicere et eos ipsos, qui in praesidiis erant, pecunia temptare; prorsus nihil intactum neque quietum pati, cuncta agitare. Igitur Vagenses, quo Metellus initio, Jugurtha pacificante, praesidium imposuerat, fatigati regis suppliciis neque antea voluntate alienati, [357] principes civitatis inter se conjurant; nam vulgus, uti plerumque solet, et maxime Numidarum, ingenio mobili, seditiosum atque discordiosum [358] erat, cupidum novarum rerum, quieti et otio adversum. Dein, compositis inter se rebus, in diem tertium constituunt, quod is festus celebratusque per omnem Africam ludum et lasciviam magis quam formidinem ostentabat. [359] Sed ubi tempus fuit, centuriones tribunosque militares et ipsum praefectum oppidi, T. Turpilius Silanum, alius alium domos suas invitant; eos omnes praeter Turpilius inter epulas obtruncant; postea milites palantes, inermes, quippe in tali die [360] ac sine imperio, aggrediuntur. Idem plebes facit, pars edocti ab nobilitate, alii studio talium rerum incitati, quis acta consiliumque ignorantibus tumultus ipse et res novae satis placebant.

67. Romani milites, improvise metu incerti ignarique, quid potissimum facerent, trepidare; ad arcem oppidi, ubi signa et scuta erant, praesidium hostium; portae ante clausae fugam prohibebant; ad hoc mulieres puerique pro tectis aedificiorum [361] saxa et alia, quae locus praebebat, certatim mittere. Ita neque caveri anceps malum, [362] neque a fortissimis infirmissimo generi resisti posse; juxta boni malique, strenui et imbelles inulti obtruncari. In ea tanta asperitate, saevissimis Numidis et oppido undique clauso, Turpilius

praefectus unus ex omnibus Italicis intactus profugit; id misericordiane hospitis, an pactione aut casu ita evenerit, parum comperimus; nisi, quia illi in tanto malo turpis vita integra fama potior fuit, improbus intestabilisque videtur.^[363]

68. Metellus, postquam de rebus Vagae actis comperit, paulisper moestus e conspectu abit; deinde, ubi ira et aegritudo permixta sunt, cum maxima cura ultum ire injurias festinat. Legionem, cum qua hiemabat, et quam plurimos potest Numidas equites pariter cum occasu solis expeditos educit, et postera die circiter horam tertiam pervenit in quandam planitiem, locis paulo superioribus circumventam. Ibi milites fessos itineris magnitudine et jam abnuentes omnia^[364] docet oppidum Vagam non amplius mille passuum^[365] abesse, decere illos reliquum laborem aequo animo pati, dum pro civibus suis, viris fortissimis atque miserrimis, poenas caperent; praeterea praedam benigne ostentat. Sic animis eorum arrectis, equites in primo^[366] late, pedites quam artissime ire et signa occultare jubet.

69. Vagenses ubi animum advertere ad se versum exercitum pergere, primo, uti erat res, Metellum esse rati, portas clausere, deinde ubi neque agros vastari et eos, qui primi aderant, Numidas equites vident, rursum Jugurtham arbitrati cum magno gaudio obvii procedunt. Equites peditesque repente signo dato alii vulgum effusum oppido caedere, alii ad portas festinare, pars turres capere; ira atque praedae spes amplius quam lassitudo posse. Ita Vagenses biduum modo ex perfidia laetati; civitas magna et opulens cuncta poenae aut praedae fuit.^[367] Turpilius, quem praefectum oppidi unum

ex omnibus profugisse supra ostendimus, jussus a Metello causam dicere,^[368] postquam sese parum expurgat, condemnatus verberatusque capite poenas solvit; nam is civis ex Latio erat.

70. Per idem tempus Bomilcar, cujus impulsu Jugurtha deditionem, quam metu deseruit, inceperat, suspectus regi et ipse eum suspiciens, novas res cupere, ad perniciem ejus dolum quaerere, diu noctuque fatigare animum;^[369] denique omnia temptando, socium sibi adjungit Nabdalsam, hominem nobilem, magnis opibus, carum acceptumque popularibus suis, qui plerumque seorsum ab rege exercitum ductare et omnes res exequi solitus erat, quae Jugurthae fesso aut majoribus astricto superaverant;^[370] ex quo illi gloria opesque inventae. Igitur utriusque consilio dies insidiis statuitur; cetera, uti res posceret, ex tempore parari placuit; Nabdalsa ad exercitum profectus, quem inter hiberna Romanorum jussus habebat, ne ager inultis hostibus vastaretur.^[371] Is postquam magnitudine facinoris perculsus ad tempus non venit metusque rem impediabat,^[372] Bomilcar simul cupidus incepta patrandi et timore socii anxius, ne omisso vetere consilio novum quaereret,^[373] litteras ad eum per homines fideles mittit, in quibus mollitiem socordiamque viri accusare,^[374] testari deos, per quos juravisset, monere ne praemia Metelli in pestem converteret; Jugurthae exitium adesse; ceterum suane an virtute Metelli periret, id modo agitari;^[375] proinde reputaret cum animo suo, praemia an cruciatum mallet.

71. Sed quum hae litterae allatae,^[376] forte Nabdalsa exercito corpore fessus in lecto quiescebat, ubi cognitis Bomilcaris verbis primo cura,

deinde, uti aegrum animum solet,^[377] somnus cepit. Erat ei Numida quidam negotiorum curator, fidus acceptusque et omnium consiliorum nisi novissimi particeps. Qui postquam allatas litteras audivit, ex consuetudine ratus opera aut ingenio suo opus esse, in tabernaculum introiit, dormiente illo epistolam, super caput in pulvino temere positam, sumit ac perlegit, dein propere, cognitis insidiis, ad regem pergit. Nabdalsa post paulo experrectus ubi neque epistolam repperit^[378] et rem omnem, uti acta erat, cognovit, primo indicem persequi conatus, postquam id frustra fuit, Jugurtham placandi gratia accedit; dicit quae ipse paravisset facere perfidia clientis sui praeventa;^[379] lacrimans obtestatur per amicitiam perque sua antea fideliter acta, ne super^[380] tali scelere suspectum sese haberet.

72. Ad ea rex, aliter atque animo gerebat,^[381] placide respondit. Bomilcare aliisque multis, quos socios insidiarum cognoverat, interfectis iram oppresserat, ne qua ex eo negotio seditio oriretur. Neque post id locorum Jugurthae dies aut nox ulla quieta fuit, neque loco neque mortali cuiquam aut tempori satis credere, cives hostesque juxta metuere, circumspectare omnia et omni strepitu pavescere, alio atque alio loco saepe contra decus regium noctu requiescere, interdum somno excitus arreptis armis tumultum facere; ita formidine quasi vecordia exagitari.^[382]

73. Igitur Metellus, ubi de casu Bomilcaris et indicio patefacto^[383] ex perfugis cognovit, rursus tamquam ad integrum bellum cuncta parat festinatque. Marium, fatigantem de profectione, simul et invitum et offensum sibi parum idoneum ratus, domum dimittit. Et Romae plebes, litteris, quae de Metello ac Mario missae erant, cognitis,

volenti animo de ambobus acceperant.^[384] Imperatori nobilitas, quae antea decori, invidiae esse; at illi alteri generis humilitas favorem addiderat; ceterum in utroque magis studia partium quam bona aut mala sua moderata.^[385] Praeterea seditiosi magistratus vulgum exagitare, Metellum omnibus contionibus capitis arcessere,^[386] Marii virtutem in majus celebrare. Denique plebes sic accensa, uti opifices agrestesque omnes, quorum res fidesque^[387] in manibus sitae erant, relictis operibus frequentarent Marium^[388] et sua necessaria post illius honorem ducerent. Ita percussa nobilitate post multas tempestates novo homini consulatus mandatur, et postea populus a tribuno plebis Manlio Mancino rogatus, quem vellet cum Jugurtha bellum gerere, frequens Marium jussit. Sed senatus paulo ante Metello decreverat; ea res frustra fuit.^[389]

74. Eodem tempore Jugurtha amissis amicis, quorum plerosque ipse necaverat, ceteri formidine, pars ad Romanos, alii ad regem Bocchum^[390] profugerant, quum neque bellum geri sine administris posset, et novorum fidem in tanta perfidia veterum experiri periculosum duceret, varius incertusque agitabat. Neque illi res neque consilium aut quisquam hominum satis placebat; itinera praefectosque in dies mutare, modo adversum hostes, interdum in solitudines pergere, saepe in fuga ac post paulo in armis spem habere, dubitare, virtuti an fidei popularium minus crederet; ita quocunque intenderat, res adversae erant. Sed inter eas moras repente sese Metellus cum exercitu ostendit. Numidae ab Jugurtha pro tempore parati instructique; dein proelium incipitur. Qua in parte rex pugnae affuit, ibi aliquamdiu certatum, ceteri ejus omnes milites primo congressu pulsati fugatique. Romani signorum et armorum

aliquanto numero;^[391] hostium paucorum potiti; nam ferme Numidas in omnibus proeliis magis pedes quam arma tuta sunt.^[392]

75. Ea fuga Jugurtha impensius modo^[393] rebus suis diffidens cum perfugis et parte equitatus in solitudines, dein Thalam pervenit, in oppidum magnum atque opulentum, ubi plerique thesauri filiorumque ejus multus pueritiae cultus^[394] erat. Quae postquam Metello comperta sunt, quamquam inter Thalam flumenque proximum in spatio milium quinquaginta, loca arida atque vasta esse cognoverat, tamen spe patrandi belli, si ejus oppidi potitus foret, omnes asperitates supervadere ac naturam etiam vincere aggreditur. Igitur omnia jumenta sarcinis levare jubet nisi frumento dierum decem, ceterum utres modo et alia aquae idonea^[395] portare. Praeterea conquirat ex agris quam plurimum potest domiti pecoris, eoque imponit vasa cujusque modi, sed pleraque lignea, collecta ex tuguriis Numidarum. Ad hoc finitimis imperat, qui se post regis fugam Metello dederant, quam plurimum quisque aquae portaret; diem locumque, ubi praesto fuerint,^[396] praedicat. Ipse ex flumine, quam proximam oppido aquam esse supra diximus, jumenta onerat; eo modo instructus ad Thalam proficiscitur. Deinde ubi ad id loci ventum, quo Numidis praeceperat, et castra posita munitaque sunt, tauta repente coelo missa vis aquae dicitur, ut ea modo^[397] exercitui satis superque foret. Praeterea commeatus spe amplior, quia Numidae, sicuti plerique in nova deditione, officia intenderant. Ceterum milites religione pluvia magis usi, eaque res multum animis eorum addidit; nam rati sese dis immortalibus curae esse. Deinde postero die contra opinionem Jugurthae ad Thalam perveniunt. Oppidani, qui se

locorum asperitate munitos crediderant, magna atque insolita re percussi, nihilo segnius bellum parare; idem nostri facere.

76. Sed rex nihil jam infectum Metello credens,^[398] quippe qui omnia, arma tela, locos tempora, denique naturam ipsam ceteris imperitantem industria vicerat, cum liberis et magna parte pecuniae ex oppido noctu profugit, neque postea in ullo loco amplius uno die aut una nocte moratus simulabat sese negotii gratia properare; ceterum prodicionem timebat, quam vitare posse celeritate putabat; nam talia consilia per otium et ex opportunitate capi. At Metellus, ubi oppidanos proelio intentos, simul oppidum et operibus et loco munitum videt, vallo fossaque moenia circumvenit. Deinde locis ex copia^[399] maxime idoneis vineas agere, aggerem jacere et super aggerem impositis turribus opus et administros tutari. Contra haec oppidani festinare, parare; prorsus ab utrisque nihil reliquum fieri. Denique Romani multo ante labore proeliisque fatigati,^[400] post dies quadraginta quam eo ventum erat, oppido modo potiti, praeda omnis ab perfugis corrupta. Ii postquam murum arietibus feriri resque suas afflictas vident, aurum atque argentum et alia, quae prima ducuntur, domum regiam comportant; ibi vino et epulis onerati, illaque et domum et semet igni corrumpunt, et quas victi ab hostibus poenas metuerant, eas ipsi volentes pependere.^[401]

77. Sed pariter cum capta Thala legati ex oppido Lepti ad Metellum venerant orantes, uti praesidium praefectumque eo mitteret; Hamilcarem quendam, hominem nobilem, factiosum, novis rebus studere, adversum quem neque imperia magistratuum neque leges valerent; ni id festinaret, in summo periculo suam salutem, illorum^[402]

socios fore. Nam Leptitani jam inde a principio belli Jugurthini ad Bestiam consulem et postea Romam miserant amicitiam societatemque rogatum. Deinde, ubi ea impetrata, semper boni fidelesque mansere et cuncta a Bestia, Albino Metelloque imperata nave^[403] fecerant. Itaque ab imperatore facile, quae petebant, adepti. Emissae eo cohortes Ligurum quatuor et G. Annius praefectus.

78. Id oppidum ab Sidoniis conditum est, quos accepimus profugos ob discordias civiles, navibus in eos locos venisse; ceterum situm inter duas Syrtes, quibus nomen ex re inditum. Nam duo sunt sinus prope in extrema Africa, impares magnitudine, pari natura; quorum proxima terrae praealta sunt, cetera, uti fors tulit, alta,^[404] alia in tempestate vadosa. Nam ubi mare magnum esse et saevire ventis coepit, limum arenamque et saxa ingentia fluctus trahunt; ita facies locorum cum ventis simul mutatur: Syrtes ab tractu nominatae.^[405] Ejus civitatis lingua modo^[406] conversa connubio Numidarum, legum cultusque pleraque Sidonica, quae eo facilius retinebant, quod procul ab imperio regis aetatem agebant. Inter illos et frequentem Numidiam multi vastique loci erant.

79. Sed quoniam in has regiones per Leptitanorum negotia venimus, non indignum videtur egregium atque mirabile facinus duorum Carthaginiensium memorare; eam rem nos locus admonuit.^[407] Qua tempestate Carthaginienses pleraeque Africae imperitabant,^[408] Cyrenenses quoque magni atque opulenti fuere. Ager in medio arenosus, una specie; neque flumen neque mons erat, qui fines eorum discerneret; quae res eos in magno diuturnoque bello inter se habuit. Postquam utrimque legiones item classes saepe fusae

fugataeque, et alteri alteros aliquantum attriverant, veriti, ne mox victos victoresque defessos alius aggredieretur, per inducias sponsionem faciunt,^[409] uti certo die legati domo proficiscerentur; quo in loco inter se obvii fuissent, is communis utriusque populi finis haberetur. Igitur Carthagine duo fratres missi, quibus nomen Philaenis erat, maturavere iter pergere,^[410] Cyrenenses tardius iere. Id socordiane an casu acciderit, parum cognovi. Ceterum solet in illis locis tempestas haud secus atque in mari retinere.^[411] Nam ubi per loca aequalia et nuda gignentium^[412] ventus coortus arenam humo excitavit, ea magna vi agitata ora oculosque implere solet, ita prospectu impedito morari iter. Postquam Cyrenenses aliquanto posteriores se vident et ob rem corruptam^[413] domi poenas metuunt, criminari Carthaginienses ante tempus domo digresses, conturbare rem,^[414] denique omnia malle quam victi abire. Sed quum Poeni aliam condicionem, tantummodo aequam, peterent, Graeci optionem Carthaginiensium faciunt,^[415] ut vel illi, quos fines populo suo peterent, ibi^[416] vivi obruerentur, vel eadem condicione sese, quem in locum vellent, processuros. Philaeni condicione probata seque vitamque suam rei publicae condonavere; ita vivi obruti. Carthaginienses in eo loco Philaenis fratribus aras consecravere, alique illis domi honores instituti. Nunc ad rem redeo.

80. Jugurtha postquam amissa Thala nihil satis firmum contra Metellum putat, per magnas solitudines cum paucis profectus, pervenit ad Gaetulos,^[417] genus hominum ferum incultumque et eo tempore ignarum nominis Romani. Eorum multitudinem in unum cogit ac paulatim consuefacit ordines habere, signa sequi, imperium

observare, item alia militaria facere. Praeterea regis Bocchi proximos magnis muneribus et majoribus promissis ad studium sui perducit, quis adiutoribus regem aggressus impellit, uti adversum Romanos bellum incipiat. Id ea gratia facilius proniusque^[418] fuit, quod Bocchus initio hujusce belli legatos Romam miserat, foedus et amicitiam petitem, quam rem opportunissimam incepto bello pauci impediverant caeci avaritia, quibus omnia honesta atque inhonesta vendere mos erat.^[419] Etiam antea Jugurthae filia Bocchi nupserat. Verum ea necessitudo apud Numidas Maurosque levis ducitur, quia singuli pro opibus quisque quam plurimas uxores, denas alii, alii plures habent, sed reges eo amplius.^[420] Ita animus multitudine distrahitur, nulla pro socia obtinet,^[421] pariter omnes viles sunt.

81. Igitur in locum ambobus placitum^[422] exercitus conveniunt; ibi fide data et accepta Jugurtha Bocchi animum oratione accendit: Romanes injustos, profunda avaritia,^[423] communes omnium hostes esse; eandem illos causam belli cum Boccho habere quam secum et cum aliis gentibus, libidinem imperitandi, quibus^[424] omnia regna adversa sint; tum sese,^[425] paulo ante Carthaginenses, item regem Persen, post, uti quisque opulentissimus videatur, ita Romanis hostem fore. His atque aliis talibus dictis ad Cirtam oppidum iter constituunt, quod ibi Metellus praedam captivosque et impedimenta locaverat. Ita Jugurtha ratus aut capta urbe^[426] operae pretium fore aut, si Romanus auxilio suis venisset, proelio sese certaturos. Nam callidus id modo festinabat, Bocchi pacem imminuere,^[427] ne moras agitando aliud quam bellum mallet.

82. Imperator postquam de regum societate cognovit, non temere neque, uti saepe jam victo Jugurtha consueverat, omnibus locis pugnandi copiam facit; ceterum haud procul ab Cirta castris munitis reges opperitur, melius esse ratus, cognitis Mauris, quoniam is novus hostis accesserat, excommodo^[428] pugnam facere. Interim Roma per litteras certior fit provinciam Numidiam Mario datam; nam consulem factum ante acceperat. Quis rebus supra bonum atque honestum^[429] perculsus, neque lacrimas tenere neque moderari linguam;^[430] vir egregius in aliis artibus nimis molliter aegritudinem pati. Quam rem alii in superbiam vertebant, alii^[431] bonum ingenium contumelia accensum esse, multi, quod jam parta victoria ex manibus eriperetur. Nobis satis cognitum est, illum magis honore Marii quam injuria sua^[432] excruciatum, neque tam anxie laturum fuisse, si adempta provincia alii quam Mario traderetur.

83. Igitur eo dolore impeditus, et quia stultitiae^[433] videbatur alienam rem periculo suo curare, legatos ad Bocchum mittit postulatum, ne sine causa hostis populo Romano fieret; habere tum^[434] magnam copiam societatis amicitiaeque conjungendae, quae potior bello esset; quamquam opibus suis confideret, tamen non debere incerta pro certis mutare;^[435] omne bellum sumi facile, ceterum aegerrime desinere;^[436] non in ejusdem potestate initium ejus et finem esse; incipere cuivis, etiam ignavo, licere, deponi, quum victores velint; proinde sibi regnoque suo consuleret, neu florentes res suas cum Jugurthae perditis misceret. Ad ea rex satis placide verba facit; sese pacem cupere, sed Jugurthae fortunarum misereri; si eadem illi copia fieret,^[437] omnia conventura. Rursus imperator contra postulata

Bocchi nuntios mittit; ille probare partim, alia abnuere. Eo modo saepe ab utroque missis remissisque nuntiis tempus procedere et ex Metelli voluntate bellum intactum trahi.

84. At Marius, ut supra diximus, cupientissima plebe^[438] consul factus, postquam ei provinciam Numidiam populus jussit, antea jam infestus nobilitati, tum vero multus^[439] atque ferox instare, singulos modo, modo universos laedere; dictitare sese consulatum ex victis illis spolia cepisse; alia praeterea magnifica pro se, et illis dolentia. Interim, quae bello opus erant, prima habere; postulare legionibus supplementum, auxilia a populis et regibus sociisque arcessere, praeterea ex Latio fortissimum quemque, plerosque militiae, paucos fama cognitos accire, et ambiundo cogere^[440] homines emeritis stipendiis secum proficisci. Neque illi senatus, quamquam adversus erat, de ullo negotio abnuere audebat; ceterum supplementum etiam laetus decreverat, quia neque plebi militia volenti^[441] putabatur et Marius aut belli usum aut studia vulgi amissurus. Sed ea res frustra sperata; tanta libido cum Mario eundi plerosque invaserat. Sese quisque praeda locupletem fore, victorem domum rediturum, alia hujusmodi animis trahebant,^[442] et eos non paulum oratione sua Marius arrexerat. Nam postquam omnibus, quae postulaverat, decretis milites scribere vult, hortandi causa, simul et nobilitatem, uti consueverat, exagitandi, contionem populi advocavit. Deinde hoc modo disseruit:

85. 'Scio ego, Quirites, plerosque non iisdem artibus imperium a vobis petere et, postquam adepti sunt, gerere; primo industrios, supplices, modicos esse, dein per ignaviam et superbiam aetatem

agere. Sed mihi contra ea videtur; nam^[443] quo pluris est universa res publica quam consulatus aut praetura, eo majore cura illam administrari quam haec peti debere. Neque me fallit, quantum cum maximo vestro beneficio^[444] negotii sustineam. Bellum parare simul et aerario parcere, cogere ad militiam eos, quos nolis offendere, domi forisque omnia curare, et ea agere inter invidos, occursantes, factiosos, opinione, Quirites, asperius est.^[445] Ad hoc, alii si deliquere, vetus nobilitas, majorum fortia facta, cognatorum et affinium opes, multae clientelae, omnia haec praesidio adsunt; mihi spes omnes in memet sitae, quas necesse est virtute et innocentia tutari; nam alia infirma sunt. Et illud intellego, Quirites, omnium ora in me conversa esse, aequos bonosque favere, quippe mea bene facta rei publicae procedunt,^[446] nobilitatem locum invadendi quaerere. Quo mihi acrius adnitendum est, uti neque vos capiamini et illi frustra sint. Ita ad hoc aetatis a pueritia fui, ut omnes labores, pericula consueta habeam. Quae ante vestra beneficia gratuito faciebam, ea uti accepta mercede deseram, non est consilium, Quirites. Illis difficile est in potestatibus temperare, qui per ambitionem sese probos simulavere; mihi, qui omnem aetatem in optimis artibus egi, bene facere jam ex consuetudine in naturam vertit.^[447] Bellum me gerere cum Jugurtha jussistis, quam rem nobilitas aegerrime tulit. Quaeso, reputate cum animis vestris, num id mutari melius sit, si quem ex illo globo nobilitatis ad hoc aut aliud tale negotium mittatis, hominem veteris prosapiae^[448] ac multarum imaginum et nullius stipendii, scilicet ut in tanta re ignarus omnium trepidet, festinet, sumat aliquem ex populo monitorem officii sui. Ita plerumque evenit, ut quem vos imperatorem jussistis, is sibi imperatorem alium

quaerat. Atque ego scio, Quirites, qui, postquam consules facti sunt, acta majorum et Graecorum militaria praecepta legere coeperint; praeposteri homines: nam gerere quam fieri tempore posterius, re atque usu prius est.^[449] Comparete nunc, Quirites, cum illorum superbia me hominem novum. Quae illi audire et legere solent, eorum partem vidi, alia egomet gessi; quae illi litteris, ea ego militando didici. Nunc vos existimate, facta an dicta pluris sint. Contemnunt novitatem meam, ego illorum ignaviam; mihi fortuna, illis probra objectantur. Quamquam ego naturam unam et communem omnium existimo, sed fortissimum quemque generosissimum.^[450] Ac si jam ex patribus Albini aut Bestiae quaeri posset, mene an illos ex se gigni maluerint, quid responsuros creditis, nisi sese liberos, quam optimos voluisse? Quodsi jure me despiciunt, faciant^[451] idem majoribus suis, quibus uti mihi ex virtute nobilitas coepit. Invident honori meo; ergo invideant labori, innocentiae, periculis etiam meis, quoniam per haec illum cepi. Verum homines corrupti superbia ita aetatem agunt, quasi vestros honores contemnant; ita hos petunt, quasi honeste vixerint. Nae illi falsi sunt, qui diversissimas res pariter expectant, ignaviae voluptatem et praemia virtutis. Atque etiam, quum apud vos aut in senatu verba faciunt, pleraque oratione majores suos extollunt, eorum fortia facta memorando clariores sese putant. Quod contra est; nam quanto vita illorum praeclarius, tanto horum socordia flagitiosior. Et profecto ita se res habet: majorum gloria posteris quasi lumen est, neque bona neque mala eorum in occulto patitur. Hujusce rei^[452] ego inopiam fateor. Quirites, verum id, quod multo praeclarius est, meamet^[453] facta mihi dicere licet. Nunc videte, quam iniqui sint. Quod ex aliena virtute sibi arrogant, id mihi ex mea non

concedunt, scilicet quia imagines non habeo et quia mihi nova nobilitas est, quam certe peperisse melius est quam acceptam corrupisse. Equidem ego non ignoro, si jam mihi respondere velint, abunde illis facundam et compositam orationem fore. Sed in maximo vestro beneficio, quum omnibus locis me vosque maledictis lacerent, non placuit reticere, ne quis modestiam in conscientiam duceret.^[454] Nam me quidem ex animi mei sententia nulla oratio laedere potest; quippe vera necesse est bene praedicet, falsam vita moresque mei superant. Sed quoniam vestra consilia accusantur, qui mihi summum honorem et maximum negotium imposuistis, etiam atque etiam reputate, num eorum poenitendum sit. Non possum fidei causa imagines neque triumphos aut consulatus majorum meorum ostentare, at, si res postulet, hastas, vexillum, phaleras, alia militaria dona,^[455] praeterea cicatrices adverso corpore. Hae sunt meae imagines, haec nobilitas, non hereditate relicta, ut illa illis, sed quae egomet plurimis laboribus et periculis quaesivi. Non sunt composita mea verba; parum id facio,^[456] ipsa se virtus satis ostendit; illis artificio opus est, ut turpia facta oratione tegant. Neque litteras Graecas didici; parum placebat eas discere, quippe quae ad virtutem doctoribus nihil profuerunt.^[457] At illa multo optima rei publicae doctus sum, hostem ferire, praesidia agitare,^[458] nihil metuere nisi turpem famam, hiemem et aestatem juxta pati, humi requiescere, eodem tempore inopiam et laborem tolerare. His ego praeceptis milites hortabor, neque illos arte colam,^[459] me opulenter, neque gloriam meam laborem illorum faciam. Hoc est utile, hoc civile imperium. Namque quum tute per mollitiem agas, exercitum supplicio cogere,^[460] id est dominum, non imperatorem esse. Haec atque talia maiores

vestri faciundo seque remque publicam celebravere.^[461] Quis nobilitas freta, ipsa dissimilis moribus, nos illorum aemulos contemnit, et omnes honores non ex merito, sed quasi debitos a vobis repetit. Ceterum homines superbissimi procul errant. Majores eorum omnia, quae licebat, illis reliquere, divitias, imagines, memoriam sui praeclaram; virtutem non reliquere, neque poterant; ea sola neque datur dono neque accipitur. Sordidum me et incultis moribus aiunt, quia parum scite convivium exorno, neque histrionem ullum, neque pluris pretii coquum quam villicum habeo.^[462] Quae mihi libet confiteri, Quirites; nam ex parente meo et ex aliis sanctis viris ita accepi, munditias mulieribus, viris laborem convenire, omnibusque bonis oportere plus gloriae quam divitiarum esse; arma, non suppellectilem decori esse. Quin ergo quod juvat, quod carum aestimant, id semper faciant;^[463] ament, potent, ubi adolescentiam habuere, ibi senectutem agant, in conviviis, dediti ventri et turpissimae parti corporis; sudorem, pulverem et alia talia relinquant nobis, quibus illa epulis jucundiora sunt. Verum noti est ita. Nam ubi se flagitiis dedecoravere turpissimi viri, bonorum praemia ereptum eunt.^[464] Ita injustissime luxuria et ignavia, pessimae artes, illis, qui coluere eas, nihil officiunt, rei publicae innoxiae cladi sunt.^[465] Nunc, quoniam illis, quantum mores mei, non illorum flagitia poscebant, respondi, pauca de re publica loquar. Primum omnium de Numidia bonum habete animum, Quirites; nam quae ad hoc tempus Jugurtham tutata sunt, omnia removistis,^[466] avaritiam, imperitiam atque superbiam. Deinde exercitus ibi est, locorum sciens, sed mehercule magis strenuus quam felix; nam magna pars ejus avaritia aut temeritate ducum attrita est.^[467] Quamobrem vos, quibus militaris

aetas est, adnitimini mecum et capessite rem publicam,^[468] neque quemquam ex calamitate aliorum aut imperatorum superbia metus ceperit. Egomet in agmine, in proelio consultor idem^[469] et socius periculi vobiscum adero, meque vosque in omnibus rebus iuxta geram.^[470] Et profecto dis juvantibus omnia matura sunt, victoria, praeda, laus; quae si dubia aut procul essent, tamen omnes bonos rei publicae subvenire decebat.^[471] Etenim nemo ignavia immortalis factus est, neque quisquam parens liberis, uti aeterni forent, optavit, magis, uti boni honestique vitam exigent. Plura dicerem, Quirites, si timidis virtutem verba adderent; nam strenuis abunde dictum puto.'

86. Hujusmodi oratione habita Marius, postquam plebis animos arrectos videt, propere commeatu, stipendio, armis aliisque utilibus naves onerat; cum his A. Manlium legatum proficisci jubet. Ipse interea milites scribere, non more majorum, neque ex classibus, sed uti cujusque libido erat, capite censos plerosque.^[472] Id factum alii inopia bonorum, alii per ambitionem consulis memorabant, quod ab eo genere celebratus auctusque erat, et homini potentiam quaerenti egentissimus quisque opportunissimus cui neque sua curae,^[473] quippe quae nulla sunt, et omnia cum pretio honesta videntur. Igitur Marius cum aliquanto^[474] majore numero, quam decretum erat, in Africam profectus paucis diebus Uticam^[475] advehitur. Exercitus ei traditur a P. Rutilio legato; nam Metellus conspectum Marii fugerat, ne videret ea, quae audita animus tolerare nequiverat.

87. Sed consul expletis legionibus cohortibusque auxiliariis in agrum fertilem et praeda onustum^[476] proficiscitur; omnia ibi capta militibus donat, dein castella et oppida natura et viris parum munita

aggreditur; proelia multa, celerura levia, alia aliis locis facere. Interim novi milites sine metu pugnae adesse,^[477] videre fugientes capi aut occidi, fortissimum quemque tutissimum, armis libertatem, patriam parentesque et alia omnia tegi, gloriam atque divitias quaeri. Sic brevi spatio novi veteresque coaluere, et virtus omnium aequalis facta. At reges, ubi de adventu Marii cognoverunt, diversi in locos difficiles abeunt. Ita Jugurthae placuerat speranti mox effusos hostes invadi posse, Romanos sicuti plerosque remoto metu laxius licentiusque futuros.^[478]

88. Metellus interea Romam profectus contra spem^[479] suam laetissimis animis excipitur, plebi patribusque, postquam invidia decesserat, juxta carus. Sed Marius impigre prudenterque suorum et hostium res pariter attendere, cognoscere quid boni utrisque aut contra esset, explorare itinera regum, consilia et insidias eorum antevenire, nihil apud se remissum neque apud illos tutum pati. Itaque et Gaetulos et Jugurtham ex sociis nostris praedas agentes saepe aggressus in itinere fuderat, ipsumque regem haud procul ab oppido Cirta armis exuerat.^[480] Quae postquam gloriosa modo neque belli patrandi^[481] cognovit, statuit urbes, quae viris aut loco pro hostibus et adversum se opportunissimae erant,^[482] singulas circumvenire; ita Jugurtham aut praesidiis nudatum,^[483] si ea pateretur, aut proelio certaturum. Nam Bocchus nuntios ad eum saepe miserat, velle populi Romani amicitiam; ne quid ab se hostile timeret.^[484] Id simulaveritne, quo improvisus gravior accideret, an mobilitate ingenii pacem atque bellum mutare solitus, parum exploratum est.

89. Sed consul, uti statuerat, oppida castellaque munita adire, partim vi, alia metu aut praemia ostentando avertere ab hostibus. Ac primo mediocria gerebat, existimans Jugurtham ob suos tutandos in manus venturum.^[485] Sed ubi illum procul abesse et aliis negotiis intentum accepit, majora et magis aspera aggredi tempus visum est.^[486] Erat inter ingentes solitudines oppidum magnum atque valens, nomine Capsa,^[487] cujus conditor Hercules Libys memorabatur. Ejus cives apud Jugurtham immunes,^[488] levi imperio et ob ea fidelissimi habebantur, muniti adversum hostes non moenibus modo et armis atque viris, verum etiam multo magis locorum asperitate. Nam praeter oppido propinqua alia omnia vasta, inculta, egentia aquae, infesta serpentibus, quorum^[489] vis sicuti omnium ferarum inopia cibi acrior; ad hoc natura serpentium ipsa perniciosa siti magis quam alia re accenditur. Ejus potiundi Marium maxima cupido invaserat, quum propter usum belli, tum quia res aspera videbatur, et Metellus oppidum Thalam magna gloria ceperat, haud dissimiliter situm munitumque, nisi quod apud Thalam non longe a moenibus aliquot fontes erant, Capsenses una modo atque ea intra oppidum jugi aqua;^[490] ceterâ pluvia utebantur. Id ibique et in omni Africa, quae procul a mari incultius agebat,^[491] eo facilius tolerabatur, quia Numidae plerumque lacte et ferina carne vescebantur et neque salem neque alia irritamenta gulae quaerebant; cibus illis adversum famem atque sitim, non libidini neque luxuriae erat.

90. Igitur consul omnibus exploratis, credo dis fretus (nam contra tantas difficultates consilio satis providere non poterat, quippe etiam frumenti inopia temptabatur,^[492] quod Numidae pabulo pecoris magis

quam arvo student,^[493] et quodcumque natum fuerat jussu regis in loca munita contulerant, ager autem aridus et frugum vacuus ea tempestate, nam aestatis extremum erat), tamen pro rei copia satis providenter exornat;^[494] pecus omne, quod superioribus diebus praedae fuerat, equitibus auxiliariis agendum attribuit, A. Manlium legatum cum cohortibus expeditis ad oppidum Lares, ubi stipendium et commeatum locaverat, ire jubet dicitque se praedabundum, post paucos dies eodem venturum. Sic incepto suo occultato pergit ad flumen Tanam.

91. Ceterum in itinere cotidie pecus exercitui per centurias, item turmas

[495] aequaliter distribuerat, et ex coriis utres uti fierent curabat; simul et inopiam frumenti lenire et ignaris omnibus parare, quae mox usui forent; denique sexto die, quum ad flumen ventum est, maxima vis utrius effecta. Ibi castris levi munimento positis, milites cibum capere atque, uti simul cum occasu solis egrederentur, paratos esse jubet, omnibus sarcinis abjectis, aqua modo seque et jumenta onerare. Dein, postquam tempus visum, castris egreditur noctemque totam itinere facto consedit; idem proxima facit, dein tertia multo ante lucis adventum pervenit in locum tumulosum ab Capsa non amplius duum^[496] milium intervallo; ibique quam occultissime potest, cum omnibus copiis opperitur. Sed ubi dies coepit et Numidae nihil hostile metuentes, multi oppido egressi, repente omnem equitatum et cum his velocissimos pedites cursu tendere ad Capsam et portas obsidere jubet; deinde ipse intentus propere sequi, neque milites praedari sinere. Quae postquam oppidani cognovere, res trepidae,^[497] metus ingens, malum improvisum, ad hoc pars civium extra

moenia in hostium potestate, coëgere, uti deditionem facerent. Ceterum oppidum incensum, Numidae puberes interfecti, alii omnes venundati, praeda militibus divisa. Id facinus contra jus belli non avaritia neque scelere consulis admissum, sed quia locus Jugurthae opportunus, nobis aditu difficilis, genus hominum mobile, infidum ante, neque beneficio neque metu coërcitum. ^[498]

92. Postquam tantam rem Marius sine ullo suorum incommodo patravit, magnus et clarus antea, major atque clarior haberi coepit. Omnia non bene consulta in virtutem trahebantur, ^[499] milites modesto imperio habiti simul et locupletes ad coelum ferre, Numidae magis quam mortalem timere, postremo omnes, socii atque hostes, credere illi aut mentem divinam esse aut deorum nutu cuncta portendi. ^[500] Sed consul, ubi ea res bene evenit, ad alia oppida pergit, pauca repugnantibus Numidis capit, plura deserta propter Capsensium miseras igni corrumpit; luctu atque caede omnia complentur. Denique multis locis potitus ac plerisque exercitu incruento, aliam rem aggreditur non eadem asperitate qua Capsensium, ^[501] ceterum haud secus difficilem. Namque haud longe a flumine Mulucha, quod Jugurthae Bocchique regnum disjungebat, erat inter ceteram planitiem mons saxeus, mediocri castello satis patens, in immensum editus, uno perangusto aditu relictus, nam omnia ^[502] natura velut opere atque consulto praeceps. Quem locum Marius, quod ibi regis thesauri erant, summa vi capere intendit. Sed ea res forte quam consilio melius gesta. Nam castello virorum atque armorum satis magna vis, et frumenti, ^[503] et fons aquae; aggeribus turribusque et aliis machinationibus locus importunus, iter castellanorum ^[504] angustum admodum, utrimque praecisum. Vineae cum ingenti

periculo frustra agebantur; nam quum eae paulo processerant, igni aut lapidibus corrumpebantur, milites neque pro opere consistere propter iniquitatem loci, neque inter vineas sine periculo administrare;^[505] optimus quisque cadere aut sauciari, ceteris metus augeri.

93. At Marius, multis diebus et laboribus consumptis, anxius trahere cum animo suo, omitteretne inceptum, quoniam frustra erat, an fortunam opperiretur, qua saepe prospere usus fuerat. Quae quum multos dies noctesque aestuans^[506] agitare, forte quidam Ligus,^[507] ex cohortibus auxiliariis miles gregarius, castris aequatum egressus, haud procul ab latere castelli, quod aversum proeliantibus erat, animum advertit inter saxa repentes cochleas; quarum quum unam atque alteram, dein plures peteret, studio legundi paulatim prope ad summum montis egressus est.^[508] Ubi postquam solitudinem intellexit, more humani ingenii cupido difficilia faciundi animum vertit.^[509] Et forte in eo loco grandis ilex coaluerat inter saxa paulum modo prona, dein flexa atque aucta in altitudinem, quo cuncta gignentium natura fert; cujus ramis modo, modo eminentibus saxis nisus Ligus castelli planitiem perscribit,^[510] quod cuncti Numidae intenti proeliantibus aderant.^[511] Exploratis omnibus, quae mox usui fore ducebat, eadem regreditur, non temere, uti escenderat, sed temptans omnia et circumspiciens. Itaque Marium propere adit, acta edocet, hortatur, ab ea parte, qua ipse escenderat, castellum temptet; pollicetur sese itineris periculique ducem. Marius cum Ligure, promissa ejus cognitum, ex praesentibus misit;^[512] quorum uti cujusque ingenium erat, ita rem difficilem aut facilem nuntiavere. Consul animus tamen paulum arrectus. Itaque ex copia tubicinum

et cornicinum numero quinque quam velocissimos delegit,^[513] et cum his, praesidio qui forent, quatuor centuriones, omnesque Liguri parere jubet, et ei negotio proximum diem constituit.

94. Sed ubi ex praecepto tempus visum, paratis compositisque omnibus ad locum pergit.^[514] Ceterum illi, qui ascensuri erant, praedocti ab duce, arma ornatumque mutaverant, capite atque pedibus nudis, uti prospectus nismusque per saxa facilius foret;^[515] super terga gladii et scuta, verum ea Numidica ex coriis, ponderis gratia simul et offensa quo levius streperent.^[516] Igitur praegrediens Ligus saxa, et si quae vetustate radices eminebant,^[517] laqueis vinciebat, quibus allevati milites facilius escenderent, interdum timidos insolentia itineris levare manu, ubi paulo asperior ascensus erat, singulos prae se inermes mittere, deinde ipse cum illorum armis sequi, quae dubia nisu videbantur, potissimus temptare,^[518] ac saepius eadem ascendens descendensque, dein statim digrediens,^[519] ceteris audaciam addere. Igitur diu multumque fatigati tandem in castellum perveniunt, desertum ab ea parte, quod omnes sicuti aliis diebus adversum hostes aderant. Marius, ubi ex nuntiis, quae Ligus egerat, cognovit, quamquam toto die intentos proelio Numidas habuerat, tum vero cohortatus milites et ipse extra vineas egressus, testudine acta succedere et simul hostem tormentis sagittariisque et funditoribus eminus terrere. At Numidae saepe antea vineis Romanorum subversis, item incensis, non castelli moenibus sese tutabantur; sed pro muro dies noctesque agitare, maledicere Romanis ac Mario vecordiam objectare; militibus nostris Jugurthae servitium minari, secundis rebus feroces esse. Interim omnibus, Romanis hostibusque, proelio intentis, magna utrimque vi pro gloria

atque imperio his, illis pro salute certantibus, repente a tergo signa canere; ac primo mulieres et pueri, qui visum processerant, fugere, deinde uti quisque muro proximus erat, postremo cuncti, armati inermesque. Quod ubi accidit, eo acrius Romani instare, fundere ac plerosque tanturamodo sauciare, dein super occisorum corpora vadere, avidi gloriae certantes murum petere, neque quemquam omnium praeda morari. Sic forte correcta Marii temeritas gloriam ex culpa invenit.^[520]

95. Ceterum dum ea res geritur, L. Sulla quaestor cum magno equitatu in castra venit, quos^[521] uti ex Latio et a sociis cogeret, Romae relictus erat. Sed quoniam nos tanti viri res admonuit,^[522] idoneum visum est de natura cultuque ejus paucis dicere; neque enim alio loco de Sullae rebus dicturi sumus, et L. Sisenna optime et diligentissime omnium, qui eas res dixere, persecutus,^[523] parum mihi libero ore locutus videtur. Igitur Sulla gentis patriciae nobilis fuit, familia prope jam extincta majorum ignavia,^[524] litteris Graecis atque Latinis juxta, atque doctissime,^[525] eruditus, animo ingenti, cupidus voluptatum, sed gloriae cupidior, otio luxurioso esse; tamen, ab negotiis nunquam voluptas remorata, nisi quod^[526] de uxore potuit honestius consuli; facundus, callidus et amicitia facilis;^[527] ad simulanda negotia altitudo ingenii incredibilis;^[528] multarum rerum ac maxime pecuniae largitor. Atque illi, felicissimo omnium ante civilem victoriam, nunquam super industriam fortuna fuit,^[529] multique dubitavere, fortior an felicior esset; nam postea quae fecerit, incertum habeo, pudeat magis an pigeat disserere.

96. Igitur Sulla, uti supra dictum est, postquam in Africam atque in castra Marii cum equitatu venit, rudis antea et ignarus belli, sollertissimus omnium in paucis tempestatibus^[530] factus est. Ad hoc milites benigne appellare, multis rogantibus, aliis per se ipse dare beneficia, invitus accipere, sed ea properantius quam aes mutuum reddere, ipse ab nullo repetere, magis id laborare,^[531] ut illi quam plurimi deberent, joca atque seria cum humillimis agere, in operibus, in agmine atque ad vigilias multus adesse,^[532] neque interim, quod prava ambitio solet, consulis aut cujusquam boni famam laedere, tantummodo neque consilio neque manu priorem alium pati, plerosque antevenire. Quis rebus et artibus brevi Mario militibusque carissimus factus.

97. At Jugurtha, postquam oppidum Capsam aliosque locos munitos et sibi utiles, simul et magnam pecuniam amiserat, ad Bocchum nuntios mittit, quam primum in Numidiam copias adduceret, proelii faciundi tempus adesse. Quem ubi cunctari accepit et dubium belli atque pacis rationes trahere,^[533] rursus, uti antea, proximos ejus donis corrumpit, ipsique Mauro pollicetur Numidiae partem tertiam, si aut Romani Africa expulsi, aut integris suis finibus bellum compositum foret. Eo praemio illectus Boechus cum magna multitudine Jugurtham accedit. Ita amborum exercitu conjuncto, Marium jam in hiberna proficiscentem, vix decima parte die^[534] reliqua, invadunt, rati noctem, quae jam aderat, et victis sibi munimento fore et, si vicissent, nullo impedimento,^[535] quia locorum scientes erant, contra Romania utrumque casum in tenebris difficiliorem fore. Igitur simul consul ex multis de hostium adventu cognovit, et ipsi hostes aderant^[536] et, priusquam exercitus aut instrui

aut sarcinas colligere, denique antequam signum^[537] aut imperium ullum accipere quivit, equites Mauri atque Gaetuli, non acie neque ullo more proelii, sed catervatim, uti quosque fors conglobaverat, in nostros concurrunt; qui omnes trepidi improvise metu, ac tamen virtutis memores, aut arma capiebant aut capientes alios ab hostibus defensabant, pars equos ascendere, obviam ire hostibus, pugna latrocinio^[538] magis quam proelio similis fieri, sine signis, sine ordinibus equites peditesque permixti; caedere alios, alios obtruncare,^[539] multos, contra adversos acerrime pugnantes, ab tergo circumvenire; neque virtus neque arma satis tegere, quod hostes numero plures et undique circumfusi erant; denique Romani veteres novique et ob ea^[540] scientes belli, si quos locus aut casus conjunxerat, orbis facere, atque ita ab omnibus partibus simul tecti et instructi hostium vim sustentabant.

98. Neque in eo tam aspero negotio Marius territus aut magis quam antea demisso animo fuit, sed cum turma sua, quam ex fortissimis magis quam familiarissimis paraverat, vagari passim, ac modo laborantibus suis succurrere, modo hostes, ubi confertissimi obstiterant, invadere; manu consulere militibus, quoniam imperare, conturbatis omnibus, non poterat. Jamque dies consumptus erat, quum tamen barbari nihil remittere,^[541] atque, uti reges praeceperant, noctem pro se rati, acrius instare. Tum Marius ex copia rerum consilium trahit, atque, uti suis receptui locus esset, colles duos propinquos inter se occupat, quorum in uno, castris parum amplo, fons aquae magnus erat, alter usui opportunus, quia magna parte editus et praeceps pauca munimenta quaerebat.^[542] Ceterum apud aquam Sullam cum equitibus noctem agitare jubet; ipse paulatim

dispersos milites, neque minus hostibus conturbatis,^[543] in unum contrahit, dein cunctos pleno gradu^[544] in collem subducit. Ita reges loci difficultate coacti proelio deterrentur, neque tamen suos longius abire sinunt, sed, utroque colle multitudine circumdato, effusi consedere. Dein crebris ignibus factis, plerumque noctis barbari more suo laetari, exultare, strepere vocibus, et ipsi duces feroces, quia non fugere, ut pro^[545] victoribus egere. Sed ea cuncta Romanis ex tenebris et editoribus locis facilia visa magnoque hortamento erant.

99. Plurimum vero Marius imperitia hostium confirmatus, quam maximum silentium haberi jubet, ne signa quidem, uti per vigiliis solebant, canere,^[546] deinde, ubi lux adventabat, defessis jam hostibus et paulo ante somno captis, de improvviso vigiles, item cohortium, turmarum, legionum tubicines simul omnes signa canere, milites clamorem tollere atque portis erumpere. Mauri atque Gaetuli, ignoto et horribili sonitu repente exciti, neque fugere neque arma capere neque omnino facere aut providere quicquam poterant; ita cunctos strepitu, clamore, nullo subveniente, nostris instantibus, tumultu, terrore, formido quasi vecordia ceperat.^[547] Denique omnes fusi fugatique; arma et signa militaria pleraque capta, pluresque eo proelio quam omnibus superioribus interempti. Nam somno et metu insolito impedita fuga.

100. Dein Marius, uti coeperat, in hiberna proficiscitur, quae propter commeatum in oppidis maritimis agere decreverat. Neque tamen victoria socors aut insolens factus, sed pariter atque in conspectu hostium quadrato agmine incedere; Sulla cum equitatu apud

dextimos,^[548] in sinistra parte A. Manlius cum funditoribus et sagittariis, praeterea cohortes Ligurum curabat; primos et extremos cum expeditis manipulis tribunes locaverat. Perfugae, minime cari^[549] et regionum scientissimi, hostium iter explorabant. Simul consul, quasi nullo imposito,^[550] omnia providere, apud omnes adesse, laudare et increpare merentes. Ipse armatus intentusque, item milites cogebat;^[551] neque secus, atque iter facere, castra munire,^[552] excubitus in porta^[553] cohortes ex legionibus, pro castris equites auxilios mittere, praeterea alios super vallum in munimentis locare, vigilas ipse circumire, non tam diffidentia futurum, quae^[554] imperavisset, quam uti militibus exaequatus cum imperatore labos volentibus esset.^[555] Et sane Marius illoque aliisque temporibus Jugurthini belli pudore magis quam malo^[556] exercitus coërcerat; quod multi per ambitionem fieri aiebant, pars quod a pueritia consuetam duritiam et alia, quae ceteri miserias vocant, voluptati habuisset; nisi tamen^[557] res publica pariter ac saevissimo imperio bene atque decore gesta.

101. Igitur quarto denique die haud longe ab oppido Cirta undique simul speculatores citi sese ostendunt, qua re hostes adesse intellegitur.^[558] Sed quia diversi redeuntes alius ab alia parte atque omnes idem significabant, consul incertus, quonam modo aciem instrueret, nullo ordine commutato, adversum omnia paratus, ibidem opperitur. Ita Jugurtham spes frustrata, qui copias in quatuor paries distribuera, ratus ex omnibus aequae^[559] aliquos ab tergo hostibus venturos. Interim Sulla, quem primum hostes attigerant, cohortatus suos, turmatim et quam maxime confertis equis ipse alique Mauros

invadunt,^[560] ceteri in loco manentes ab jaculis eminus emissis corpora tegere et, si qui in manus venerant, obtruncare. Dum eo modo equites proeliantur, Bocchus cum peditibus, quos Volux filius ejus adduxerat, neque in priore pugna, in itinere morati, affuerant,^[561] postremam Romanorum aciem invadunt. Tum Marius apud primos agebat, quod ibi Jugurtha cum plurimis erat. Dein Numida, cognito Bocchi adventu, clam cum paucis ad pedites convertit;^[562] ibi Latine (nam apud Numantiam loqui didicerat) exclamat: ‘nostros frustra pugnare paulo ante Marium sua manu interfectum;’ simul gladium sanguine oblitum ostendere, quem in pugna satis impigre occiso pedite nostro cruentaverat. Quod ibi milites acceperere, magis atrocitate rei quam fide nuntii terrentur, simulque barbari animos tollere et in percussos Romanos acrius incedere. Jamque paulum ab fuga aberant, quum Sulla, profligatis iis, quos adversum^[563] ierat, rediens ab latere Mauris incurrit. Bocchus statim avertitur. At Jugurtha, dum sustentare suos et prope jam adeptam victoriam retinere cupit circumventus ab equitibus, dextra sinistra omnibus^[564] occisis, solus inter tela hostium vitabundus^[565] erumpit. Atque interim Marius fugatis equitibus accurrit auxilio suis, quos pelli jam acceperat. Denique hostes jam undique fusi. Tum spectaculum horribile in campis patentibus: sequi fugere, occidi capi; equi atque viri afflicti, ac multi vulneribus acceptis neque fugere posse neque quietem pati, niti modo, ac statim concidere; postremo omnia, qua visus erat, constrata telis, armis, cadaveribus, et inter ea humus infecta sanguine.^[566]

102. Post ea loci^[567] consul haud dubie jam victor pervenit in oppidum Cirtam, quo initio profectus intenderat.^[568] Eo post diem quintum quam iterum barbari male pugnaverant, legati a Boccho veniunt, qui regis verbis ab Mario petivere, duos quam fidissimos ad eum mitteret, velle de suo et de populi Romani commodo^[569] cum iis disserere. Ille statim L. Sullam et A. Manlium ire jubet. Qui quamquam acciti ibant, tamen placuit^[570] verba apud regem facere, uti ingenium aut aversum flecterent aut cupidum pacis vehementius accenderent. Itaque Sulla, cujus facundiae, non aetati, a Manlio concessum, pauca verba hujuscemodi locutus:

‘Rex Bocche, magna nobis laetitia est, quum te talem virum di monuere, uti aliquando pacem quam bellum malles, neu te optimum cum pessimo omnium Jugurtha miscendo commaculares, simul nobis demeres acerbam necessitudinem, pariter te errantem atque illum sceleratissimum persequi. Ad hoc populo Romano jam a principio melius visum amicos quam servos quaerere; tutiusque rati^[571] volentibus quam coactis imperitare. Tibi vero nulla opportunior nostra amicitia, primum, quod procul absumus, in quo offensae minimum, gratia par ac si prope adessemus; dein quod parentes abunde habemus, amicorum neque nobis neque cuiquam omnium satis fuit. Atque hoc utinam a principio tibi placuisset: profecto ex populo Romano ad hoc tempus multo plura bona accepisses, quam mala perpressus es.^[572] Sed quoniam humanarum rerum fortuna pleraque regit, cui scilicet placuisse^[573] et vim et gratiam nostram te experiri, nunc, quando per illam licet, festina atque, uti coepisti, perge. Multa atque opportuna habes,^[574] quo facilius errata officiis

superes. Postremo hoc in pectus tuum demitte,^[575] nunquam populum Romanum beneficiis victum esse; nam bello quid valeat, tute scis.'

Ad ea Bocchus placide et benigne; simul pauca pro delicto suo verba facit: 'Se non hostili animo, sed ob regnum tutandum arma cepisse; nam Numidia⁵⁷⁶ eam vastari a Mario pati nequivisse; praeterea missis antea Romam legatis, repulsum ab amicitia. Ceterum vetera omittere ac tum,^[577] si per Marium liceret, legates ad senatum missurum.' Dein, copia facta,^[578] animus barbari ab amicis flexus, quos Jugurtha, cognita legatione Sullae et Manlii, metuens id, quod parabatur, donis corruperat.

103. Marius interea, exercitu in hibernaculis^[579] composito, cum expeditis cohortibus et parte equitatus proficiscitur in loca sola, obsessum turrim^[580] regiam, quo Jugurtha perfugas omnes praesidium imposuerat. Tum rursus Bocchus, seu reputando, quae sibi duobus proeliis venerant,^[581] seu admonitus ab aliis amicis, quos incorruptos Jugurtha reliquerat,^[582] ex omni copia necessariorum quinque delegit, quorum et fides cognita et ingenia validissima erant. Eos ad Marium, ac dein, si placeat, Romam legates ire jubet, agendarum rerum et quocunque modo belli componendi licentiam ipsis permittit. Illi mature ad hiberna Romanorum proficiscuntur, deinde in itinere a Gaetulis latronibus circumventi spoliatique, pavidi, sine decore ad Sullam profugiunt, quem consul in expeditionem proficiscens pro praetore reliquerat.^[583] Eos ille non pro vanis

hostibus,^[584] uti meriti erant, sed accurate ac liberaliter habuit; qua re barbari et famam Romanorum avaritiae falsam et Sullam ob munificentiam in sese amicum rati. Nam etiamtum largitio multis ignota erat; munificus nemo putabatur nisi pariter volens,^[585] dona omnia in benignitate habebantur.^[586] Igitur quaestori mandata Bocchi patefaciunt; simul ab eo petunt, uti fautor consultorque sibi adsit; copias, fidem, magnitudinem regis sui et alia, quae aut utilia aut benevolentiae^[587] esse credebant, oratione extollunt; dein Sulla omnia pollicito, docti, quo modo apud Marium, item apud senatum verba facerent, circiter dies quadraginta ibidem opperiuntur.

104. Marius postquam confecto negotio, quo intenderat, Cirtam redit, de adventu legatorum certior factus, illosque et Sullam venire jubet,^[588] item L. Bellienum praetorum Utica, praeterea omnes undique senatorii ordinis, quibuscum mandata Bocchi cognoscit. Legatis potestas eundi Romam fit ab consule; interea induciae postulabantur. Ea^[589] Sullae et plerisque placuere; pauci ferocius decernunt, scilicet ignari humanarum rerum, quae fluxae et mobiles semper in adversa mutantur.^[590] Ceterum Mauri, impetratis omnibus, tres Romam profecti cum Gn. Octavio Rufo,^[591] qui quaestor stipendium in Africam portaverat; duo ad regem redeunt. Ex his Bocchus quum cetera, tum maxime benignitatem et studium Sullae libens accepit. Romae legatis ejus, postquam errasse regem et Jugurthae scelere lapsura deprecati sunt,^[592] amicitiam et foedus petentibus hoc modo respondetur:

‘Senatus et populus Romanus beneficii et injuriae memor esse solet. Ceterum Boccho, quoniam poenitet, delicti gratiam facit;^[593] foedus et amicitia dabantur, quum meruerit.’

105. Quîs rebus cognitis Bocchus per litteras a Mario petivit, uti Sullam ad se mitteret, cujus arbitrato de communibus negotiis consuleretur.^[594] Is missus cum praesidio equitum atque peditum, funditorum Balearium;^[595] praeterea iere sagittarii et cohors Peligna cum velitaribus armis, itineris properandi causa, neque his secus atque aliis armis adversum tela hostium, quod ea levia sunt, muniti. Sed in itinere quinto denique die Volux filius Bocchi, repente in campis patentibus cum mille non amplius^[596] equitibus sese ostendit, qui temere et effuse euntes Sullae aliisque omnibus et numerum ampliorem vero et hostilem metum efficiebant. Igitur se quisque expedire, arma atque tela temptare, intendere,^[597] timor aliquantus, sed spes amplior, quippe victoribus, et adversum eos, quos saepe vicerant. Interim equites exploratum praemissi rem uti erat^[598] quietam nuntiant.

106. Volux adveniens quaestorem appellat dicitque se a patre Boccho obviam illis simul et praesidio missum. Deinde eum et proximum diem sine metu conjuncti eunt. Post ubi castra locata et diei vesper erat; repente Maurus incerto vultu, pavens ad Sullam accurrit dicitque sibi ex speculatoribus cognitum, Jugurtham haud procul abesse; simul, uti noctu clam secum profugeret, rogat atque hortatur. Ille animo feroci negat se toties fusum Numidam pertimescere; virtuti suorum satis credere;^[599] etiamsi certa pestis adesset, mansurum potius quam proditis, quos ducebat, turpi fuga

incertae ac forsitan post paulo morbo interiturae vitae parceret.^[600] Ceterum ab eodem monitus, uti noctu proficiscerentur, consilium approbat, ac statim milites coenatos esse, in castris ignes quam creberrimos fieri, dein prima vigilia silentio egredi jubet. Jamque nocturno itinere fessis omnibus Sulla pariter cum ortu solis castra metabatur, quum equites Mauri nuntiant Jugurtham circiter duum milium intervallo ante eos^[601] consedissee. Quod postquam auditum est, tum vero ingens metus nostros invadit; credere se proditos a Voluce et insidiis circumventos. Ac fuere, qui dicerent manu vindicandum neque apud illum tantum scelus inultum relinquendum.

107. At Sulla, quamquam eadem existimabat, tamen ab injuria Maurum prohibet;^[602] suos hortatur, uti fortem animum gererent; saepe ante paucis strenuis^[603] adversum multitudinem bene pugnatum; quanto sibi in proelio minus pepercissent, tanto tutiores fore, nec quemquam decere, qui manus armaverit, ab inermis^[604] pedibus auxilium petere, in maximo metu nudum et caecum corpus ad hostes vertere. Deinde Volucem, quoniam hostilia faceret, Jovem maximum obtestatus, ut sceleris atque perfidiae Bocchi testis adesset, ex castris abire jubet. Ille lacrimans orare, ne ea crederet; nihil dolo factum, ac magis calliditate Jugurthae, cui videlicet speculanti iter suum cognitum esset. Ceterum, quoniam neque ingentem multitudinem haberet et spes opesque ejus ex patre suo penderent, credere illum nihil palam ausurum, quum ipse filius testis adesset; quare optimum factu^[605] videri per media ejus castra palam transire; sese vel praemissis vet ibidem relictis Mauris solum cum Sulla iturum. Ea res ut in tali negotio^[606] probata; ac statim profecti,

quia de improvise acciderant,^[607] dubio atque haesitante Jugurtha, incolumes transeunt. Deinde paucis diebus, quo ire intenderant, perventum est.

108. Ibi cum Boccho Numida quidam, Aspar nomine, multum et familiariter agebat, praemissus ab Jugurtha, postquam Sullam accitum audierat, orator^[608] et subdole speculatum Bocchi consilia; praeterea Dabar, Massugrae filius, ex gente Masinissae, ceterum materno genere impar (nam pater ejus ex concubina ortus erat), Mauro ob ingenii multa bona carus acceptusque. Quem Bocchus fidum esse Romanis multis ante tempestatibus expertus illico ad Sullam nuntiatum mittit paratum sese facere, quae populus Romanus vellet; colloquio diem, locum, tempus ipse delegeret; consulta sese omnia cum illo integra habere,^[609] neu Jugurthae legatum pertimesceret, quo res communis licentius gereretur;^[610] nam ab insidiis ejus aliter caveri^[611] nequivisse. Sed ego comperior Bocchum magis Punica fide^[612] quam ob ea, quae praedicabat, simul Romanos et Numidam spe pacis attinuisse multumque cum animo suo volvere solitum, Jugurtham Romanis an illi Sullam traderet; libidinem^[613] adversum nos, metum pro nobis suasisse.

109. Igitur Sulla respondit, pauca coram Aspare locuturum, cetera occulte aut nullo aut quam paucissimis praesentibus; simul edocet, quae sibi responderentur. Postquam sicuti voluerat congressi, dicit se missum a consule venisse quaesitum ab eo, pacem an bellum agiturus foret. Tum rex, uti praeceptum fuerat, post diem decimum redire jubet, ac nihil etiam nunc^[614] decrevisse, sed illo die responsurum. Dein ambo in sua castra digressi. Sed ubi plerumque

noctis processit, Sulla a Boccho occulte accersitur; ab utroque tantummodo fidi interpretes adhibentur, praeterea Dabar internuntius, sanctus vir et ex sententia ambobus.^[615] Ac statim sic rex incipit:

110. ‘Nunquam ego ratus sum fore, uti rex maximus in hac terra et omnium, quos novi, privato homini^[616] gratiam deberem. Et mehercule, Sulla, ante te cognitum multis orantibus, aliis ultro egomet opem tuli, nullius indigui.^[617] Id imminutum, quod ceteri dolere solent, ego laetor; fuerit mihi eguisse^[618] aliquando amicitiae tuae, qua apud animum meum nihil carius habeo. Id adeo experiri licet:^[619] arma, viros, pecuniam, postremo quidquid animo libet, sume, utere; et quoad vives, nunquam tibi redditam gratiam putaveris; semper apud me integra^[620] erit; denique nihil me sciente frustra voles. Nam, ut ego aestimo, regem armis quam munificentia vinci minus flagitiosum est.^[621] Ceterum de re publica vestra, cujus curator huc missus es, paucis accipe. Bellum ego populo Romano neque feci neque factum umquam volui:^[622] fines meos adversum armatos armis tutatus sum. Id omitto, quando vobis ita placet; gerite quod vultis cum Jugurtha bellum. Ego flumen Mulucham, quod inter me et Micipsam fuit, non egrediar neque id intrare Jugurtham sinam. Praeterea si quid meque vobisque dignum petiveris, haud repulsus abibis.^[623]

111. Ad ea Sulla pro se breviter et modice, de pace et de communibus rebus multis disseruit. Denique regi patefecit, ‘quod polliceatur, senatum et populum Romanum, quoniam amplius armis

valuissent, non in gratiam habituros;^[624] faciundum aliquid, quod illorum magis quam sua rettulisse videretur; id adeo in promptu esse, quoniam Jugurthae copiam haberet; quem si Romanis tradidisset, fore, ut illi plurimum deberetur; amicitiam, foedus, Numidiae partem, quam nunc peteret, tunc ultro adventuram.'^[625] Rex primo negitare;^[626] affinitatem, cognationem, praeterea foedus intervenisse; ad hoc metuere, ne fluxa fide usus popularium animos averteret, quâs et Jugurtha carus et Romani invisi erant. Denique saepius fatigatus lenitur et ex voluntate Sullae omnia se facturum promittit. Ceterum ad simulandam pacem, cujus Numida defessus bello avidissimus, quae utilia visa, constituunt. Ita composito dolo digrediuntur.

112. At rex postero die Asparem Jugurthae legatum appellat dicitque sibi per Dabarem ex Sulla cognitum, posse condicionibus bellum poni;^[627] quamobrem regis sui sententiam exquireret. Ille laetus in castra Jugurthae venit; dein ab illo cuncta edoctus, properato itinere post diem octavum redit ad Bocchum et ei denuntiat, 'Jugurtham cupere omnia, quae imperarentur, facere, sed Mario parum confidere; saepe antea cum imperatoribus Romanis pacem conventam^[628] frustra fuisse. Ceterum Bocchus si ambobus consultum et ratam pacem vellet, daret operam, ut una ab omnibus quasi de pace in colloquium veniretur, ibique sibi Sullam traderet; quum talem virum in potestatem habuisset,^[629] tum fore, uti jussu senatus populi que Romani foedus fieret, neque hominem nobilem non sua ignavia sed ob rem publicam^[630] in hostium potestate relictum iri.'

113. Haec Maurus secum ipse diu volvens tandem promisit, ceterum dolo an vere cunctatus, parum comperimus. Sed plerumque regiae voluntates, ut vehementes, sic mobiles, saepe ipsae sibi adversae.

[631] Postea tempore et loco constituto, in colloquium uti de pace veniretur, Bocchus Sullam modo, modo Jugurthae legatum appellare, benigne habere, idem ambobus polliceri. Illi pariter laeti ac spei bonae pleni esse. Sed nocte ea, quae proxima fuit ante diem colloquio decretum, Maurus adhibitis amicis ac statim, immutata voluntate, remotis ceteris, [632] dicitur secum ipse multa agitavisse, vultu [633] corporis pariter atque animo varius, quae scilicet tacente ipso occulta pectoris patefecisse. Tamen postremo Sullam accersi jubet et ex ejus sententia Numidae insidias tendit. Deinde, ubi dies advenit et ei nuntiatum est Jugurtham haud procul abesse, cum paucis amicis et quaestore nostro quasi obviis honoris causa procedit in tumultum facillimum visu insidiantibus. Eodem Numida cum plerisque necessariis suis inermis, uti dictum erat, [634] accedit ac statim, signo dato, undique simul ex insidiis invaditur. Ceteri obruncati; Jugurtha Sullae vinctus traditur, et ab eo ad Marium deductus est. [635]

114. Per idem tempus [636] adversura Gallos ab ducibus nostris Q. Caepione et Gn. Manlio male pugnatum; quo metu Italia omnis contremuerat. Illique [637] et inde usque ad nostram memoriam Romani sic habuere, alia omnia virtuti suae prona esse: cum Gallis pro salute, non pro gloria, certare. [638] Sed postquam bellum in Numidia confectum et Jugurtham Romam vinctum adduci nuntiatum est, Marius consul absens factus et ei decreta provincia Gallia; isque

Kalendis Januariis^[639] magna gloria consul triumphavit. Ea tempestate spes atque opes civitatis in illo sitae.

Footnotes for *Bellum Jugurthinum*

1.

[1] *Aevi brevis*, 'of short duration.' *Aevum*, in the sense of *aetas*, is rather poetical, and does not occur till a rather late period; whence the common expression *medium aevum*, 'the middle ages,' is not exactly in accordance with the best Latinity.

[2] *Invenias*; supply *quam naturam humanam*.

[3] *Grassatur*, the same as *ingreditur*, 'advances towards;' but *grassari* has the additional meaning of power and vehemence, whence it is often used to mark the progress of something bad.

[4] *Paulisper*, 'for a short time.'

[5] *Auctores* contains a whole clause — 'every one transfers his own fault, *though he himself is the author of it*, to circumstances;' that is, to the things which he himself has done.

[6] *Quodsi*, 'if, however.' Zumpt, § 807.

[7] 'And at the same time very dangerous.' In many cases one feels inclined to assign to the adverb *multum* the meaning of 'often,' but with adjectives, it is used only to strengthen their meaning.

[8] *Regerentur*; supply *casibus*.

[9] *Eo magnitudinis*; that is, *ad eam magnitudinem*, 'to that greatness.' See Zumpt, § 434.

2.

[10] According to the common arrangement of words, it would be *alia corporis, alia animi*; but Sallust abandons this order just because it is common. For the same reason he prefers *alii — pars* to *alii — alii. Naturam corporis (or animi) sequuntur*, ‘they follow the nature (that is, they are of the same kind) of body and mind.’ Regarding the change of *anima* into *animus*, it must be observed that *anima* is ‘the soul,’ the seat and basis of *animus* (mind), which is the activity of the *anima*.

[11] ‘But the mind is not subject to corruption’ (that is, to dissolution and annihilation), for a perfect participle with the negative prefix in frequently denotes a passive impossibility, which is usually expressed by adjectives ending in *ilis* or *bilis*; as *invictus miles*, an invincible soldier.

[12] ‘The mind possesses all things, but itself is not possessed;’ that is, it is free. This is an imitation of a well-known Greek phrase, *εχω, ουκ εχομαι*.

[13] *Admirari* signifies not only ‘to admire,’ but also ‘to wonder,’ at anything which is surprising or displeasing; and in the latter sense it is the same as *mirari*.

[14] Respecting *ceterum* as an adversative conjunction, see Zumpt, § 349.

3.

[15] *Hac tempestate*, the same as *hoc tempore*. Sallust frequently uses *tempestas* in this sense, though certainly the time which he paints in such dark colours — namely, the period after the murder of Caesar, in B.C. 44 — was an agitated and stormy one.

[16] ‘Who have obtained by fraud an honour or honourable office,’

quibus honos contigit.

[17] *Honestus*, 'honoured,' or 'honourable;' for *honestus* (from *honor*) is both the one who is intrusted with an honourable office, and in general he who is worthy of an honour. The persons here spoken of were *honesti* in the first, but not in the second sense.

[18] It might seem doubtful as to whether *parentes* here means 'obeying persons' — that is, subjects of the Roman state — or 'kinsmen,' 'relatives.' We believe the latter to be the case, because to control subjects by force was not deemed improper by the ancients. Sallust elsewhere also combines *patria et parentes* ([Catil. 6](#), [Jug. 87](#)), thereby expressing the idea of a free and equal *civitas*, which is to be convinced, not forced, and to be governed by magistrates chosen by itself, and not by a despotic ruler. The word *importunus* properly characterises the rudeness and unbearableness of a despot or tyrant.

[19] 'Even if you have the power, and intend to punish actual crimes in the state' — whereby Sallust intimates that a tyrannical government may actually introduce improvements, as history proves to have been the case at all times. The subjunctive is used with *quamquam*, because the author speaks only of a possibility, and also because an indefinite person is addressed by the second person singular. Compare Zumpt, § 831, 3.

[20] *Portendere* is here the same as 'to bring with one's self,' or 'to be followed by.' It is a very sound remark, that by violent changes in a constitution, improvements may indeed be effected, but that at the same time these are accompanied or followed by many acts of injustice and crime.

[21] *Frustra niti*, 'to strive in vain (namely, to effect improvements),

if, after all, nothing but hatred is incurred by it, is extreme folly.'

[22] *Nisi forte*, 'unless perhaps' — which surely cannot be the case with any sensible man. Respecting this use of *nisi forte*, expressing an improbable supposition, see Zumpt, § 526.

[23] *Libido* — *gratificari*, 'the inclination to gratify;' for *libido tenet* is only a paraphrase for *libet*. This statement is striking, and but too true, for there are men who think it an honour to sacrifice their own conviction and independence for the purpose of pleasing persons in power.

4.

[24] *Memoria rerum gestarum*, 'the recording of events ;' that is, the writing of history, the usefulness (*virtus*) of which is acknowledged.

[25] The words *per insolentiam* belong to *laudando extollere*, and the meaning is, 'that no one may believe me to extol my own occupation with excessive praise.' *Per insolentiam* is the same as *insolenter*, *per* expressing manner.

[26] 'At least *those* to whom it appears to be a lofty occupation,' &c. Respecting the omission of the demonstrative pronoun before the relative, even when they are in different cases, see Zumpt, § 765.

[27] 'And what distinguished men were unable to attain such a distinction.' Sallust here boasts of having obtained a seat in the senate, and a high magistracy, at a time when it was a matter of difficulty, and when even men of great merit were unable to gain either. But at the same time he adds the remark, that afterwards many undeserving persons were introduced into the senate, to co-

operate with whom was no honour. *Quae genera hominum* refers to the filling up of the senate with persons from the lower classes, and even with such as were not free-born. This connivance at ambitious upstarts, or rather this recklessness in filling up the vacancies in the supreme council of Rome, was shown not only by the dictator J. Caesar, but by his successors in power, M. Antony and Octavianus. In consequence of such things, Sallust adds, it will be evident that he was justified in withdrawing from public life.

[28] That is, the celebrated Fabius Maximus, surnamed Cunctator, who distinguished himself by his prudence in the second Punic War. P. Scipio is the elder Scipio Africanus, the conqueror of Hannibal. We might indeed imagine that Sallust is speaking of Scipio Africanus the younger, but his being mentioned along with Fabius Maximus must lead every reader to think of the elder Scipio.

[29] The images (*imagines*) of ancestors might indeed be statues, but from the mention of wax in the next sentence, it is evident that we have to understand the wax masks which constituted the greatest ornament in the vestibule of the house of a noble family. The busts (portraits) of those ancestors who had been invested with a curule office were made of wax, and their descendants used these wax portraits to dress up persons representing in public processions the illustrious deceased, adorned with all the insignia of the offices with which they had been invested. Such processions, especially at public funerals (a real kind of masquerade), were intended to keep alive in the memory of the Romans not only the names and exploits of their illustrious

statesmen and warriors, but even their bodily appearance.

[30] *Scilicet*, in this passage, is not a conjunction as usual, but, as in the earlier Latinity of Plautus and Terence, it is used for *scire licet*, 'one may perceive,' or 'it is self-evident,' and is accordingly followed by the accusative with the infinitive.

[31] 'The flame of their noble ambition did not become extinguished until their merit had obtained the fame and glory' (namely, of those ancestors).

[32] *His moribus*, 'in the present state of morality,' an ablative absolute.

[33] Instead of *neque*, the author might have used *aut*, for both particles are used to continue a negative statement. See Zumpt, § 337.

[34] *Homines novi*, 'new men,' so called by the Romans, were those persons who were the first of their family to rise to curule offices, as Cato Censorius, and at a later time Cicero. In former times, Sallust says, such *homines novi* distinguished themselves by their ability, while now they rise by base means, especially by party strife and party interest, which he contemptuously calls *latrocinium*.

[35] *Proinde quasi*, 'just as if,' and afterwards *perinde habentur ut*, 'they are considered as of equal value.' Compare Zumpt, §§ 282 and 340.

5.

[36] Respecting the special meaning of this periphrastic conjugation, see Zumpt, § 498. Sallust states that he wishes to describe this war separately, because during its progress there

was kindled at Rome that struggle between the populares and the optimates, which was in the end carried on with such senseless vehemence, that only the devastation of Italy put a stop to the civil discord (*studiis civilibus*), and that only a military despotism (first of Caesar, and afterwards of the triumvirs) was able to restore peace. This part of the description of the Jugurthine war, accordingly, is of the greatest importance, in forming a correct idea of the history of Rome at that time.

[37] The same meaning might have been expressed by *ut omnia ad cognoscendum illustriora et apertiora sint*. See Zumpt, § 106.

[38] That is, ‘after the Roman name had become great;’ for in earlier times the Roman people had suffered still greater reverses, especially when the Gauls took and burned the city of Rome itself. But the author purposely avoids speaking of those early periods.

[39] *Africano*. See Zumpt, § 421.

[40] About *et* after *multa*, see Zumpt, § 756.

[41] *Magnum atque late*, the connection of an adjective and adverb is somewhat singular — ‘the dominion of Syphax existed as a large one, and had a wide extent;’ for he possessed the whole of western Numidia, being the hereditary king of the people of the Massaesyli, while Masinissa had only the smaller, eastern, part, and the tribe of the Massyli.

[42] ‘He had left him behind in a private station;’ that is, he had not appointed him in his will ruler of any portion of his dominions. But his uncle Micipsa gave him that which his grandfather Masinissa had refused to him; namely, he recognised him as a prince of the royal family.

[43] *Luxu* for *luxui*. See Zumpt, § 81.

[44] 'The favourable opportunity of his advanced age, and of the tender age of his children.'

[45] Opportunities are apt to lead ordinary persons (not endowed with great mental powers) away from the right path. *Transversus*, 'that which turns away to one side.'

7.

[46] 'In the war against Numantia.' Numantia was the capital of the Arevaci, a tribe of the Celtiberians in Spain, and was situated on the upper Durus (now Duero), in the mountainous district whence the Durus and Tagus flow westward, and other rivers eastward, into the Iberus (Ebro), and southward into the Mediterranean. This city carried on a desperate war against Rome to defend its own independence. After a brave resistance of many years, it was taken and destroyed, B. C. 133, by Scipio the younger, the destroyer of Carthage. Its ruins are believed to be in the neighbourhood of the modern Soria.

[47] *Qui tum erat* — that is, *quem tum Romani imperatorem habebant*.

[48] *Difficillimum in primis*, like *difficillimum omnium*; that is, the most difficult among those that were the first or foremost in difficulty.

[49] The one — namely, to be good in council — usually produces timidity; the other — namely, to be bold in battle — rashness. *Alterum* — *alterum*, takes up the things mentioned before, but in an inverse order; respecting which, see Zumpt, § 700, note.

[50] *Erat* for the usual subjunctive *esset*.

8.

[51] 'To whom wealth was of more importance than that which is good and noble.'

[52] For the meaning of *pro* in this and similar expressions, see Zumpt, § 311.

[53] Not to make presents to individuals, *quibus* being used for *aliquibus*. Scipio must have seen with displeasure the intimacy between Jugurtha and certain young ambitious Romans of an equivocal character.

[54] 'In his own mode of acting,' must be understood here of his honourable mode of acting; though there are also *malae artes*, such as faithlessness, cunning, flattery, and the like.

9.

[55] *Certo scio*; we also find *certe scio*. See Zumpt, § 266, note.

[56] *Verba habere* is sometimes used in the sense of *orationem habere*.

10.

[57] *Me falsum habuit* for *me fefellit*. We remarked before ([Cat. 51](#)) that Sallust is fond of using *habere* in certain phrases.

[58] *Amicissimos*. See Zumpt, § 410.

[59] *Per regni fidem*, 'by the conscientiousness which is observed in governing, and must be observed;' so that it is almost the same as *per regiam fidem*, or *per fidem regum*, which kings owe to one another.

[60] *Adjungere*; supply *tibi*, 'connect yourself with strangers,' as

opposed to supporting and maintaining friendly relations with his friends and kinsmen.

[61] Sallust here changes his expression. He might have said *parantur*, but *parere* also occurs in other authors in the sense of *parare*, or ‘to acquire.’

[62] *Ante hos*, ‘in preference to these.’

[63] *Observare* has a sense similar to that of *colere*, ‘to honour’ and refers to the observance of all the duties of devotedness, especially in the external relations of social life.

11.

[64] *Reguli* may be petty kings with small dominions as well as young kings — that is, princes. We here take the latter to be the meaning.

[65] *Adherbalem assedit*, or *Adherbali assedit*, ‘he sat himself down at the right-hand side of Adherbal.’ See Zumpt, § 386, note. There accordingly remained for Jugurtha only the place on the left of Adherbal — that is, the least honourable of the three places.

[66] *Fatigatus* is commonly construed with an ablative, which is here to be supplied (*precibus*); but without such an addition, *fatigare* signifies ‘to importune a person with prayers and requests.’

[67] ‘Within the last three years;’ but as the author is here speaking of the time at which something happened, it is used instead of *ante triennium*, or *triennio ante*.

[68] *Cum animo habere*, the same as *cum*, or *in animo agitare*, *volvere*, *reputare*. Here, again, we must attend to the use of *habere*.

12.

[69] *Alius alio*, 'one in one direction, and the other in another.' See Zumpt, § 289.

[70] *Proximus lictor* is the one of the lictors who, when they precede the praetors or consuls, walks last, and is therefore nearest to his commander; and this lictor, according to Roman custom, had the highest rank among his fellow-lictors. The customs of the Romans were imitated at the courts of allied princes.

[71] *Claves adulterinae*, 'imitation keys.'

[72] Respecting the *quum* in descriptions, where it is commonly preceded by *interea*, or *interim*, see Zumpt, § 580.

13.

[73] *Parat*, in the sense of *se parat*, 'he prepares himself,' or 'sets about;' and thus *parare* is not unfrequently used by Sallust absolutely in the sense of *statuere* and *instituere*.

[74] *Provincia* here is the Roman province of Africa, consisting of the territory of Carthage which had been destroyed, and containing the towns of Leptis, Hadrumetum, Utica, and Carthage, which was gradually rising again as a Roman town. That territory now belongs to the dey of Tunis, a vassal prince of the Turkish sultan. Numidia, in the west of the Roman province, was bounded in the west by the kingdom of Mauretania, and comprised the modern Algeria which is possessed by the French.

[75] *Paucis diebus*, 'within a few days;' that is, a few days after. See Zumpt, § 480.

[76] *Singulos ambire*, 'to go about addressing individual persons,' has at the same time the meaning of 'attempting to gain them over by intreaties or promises.'

[77] 'That no severe decree might be passed against him,' *ne gravius consilium in eum caperetur*.

14.

[78] Adherbal says that only the administration of Numidia belongs to him, but that the legal title and supremacy belong to Rome — the language of abject servility, by which he wishes to recommend himself to the protection of the senate.

[79] *Affines* are those connected with one another by marriage, whereas *cognati* are relations by blood.

[80] *Sustinere* is here the same as *ferre*.

[81] 'As I was to come to such misery;' that is, as it had been ordained by fate that I should come to such misery. See Zumpt, § 498.

[82] Adherbal wishes to be able to solicit the aid of the Romans, in consequence of his own services, rather than those of his ancestors; he then again divides that wish, considering it as most desirable that the Roman people should owe him services without his being in want of them, and next in desirableness that the services which he requires should be performed as services due to him. By this latter sentiment he returns to the point from which he set out — namely, his wish to have done good services (*beneficia*) to the Romans. *Vellem* in this sentence is followed twice by the accusative with the infinitive (*posse*, to which *me* is to be supplied, and *beneficia deberi*), and then by a clause with *ut*

(*uti*; that is, *ut* — *uterer*). *Secundum ea*, 'next to,' or 'next after this,' according to the etymology of *secundum* from *sequor*.

[83] *In manu fuit*, an expression not uncommon in the comic poets; *in manu alicujus est*, 'it is in a person's power.'

[84] 'At a time when the good fortune of the Romans did not render it so desirable to enter into connection with them as their fidelity and trustworthiness.'

[85] 'Do not allow me in vain to pray for your assistance.' *Me* in this sentence is accompanied by two accusatives in apposition, first *progeniem*, and then *nepotem Masinissae*.

[86] Observe the unusual combination *Romani populi* for *populi Romani*, which is to be explained by the fact, that here *Romani* is the more emphatic word, placing the Roman people in contrast with other nations.

[87] 'O I, unfortunate man! to what result, father Micipsa, have thy good services led!' For the accusative *me miserum*, see Zumpt, § 402; and for the double suffix in *hucine*, § 132.

[88] 'Never, then, will our family be at peace!' an exclamation to which afterwards an interrogative sentence with *ne* is appended. The former also might have been expressed by *numquamne ergo*, &c.

[89] The subjunctive *jussissetis* indicates a repeated action. See Zumpt, § 569. The senate and people of Rome had the right to make war and peace throughout the extent of the Roman dominion, so that the allied nations and kings were obliged to regard those against whom the Romans declared war as their own enemies; as, for example, not long since, the Numantines.

[90] 'Who being a brother, was at the same time a relation.'

Respecting this use of the pronoun *idem*, when the two predicates are added to one subject, see Zumpt, § 697.

[91] *Non queo*; that is, *nequeo*, or *non possum*.

[92] *Extorris* (from *terra*), as *exsul* from *solum*, 'homeless.' Respecting the ablative denoting separation or privation, see Zumpt, § 468.

[93] *Tutius*; the adjective *tutior* also might have been used. Respecting the use of adverbs with *esse*, see Zumpt, § 365.

[94] *Maxime tutos*; that is, *omnium tutissimos*.

[95] 'Whatever was in the power of our family;' *quod per familiam nostram stetit*.

[96] This inserted clause belongs to the following *propinquus*. The demonstrative *id* (or *is*) is omitted, and the relative clause precedes the word to which it refers. See Zumpt, §§ 765, 813.

[97] *Pars* — *pars*; that is, *alii* — *alii*; whence the verb is in the plural.

[98] *Exigere vitam* for *agere vitam*, but implying a long and sorrowful life.

[99] 'Which out of friendly things (circumstances), have become hostile.' The neuter *necessaria* also comprises the persons who are termed *necessarii*, 'persons connected by ties of relationship or friendship;' such as in particular Jugurtha, the adoptive brother of the speaker.

[100] 'Whither shall I turn myself? whom shall I call to my assistance?' Donatus, an ancient grammarian, in his commentary on Terence, quotes from Sallust *quo accidam?* 'whither shall I turn myself for assistance?' but none of the manuscripts has that reading in this passage.

[101] He alludes to the nations and kings who were still independent and had not yet been incorporated with the Roman empire, especially the kings of Syria and Egypt, and perhaps also the king of Mauritania.

[102] Sallust might have said *hujus imperii*, but he prefers the dative, which is a *dativus incommodi*.

[103] *Secundus*, 'favourable,' according to its derivation from *sequor*, is especially used of a favourable wind, but also in the general sense of 'assisting,' or 'devoted to.'

[104] *Fatigare*, 'to importune a person with prayers.' See note [chap. 3](#).

[105] *Quodutinam* connects this sentence in an animated manner with the preceding, otherwise *utinam* alone might be used. 'Yes, would that I could but see Jugurtha feigning these very things.'

[106] *Nae ille — reddat*; as far as the sense is concerned, this sentence forms the apodosis to the preceding wish: 'would that I could see him in like circumstances, and would that at length the gods opened their eyes; then he would surely have to pay a heavy penalty for his impiety, for the death of my brother and for my sufferings.' The present subjunctive in the apodosis corresponds with the same tense in the protasis, and differs very little from the future indicative. See Zumpt, § 524, note.

[107] 'Although life has been taken from thee before the age of maturity, and by a person who should have done it least of all.' *Unde*, the more general relative, is here used for a *quo homine*. In like manner the Romans, in legal phraseology, called the defendant *unde petitur*; that is, the person of whom payment is demanded.

[108] *Doleo*, 'I grieve at,' is construed with *de*, as *de casu tuo*, with the ablative alone, *casu tuo*, and also as a transitive verb with the accusative, *doleo casum tuum*. *Laetari* here follows the construction of *doleo*, for it is generally followed by *de*, or the ablative alone. See Zumpt, § 383.

[109] Namely, the life and death of the persecuted Adherbal depends upon the power of Jugurtha.

[110] Adherbal wishes two things: first, that a speedy death may terminate his misfortunes; and second, not to be obliged to live in contempt, if he should yield to Jugurtha. But neither of these things, says he, can be done. Jugurtha will continue to lay snares for him, and if he yields, and gives up to him his kingdom, he must live despised. These two wishes are here uttered to move the hearts of the senators, expressed as they are by a king.

[111] *Per vos liberos atque parentes vestros*. The words *per liberos* belong together; to *vos* supply *oro*. See Zumpt, § 794. Adherbal intreats the senators by their children and parents, because Jugurtha has so criminally trampled on the sacred rights of the family. Others read *per vos per liberos vestros*; but this is wrong, and the repetition of *per* is bad: we never intreat persons by themselves, but by something that is dear to them.

[112] *Tabescere*, 'to waste away,' 'perish;' the proper meaning is, 'to be consumed by some disease.'

15.

[113] *Ante facta*, &c. It would have been more common to say *factis suis anteponerent*. In Cicero, *ante* is not used to denote preference as in Sallust, [Cat. 53](#): *Graeci ante Romanos fuere* for

Graeci Romanis praestabant.

[114] According to Sallust's mode of speaking, we should have expected *depravati*, *pars* being only another form for *alii*. But nothing can be said against the grammatical agreement *pars depravata*, it being that form which, according to grammar, should be used.

[115] Scaurus dreaded the stained audacity of those who accepted bribes from Jugurtha without any scruple or shame, and would have liked to stir up against them the hatred and envy of others. *Licentia* is the conduct of a man who thinks he is allowed to do anything, and accordingly here signifies to accept bribes by which statesmen disgrace themselves. The adjective which properly refers to men (*pollutus*) is here transferred to *licentia*. Sallust describes Aemilius Scaurus, one of the most eminent men of his age (he was twice consul and princeps senatus), as a prudent aristocrat, anxious to keep up a respectable appearance, and to avoid suspicion as much as possible; although in secret he, too, had recourse to unfair means to obtain influence and wealth. The events which Sallust has related hitherto, the murder of Hiempsal, the expulsion of Adherbal by Jugurtha, and Adherbal's flight to Rome, belong to the year B.C. 116, a time when, if we except some trifling wars against barbarous tribes on the frontiers, the Roman Republic was not engaged in any military undertaking.

16.

[116] Opimius had been consul in B.C. 121, and in that year he had, with the authority of the senate, crushed the democratical

party of G. Gracchus by force of arms. In consequence of that victory, several very harsh measures had been adopted by the aristocracy to strengthen and increase the power of the senate and the nobility. Opimius, too, was a statesman of loose principles, as is clear from the narrative of Sallust.

[117] *Fide* for *fidei*. See Zumpt, § 85, note 3.

[118] *Possedit*, 'he took possession of.' The present *possideo* only means 'to possess;' but the past tenses, *possedi*, *possessum*, at the same time have the meaning of 'taking possession,' as if they were formed from a present *possido*, *possidere*. Compare the similarly-formed compounds of *sido*, *sidere*, in Zumpt, § 189.

17.

[119] *Frequentata sunt*, 'they have been frequented.' The participle is in the neuter, the subjects being both animate and inanimate. *Asperitas* refers to the inaccessible nature of mountainous districts.

[120] Other editions have *in partem tertiam*, and this deviation from the common mode of speaking (which is to use *pono* with *in* and the ablative) commentators explain by the remark, that the division was not yet made, but only supposed. But the Latin language knows of no such distinction.

[121] In the earliest times, before the earth was divided into three parts, it was rather customary to consider Africa, especially Egypt and the countries about the Nile, as belonging to Asia. To connect Africa with Europe could only have been an idea of those who divided the earth into an eastern and a western half, and did not know the vast extent of Africa to the south.

[122] *Fretum*, &c.; that is, the Fretum Herculeum, or the Straits of Gibraltar. It is clear that Sallust wants to state only the northern frontier of Africa on the Mediterranean, and the frontiers in the east and west. The extent of Africa southward was too little known to him to speak about it.

[123] 'The inclined plain,' or, as the geographer Mela says, 'the valley which inclines towards Egypt.' The length of this valley extends from south to north as far as the Mediterranean, and in the upper part it separates the immense desert in the west from the oasis in the east, which is considered as a part of Egypt. The easternmost country in Africa on the Mediterranean was Cyrenaica. It is therefore quite clear that Sallust does not include Egypt in Africa.

[124] Sallust wants to give a short account of the original inhabitants of Africa, and their amalgamation with new immigrants, such as it was translated for him from the Punic books of King Hiempsal. This Hiempsal is not the same as the one already mentioned, who had been murdered by Jugurtha, but a later descendant of Masinissa, who ruled after Jugurtha, and was still alive in the days of Cicero, about B. C. 60. *Interpretatum* est, in a passive sense. See Zumpt, § 632.

18.

[125] Within the clause expressed by the ablative absolute (*multis — petentibus*) there is inserted another stating that each did so for himself, and that in the nominative case, because *multis petentibus* is, after all, only a different form for *quum multi peterent*. Grammatically speaking, it ought to be *sibi quoque*; but

no Latin would have understood this, since he would have taken *quoque* as an adverb. See Zumpt, § 710. *Passim*, 'in different places,' 'scattered everywhere,' but not 'here and there.' The tradition of the immense conquests extending to the western extremities of the known earth, which are ascribed to Hercules (Heracles), who occurs in the traditions of various nations, runs through the whole of ancient history.

[126] *Nostrum mare* is the Mediterranean, the African coast of which was occupied by the parts of Hercules' army here mentioned; and the *Persae*, it is farther stated, occupied that coast which is more within (that is, 'on this side,' as a person writing at Rome would say) the ocean.

[127] *Gnarus* and *ignarus* have most commonly an active meaning, denoting 'one who does know,' or 'one does not know;' but sometimes, and especially in Sallust and Tacitus, they have a passive meaning, 'he who is known,' and 'he who is not known.' So here *ignara lingua* is the same as *ignota lingua*.

[128] 'They tried the fields;' that is, 'the soil,' as to whether it was fruitful, and in this manner they sometimes inhabited one place, and sometimes another. *Alia, deinde alia*, is the same as *alia atque alia*, as in [chap. 26](#). Hence they were called in Greek *Νομάδες*, and the Greek accusative of this word, *Nomadas* for *Nomades*, is used by Sallust in the next sentence. See Zumpt, § 74.

[129] The Medes and Armenians in the army of Hercules joined the Libyans, the ancient inhabitants of Africa. *Libyes* is the accusative, for *accedere* is joined with the accusative as well as the dative of the person whom one joins. See Zumpt, § 386, note.

[130] This derivation of the name *Mauri* is very improbable. The Mauri are the inhabitants of the western part of the African coast of the Mediterranean. They lived to the west of the mouth of the river Mulucha (which separated them from the Numidians), opposite Malaga and Cadiz, and also on the coast of the ocean extending southward as far as those countries were known to the ancients. The modern name of Moors is derived from the ancient Mauri.

[131] *Utrique* refers to *parentes* and their descendants, the Numidae. One part of the nation trusted to the other (*alteris freti*), and was supported by it.

19.

[132] To *aliis* — *avidis* supply *sollicitatis*.

[133] All three are cities in the territory of Carthage, which afterwards became the province of Africa. Hippo with the surname of Diarrhytus, (there being another town, Hippo Regius, on the coast of Numidia,) is said to be the modern Bizerta; Hadrumetum, southeast of Carthage, and Leptis, surnamed minor (there being another town, Leptis magna, more to the east), are now in ruins.

[134] ‘To their origin;’ that is, to their mother country Phoenicia, whence the settlers had come.

[135] The transition to Carthage by the conjunction *nam* presupposes the ellipsis of some such sentiment as — ‘I only meant to mention these Phoenician settlements on the African coast, *for* it is well known that Carthage also was a settlement of the Phoenicians.’

[136] *Secundo mari*, ‘along the sea,’ is said according to the

analogy of *secundo flumine* (see Caes. *Bell. Gall.* vii. 58) *secundo flumine ad Lutetiam iter facere coepit*. The sea has indeed no current like a river, but the direction is determined by the person travelling on the coast, and in this case it is the direction from east to west. *Theraei* are the inhabitants of the island of Thera, in the Greek Archipelago, south of Peloponnesus, whence the first Greek settlers at Cyrene proceeded in B. C. 631, under the leadership of Battus. Respecting the Greek genitive *on*, instead of *orum*, see Zumpt, § 52, 1.

[137] *Syrtis major* and *Syrtis minor* are two large sandbanks near the coast of Africa between Cyrene and Carthage. They were very dangerous to navigation, and between them lay the route to Leptis magna, a city of considerable importance. Compare [chap. 78](#), where Sallust describes these sandbanks and the bays named after them.

[138] The origin of the name of this place is stated by Sallust, [chap. 79](#). As it was situated above the great, that is, the eastern Syrtis, it is clear that *deinde* is used somewhat vaguely, since only the great Syrtis, but not the town of Leptis and the small Syrtis, precede the place Arae Philaenon in the order of succession.

[139] 'Above Numidia;' that is, southward, towards the inland, the coast being always, or at least being always conceived to be, lower than the inland districts.

[140] *Novissime*, 'latterly;' that is, at the beginning of the third Punic war, the result of which was, that Carthage and its territory became a Roman province.

[141] *Cetera ignarus*, 'otherwise unknown.' Compare p. 87, note 4 [\[note 127\]](#); and on *cetera*, Zumpt, § 459.

20.

[142] *Questum*, the supine, 'in order to complain'

[143] 'The war previously undertaken had turned out unsuccessfully.' About *secus*, see Zumpt, § 283.

21.

[144] *Cirta*, the capital of Numidia, situated in that part of the country nearest to Carthage, or the Roman province. It is said to be 'not far from the sea,' only in consideration of the vast extent of Numidia to the south. *Cirta* is the modern Constantina, which name it received in honour of the Emperor Constantine, and is situated at a distance of four days' march from Bona, the ancient Hippo Regius.

[145] *Plerumque* for the more common *plurimum*, 'the greater part.' See Zumpt, § 103.

[146] As Sallust in other passages connects *pars* and *alii*, so here *partim* and *alios*, *partim* being the same as *partem*.

[147] *Togati* are Roman citizens, for they alone wore the peculiar and privileged dress called *toga*. But it may be that other Italians also are comprised under the name; for Romans and Italians resided in great numbers in all the towns subject to the Roman dominion, for the sake of commerce, and in them they formed a distinct *conventus*. *Moenibus prohibere*. See Zumpt, § 468.

[148] It would be more in accordance with the ordinary usage to say, *et se et illis*. See Zumpt, § 338.

22.

[149] Literally, 'but this report was mild;' that is, it spoke of the battle and siege as if they had been mild or moderate; which was not the case, as Jugurtha carried them on with all his energy.

[150] *Pro bono facere*; literally, 'to act in accordance with what is good,' and hence 'to act well,' *bene agere*.

[151] *Utrique* refers to both parties — the Roman ambassadors on the one hand, and Jugurtha on the other. The ambassadors were not allowed to speak with Adherbal.

23.

[152] *Arrigere*, the same as *excitare*; hence frequently *animum arrigere*, 'to rouse courage.'

24.

[153] *Nisi tamen intellego* refers to the preceding *plura scribere nolo*, and expresses an exception, as is always the case with *nisi* after a negative: he will write nothing else, but still add the remark that Jugurtha aimed at something beyond the kingdom of Adherbal; namely, that he intended afterwards to attack the Romans themselves, because he saw that the acquisition of the kingdom of Adherbal was irreconcilable with the friendship of Rome. *Plura non scribam nisi hoc intellego* is an elliptical expression, equivalent to *plura non scribam, nisi hoc scribam, me intellegere*.

[154] 'Whatever may have been our mutual acts of injustice, it is no concern of yours;' that is, they must be indifferent to you. Consider only the fact, that he has taken possession of the

kingdom of your ally.

[155] Adherbal, for the purpose of exciting the sympathy of the senate, represents it as a fact that he is born only to exhibit (endure) the crimes of Jugurtha. Respecting the dative *ostentui*, see Zumpt, §§ 90 and 422.

[156] Adherbal prays the senate to *prevent* (*deprecor*) his enemy from acquiring the sole sovereignty, and from killing him amid tortures.

25.

[157] *Consuleretur*; supply *senatus*; 'that the subject of the disobedience shown by Jugurtha should be brought for decision before the senate.'

[158] *Enisum est*, 'it was carried.' Observe the passive meaning of the deponent verb.

[159] *Quam ocissime*, 'as speedily as possible.' The positive of *ocissime* is not in use in Latin. Zumpt, § 293, note.

[160] *Cirtam irrumpere* is a peculiarity in the style of Sallust, the common expression being, *in urbem irrumpere*. See Zumpt, § 386, note.

[161] By engaging the enemy's troops in different places, and thus dividing them. This is the meaning of the inseparable particle *dis* or *di*.

26.

[162] 'Although he considered everything else to be of more weight than the faithfulness (promise) of Jugurtha.' The conquest

of Cirta, and the putting to death of Adherbal, belong to the year B. C. 112.

27.

[163] *Interpellando*, 'by interrupting the speakers, and introducing other topics.'

[164] By this law of the tribune G. Sempronius Gracchus, in the year B. C. 122, it had been ordained that every year previous to the election of the consuls for the next year, the senate should determine those provinces which should be assigned to the consuls about to be elected, after the expiration of the year of their office. As two provinces were thus fixed upon, the consuls afterwards determined by lot which should have the one, and which the other. The object of this law was to prevent intrigues in the senate, which would be carried on by the ruling consuls if they had to choose their own provinces.

[165] *Obvenit*, 'fell to the lot.' Whenever Italy is called a province, it is implied that the consul undertaking its administration was to remain at Rome, and was to be ready for any other war which might break out. For in the first place, there were now no wars in Italy, and in the second place, Italy was not a province in the ordinary sense of the term. The consuls here mentioned entered upon their office on the 1st January, B. C. 111.

28.

[166] *Venum eo*, or contracted *veneo*, infinitive *venire*, 'to go to be sold,' or 'to be sold;' the passive of *vendo* (I sell) is not in use.

Zumpt, § 187.

[167] *Adventabant*, with the accusative, see Zumpt, § 489.

[168] *In diebus*, &c.; for *in*, with words denoting time, see Zumpt, § 479. *Deditum* is a supine.

[169] *Legare* properly signifies ‘to despatch,’ and ‘to add to;’ whence the word *legatus* means both ‘an ambassador,’ and ‘a person added to an officer,’ who, when necessary, supplies his place. See [Catil. chap. 59](#). It was the business of the senate to supply such legates to a magistrate (*senatus legat aliquem alicui*), but as this was commonly done on the proposal or recommendation of the magistrate himself, we also read *legat sibi*, ‘he chooses some one to be his legate.’

[170] *Supra*. See [chap. 15](#).

[171] Respecting the omission of *in* before *Siciliam*, see Zumpt, § 398, note 1.

[29.](#)

[172] *Aeger avaritia*, ‘sick with avarice;’ a very appropriate expression, describing moral defects as a disease.

[173] *A principio*; that is, *in principio*. See Zumpt, § 304. The faction of Scaurus is that of the nobility or aristocracy.

[174] *Vaga*, a considerable town in Numidia, to the south-east of Cirta.

[175] ‘A truce was observed on account of (or during) the delay of the surrender,’ which Jugurtha had promised, but which could not yet be carried into effect.

[176] *Secreta* refers to *reliqua*, so that the other negotiations were secret, whereas the proposal to surrender had been made in

presence of the war council. It would have been more in accordance with ordinary usage to employ the adverb *secreto* belonging to the verb.

[177] The opinions of the persons invited to the war council were asked only *en masse* (*per saturam*). The Latin expression is taken from *lanx satura*, a dish offered as a sacrifice to the gods, and containing different kinds of fruit. Its figurative application to other mixtures is here indicated by *quasi*.

[178] *Pro consilio*; that is, *in consilio*. See Zumpt, § 311.

[179] To cause the magistrates for the year B.C. 110 to be elected. The president in the elective assembly *rogat populum* (requests the people) to appoint new officers; hence *rogare*, the usual term.

30.

[180] *Parum constabat*, 'was not firmly determined upon;' namely, *iis, patribus* — that is, they had not yet made up their minds.

31.

[181] *Dehortantur a vobis* — that is, *ad causam vestram suscipiendam*, 'many things dissuade me to undertake your cause.' According to the context, the expression might, or rather should be, *multa me dehortantur, ni superaret*; but the present represents the act of *superare* as an actual fact, and is at the same time more impressive.

[182] The number XV., which is found in all good manuscripts, points to the year B. C. 125, in which the aristocracy gained a

decisive victory through the praetor L. Opimius, who destroyed the town of Fregellae, and thereby crushed the first attempt of the Italian allies (*socii*) to obtain the Roman franchise. It may be supposed that this attempt of the allies was even then supported by the Roman plebs, as was the case afterwards in the time of Marius.

[183] *Ab ignavia* is to be taken in the sense of 'in consequence of,' or 'on account of your cowardice.' See Zumpt, § 305.

[184] 'When your political enemies (in consequence of the crime which they have committed) are deserving of punishment, and in your hands.'

[185] *Animus subigit*. 'My feelings compel me to stand out against the faction (of the optimates), in spite of your lukewarmness.'

[186] *Ob rem*, 'effectually,' 'with success.'

[187] 'They must ruin themselves.'

[188] 'I will grant that everything has been done with justice, which cannot be punished without again shedding the blood of citizens;' that is, the cruelties then committed by the optimates in crushing Tib. and G. Gracchus may be considered as legitimate, since the perpetrators cannot be punished without fresh executions. *Ulciscor*, usually a deponent, is here used in a passive sense, just as the participle *ultus* is sometimes used in the sense of *vindicatus*. For the same reason, the passive form *nequitur* has been chosen; respecting which, see Zumpt, § 216.

[189] *Parum habuere*, 'they considered it too little' (this is the meaning of *parum*): it was not enough for them that they had committed such disgraceful acts.

[190] *Incedere per ora hominum*, 'to walk in the eyes' or 'in the

sight of men.'

[191] 'The cruelties committed against the defenders of the plebs, serve them as a bulwark;' that is, make them only the more audacious.

[192] About *quam maxime* — *tam maxime*, expressing a proportionate increase, see Zumpt, § 725.

[193] A complicated expression — 'they have transferred their fear, which they ought to have on account of their crime, to your cowardice;' that is, to you who are cowards, or whom they consider as cowards.

[194] *In unum coëgit*; that is, *conjunxit, copulavit*. The infinitives here are the subjects of the sentence: the same fear and the same greediness have united all your opponents into one league. Compare [Cat. 20](#): *idem velle atque idem nolle, ea demum firma amicitia est*.

[195] *Beneficia vestra*; that is, *honores, magistratus, imperia*.

[196] The speaker refers to the two most important secessions of the Roman plebs — the one in which they obtained their tribunes in B.C. 510, and the other, which was undertaken in B.C. 449. to restore the consulate and the tribuneship after the overthrow of the tyrannical rule of the decemvirs. Both led to the establishment of a legitimate state of things (*jus*), and the latter, in particular, to the establishment of the decisive authority of the people against the magistrates and the patricians. This sovereignty of the Roman people was termed *majestas*. These secessions, according to the statements of the ancients, were made to the Mons Sacer, and not to the Aventine; but Sallust here follows other ancient authorities; and it is probable enough that the plebs may have

occupied both hills.

[197] Respecting the form of this sentence, see Zumpt, § 781. The answer to this question is contained in the clause *atque eo vehementius*, to which we must supply *nitendum vobis est*. *Atque* introduces the answer with emphasis.

[198] *Vindicare* is construed with *in* and the accusative, as well as *vindicare scelus in aliquo* and *vindicare aliquam rem*. *Vindicare in aliquem*, 'to use force against a person for the purpose of taking revenge.' *Vindicare sibi rem*, 'to claim a thing for one's self,' or 'to appropriate a thing.'

[199] *Quaestio*, 'a judicial inquiry into a crime,' 'a criminal trial.'

[200] *Nisi forte* supposes, with a strong irony, a case which cannot be conceived. See Zumpt, § 526.

[201] *Quantum importunitatis habent*, 'according to the high degree of impudence and arrogance which they possess.' Sallust might have said, *quae eorum importunitas est*, or *pro eorum importunitate*. See Zumpt, § 705.

[202] *Rex*, according to Roman notions, always contains the idea of an absolute ruler, and is therefore frequently used in the sense of 'a tyrant.' The idea of a constitutional or limited monarchy was not known in antiquity, except perhaps at Sparta.

[203] *Perditum eatis*; that is, *perdati*. See Zumpt, § 669.

[204] Practically, it is quite correct, that in the administration of a state it is more necessary to punish criminals than to reward good services; for it is impossible that all good citizens should be rewarded with external distinctions; but if a criminal remains unpunished, he does harm by his example, and undermines the organism of the state.

32.

[205] *Arcessere*, 'to summon before a court of justice,' governs the genitive of the thing for which a person is summoned.

[206] *Rogatio*, 'a proposal to the people,' because, in making a proposal, as well as at elections of magistrates, the people were requested (*rogabatur*) to pass a resolution.

33.

[207] *Per sese*, 'as far as lay in him,' 'as much as he could,' as in the phrase *per me licet*.

[208] Respecting *Romae Numidiaequae*, where *Numidiae* by a kind of attraction takes the same case as *Romae*, instead of *in Numidia*, see Zumpt, § 398, note 1.

[209] 'He (Jugurtha) would not, indeed, thereby be a safety to his accomplices, but destroy his own hope (of obtaining pardon).'

34.

[210] The words *quae ira fieri amat* are very surprising, but were regarded by the ancients themselves as a Graecism of Sallust, from whom Quintilian quotes the words *quae vulgus amat fieri*, which occurred in a work of Sallust that is lost. In both cases, we must construe *ira (vulgus) amat* with an accusative with the infinitive after it: 'anger likes that this or that should happen.'

[211] *Animus augecit*, 'courage grows' or 'increases.' For the plural *animi*, see Zumpt, § 92.

35.

[212] We here enter the year B.C. 110.

[213] *Urgueat*, 'presses Jugurtha;' that is, he is hindered by the indignation on account of his past crimes, and at the same time by the apprehension with which the Roman people regard him.

[214] He would like best that it should be done in secret; but if this should not succeed, he would like it to be done in any way, whatever it might be. Instead of *maxime*, the author might have said *potissimum*. See the same expression [chap. 46](#).

[215] *Profiteri indicium*, 'to declare that you will state everything.' We must understand that in the defective administration of justice at Rome, the *index* (informer) received a promise of impunity.

[216] *Manifestus*, with the genitive of the crime, is a person *qui mani festo tenetur*, or against whom there is most decisive evidence.

[217] *Animum adverto*, the same as the compound *animadverto*, like *venum eo* for *veneo*.

[218] Jugurtha had given fifty sureties in the name of Bomilcar, in order that he might remain at liberty. These sureties were of course fifty Roman citizens. As Bomilcar fled, those sureties had to pay the money with which each guaranteed his appearance, and there can be no doubt but that Jugurtha secretly paid the money.

[219] *Paucis diebus*. See Zumpt, § 480.

[36.](#)

[220] This season was usually the middle of the year, but was frequently delayed until the autumn. The consul Albinus seems to have been commissioned to preside at the elections, because his

colleague, who had obtained Macedonia, was at a still greater distance.

[221] Jugurtha protracted the war, delayed the negotiations for peace, and in this manner thwarted the consul. We have here restored the active form *ludificare*, because it exists in all the manuscripts. It is found also in Cicero, though the deponent *ludificari* is more frequent.

[222] Some were convinced that after the hurry which the consul had shown at the beginning, the war was protracted, not so much by his carelessness, as by his cunning designs. *Non magis quam* is expressed in modern languages as if the Latin were *dolo magis quam socordia*: 'they believed that the war was protracted by his cunning designs rather than by his carelessness.' See Zumpt, § 725.

37.

[223] *Continuare magistratum*, 'to continue for another year in a magistracy which has been given for only one year.' In the case of some magistracies this was forbidden by law; in that of tribunes of the people, it occurs rather frequently in the early times, that they were re-elected twice or oftener in successive years. The last instance of a tribuneship lasting for two years is that of G. Gracchus, in B.C. 123 and 122; and even then this re-election was the cause of violent commotions, and it was impossible to carry it for the third year.

[224] Around the wall, which had been built on the extreme edge of a precipitous rock, the clayey soil had formed a marsh. Respecting *extremum* used substantively, see Zumpt, § 435.

38.

[225] Respecting the frequentatives *ductare* and *missitare*, which last is a secondary derivative from *mittere* (as *currere*, *cursare*, *cursitare*), see Zumpt, § 231; and about *vitabundus*, § 248.

[226] The usual arrangement of the words would be: *corrumpere, ut alii (partim) transfugerent, alii — desererent*. The *ut* is here repeated in the second clause, which is rather unusual.

[227] *Trepidare*, in its proper sense, is, 'to run about with fear and trembling.'

[228] *Anceps*, 'twofold,' on the part of the enemy and of that of nature.

[229] The author here distinguishes the infantry (*cohors*) and cavalry (*turma*) of the auxiliaries, and the common soldiers from the Roman legions.

[230] The *primus pilus* in a Roman legion is the first company (*manipulus*) of the third class of legionaries, who were called *pilani* or *triarii*, and were employed in battle as a reserve, while the two other classes of legionaries, the *hastati* and *principes*, began the engagement. A legion thus contained ten maniples of every class; that is, altogether thirty maniples, each of which consisted of two *centuriae*, and each *centuria* was commanded by a *centurio*. Out of these sixty centurions of a legion, the two commanding the *primus pilus* (they themselves also were called, like their companies, *primi pili*) were the first in rank, and again the *ductor prioris centuriae primi pili* was the principal centurion in a legion. The treachery of such an officer, therefore, is the more surprising. To the pronoun *ea* supply *via*; *ea*, with this ellipsis, is used as an adverb in the sense of 'there.' See Zumpt, § 207, 288.

[231] In accordance with the rules on the *oratio obliqua*, Sallust ought to have written *teneat*.

[232] A *jugum* was formed by two lances fixed in the ground, and a third fastened across them so as to form a gate. When an army confessed itself to be conquered, and after capitulating, was allowed to depart, the troops had to march under a yoke of this description.

[233] Literally: 'because the disgrace was exchanged for the fear of death;' that is, by enduring it, they became free from the fear of death.

39.

[234] *Dolere pro gloria*, 'to be grieved for reputation;' that is, as they were interested in the glory of their country, they were grieved at the disgrace (*dedecore* or *propter dedecus*) they had suffered. *Timere libertati*, 'to be afraid of losing one's freedom,' it appearing to be in danger. See Zumpt, § 414.

[235] *Nomen Latinum* is the same as *socii Latini*, or *Latini* alone. The expression properly signifies those who are called Latins; for this class of people comprised not only those who really belonged to the nation of the Latins — such as the inhabitants of the ancient Latin towns of Tibur and Praeneste — but those also whose towns subsequently received the same privileges. The latter were termed *coloniae Latinae* — such as Alba in the country of the Marsians, Beneventum in Samnium, Cremona and Placentia on the Po.

[236] *Ex copia rerum*, 'according to his present resources,' 'according to the state of affairs.'

40.

[237] In a few manuscripts we read *neglegisset*, respecting which see Zumpt, § 195.

[238] *Quin faterentur*, 'without confessing.' See Zumpt, § 539.

[239] M. Scaurus, who, as Sallust stated before, was himself bribed by Jugurtha, had availed himself of the time when the people were rejoicing at his victory, when the city was still under apprehensions respecting the war, and when many other nobles, from a consciousness of guilt, kept back; and there can be no doubt that, through the influence of his friends, he contrived to be himself elected one of the commissioners who had to institute inquiries about these briberies, and thus escaped being tried himself.

[240] *Ex* here signifies 'with respect to.' The people after this victory were insolent, so that the commissioners yielded to the wishes of the multitude.

41.

[241] 'The custom of (forming) parties among the people, and of factions in the senate;' the people are divided into *partes*, the senate into *factiones*; the latter evidently implies intriguing combinations.

[242] 'From the abundance of those things which mortals deem of the first importance.' *Prima* is used substantively, and with it the relative pronoun (*quae*) agrees. Sallust might have said *quas* — *primas*.

[243] *Scilicet*, 'naturally,' is used here as an adverb. See Zumpt, §

271.

[244] The annexation of small free farms to the adjoining large estates, is described by all the ancient authors as the cause of the great misery of the Roman state, and, as Sallust remarks, it was facilitated by the absence of many of the free citizens who were serving in the armies; for their fathers or children, who were left behind, were easily induced to sell their small farm to a wealthy and powerful neighbour. For force was certainly not always applied, and *pellere* here signifies 'to displace,' rather than 'to expel.' The large estates thus formed were called *latifundia*.

[245] *Permixtio terrae* is said figuratively, as is indicated by *quasi*, 'a chaos — a mixture of elements.'

42.

[246] Tib. Gracchus was slain in B.C. 133, and his brother, G. Gracchus, in B.C. 121. Sallust here states that the faction of the optimates threw obstacles in the way of the two brothers, sometimes by means of the *socii* (in Italy), and sometimes by means of the Roman equites, who had been drawn into the senate by the popular party. This refers, in the first place, to the opposition made, through the instrumentality of the Latins, to the scheme of the Gracchi to settle poor Roman citizens in Latin colonies; and secondly, to the ingratitude of the equites, to whom G. Gracchus had transferred the administration of justice, after having taken it from the senate. Respecting *modo* — *interdum*, instead of *modo* — *modo*, see Zumpt, § 723.

[247] Sallust admits that the Gracchi went somewhat too far, but blames the violence with which the faction of the optimates took

vengeance upon them; 'for,' says he, 'a good man prefers being conquered, to taking revenge for injury done to him in a violent manner' — intimating that the optimates ought to have borne the injury done to them by the Gracchi, rather than avenge it with murder and assassination.

[248] *Acerbius*; that is, *nimis acerbe*, or *acerbius quam par est*.

[249] *Omnis civitatis* for *totius civitatis*, in opposition to the *patres*. *Parem*; that is, *velim*, which is followed in the apodosis by the same subjunctive present, or the future indicative. See Zumpt, § 524, note 1. *Res*, the same as *materia*, *argumentum*, 'subject.'

43.

[250] The consuls here mentioned entered upon their office on the 1st of January, 109 B.C. The preparation for the campaign accordingly belongs to the latter part of the year 110.

[251] 'An opponent of the popular party;' *adversus* being used as a substantive, in the sense of *adversarius*; as an adjective, it is construed with the dative.

[252] *Cum collega*, a short expression for *conjuncta cum collega*, 'everything else he considered as common between himself and his colleague, but to the Numidian war he alone directed his attention, as though it were his own exclusive business.'

[253] *Praesidia* is generally 'resources;' but here the same as *auxilia*, 'auxiliary troops.'

[254] *Contusae*, from *contundere*, for *imminutae*, *debilitatae*, *fractae*.

44.

[255] *Praedator*, belonging to *exercitus*, is the same as *praedas agens*, 'carrying off booty.' See Zumpt, § 102, note 2.

[256] *Aestivorum tempus* is the time suited for the campaign. To *aestivorum* supply *castrorum*, 'a summer-camp,' and 'a campaign made in summer;' hence, also, 'a campaign' in general, inasmuch as warlike operations were but rarely carried on in winter.

[257] *Albinus*, during a portion of the summer of the year 109 B. C., continued to command as proconsul, while the consul Metellus was detained at Rome by the election of the consuls for the year B. C. 108.

[258] *Odos* for *odor*. See Zumpt, § 7.

[259] *Cum mercatoribus*, 'in intercourse with merchants.' The merchandise, in return for which another commodity is given, is expressed by the ablative. See Zumpt, § 456.

45.

[260] *Ambitio*, 'courting favour;' hence here in the sense of 'indulgence,' 'connivance,' these being the ordinary means to obtain the favour of the multitude.

[261] *Ceteris arte modum statuisset* still depends upon *comperior*, 'I learn (that is, we are informed) that for the rest (of the wants) he fixed the measure in a close (niggardly) manner;' for *arte* is the adverb of *artus*, which is frequently, though not correctly, written *arcte*. It must not be confounded with *arte* from *ars*. Sallust might have said, *ceteris (rebus) artum modum statuisset*.

46.

[262] *Supplicia* here, as elsewhere, are *supplices preces*, 'humble prayers,' or 'petitions.' Compare [chap. 66](#).

[263] 'He applies to the ambassadors one by one;' that is, he tries them one by one, *temptat singulos*.

[264] *Maxime*, the same as *potissimum*. Compare [chap. 35](#).

[265] 'What would be in accordance with his wish;' namely, the granting of his request.

[266] The plural *equitatus* is rare; here it refers to different troops of cavalry, as in Caesar, *Bell. Civ.* i. 61. To *propulsarent* supply eos. See Zumpt, § 766.

[47.](#)

[267] 'Most frequented;' for *celeber*, *bris*, *bre*, is commonly used of densely peopled or much frequented places.

[268] Metellus placed a garrison in the city, partly to test the sentiments of the inhabitants, and partly on account of the advantages offered to him by the nature of the place, in case the inhabitants should not object to a garrison of the Romans. The common reading, *si paterentur opportunitates loci*, must be rejected, for the words *si paterentur* must refer to the inhabitants of the place, and explain the preceding *temptandi gratia*. Another reading, *opportunitatis*, to which *gratia* must be supplied by the mind, has the same meaning as *opportunitate*, the ablative of cause.

[269] 'He believed that the great number of merchants (in the town) and the corn would be of use to the army, and protect the provisions (of the Roman army) already accumulated,' so that the Roman stores might be saved.

[270] *Impensius modo*; that is, *praeter modum*, 'beyond measure,' 'immoderately;' literally, 'stronger than the measure observed in such matters.'

48.

[271] *Exercitum antevenit*. See Zumpt, § 386, note.

[272] 'In an equal direction;' that is, likewise extending from south to north.

[273] In the midst of this range there arose another group, extending far and wide; and, as will be seen hereafter ([chapter 49](#)), in a transverse direction (*transverso itinere*) from the range to the river running parallel with it. *In immensum*, however, must be understood relatively of a very great extent, and not absolutely of an infinite extent.

[274] 'On dry and sandy ground' is a very singular expression, and has been noticed as such by the Roman grammarians themselves; for *humi* (on the ground) is otherwise used without an adjective as an adverb. The adjective is here put in the ablative, to denote the place where, and in the neuter gender, *humi* being regarded as indeclinable. In ordinary language, it would be *in humo arida*.

49.

[275] 'The battle-line being long, but not deep.'

[276] *Montem*, the same as *monti*. See Zumpt, § 411.

[277] *Decuerint*. Sallust might have written *decuerit* in the singular. Compare Zumpt, § 226.

[278] *Quum interim Metellus — conspicitur*, is the apodosis. 'Then, in the meantime, Metellus appears.' Respecting this use of *quum* with the present indicative, see Zumpt, § 580, 2; for the circumstance of *interim* being used here, where we might expect *subito*, does not alter the case, and only expresses that Jugurtha was yet engaged in encouraging his army when Metellus became visible.

[279] *Incerti* is here used passively and personally, 'uncertain what it might be,' for *de quibus incertum erat, quidnam esset*; and the neuter *quidnam* is used in the sense of the masculine plural, 'it was uncertain whether they were men, and what sort of men.' In like manner we have seen ([chapter 18](#)) *ignarus* used passively.

[280] 'With an alteration in the ranks,' those soldiers who had before marched by the side of one another now being placed behind one another, as the man who had till then been on the right wing of his detachment suddenly turned to the right, with his face towards the hill. On the right of the whole marching army, he now formed the front towards the enemy (*aciem*), and strengthened by a threefold reserve.

[281] 'The *principia* standing transversely' (to the direction in which till then the column had been). The march of the Roman army was from east to west; the enemy appeared on the right flank, and the Roman vanguard (*principia*) therefore turned round to face them (that is, turning its face to the north), and it is this direction which is expressed by *transversus*. *Principia* is the vanguard, because in a Roman legion the ten companies of *principes* formed the front line, while the *hastati* constituted the second, and the *triarii* the third. In this manner the *principes* here

faced the enemy, while the other divisions of the army drew up behind them as a reserve.

50.

[282] *Transversis proeliis*, 'by attacks on the flanks' — namely, if the Roman army should resume its march westward.

[283] *Temptare lassitudinem militum*, the same as *lassos milites aggredi*.

[284] The army was drawn up in battle array facing the north, so that, if it resumed its march westward, the part which formed the left wing became the head of the column (*agmen*).

[285] *Priores*; that is, *superiores*, 'superior.'

[286] *Ea*, 'on this road,' or 'there.' *Evadere*, 'to ascend.' *Vero* in the apodosis renders it strong and emphatic. See Zumpt, § 716.

51.

[287] Respecting the omission of *et*, see Zumpt, § 782. *Arma* and *tela* are the two kinds of arms, the one being used in a close contest, and the other at a distance; the use of either of them depended on chance (*fors regebat*). *Itaque* in the next clause is the same as *et ita*, and not the conjunction *itaque* = *igitur*.

[288] They had no camp, no fortifications into which they could retreat. *Illis* refers to the Romans addressed, and is rendered by the emphatic they; instead of *illis*, the speaker might have used *ipsis* whereby he would have included himself, whereas now he is speaking only of the soldiers. Compare Zumpt, § 702.

52.

[289] *Diei*; other editions have *die*, an obsolete form of the fifth declension. *Adverso colle evadunt*, 'they worked their way up the opposite hill.' The author might have said *in adversum collem*, 'they ascended it.'

[290] The neuter predicate *tutata sunt* here refers to two feminine nouns, instead of *tutatae sunt*; but it is quite in accordance with the custom of Sallust. See Zumpt, § 377.

[291] 'What the enemy were doing in every place;' for *ubique* signifies 'in every place;' not absolutely, but in every one of the places where anything was done by the enemy. *Ubique* stands to *ubivis* in the same relation as *quisque* to *quivis*. Compare Zumpt, § 710.

[292] 'He had drawn up his corps close together.' About *arte*, see [Cat., chap. 59](#), and p. 110, note 4 [[note 261](#)].

[53.](#)

[293] 'They held out only so long as they believed that they had an assistance in their elephants.' When they were disappointed in this hope, they took to flight; for *fugam facere* is here the same as *fugere*, though generally it is equivalent to *fugare*.

[294] 'Tired and worn out.'

[295] The two detachments of the Roman army approaching each other, threw each other into fear and confusion by the noise of their march, as they imagined that the enemy was approaching. We have retained *adventarent*, the reading of the early editions; the one now generally received, *adventare*, must be rendered, 'when they were not far from one another, they approached in a noisy manner, like enemies, (and) filled each other mutually with

fear.’ But here the verb *adventare* is offensive, it having already been said that they were not far from one another; so also is the mere ablative *strepitu adventare* and the omission of *et*, for which we cannot see any reason.

[296] Supply *esset*.

[297] ‘Misfortunes lower even good men;’ that is, diminish their reputation.

54.

[298] Duration of time is properly expressed by the accusative, but the ablative also is not unfrequently employed. See Zumpt, § 396.

[299] *Sunt* here changes the oratio obliqua into the oratio recta; according to the grammatical rule, it ought to be *sint* or *essent*.

[300] *Gentium* is added to increase the expression of uncertainty. See Zumpt, § 434.

[301] A bold combination of terms: soldiers who were in the habit of being more concerned about the cattle and the field than about war. Respecting the substantive *cultor*, instead of the participle *colens*, see p. 109, note 5 [[note 255](#)].

[302] *Ea gratia*, a concise expression for *ejus (rei) gratia*, ‘on this account.’ In like manner we find *hac, ea causa*.

[303] ‘Which could not be carried on otherwise than according to his pleasure;’ because, considering the number and condition of his irregular troops, he had it in his power both to attack and to retreat, and thus to draw the Romans hither and thither.

[304] *Temere* signifies that which is done without any lasting effect, without serious consideration, or what is suggested by

mere accident or chance.

[305] *Sua loca* are 'convenient' or 'favourable places;' *aliena*, 'inconvenient ;' that is, such as he would not have chosen himself.

[306] 'According to circumstances,' as in [chap. 39](#): *ex copia rerum*, 'according to the state of circumstances.'

[55.](#)

[307] *Magnificus*, 'boasting,' 'insolent,' as in [chap. 31](#): *incedunt per ora, vestra magnifici*.

[308] Such a public thanksgiving ordered by the senate is commonly called *supplicatio*, and was a sign that the general was likely to be honoured with a triumph.

[309] *Necubi* for *ne alicubi*, 'in order that not somewhere.' See Zumpt, § 136.

[310] *Post insidias Jugurthae*, 'after he had once experienced attacks made from an ambuscade.'

[56.](#)

[311] *Zama*, a town celebrated for the victory gained, about one hundred years before, by Scipio over Hannibal. It was situated, according to Polybius, five days' march south of Carthage.

[312] *In tempore*, 'in due time,' 'in proper time.' Zumpt, § 475, note.

[57.](#)

[313] *Proelium facere in manibus*, the same as *pugnare cominus*, *manus conserere*, 'to be engaged in close combat.'

[314] ‘Torches mixed of burning pitch and sulphur;’ that is, burning torches of pitch and sulphur. The singular *taedam* is used in a collective sense for the plural *taedas*.

58.

[315] ‘Those who had been left behind to protect the camp being remiss’ (careless, unconcerned); a figurative use of *remissus*, taken from a bow when it is not stretched.

[316] ‘As they, being few, less missed in throwing their darts among the many.’ The deponent *frustari* here has a reflective meaning, ‘to exert one’s self in vain,’ ‘to deceive one’s self,’ and must be conceived to come from the active *frustrare*, ‘to frustrate.’

[317] ‘Then, indeed (in truth), they showed,’ &c. Respecting *vero* in the apodosis, see note on [chap. 50](#).

59.

[318] ‘The Numidian horsemen would not have resisted any longer, had not their infantry mingled with the cavalry caused a great carnage’ (among the Romans). Respecting the imperfect in the protasis, though the apodosis contains the pluperfect, see Zumpt, § 525. The Numidian horse, accordingly, here did not follow their usual custom of making a sudden attack, and then retreating; on the contrary, they fought in such a manner that their own horses and those of the Romans stood head to head, and thus gained an almost complete victory, by procuring a respite for their struggling infantry.

60.

[319] 'There they exerted themselves most actively,' *eo* having the meaning of *eo loco*, or *ibi*.

[320] 'More upon themselves than upon others.' See Zumpt, § 725.

[321] 'One might observe them.' Zumpt, § 528, note 2.

[322] *Sicuti* — *possent*, 'just as if,' as *sicut*, like *quasi*, is used for *velut*. See [chap. 31](#). For it is not possible that the two places of the struggle, near the walls of Zama, and on the other side of the Roman camp, should have been so near that the men could hear one another, or even distinctly see the separate charges.

[323] *Niti corporibus*, 'to exert one's self bodily,' inasmuch as the body of the combatants is sometimes moved forward, and sometimes backward. The plural *corpora* is as common in Latin as *animi*, when several persons are spoken of.

[324] *Sine tumultu*, 'without disturbance' or 'hindrance.'

[325] *Astrictus*, 'fixed intent,' whose attention was entirely directed to the contest at a distance. *Occupatis* also might have been used.

[61.](#)

[326] *Ad eum*, or *ad illum*, would have been strictly grammatical; and as Sallust uses *ad se*, it would have been more consistent to use the subjunctive *defecissent*; but the indicative is necessary, because a fact is to be expressed. All doubts would have been removed by *ad ipsum*, for this pronoun would turn our attention away from the secondary subject, *urbes*, and direct it to the leading subject, Metellus. But the ancient authors do not very often use this pronoun where *is* or *sui*, *sibi*, *se*, can be employed.

Compare [chap. 66](#), and Zumpt, § 550.

[327] That is, *Bomilcar ingenio infidus erat et metuebat*.

[62.](#)

[328] *Ne illo*, &c. refers to Jugurtha, 'if he hesitated still longer.'

[329] *More majorum* refers to the custom according to which Roman generals were not allowed to fix the terms of treaties and peace according to their own discretion, but had to assemble and consult a council of war. This council of war consisted of the superior officers, the legates, the quaestor, the tribuni militum, and the praefects of the allies. Sometimes the centuriones primipilares also took part in it, especially when the subjects of discussion were of a purely military nature.

[330] *Pondo*, 'pound,' properly *librarum pondo* (depending upon *milia*). See Zumpt, § 87. As in the time of the Roman republic eighty-four denarii were coined out of one pound of silver, and twenty-five denarii (or 100 sesterces) constituted one Roman aureus, the amount of silver here mentioned is equivalent to 672,000 nummi aurei.

[331] 'When he himself was summoned to receive his orders.' There is an ancient military expression, *Ad imperium vocari*, or *adesse*, by which a person present receives a command which he has to carry into effect. See Zumpt, § 658.

[332] *Digna*, 'what is due to him;' here of course bodily suffering or punishment.

[333] We are here already at the beginning of the year B.C. 108, in which Metellus was no longer consul; but the senate had

prolonged his imperium, which accordingly he continued to hold for this year as proconsul.

63.

[334] *Agitabat* does not express the sentiment of the haruspex; for if so, the verb would be in the subjunctive.

[335] Marius accordingly possessed every qualification required of a candidate for the consulship in a very high degree, but he was not a member of an ancient family, being a Roman eques of the municipium of Arpinum. The term 'ancient family' means one which had *imagines*, or images of ancestors who had been invested with the highest offices of the state. A Roman eques answers pretty nearly to a modern country gentleman, and was, generally speaking, a person who had property enough to enable him to serve on horseback in the army. In point of rank he was far below a senator; and no services that he could render to the state as an eques could raise him to the senatorial rank, which was attainable only through the high offices to which he might be elected by the people, and by virtue of which he became a member of the senate. Marius himself had been a senator long before this, as he had been tribune of the people and praetor, and after his praetorship, he now was legatus (lieutenant-general) with Metellus.

[336] *Bellicus*; that is, *in bello*, on account of the following *domi*.

[337] *Altus*; that is, *alitus*. See Zumpt, § 198.

[338] That is, *quamquam plerique faciem ejus ignorabant, facile tamen notus factus, &c.*; namely, by the report of his distinguished services in the war, which, in the assembly of the people, was

communicated by one person to another.

[339] *Ad id locorum*, 'until then,' 'until that time,' as in [chap. 72](#): *post id locorum*. See Zumpt, § 434. Marius did not venture to aspire to the consulship; for *appetere* is not the same as *petere*, the latter denoting the actual suit or canvass. His ambition had not yet been directed to that highest of all offices, until religious superstition suggested it to him, and encouraged him.

[340] The *nobiles* transmitted the consulship to one another *per manus*; that is, after one *nobilis* had been invested with it, it was, as it were by agreement, given to another, care being taken that no *homo novus* should come forward as a candidate.

[64.](#)

[341] His dismissal from the post of legate. If he had wished to return to the service, he would have asked *commeatum*, 'leave of absence.' He was confident that in his canvass for the consulship he would be successful.

[342] *Superabant*; that is, *supererant*, *abunde erant*. Metellus had all the other qualifications in a great degree, but at the same time he had a haughty contempt for all who were not nobly born.

[343] 'He would grant him his dismissal as soon as he could do so consistently with the duties he owed to the republic.'

[344] *Contubernio patris* for *in contubernio patris*, as *contubernalis* of the commander-in-chief. It was the custom for young Roman nobles to perform their first military service as equites in the suite, and as attachés (adjutants) to a general, whereas other less favoured Romans served *in ordine*; that is, enlisted in some detachment of cavalry or infantry.

[345] *Pro*, 'in regard to,' 'in consideration of.'

[346] *Grassari*, 'to go on,' 'proceed;' but at the same time contains the idea of excitement or vehemence.

[347] *Ambitio*, 'courting favour;' *ambitiosum*, something the object or consequence of which is to gain favour; hence 'winning,' 'captivating.'

[348] *Inanis*, 'empty.' Of persons, signifies a man devoid of substance, one who has only the appearance of something, and is satisfied with it; hence 'vain,' 'superficial.' *Vanus* also is used in the same sense. *Regia superbia*. See [chap. 31](#).

[65.](#)

[349] *Secundus heres* is the person who is pointed out in a will to supply the place of the real heir, in case of the latter being unable or unwilling to accept the inheritance, especially in case of his death without leaving any issue.

[350] *In eos*; that is, *in equites Romanos*, referring to what follows.

[351] *Imperator*, a dativus incommodi, *cui poena imponantur*, 'that with his assistance he should endeavour to find punishments for the general in return for the insults offered to him.'

[352] 'This might happen even very soon.' *Adeo* points out that which is essential in a thing. See Zumpt, § 281.

[353] The words *milites et negotiatores* are in apposition to *equites Romanos*, and describe the two classes of Roman equites existing in the province, some serving in the army, and others carrying on business (*negotiabantur*) in the towns. If the sentence were to be understood otherwise, the copulative conjunction

would not have been omitted before *milites*. See Zumpt, § 783. The *milites gregarii* and their sentiments are not mentioned, probably because such persons had little or no communication with their friends at Rome.

[354] *Suffragatio*, the inclination to give one's vote in favour of a person, and the effort to procure him the votes of others; hence 'the support given to a person's election.' A vote is *suffragium*, and *suffragari*, to vote for a person.

[355] This decree of the people, instituting a criminal investigation into the acts of bribery committed by Jugurtha, was mentioned in [chap. 40](#), where it was farther observed that the whole nobility was terrified by it.

[66.](#)

[356] *Affectare*, 'to try to obtain a thing,' 'to exert one's self for a thing.'

[357] *Voluntate alienati*; that is, *sua sponte alienati*.

[358] *Discordiosus*, 'quarrelsome;' a very rare word, but formed with perfect correctness. Zumpt, § 252.

[359] 'The day promised (beforehand) recreation and enjoyment, rather than apprehension and terror;' namely, to the Romans or the Roman garrison.

[360] *In tali die*. The preposition here is unusual, but is justified by the addition *tali*, indicating the particular circumstances of that day of joy. See Zumpt, § 475, note. *Inermos* is much more rare than *inermes*. See Zumpt, § 101, note.

[67.](#)

[361] *Pro tectis*, ‘on the edge of the roofs.’

[362] *Anceps malum*, ‘the double attack;’ namely, the one made on even ground, and that from the roofs.

[363] Respecting the connection of *nisi* — *videtur*, instead of the complete expression *nisi hoc constat* — *eum videri*, see p. 92, note 2 [[note 153](#)]. *Intestabilis*, properly, ‘a person unfit to give his evidence, and incapable of making a will;’ hence, according to Roman usage, equivalent to ‘infamous;’ *detestabilis*, which also properly signifies ‘one deserving to be excluded in the will,’ or ‘to be disinherited.’

68.

[364] ‘Declining everything;’ that is, refusing to obey any order that was given them.

[365] *Passuum* might also be *passus*. See Zumpt, § 116, note.

[366] *In primo*, ‘at the head,’ or ‘in front,’ the line being spread out (*late*), so as to conceal the infantry marching behind the cavalry.

69.

[367] ‘The whole town was given up to punishment or booty.’ We cannot say *urbs poenae fuit* alone; but the dative *poenae* is explained by the common expression *praedae fuit*, with which it is connected.

[368] ‘Ordered to defend himself’ against the charge of treachery which was brought against him. For a *reus* (a person standing accused of a crime) *causam dicit*; that is, conducts his case, or defends himself. Turpilius was condemned by the war council,

and paid the forfeit with his life, after having previously been scourged. This ancient severity, according to which the condemned was bound to a post, and scourged with rods on his naked body, had been abolished by a lex Porcia for Roman citizens. See page 52, note 5 [[note 260](#)]. For this reason Sallust adds the remark, that Turpilius was a citizen from Latium; that is, he did not possess the full Roman franchise, but only that part of it which was not incompatible with his retaining the franchise in some Latin town. Such half-citizens or Latins, to whom the Roman franchise was given in this manner, that thereby they acquired the right to settle in the territory of Rome, and become members of a Roman tribe, provided they renounced their Latin franchise, were at that time still very numerous; but they ceased to exist in B.C. 91, when what were called the Latin towns received the Roman franchise.

[70.](#)

[369] 'He tormented himself day and night with the thought.' Respecting this paraphrase of one's own person by the word *animus*, see Zumpt, § 678.

[370] *Quae Jugurthae — superaverant*, 'which had been left for Jugurtha;' that is, which he himself had not been able to accomplish.

[371] 'That the open country might not be laid waste by the enemy in such a manner as to leave the enemy unpunished' (*inultis*).

[372] *Metusque — impediēbat*. The imperfect describes the lasting condition of the matter, while the perfect, *venit*, expresses

the momentary act, and the clause *metus impediēbat* represents an inserted clause denoting cause: *metus enim rem impediēbat*.

[373] Bomilcar was seized with fear in consequence of the timidity shown by Nabdalsa.

[374] *In quīs* — *accusare*. The historical infinitive in a relative clause is very rare, but *in quīs* here supplies the place of *et in his*.

[375] 'The question only was, whether Jugurtha should perish by their (that is, Bomilcar and Nabdalsa's) valour, or by that of Metellus,' since his doom was fixed at all events. *Id agitari* for *id agi*, which in this sense is far more frequent.

71.

[376] *Allatae*; supply *essent*, an ellipsis, which is not very common after a conjunction, governing the subjunctive.

[377] *Solet*, supply *capere*.

[378] *Repperit*; for the orthography of this word, see Zumpt, § 22.

[379] *Res praevenitur*, 'a thing is anticipated,' or 'something is done previously,' is found very rarely instead of *occupatur*. *Homo praevenitur*, 'a person is anticipated in a thing,' is more common.

[380] *Super*, the same as *de*. See Zumpt, § 320.

72.

[381] 'Differently from what he carried in his mind;' that is, from what he intended in his mind.

[382] A beautiful and vivid description of a man who is conscious of his guilt, and is pursued by all: it is a situation which would have

paralysed the mental energy of even the most enterprising barbarian.

73.

[383] *Indicio patefacto* is a kind of pleonasm, as *indicio facto* would be sufficient; for *indiciū fit, res ipsa* (that is, *conjuratio*) *patefit* — ‘the denunciation is made, the conspiracy is revealed.’

[384] *Plebs* — *acceperant* for *acceperat*, *plebs* being a collective noun. Zumpt, § 366.

[385] ‘However, the party-zeal was in both men more decisive than either their virtues or their faults.’ *Moderata sunt*, from the deponent *moderor*, ‘I determine,’ ‘I guide;’ as in Cicero, *mens moderatur omnia*, ‘the mind determines everything.’ *Sua bona aut mala*, ‘their own virtues or vices,’ in apposition to the party-zeal of others. *Suus* here is not reflective, but only designates something as opposed to that which belongs to another. See Zumpt, § 550.

[386] *Arcessere*, ‘to summon before a court of justice,’ with the genitive of the crime or punishment. The forms *arcessere* and *accersere* have the same meaning, but *arcessere* is more frequent in the sense of ‘to summon,’ or ‘to accuse.’

[387] *Res fidesque*, ‘property and credit.’

[388] ‘Crowded around Marius,’ whenever he appeared in public, to show him their attachment. *Post honorem Marii ducerent*, the same, as *postponerent honori Marii*, the preposition in this sense being commonly joined to the verb. Compare [Cat. chap. 23](#).

[389] From this instance, we see that the popular assembly was sovereign in the Roman state; that is, when the people were called upon to decide a question, which happened but rarely,

since it was customary to leave to the senate the provinces and the current administration of foreign affairs.

74.

[390] *Bocchus*, king of Mauretania, west of Numidia, and extending as far as the Ocean, opposite to Spain. It accordingly comprised the modern empire of Fez and Morocco.

[391] 'The Romans gained possession of a considerable number of standards.' The adjective *aliquantus*, with the exception of the neuter in an absolute sense, is rarely used. We have here to observe the varying construction of *potior*. See Zumpt, §§ 465, 466. Sallust often prefers variety to uniformity.

[392] *Tuta sunt* might also be *tuentur*; for the perfect is here used of things which usually happened, and still happen. *Tuta* is less common than *tuita* or *tutata*, which in this passage is found in some good manuscripts, and must perhaps be received into the text.

75.

[393] *Impensius modo* may be 'still more strongly,' his despondency having already been mentioned; or *modo* is the ablative, and *impensius modo* is stronger than the (ordinary) measure; that is, beyond measure, *ultra modum*.

[394] *Cultus* is everything belonging to the regulation of life, apart from eating and drinking; so that *pueritiae cultus* comprises the regulations for a youth's residence, his education, and the things and persons by whom he is surrounded.

[395] ‘And other things fit to contain water;’ probably vessels to keep water in, and apparatus to purify and mix water, for example, with vinegar, a beverage usually drunk by the soldiers.

[396] ‘Where they should be assembled.’

[397] *Modo* is commonly used only to denote that something is less than it might be, but has here the unusual meaning of ‘that alone,’ or ‘even that alone.’

76.

[398] ‘That for Metellus nothing was now impossible,’ the perfect participle with the negative prefix denoting impossibility — as *invictus*, invincible; *incorruptus*, incorruptible; *inaccessus*, inaccessible. See Zumpt, § 328.

[399] *Ex copia*, ‘according to circumstances,’ here referring especially to the different nature of the locality. *Vinea*, properly ‘a bower formed of vines;’ hence ‘a protecting roof,’ under which the soldiers attacked the fortifications of the enemy.

[400] ‘After they had previously worn themselves out by great exertions:’ *ante* here is superfluous.

[401] *Poenas pendere*, the same as *poenas solvere*, ‘to pay a penalty.’ In *corrumpunt* we may notice a zeugma, as out of *corrumpunt* we have to take *interficiunt*. See Zumpt, § 775.

77.

[402] *Illorum*; that is, *Romanorum*. Respecting the situation of Leptis magna, see [chap. 19](#).

[403] *Nave* or *naviter* (‘actively’) is the correct orthography, for

which other editions have *gnave*. See Zumpt, § 12. Its case is the same as that of *natus*, which in composition takes the *g* — as *cognatus*, *agnatus*; and also *narus*, *ignarus*.

78.

[404] *Alta*; supply *in alia tempestate*, ‘sometimes deep, and sometimes shallow.’

[405] ‘They have been called Syrtes from this current, which draws other things along with it;’ for the Greek *συρειν* signifies ‘to draw,’ or ‘drag along.’

[406] It was only the language of the inhabitants of Leptis that had experienced a change, in consequence of their matrimonial connections with the Numidians, otherwise they had for the most part preserved their Sidonian, that is, Phoenician, laws and habits, being separated from the inhabited part of Numidia by extensive deserts, which was also the reason of the Numidian king’s seldom residing at Leptis, although the town belonged to his kingdom.

79.

[407] *Admonere* is here construed in an unusual manner with two accusatives, one of the person, and the other of the thing, the latter being expressed by a substantive; for the neuter of a pronoun in the accusative is not uncommon — as *hoc*, *id*, *illud te admoneo*.

[408] *Imperare* and *imperitare* are construed with the dative of that over which one rules, or take the preposition *in* with the accusative or ablative.

[409] *Sponsionem facere* here has the general sense, 'to make a contract,' otherwise it signifies a contract at which security is given, which is lost by him who is condemned.

[410] 'They hastened to get through their journey.' The intransitive *pergere* (like *ire*) containing the notion of an uninterrupted continuance, takes a substantive of the same meaning, or of the same derivation, in the accusative, and thus acquires a transitive meaning. See Zumpt, § 384.

[411] *Retinere*; supply *proficiscentes* or *iter facientes*.

[412] 'Devoid of,' or 'without products;' for *gignere* is used of those things which, like plants or animals, produce other things like themselves.

[413] 'Because they had spoiled the affair;' as by quick travelling they might have traversed a considerable extent of country.

[414] *Conturbare*, 'to disturb,' or 'to try to throw into confusion;' namely, the agreement.

[415] 'The Greeks give the Carthaginians the choice,' for *dant optionem Carthaginiensibus*. The genitive *Carthaginiensium* occurs in most, and in the best manuscripts.

[416] *Ibi*; that is, *in illis finibus*.

80.

[417] The Nomades of the great desert Sahara, and of the oases in it, in the south of Numidia and Mauretania, as far as the southern countries inhabited by real negroes.

[418] *Pronum*, that which, when once commenced, proceeds without obstacle or difficulty. This is a figurative sense taken from an inclined plane.

[419] The Roman rulers thus demanded money from Bocchus before they would grant his request to be declared a friend and ally of the Roman people, although Bocchus no doubt considered his offer of friendship as a matter of no small value to the Romans.

[420] 'But kings so much the more;' namely, surpass others in the numbers of their wives.

[421] 'None (no wife) maintains her position as a sharer;' that is, none is recognised as sharing with her husband all the relations of life and rank.

81.

[422] *In locum placitum*, 'at a fixed place,' at a place where it had been agreed to meet. The participle *placitus* is formed irregularly from the neuter verb *placeo*, as such verbs generally have no passive voice. But *placeo* is used also as an impersonal verb, *placet*, and, as such, its perfect is either *placuit* or *placitum est*, 'it pleased,' or 'was decreed.' The same is the case with other impersonal verbs; and as in this manner the regular passive form gradually ceased to be offensive, *placitus, a, um*, came to be used in the sense of *is qui, ea quae, id quod placuit*. Compare Zumpt, §§ 142, 225.

[423] 'Of an insatiable avarice;' for *profundus* is often used figuratively of passions and desires which have no bottom or end.

[424] *Quis (quibus)* refers to the preceding *illos*; that is, *Romanos*.

[425] *Tum, sese*; supply *hostem Romanis esse*, which infinitive must be taken from the following *fore*. The *tum* must be rendered in English by 'now,' as it refers to present time. See Zumpt, § 732;

and regarding *Persen* for *Perseum*, § 52.

[426] *Capta urbe*, 'if the town were taken,' it would be worth while.

[427] *Pacem imminuere*, to disturb or spoil the peace with Bocchus intended to conclude with the Romans.

82.

[428] 'According to his advantage;' that is, if a favourable opportunity should offer.

[429] 'More than is just and fair.'

[430] According to the language of Cicero, the dative *linguae* would have been used in this sense. See Zumpt, § 414.

[431] *Alii*; supply from what precedes *interpretabantur*, 'they accounted for his sensibility by,' &c.

[432] *Injuria sua* has a passive sense; 'by the injustice done to him.'

83.

[433] *Stultitiae* might have been *stultitia* for the genitive. See Zumpt, § 448, note 1.

[434] *Tum*. See page 137, note 3 [[note 425](#)].

[435] *Incerta mutare*, 'to obtain uncertain things in exchange for others, or for certain things;' but it might also mean, 'to give uncertain things for certain ones.' See Zumpt, § 456, note.

[436] *Desinere* is used here for the sake of variety, instead of *finire*, *deponi*.

[437] 'If the same power were granted to him' (Jugurtha), namely, to conclude peace, 'an agreement might easily be come to.' *Res*

convenit inter nos is the same as *convenimus de re*, 'we agree upon the matter.'

84.

[438] 'The plebs being most desirous.' The participle *cupiens*, with its degrees of comparison like an adjective, is rare, but not contrary to grammar.

[439] *Multus instare* is rather a poetical phrase for *multum*, 'greatly,' or 'repeatedly.'

[440] *Ambiundo cogere*, 'to oblige a person by flattering words,' a very expressive phrase, signifying that kind of compulsion which is effected by flattery and intreaties.

[441] For the expression *aliquid mihi volenti est*, 'a thing accords with my wishes,' see Zumpt, § 420, note. *Neque* corresponds with *et*: on the one hand, it was *not* believed that the service in the army was agreeable to the plebs; and on the other hand, it was believed that Marius, owing to the aversion of the people to military service, would either do without a numerous army, or that he would lose the popular favour if he should compel the common people.

[442] *Traho animo*, or *cum animo meo*, 'I am incessantly occupied in my mind with something.'

85.

[443] From what precedes, supply *mihi videtur*.

[444] Marius, according to the ordinary usage of the Latin language, calls his appointment to the consulship a *beneficium*, 'a

favour,' of the Roman people.

[445] 'Is more difficult;' namely, than is commonly believed, *quam opinio est*.

[446] *Procedunt*, 'benefit the state,' 'promote the general good.'

[447] *Vertit*, intransitively, 'has become changed;' the same as *vertit se*, or *versum est*. See Zumpt, § 145.

[448] *Prosapia* for *familia*, an ancient and obsolete word, and intentionally put into the mouth of Marius to ridicule the pretensions of the nobility.

[449] Marius calls those nobles who do not make themselves acquainted with the duties of public offices, until they have obtained them, *praeposteri homines*; that is, 'men who do afterwards that which they ought to do before;' for, he adds, it is true one must first be appointed to an office, in order to do anything in it, but an active preparation ought to precede.

[450] 'I consider, indeed, all men to be equal by nature, but I make this distinction, that the bravest is the most noble.' By *quamquam*, Marius breaks off the question about noble or ignoble birth (Zumpt, § 341); *sed* introduces a new distinction between men; namely that of merit.

[451] *Faciant idem*, 'let them despise their own ancestors likewise.'

[452] *Hujusce rei*; that is, *commemorationis majorum meorum*, 'I cannot speak of my ancestors.'

[453] *Meamet*, commonly with the addition of *ipse*. Zumpt, § 139, note.

[454] 'That no one may interpret my modesty as if I were conscious of my own weakness and want of ability.' Modesty often

shows itself mainly in silence. *Conscientia* is the consciousness of a person both of his valuable qualities and of his deficiencies. *Ducere in aliquid*, 'to consider a thing as;' 'to interpret a thing as:' compare [chap. 82](#): *vertere in superbiam*.

[455] *Militaria dona* are presents which a general gives publicly to brave soldiers, and which they either wear as honourable distinctions, or which they kept and preserved in their houses. Such presents were with the ancients what orders are in modern times. Among them are frequently mentioned lances, bridles, chains worn round the neck (*torques*), bracelets (*armillae*), pins or brooches (*fibulae*) to fasten the cloak, and crowns (*coronae*). It was less common, but very honourable, to receive a flag (*vexillum*) attached to a pole.

[456] 'I consider this as something too unimportant.' *Parum* is used substantively.

[457] 'Greek literature has not benefited its professors (that is, the Greek nation) in regard to political virtue:' inasmuch as the Greek states had been unable to protect their political liberty either against kings and tyrants, or against foreigners. *Virtus* signifies especially 'bravery,' 'valour;' but it has also a more general meaning, comprising justice, abstinence, and the sacrificing of one's own advantages.

[458] *Praesidia agitare*, 'to keep watch,' to maintain the posts intrusted to us for the protection of friends against the attacks of enemies.

[459] *Arte colere*, 'to keep close;' *opulenter colere*, 'to treat liberally.'

[460] 'To compel by bodily punishment.'

[461] *Celebravere*; that is, *extulerunt*, *auxerunt*. *Celebrare* properly signifies 'to make or render frequent;' that is, to bring into repute, and therefore to fill with men, buildings or other objects.

[462] 'I have no cook worth more than a steward.' Marius here assails the luxury of others, who considered a clever cook worth more than a clever steward. Both kinds of people were slaves; the *villicus* was the principal and overseer of all the servants engaged in agriculture on the estate (*villa*) of a Roman noble. *Coquus* is also spelled *cocus*. See Zumpt, § 5.

[463] *Quin ergo — faciant*, 'why, then, will they not do?' This form of expression contains an exhortation to do something. The subjunctive, therefore, does not depend upon *quin*, but upon the optative meaning of the sentence. See Zumpt, § 542.

[464] *Ereptum eunt*, 'they endeavour to snatch away,' or 'they snatch away.'

[465] *Cladi sunt*, 'they are a destruction;' the same as *calamitosae, perniciosae sunt*.

[466] That is, 'you have removed (deposed) the greedy, inexperienced, and haughty commanders.' Marius alluding to his predecessors, Bestia, Albinus, and Metellus.

[467] *Attrito*, 'worn away,' 'annihilated,' 'sacrificed.'

[468] 'Serve the republic,' 'devote yourselves to the public good.'

[469] 'Both as an adviser and sharer in the danger.' *Idem* indicates the union of two predicates belonging to one subject. See Zumpt, § 697.

[470] 'I shall treat myself and you in the same manner.'

[471] *Decebat*, a peculiarity of the Latin language for *deceret*. See Zumpt, § 518.

86.

[472] In this way Marius introduced a great change in the military affairs of Rome. Previous to his time, only the citizens of the first five property classes were enlisted to serve in the legions. Those persons whose property did not come up to the lowest estimate of the fifth class, were excluded from the honourable service in the legions. They were *capite censi*, because, when the censors made out their lists, those persons had only to give in their personal existence or name for registration. Their being called 'the sixth class' is an improper application of the term, as, strictly speaking, *classis* signifies only 'a property class.' As the number of persons of this kind was at that time (B.C. 107) already very considerable, and as there were among them many both able and willing to serve in the army, and lastly, as Marius was opposed to all exclusive privileges, he enlisted those poor people who voluntarily offered themselves in the legions, and thus created an army of able men, and accustomed to endure hardships. The higher orders did not object to this measure, because it lightened their burdens connected with the service in the army. But however useful this arrangement was at the time, it contained the elements of a body of soldiers distinct from the citizens; for when the time of their military service was over, those men did not feel inclined to return to a quiet citizen's life, and thus became a very powerful and ready instrument in the hands of ambitious generals, such as Sulla and Caesar.

[473] *Sua curae*; another reading is *cura sunt*, the sense of which is nearly the same. *Sua*, 'a person's own property,' or 'all that belongs to him,' including the state itself.

[474] 'With a considerably larger army.' About this meaning of *aliquanto* with a comparative, see Zumpt, §§ 108, 488.

[475] *Utica*, the most important city in the province of Africa: it was a more ancient Phoenician colony than even Carthage. In the second Punic war, after it had revolted from Carthage, it was rewarded by the Romans with freedom and independence. Its present name is Biserta, north-west of Tunis.

87.

[476] 'Laden with booty;' that is, filled with things which can be taken as booty.

[477] *Pugnae adesse* belong together, 'to take part in the battle.' Marius's plan was well calculated, as he inspired his soldiers with courage before leading them to labour and hardship.

[478] *Futuros*; supply *esse*, 'they would behave;' hence the adverbs. See Zumpt, § 365.

88.

[479] 'Contrary to his expectation;' for *spes* is often used in the general sense of 'expecting,' or 'looking forward to' anything, whether good or bad.

[480] *Armīs exuere*, 'to disarm;' here the same as 'conquer' or 'defeat;' intimating that the enemies take to flight, leaving their arms behind.

[481] 'Not calculated to bring the war to a close.' See Zumpt, § 662.

[482] *Adversum se erant* is a combination of two constructions —

adversum se essent and *adversum eum erant* — of which we have already observed several instances. Compare [chap. 66](#), and p. 122, note 1 [[note 326](#)].

[483] To *nudatum* supply *fore*, which is to be taken out of the following *esse*; ‘he hoped that Jugurtha would either be deprived of his fortified places, or be compelled to fight.’

[484] *Ne quid* — *timeret*, ‘(requesting him) not to fear anything;’ the imperative of the *oratio recta* is expressed in the *oratio obliqua* by the subjunctive. See Zumpt, § 603.

[89.](#)

[485] *In manus venire*, ‘to come within reach,’ ‘engage in close combat;’ for *manus conserere*, which is much more frequent.

[486] ‘It seemed to be time;’ that is, it seemed to be a favourable moment, or it seemed to be advisable; hence the infinitive *aggredi*. Zumpt, § 659, note.

[487] *Capsa*, a town in the eastern part of Numidia, between the river Bagradas, which empties itself into the sea not far from Carthage, and lake Tritonis: it is believed still to exist under the name of Cafza, and to have been founded by the African Hercules; that is, by Phoenicians; for the Phoenician conquests are ascribed to a Phoenician Hercules, and the north coast of Africa was the principal scene of the enterprises of those seafaring conquerors.

[488] *Immunis*, ‘exempt from taxes.’

[489] Other editions have *quarum* instead of *quorum*. See Zumpt, § 78, note.

[490] *Jugis aqua*, ‘running water,’ or ‘a well perpetually flowing.’

The other water which they used was rain water, and to *pluvia* we must supply *aqua*.

[491] *Africa* — *incultius agebat*, 'Africa, which was in a state of greater want of cultivation;' an unusual transfer of the verb *agere* (to be in a condition) from the inhabitants of a country to the country itself.

90.

[492] 'He was brought into danger' or 'difficulty.'

[493] 'They take more care about pastures than cultivated fields.'

[494] *Exornat*; supply *rem*, *expeditionem*, 'the undertaking or campaign.'

91.

[495] *Per* implies an equal distribution among the centuries and *turmae*.

[496] *Duum* for *duorum* occurs most frequently in connection with *milium*. See Zumpt, § 115, note 2.

[497] *Res trepidae*, 'a dangerous situation.'

[498] Sallust feels that he must excuse or explain the destruction of a town which had surrendered at discretion.

92.

[499] 'All things, not only his good arrangements, were interpreted as good services,' so that to *non* we have to supply *modo*. For the phrase *in virtutem trahere*, see [chap. 85](#): *ducere in conscientiam*.

[500] 'He was either himself endowed with a divine mind, or

everything was revealed to him by divine inspiration.'

[501] *Capsensium*; supply *res*, 'the undertaking against Capsa;' for the name of the inhabitants of a town is often used for that of the town itself.

[502] 'For it was on all sides steep, as if made so by human hands, and purposely.' The accusative *omnia* is to be taken adverbially, 'on all sides,' just as we frequently find *cetera* and *reliqua*. See Zumpt, § 459. Other editions and inferior manuscripts have *per omnia*, *omni parte*, *omnis*, all of which are only attempts to explain the true reading.

[503] 'For the fort contained a sufficient number of men, arms, and provisions.' This is the reading of the manuscripts; in modern editions *et* is omitted, and the passage is given with the following punctuation: *nam castello virorum atque armorum satis, magna vis frumenti*, which seems indeed to be supported by the sense; but violates the rule, that when there are three nouns, the conjunction must either be used twice, or omitted altogether.

[504] 'The road of the inhabitants of the castle;' that is, the only road which led up to the castle.

[505] 'Do their work ;' namely, break through the wall.

93.

[506] *Aestuans* is here used figuratively of one who is in care and anxiety.

[507] *Ligus*, 'a Ligurian,' belonging to the country of Liguria, which was then not yet considered as belonging to Italy, and the capital of which was Genoa. Four cohorts of Ligurian auxiliaries in the Roman army were mentioned in [chap. 77](#), and those auxiliaries

were no doubt of great service to the Romans in this war, since they were accustomed to climbing, ascending heights, and other hardships, from their own mountainous country. Livy, too, praises the quickness, perseverance, and adroitness of the Ligurians in the petty warfare in which they were engaged for many years against the Romans.

[508] *Egressus est*, the same as *escendit* or *evasit*, 'he got up.'

[509] 'The desire to accomplish difficult things changed his mind,' inasmuch as he gave up collecting snails, and planned an attack upon the castle.

[510] 'He drew an accurate plan of the area of the castle,' as from his high position he could survey the whole. It is indeed hard to suppose that the Ligurian had with him the necessary drawing materials; but *perscribit* may possibly mean only to mark such points as would enable the soldier to make an accurate drawing of the locality after his return to the camp.

[511] 'The Numidians were most intently observing the combatants, being with them.'

[512] 'Marius despatched some of his followers to test the promises of the Ligurian.'

[513] 'Out of the horn-blowers and trumpeters he chose five in number.' *Numero* is almost superfluous.

94.

[514] *Pergit*; namely, *Ligus*.

[515] 'That it might proceed more easily.'

[516] 'In order that, if they stumbled against anything, they might make less noise.'

[517] 'And the roots which, owing to their old age, were standing forth;' for the roots of old trees rise out of the ground, and such knots remain on the surface even when the trees no longer exist.

[518] 'He himself foremost (*potissimus*) tried those places which it was doubtful (dangerous) to climb up.'

[519] 'And then immediately withdrawing;' namely, in order to make room for those who followed.

[520] 'The inconsiderate boldness of Marius (of attacking an impregnable fortress), when it became adjusted (justified, *correcta*) by chance, found praise instead of blame.' The sudden terror of the Numidians on their hearing the military music of the Romans in their rear, was, according to Sallust, most advantageous to the Romans; for if the Numidians, while engaged in fighting, had despatched fifty men, they might easily have thrown down the few Romans who had found their way up; for the number of four centurions for the protection of the trumpeters is indeed surprisingly small, and we might almost be inclined to suppose that these centurions were followed by their centuries at some distance.

95.

[521] *Quos* refers to the *equites* implied in the word *equitatus*. This is a construction *ad sensum*, of which many examples occur in Sallust (compare [Cat. 7](#)), though the present case is rather unusual.

[522] *Res*, 'the subject,' 'the present discussion,' or 'the context of the narrative.'

[523] *Persecutus*; supply *Sullae naturam cultumque*. L. Sisenna,

an early contemporary of Cicero, had written a history of the civil war between Marius and Sulla; he was himself a partisan of Sulla, and therefore not quite unbiassed in his judgment.

[524] The patrician gens to which Sulla belonged was the gens Cornelia. The statement that the family of Sulla was almost extinct, in consequence of the inactivity of the ancestors of the great Sulla, applies to their loss of power and influence rather than to a physical decay of the family.

[525] *Atque doctissime*, 'and that very profoundly;' the same as *et doctissime quidem*.

[526] *Nisi quod* adds a limitation or exception to something stated before. Here the preceding praise is qualified or limited by the remark, that in his matrimonial relation he might have behaved better; for he was married several times, and chose his wives at the spur of a momentary passion. *Potuit consuli*; supply *ab eo*; that is, *potuisset consulere*.

[527] *Amicitia facilis*, 'pleasing and agreeable in his friendship or friendly intercourse.'

[528] *Altitudo animi*, the unfathomableness of a man's character and designs — a character which shows nothing outwardly of what is going on within. Such a character has all the requisites to become hypocritical, *ad simulationem et dissimulationem*.

[529] 'His good fortune was never greater than his activity;' that is, his activity was equal to his good fortune, and he therefore deserved all praise. But his doings after his victory in the civil war are utterly condemned by Sallust, who then assigns to him neither good-luck nor activity.

[530] For *intra breves tempestates*, see note 3, page 59 [[note 304 in Cat.](#)].

[531] *Id laboro*. See Zumpt, § 385. *Ut illi deberent* should properly be *sibi* or *ipsi*; but see Zumpt, § 550.

[532] *Multus adesse*, 'he was present in many places,' multiplying, as it were, his own person. Compare [chap. 84](#).

[97.](#)

[533] *Rationes trahere* implies slow and careful deliberation, as in chaps. [34](#) and [93](#).

[534] *Die* for *diei*. See page 115, note 3 [[note 289](#)].

[535] 'The night would not be an obstacle to them' (in their pursuit). *Nullo* obsolete for *nulli*. See Zumpt, § 140.

[536] *Simul cognovit* — *et hostes aderant*, 'he at once learned — and the enemy was there;' that is, between the receiving of the information and the actual attack of the enemy there was no interval. *Sarcinas colligere*; the baggage was laid down before an engagement, and put together in a heap, as in *Caes. Bell. Gall.* vii. 18.

[537] *Signum* here is 'the watchword,' which is given out by the general, and is communicated among the soldiers by one man telling another. Sometimes *signum* is the signal given by a *cornu* or *tuba*. To make the former known throughout an army required some time, but not so the latter. *Signa* afterwards are the standards of the maniples, cohorts, and legions.

[538] *Latrocinium*, 'a predatory attack,' as opposed to a regular battle.

[539] *Obtruncare* in opposition to *caedere* (cut down) signifies 'to

mutilate by cutting off a limb or limbs.’ The word *multos* is chosen here only for variety’s sake, instead of *alios*.

[540] The words *veteres novique* express a whole sentence: ‘as old and new soldiers were united in the several divisions (maniples and cohorts) of the army;’ and it is to this meaning that *ob ea* (for this reason) refers. The scattered Romans, as old and new soldiers were everywhere mixed together, profited by the experience of the old ones, and formed dense circles (we should say *squares*), which was, in fact, the only safe means of warding off the attack of a superior enemy.

98.

[541] *Quam tamen — nihil remittere*, ‘while the barbarians nevertheless did not leave off.’ For *quum* with the historical infinitive, see Zumpt, § 582. *Pro se*, ‘favourable to them.’

[542] Marius occupies two hills close by each other, the one only to have the command of water, but the other to pitch his camp on, as it required only to be slightly fortified. *Quaerebat* for *requirebat*, which is more common in this sense.

[543] ‘As the enemy also had fallen into no less confusion;’ so that *neque*, being properly used for *et non*, must here be taken for *etiam non* or *ne — quidem*.

[544] *Pleno gradu*, ‘at a quick pace,’ which, however, is not running. This retreat up the hill is, after all, a proof that the Romans had been worsted in the attack.

[545] *Fugere, ut pro*, is the reading of the manuscripts, ‘as they did not flee, they acted as though they were the victors.’ *Ut pro*

signifies 'both as victors and as if they were,' the *ut* and *pro* signifying nearly the same thing.

99.

[546] 'Not even the signals were to be sounded, which were usually heard at the different night watches.' The night was divided by the Romans into four watches (*vigiliae*), the beginning of which was announced by a horn (*buccina*). *Canere* is here used intransitively, 'to sound,' as in [Cat. chap. 59](#) Below, it is used transitively, in the sense of 'to blow,' or 'give a signal.'

[547] The description of the consternation among the barbarians is in some parts very minute. *Formido* is the highest degree of fear (*timor*), which almost makes people mad, whence the addition *quasi vecordia*.

100.

[548] The superlative *dextimus* does not differ in meaning from the positive *dexter*. See Zumpt, § 114, note 1.

[549] *Minime cari*; that is, *maxime viles*, 'who were most indifferent,' or 'valueless to him,' whose lives he was least inclined to spare.

[550] 'As if he had not placed (there) any commander.' *Imponere*, used absolutely, 'to appoint,' namely, in the place spoken of. *Nullo* for *nemine*, the ablative as well as the genitive of *nemo* not being in use.

[551] *Cogebat*; supply *armatos intentosque esse*.

[552] Construe *neque secus castra munire, atque iter facere*; that

is, his care in securing the camp was as great as that which he displayed in marching.

[553] The singular *in porta* is here used because the author is speaking especially of that gate which faced the enemy (the *porta praetoria* opposite the *porta decumana*). At this gate a strong body of outposts (*excubitores*) was stationed, consisting of the most trustworthy soldiers.

[554] *Futurum, quae imperavisset*, an old-fashioned mode of speaking for *futura esse, quae*. Besides this passage, there is no other certain instance of such an expression in the classical writers of Rome; but the grammarian Gellius has proved, by many examples, that in the earlier times it was by no means uncommon.

[555] 'Than that the exertion, if equally shared with them (soldiers) by the commander, should be agreeable to the soldiers.' *Aliquid mihi est volenti*. See p. 139, note 1 [[note 441](#)].

[556] *Malum* is here the same as 'punishment,' or *poena*.

[557] *Nisi tamen* introduces a modification or limitation of the doubt expressed before respecting the real motive of Marius's indulgence. Compare p. 92, note 2 [[note 153](#)].

[101.](#)

[558] *Hostes adesse intellegitur* is a nominative with the infinitive, for *intellegunt hostem adesse*. See Zumpt, § 607. It is, however, not impossible that *hostis* may be the accusative plural for *hostes*.

[559] *Aequae*, 'equally;' for Jugurtha hoped that at any rate one of his detachments would attack the Romans in the rear; but as he did not know to which part the Romans would direct their front, each of his detachments might equally reach a position in the rear

of the Romans.

[560] The meaning is — Sulla caused the cavalry which he commanded on the right wing, on the whole, to keep quiet, and only to repel individual enemies that might approach; but he himself and other commanders alternately galloped forth with single *turmae* forming close bodies, and attacked the enemy.

[561] *Neque* — *affuerant*, without repeating the relative pronoun, which, being the subject, should be in the nominative, for *sed* — *qui non affuerant*, or *neque ii — affuerant*. The omission is singular, but not without other examples. See Zumpt, § 806. The *prior pugna* is the one described in chaps. [97-99](#).

[562] ‘He rode secretly, with few companions,’ to another place, where the Mauretanian infantry were attacking the rear of the Romans. *Convertit* for *convertit se*. See Zumpt, § 145.

[563] Respecting the position of *quos adversum*, instead of *adversum quos*, see Zumpt, § 324.

[564] That is, *ipsius comitibus*.

[565] ‘By making a skilful movement with his body,’ *dum corpore evitat tela*.

[566] A very graphic description of a field of battle after the fighting is over. *Afflicti*, ‘thrust down to the ground,’ implying the notion of persons being severely wounded. *Niti*, ‘to attempt to rise.’ *Qua visus erat*, ‘as far as one could see.’

[102.](#)

[567] *Post ea loci*, ‘afterwards.’

[568] ‘Whither he had at first directed his march. ‘*Profectus* might have been omitted, but its meaning is, ‘having once set out on his

march.'

[569] 'About what was useful to him and to the Roman people.'

[570] *Placuit*; supply *eos*, which might also have been expressed by the relative pronoun, *quos placuit*. See Zumpt, § 804. The ambassadors, having been summoned by the king himself to hear his proposals, were not under the necessity of addressing him; but they probably had orders to speak first, in order that, if he were not favourably inclined towards the Romans, they might try to win him over, or if he were favourably disposed, to strengthen him in his designs.

[571] *Rati*; namely, *Romani*, which must be taken out of *populo Romano*.

[572] The manuscripts have *esses*, which can be explained only by an amalgamation of the two clauses, and might be conceived as a form of politeness which is not contained in *perpersus es*.

[573] The infinitive *placuisse* depends on *scilicet*, which is here quite the same as *scire licet*, as in chaps. [4](#) and [113](#). In ordinary language, *scilicet* is a mere adverb, 'evidently,' 'forsooth.'

[574] 'You have many opportunities;' consequently the same as *magnam opportunitatem*. See Zumpt, § 756.

[575] *Demittere in pectus*, 'to impress upon one's mind,' *sibi persuadere*.

[576] This is a diplomatic falsehood, as hitherto Bocchus had committed no act of hostility towards Jugurtha, and had occupied no part of Numidia against his will; but it may be that Jugurtha had promised to give up to him a part of Numidia, if he should succeed in recovering the whole. That Bocchus actually wished to have a part of Numidia, is clear from his negotiation with Sulla, [chap. 111](#).

[577] *Tum*, 'now.' See Zumpt, § 732.

[578] Namely, *legates mittendi*, 'after he had obtained permission to despatch an embassy to Rome.'

103.

[579] *Hibernacula*, 'a winter-camp;' the same as *hiberna*, 'winter-quarters;' for in [chap. 100](#) it was stated that Marius ordered quarters to be taken in the maritime towns. It is, however, doubtful whether he placed the whole army in those towns, or whether he ordered a portion to spend the winter in barracks, or leathern tents made for the purpose. If the latter — *in hibernaculis* is used in its proper sense.

[580] *Turrim* is here the same as *castellum*. *Perfugae omnes* are not 'all the deserters,' but 'nothing but deserters,' or 'all deserters;' for all the soldiers of the garrison consisted of deserters.

[581] *Venerant* has the meaning of *evenerant*. Respecting *sibi* for *ipsi*, see p. 121, note 2 [[note 320](#)].

[582] *Reliquerat*, not 'he had left them behind,' which is the usual meaning of *relinquo*, but 'he had left them unbribed:' that is, he had neglected to bribe them.

[583] That is, he had given him the praetorian imperium during his absence, and thereby appointed him independent commander.

[584] 'He did not treat them as untrustworthy enemies;' for they were still enemies engaged in war with the Roman people, no peace having yet been concluded. The epithet *vani* belongs to them, because their master had hitherto shown himself irresolute, sometimes suing for peace, and sometimes carrying on war. *Accurate*, 'with care,' 'with respect.'

[585] *Volens* expresses a hearty inclination to do that which one does.

[586] 'Were considered as acts of kindness,' as parts or proofs of a kindly disposition.

[587] *Benevolentiae sunt*, 'are calculated to produce good-will' towards the king.

104.

[588] Sulla undoubtedly had his quarters near the Mauretanian frontier; that is, in the extreme west; as the ambassador of Bocchus fled to him. Marius summoned him to his head-quarters, Cirta, whither he also summoned the praetor Bellienus from Utica. This praetor was no doubt *propraetor* of the province of Africa, sent thither from Rome to undertake the regular administration, but he was at the same time placed at the disposal of the consul Marius; for as a *propraetor* had the *jus praetorem* in his province, he was sometimes simply called praetor; thus Verres is often called praetor of Sicily. All the other military commanders who happened to be in the province, and were of senatorial rank, were likewise summoned to Cirta, in order to give weight and dignity to the preliminary negotiations for peace, for its real conclusion rested with the senate.

[589] *Ea*, the neuter plural, though referring to *induciae*.

[590] Namely, when previously they have been successful, as had hitherto been the case with the Roman war.

[591] The manuscripts have *Rufone*, which unusual name must be corrected either into *Rufo* or *Rusone*. We prefer *Rufo*, because Suetonius, in his life of Octavianus, mentions the *Octavii Rufi* as a

senatorial family of the time here spoken of.

[592] *Deprecati sunt*; that is, *deprecantes dixerunt*; for *deprecari* properly signifies 'to avert something by prayers.'

[593] *Gratiam facere*, 'to grant pardon for something.' To *quoniam poenitet* we must supply *eum*.

105.

[594] 'By whose decision a final determination might be come to respecting the common affairs.' Respecting the ablative *arbitratu*, see Zumpt, § 190.

[595] The infantry which, besides an escort of Roman cavalry, was sent to accompany Sulla, consisted of light-armed troops, who were prepared both to march through uncultivated districts, and to fight with the barbarians. Roman infantry could not have kept up with the cavalry. The inhabitants of the Balearian Islands (Majorca, Minorca, and Iviza) were celebrated in antiquity as slingers; and as *socii* of the Romans, they furnished slingers for the Roman armies. Their weapon was a leathern sling, by which leaden balls were thrown, with great skill and accuracy, at a distance of 500 paces. The *Pelignians* are a people of central Italy, not far from the Adriatic, with two important towns, Corfinium and Sulmo. All the Italian nations which had then not yet received the Roman franchise furnished their auxiliary cohorts of 400, 500, or 800 men to the Roman army. Whether the Pelignians always bore *arma velitaria* (a round shield, a short sword, and a light javelin), or whether they did so only on this occasion, is doubtful; but it seems that this was their proper armour.

[596] *Non amplius*. See Zumpt, § 485.

[597] 'They tried (tested) their arms and darts, and directed them against the supposed enemy,' but without making actual use of them.

[598] 'As was in reality the case;' namely, that the approaching cavalry had no hostile intentions.

106.

[599] To this and the following infinitive we must supply *dicit*, which is to be taken out of the preceding *negat*. See Zumpt, § 774.

[600] *Mansurum potius, quam — vitae parceret* is correctly said, though it might also be *quam vitae parsurum*. See Zumpt, § 603, 2. The indicative *quos ducebat* is a remark of the historian; *quos duceret* would be a remark of the speaker, which would here have been the regular form. *Coenatos esse*, 'they were to have finished dining.' See Zumpt, § 148.

[601] *Ante eos*, 'before them;' that is, on the road along which they had to march.

107.

[602] 'He protects the Mauretanian against violence.'

[603] A dative. See Zumpt, § 419.

[604] The same as *inermibus*. See Zumpt, § 101. *Nudum et caecum corpus*, 'the undefended part of the body, and not provided with eyes;' that is, the back, which a person ought not to turn towards the enemy, if he wants to be safe.

[605] 'It seemed to him to be the most advisable.' Instead of *factu*,

other editions have *factum*, 'it seemed to him to be the best thing.'

[606] 'As the matter stood,' a limitation suggesting that, under other circumstances, that dangerous way would not have been chosen.

[607] 'As they had come upon him unexpectedly,' for Jugurtha had not imagined that the Romans would thus, without negotiation, pass through his lines.

108.

[608] 'As ambassador with a public commission,' though at the same time he privately acted the part of a spy.

[609] 'That he kept firmly and unalterably everything which had been previously determined upon with Sulla.'

[610] 'In order that the common business might be conducted the more carelessly.' The laying aside of fear in the presence of Jugurtha's ambassador was to induce Sulla to carry on the negotiations for peace more openly, frankly, and incautiously, since, under the influence of fear, he would have been cautious and mistrustful. *Non pertimescere* are joined together as one idea, somewhat in the sense of *contemnere*, 'he should disregard' the ambassador, and accordingly act with Bocchus more confidentially.

[611] The infinitive of the impersonal passive *cavetur ab insidiis*, 'precaution is taken against snares.'

[612] *Punica fides* is proverbially the same as *mala fides*, the Carthaginians being generally regarded by the Romans as perfidious double-dealers. *Attinere* is the same as *morari*, 'to

detain.'

[613] 'His inclination.'

109.

[614] 'And says (which must be taken from the preceding *jubet*) that as yet he had determined upon nothing.' As past time is here spoken of, it should properly not be *etiamnunc*, but *etiamtunc*; and it is doubtful as to whether the reading of some manuscripts *tum etiam* ought not to be received into the text. If *etiamnunc* is correct, we must explain it by supposing that the historian abandons the character of a narrator of past events, and transfers himself to the present.

[615] 'A conscientious (trustworthy) man, and acceptable to both' (Sulla and Bocchus).

110.

[616] The king calls the quaestor Sulla a private person, being unwilling, as a king, to allow any one a public character who is not, like himself, a king. But in the opinion of the Romans, the quaestor Sulla was by no means a private person.

[617] 'I have assisted many at their request, and others of my own accord (unasked), while I myself was in need of no man's assistance.'

[618] *Fuerit mihi eguisse*, the concessive mood: 'granting that it was the case that I needed,' might also have been expressed simply by *eguerim*.

[619] 'This you may try at once.' For this meaning of *adeo*,

whereby that which precedes is confirmed by the result, see Zumpt, § 281.

[620] 'Unimpaired,' 'in the same condition.'

[621] We should express the same idea rather thus: *regem munificentia vinci flagitiosius est, quam armis*.

[622] About *factum volui*, see Zumpt, § 611.

[623] 'Your wish will not be refused by me.' Bocchus no doubt here alludes to the surrender of Jugurtha, but he is yet doubtful as to whether it is worthy of himself.

111.

[624] 'What he promised them, they would not consider as a favour (as a thing for which they owed him gratitude); that he must do something beyond, something that might appear to be their interest more than his.'

[625] 'Would then come to him,' implying an advantage gained without exertion.

[626] *Negitare*, a rare word, but very expressive; for the simple *negare*, in a case like this, is stronger than a repeated assertion that you cannot, or will not, do a certain thing. The *affinitas* (connexion by marriage) refers to what is mentioned [chap. 80](#), a daughter of Bocchus being married to Jugurtha. Respecting their *cognatio* (relation by blood) nothing is known, but there must have been a family connexion between the neighbouring kings. *Intervenisse* — that is, *factum esse* — referring especially to *foedus*.

112.

[627] 'That the war could be brought to a close by mutual concessions.'

[628] *Pax conventa*, 'the peace which is agreed upon.' Observe the rare use of the passive participle; for *convenire* is commonly intransitive — as *pax convenit*, a 'peace is concluded.'

[629] *In potestatem habere* is ungrammatical for *in potestate habere*, but is found now and then. See Zumpt, § 316.

[630] The expression is somewhat contorted; for the inserted clause *non sua ignavia sed ob rem publicam* should have a verb of its own, which, however, would be a part of the leading verb — namely, *qui in hostium potestate esset*.

113.

[631] 'In contradiction with themselves,' 'contradictory.'

[632] 'The king first summoned his councillors, then dismissed them immediately, and for a long time meditated by himself.' *Ceteris* refers to the preceding *amicis*, but is used instead of *iis*, to form antithesis to himself: 'after the removal of all the rest, he deliberated by himself.'

[633] *Vultus*, chiefly 'the look of the eyes,' but also 'the features of the countenance,' by which the inward emotions are manifested; hence Sallust here, by the addition of *corporis*, opposes the outward expression to the emotions of the mind: 'He changed (varied) in the expression of his bodily features as much as in his sentiments.' *Quae scilicet patefecisse*, 'which, as could be seen, revealed his mental emotions.' *Quae* is the neuter plural, and *scilicet* contains the leading verb.

[634] That is, *ut praeceptum erat*, and not *dictum* in the sense of

edictum; for according to the deceitful agreement, the *condiciones pacis* were to be determined peaceably.

[635] Sallust passes very rapidly over the catastrophe of a king who had worn out, by simulation and war, the Roman armies for six years. He was taken prisoner in B.C. 106, when Marius was no longer consul, but yet remained in Africa as proconsul. Sulla considered the capture of Jugurtha to be an event so important, and to himself so glorious, that he had it engraved on his sealing ring.

114.

[636] 'During the same time;' that is, the time during which Marius, as proconsul, was still in Africa, occupied no doubt with the regulation of the affairs which, owing to the long war, had fallen into disorder. Bocchus received a part of western Numidia, as far as the river Ampsaga; and Numidia was divided between Hiempsal and Hiarbas, two princes of the family of Masinissa. These and other matters detained Marius in Africa during the year B.C. 105, in which the Romans under the consul Gn. Manlius and the proconsul Q. Caepio, suffered a great defeat from the Cimbri, on the river Rhodanus. This led to the second consulship of Marius, in B.C. 104. The people whom Sallust here calls Gauls (*Galli*) are the Cimbri and Teutones, German tribes coming from the countries about the Elbe. This mistake must be accounted for by the general difficulty of distinguishing Celtic (Gallic) from Germanic tribes, and also by the circumstance that the Cimbri had for many years been wandering about in Gaul.

[637] *Illique*; that is, the Romans then living, as opposed to those

in the time of Sallust. *Sic habuere*, 'entertained this opinion.'

[638] *Certare*; supply *se*; unless we read *certari*, to which it is easier to supply a *se*.

[639] On the 1st of January B.C. 104. We may here observe, that Jugurtha, after he had adorned the triumphal procession at Rome, was put to death in the public prison near the Forum — which is described by Sallust, [Cat. 55](#) — at the same hour in which Marius offered up his thanksgiving to Jupiter Optimus Maximus in the Capitol.

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